Francis Nielsen v. Kekai Watanabe, No. 25-417 (U.S.)

Francis Nielsen v. Kekai Watanabe

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Francis Nielsen v. Kekai Watanabe

No. 25-417 · docketed October 7, 2025 · cert. granted June 22, 2026

United States Court of Appeals for the Ninth Circuit, No. 23-15605, decided September 6, 2024; rehearing denied June 5, 2025.

Questions presented (the Clerk's statement)

Unknown Named Agents of Federal Bureau of Narcotics, 403 U.S. 388 (1971). In Carlson v. Green, 446 U.S. 14 (1980), the Court extended Bivens to an Eighth Amendment claim of deliberate indifference to medical needs where prison officials failed to address an inmate's acute asthma attack and exacerbated it, causing his death on-site within hours. Since then, this Court has emphasized that the creation of damages actions rests with Congress, not courts. The judicially created Bivens remedy thus cannot be ex-tended to any "new Bivens context" if any "special factor counsel[s] hesitation" in doing so. Ziglar v. Abbasi, 582 U.S. 120, 139-140 (2017). "[T]he new-context inquiry is easily satisfied," encompassing cases with "'meaningful[ly]'" different facts, or "'potential special factors' "-including "alternative remedial structures"-" 'not consider[ed]'" in the Court's prior cases. Egbert v. Boule, 596 U.S. 482, 492-493 (2022). "[A] court may not recognize a Bivens remedy" if "there is any reason to think that Congress might be better equipped to create a damages remedy." Id. at 492. In this case, respondent alleged that he suffered a fractured coccyx in a prison gang fight, causing chronic pain, but was not sent to a hospital. The Ninth Circuit held the suit did not present a "new" context from Carlson-not-withstanding an alternative remedial scheme this Court did not consider in Carlson, and despite significant factual differences such as the immediacy and severity of the harm alleged. The question presented is: Whether the Ninth Circuit here erred in recognizing a Bivens cause of action.

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Authorities the filings share.

Not part of the record. Reporter citations in each filing, resolved to CourtListener clusters through the local database (`scotus.py`); counts are mentions. Sides: the parties' filings plus the amici supporting each.

Petitioners' side: 96 cases (party 60, amici 62), 661 mentions.
Respondent's side: 217 cases (party 82, amici 173), 754 mentions.
Cited by both parties: 27 cases (both sides counting amici: 53); by amici only: 145.

Every authority is listed by side in the table after this box ("Every authority, by side").

Engagement with the decision below (of each filing's cases, how many the court of appeals also cites; 19 there): Pet. 5/20; Br. in Opp. 6/51; Cert. Reply 1/14; Supplemental 0/0; Supplemental 0/0; Supplemental 1/3; Supplemental 1/3; Pet'rs Br. 8/35; United States Amicus Br. 7/37; Elaine Mittleman Amicus Br. 6/23; Missouri Amicus Br. 6/20; Resp. Br. 7/53; Medical Justice Alliance Amicus Br. 2/8; Roderick & Solange MacArthur Amicus Br. 2/3; Institute for Justice Amicus Br. 4/41; American Civil Liberties Union Amicus Br. 6/52; Professor Stephen I. Vladeck Amicus Br. 6/32; Professor James E. Pfander Amicus Br. 5/24; Dee Deidre Farmer Amicus Br. 6/37; Neutral Principles Amicus Br. 1/6; Cato Institute Amicus Br. 1/23; Constitutional Accountability Center Amicus Br. 5/29; Reply Br. 4/22

Coupling between the filings (shared cases ÷ cases cited by either of the two, %; amici grouped by stage and side, with the number of briefs; n = cases cited; appendices not counted)

	A	B	C	D	E	F	G	H	I	J	K	L	M	n
A Pet.	·	27	42	0	0	5	10	20	11	17	19	6	15	20
B Br. in Opp.	27	·	16	0	0	2	4	12	28	12	16	13	9	51
C Cert. Reply	42	16	·	0	0	0	0	14	6	9	12	4	3	14
D Supplemental	0	0	0	·	0	0	0	0	0	0	0	0	0	0
E Supplemental	0	0	0	0	·	0	0	0	0	0	0	0	0	0
F Supplemental	5	2	0	0	0	·	50	3	2	4	2	1	5	3
G Supplemental	10	4	0	0	0	50	·	3	2	4	3	1	5	3
H Pet'rs Br.	20	12	14	0	0	3	3	·	19	27	24	14	17	35
I Resp. Br.	11	28	6	0	0	2	2	19	·	17	16	16	11	53
J Reply Br.	17	12	9	0	0	4	4	27	17	·	18	9	11	22
K Merits amici, pet. (3)	19	16	12	0	0	2	3	24	16	18	·	14	11	62
L Merits amici, resp. (10)	6	13	4	0	0	1	1	14	16	9	14	·	5	173
M Below	15	9	3	0	0	5	5	17	11	11	11	5	·	19

Amici: United States (peti.): closest to Pet'rs Br., 33%; Elaine Mittleman (peti.): closest to Pet., 16%; Missouri (peti.): closest to Pet., 21%; Medical Justice Alliance (resp.): closest to Pet., 12%; Roderick & Solange MacArthur (resp.): closest to Pet'rs Br., 6%; Institute for Justice (resp.): closest to Resp. Br., 15%; American Civil Liberties Union (resp.): closest to Pet'rs Br., 24%; Professor Stephen I. Vladeck (resp.): closest to Pet'rs Br., 24%; Professor James E. Pfander (resp.): closest to Resp. Br., 18%; Dee Deidre Farmer (resp.): closest to Pet., 21%; Neutral Principles (resp.): closest to Br. in Opp., 6%; Cato Institute (resp.): closest to Reply Br., 5%; Constitutional Accountability Center (resp.): closest to Resp. Br., 19%

Areas each side draws on (share of mentions by the cited case's co-citation area)

Area	Pet.	Resp.
Section 1983, qualified immunity and prisoner rights	85%	66%
(no area)	5%	7%
Class actions, separation of powers and 2025 suits against	2%	4%
ACCA and the categorical approach	2%	2%
Asylum and immigration review	1%	3%
Federal courts: sovereign immunity and implied rights of a	0%	3%
Standing and judicial review of agency action	0%	2%
Federal preemption, labor arbitration and ERISA	0%	2%
Suits against the United States: FTCA, Feres and Bivens	1%	2%
Ballot access and election regulation (Anderson-Burdick)	0%	1%
Federal Indian law	0%	1%
Federal habeas under AEDPA	1%	0%

↑

Every authority, by side

Not part of the record. Pet./Resp.: mentions by the side's party filings and by its amici, apart; Filings = party+amici filings citing it, pet./resp. Bands follow the parties: a case one party cites and the other side reaches only through amici sits in the citing party's band. Below = cited in the court of appeals' opinion. Cite is what `tribonian case fetch -cite` takes.

#	Case	Cite	Pet. party	Pet. amici	Resp. party	Resp. amici	Filings	Below
Cited by both parties								
1	Ziglar (2017)	582 U.S. 120	86	33	31	39	4+3/3+6	x
2	Carlson (1980)	446 U.S. 14	27	25	22	38	3+3/2+9	x
3	Egbert (2022)	596 U.S. 482	76	35	17	25	3+3/2+6	x
4	Goldey (2025)	606 U.S. 942	32	18	10	3	4+2/2+3	
5	Malesko (2001)	534 U.S. 61	10	9	6	6	4+2/2+5	
6	Davis (1979)	442 U.S. 228	9	4	4	5	2+3/2+2	x
7	Minneci (2012)	565 U.S. 118	4	6	4	3	2+1/2+3	
8	Bivens (1971)	403 U.S. 388	22	14	3	34	3+3/2+8	x
9	Laquan Johnson v. Elaine Terry (2024)	119 F.4th 840	10	1	3	1	2+1/1+1	
10	McCarthy (1992)	503 U.S. 140	2	–	6	6	1+0/1+4	
11	Boyle (1988)	487 U.S. 500	2	–	6	2	1+0/2+1	
12	Rowland (2024)	121 F.4th 1237	4	1	2	–	2+1/1+0	
13	Kevin Brooks v. Josh Richardson (2025)	131 F.4th 613	5	–	2	–	2+0/1+0	
14	Green (1978)	48 A.L.R. Fed. 576	3	–	2	2	1+0/1+1	x
15	Donald Snowden v. Jeremy Henning (2023)	72 F.4th 237	2	1	2	–	1+1/2+0	
16	Sandoval (2001)	532 U.S. 275	3	4	1	6	2+2/1+3	
17	Schweiker (1988)	487 U.S. 412	6	3	1	1	2+1/1+1	
18	Hui (2010)	559 U.S. 799	1	–	3	6	1+0/2+5	
19	Edwards (2021)	593 U.S. 255	1	8	1	–	1+2/1+0	
20	Roy Sargeant v. Aracelie Barfield (2023)	87 F.4th 358	5	–	1	3	2+0/1+1	
21	Spaulding (2024)	113 F.4th 311	4	–	1	2	1+0/1+1	
22	Stanley (1987)	483 U.S. 669	3	2	1	1	2+1/1+1	
23	Waltermeyer (2025)	136 F.4th 361	4	1	1	–	2+1/1+0	
24	Hernandez (2024)	124 F.4th 325	4	–	1	–	2+0/1+0	
25	Joseph Mays v. T. Smith (2023)	70 F.4th 198	1	–	2	–	1+0/1+0	
26	Raimondo (2024)	603 U.S. 369	1	1	1	–	1+1/1+0	
27	Booth (2001)	532 U.S. 731	1	–	1	–	1+0/1+0	
The petitioners, not the respondent								
28	Hernández (2020)	589 U.S. 93	41	4	–	32	4+1/0+4	
29	Brown (2022)	596 U.S. 118	5	–	–	–	1+0/0+0	
30	Wheeldin (1963)	373 U.S. 647	4	–	–	1	2+0/0+1	
31	Bush (1983)	462 U.S. 367	3	7	–	11	2+2/0+4	x
32	Mohamed (2024)	100 F.4th 1214	3	2	–	–	2+1/0+0	
33	Westfall (1988)	484 U.S. 292	3	1	–	3	1+1/0+1	
34	Gino Carlucci v. Rachel Chapa (2018)	884 F.3d 534	2	–	–	–	1+0/0+0	
35	Scott Callahan v. Fed. Bureau of Prisons (2020)	965 F.3d 520	2	–	–	–	1+0/0+0	
36	Webster (1925)	266 U.S. 507	2	–	–	–	2+0/0+0	
37	Armstrong (2015)	575 U.S. 320	2	–	–	2	1+0/0+1	
38	Gregg (1976)	428 U.S. 153	2	–	–	1	2+0/0+1	
39	Borak (1964)	377 U.S. 426	2	–	–	–	1+0/0+0	
40	Chappell (1983)	462 U.S. 296	1	7	–	1	1+1/0+1	x
41	Turner (1987)	482 U.S. 78	1	2	–	–	1+1/0+0	
42	Meyer (1994)	510 U.S. 471	1	1	–	1	1+1/0+1	
43	Wilkie (2007)	551 U.S. 537	1	1	–	5	1+1/0+4	
44	Woodford (2006)	548 U.S. 81	1	1	–	1	1+1/0+1	
45	Harmelin (1991)	501 U.S. 957	1	–	–	1	1+0/0+1	
46	Kekai Watanabe v. Estela Derr (2024)	115 F.4th 1034	1	–	–	1	1+0/0+1	
47	Texas Industries (1981)	451 U.S. 630	1	–	–	1	1+0/0+1	
48	Janus (2018)	585 U.S. 878	1	–	–	–	1+0/0+0	
49	William Bulger v. Hugh Hurwitz (2023)	62 F.4th 127	1	–	–	1	1+0/0+1	
50	Levin (2013)	568 U.S. 503	1	–	–	–	1+0/0+0	

#	Case	Cite	Pet. party	Pet. amici	Resp. party	Resp. amici	Filings	Below
51	Stephen Koprowski v. Karen Baker (2016)	822 F.3d 248	1	–	–	–	1+0/0+0	
52	Kekai Watanabe v. Estela Derr (2025)	139 F.4th 1056	1	–	–	–	1+0/0+0	
53	Atkins (2002)	536 U.S. 304	1	–	–	–	1+0/0+0	
54	Citizens United (2010)	558 U.S. 310	1	–	–	–	1+0/0+0	
55	Hood (1946)	327 U.S. 678	1	–	–	1	1+0/0+1	
56	Sineneng-Smith (2020)	590 U.S. 371	1	–	–	–	1+0/0+0	
57	Poindexter (1885)	114 U.S. 270	1	–	–	1	1+0/0+1	
58	Kennedy (2008)	554 U.S. 407	1	–	–	–	1+0/0+0	
59	Wolfish (1979)	441 U.S. 520	1	–	–	–	1+0/0+0	
60	Hartman (2006)	547 U.S. 250	1	–	–	–	1+0/0+0	
The respondent, not the petitioners								
61	Porter (2002)	534 U.S. 516	–	–	11	3	0+0/2+2	
62	Hernandez (2020)	589 U.S. 93	–	–	7	11	0+0/2+2	
63	Michigan v. Bay Mills Indian Community (2014)	572 U.S. 782	–	–	6	1	0+0/2+1	
64	Estelle (1976)	429 U.S. 97	–	2	4	10	0+2/2+4	
65	Kimble (2015)	576 U.S. 446	–	1	4	2	0+1/2+1	
66	Hilton (1991)	502 U.S. 197	–	–	4	–	0+0/2+0	
67	Erie R. Co. (1938)	304 U.S. 64	–	–	2	5	0+0/2+3	
68	Scientific-Atl. (2008)	552 U.S. 148	–	–	2	2	0+0/1+1	
69	Ross (2016)	578 U.S. 632	–	–	2	2	0+0/2+1	
70	Cannon (1979)	441 U.S. 677	–	–	2	2	0+0/2+1	
71	Ramos (2020)	590 U.S. 83	–	–	2	1	0+0/2+1	
72	Lewis (1979)	444 U.S. 11	–	–	2	1	0+0/2+1	
73	Shalala (2000)	529 U.S. 1	–	–	2	–	0+0/2+0	
74	Dobbs (2022)	597 U.S. 215	–	–	2	–	0+0/2+0	
75	Ebay Inc. v. Mercexchange, L. L. C. (2006)	547 U.S. 388	–	–	2	–	0+0/1+0	
76	Farmer (1994)	511 U.S. 825	–	–	1	17	0+0/1+4	
77	Tanzin (2020)	592 U.S. 43	–	–	1	14	0+0/1+4	
78	United States v. Smith (1991)	499 U.S. 160	–	–	1	6	0+0/1+2	
79	Butz (1978)	438 U.S. 478	–	–	1	5	0+0/1+4	
80	Rodriguez De Quijas v. Shearson/American Express, Inc. (1989)	490 U.S. 477	–	–	1	1	0+0/1+1	
81	Belknap (1896)	161 U.S. 10	–	–	1	1	0+0/1+1	
82	Harlow (1982)	457 U.S. 800	–	2	1	1	0+1/1+1	
83	Sosa (2004)	542 U.S. 692	–	3	1	1	0+2/1+1	
84	Spicer (1926)	191 N.C. 487	–	–	1	1	0+0/1+1	
85	Liles Et Al. v. Oregon (1976)	425 U.S. 963	–	–	1	–	0+0/1+0	
86	State Ex Rel. Morris v. National Surety Co. (1931)	9 Smith & H. 547	–	–	1	–	0+0/1+0	
87	Sabbatino (1964)	376 U.S. 398	–	–	1	–	0+0/1+0	
88	Roscoe Chambers v. C. Herrera (2023)	78 F.4th 1100	–	–	1	–	0+0/1+0	x
89	Gamble (2019)	587 U.S. 678	–	–	1	–	0+0/1+0	
90	Piper (1977)	430 U.S. 1	–	–	1	–	0+0/1+0	
91	WRTL (2007)	551 U.S. 449	–	–	1	–	0+0/1+0	
92	United States v. Oregon State Medical Society (1952)	343 U.S. 326	–	–	1	–	0+0/1+0	
93	Tharpe (2018)	583 U.S. 33	–	–	1	–	0+0/1+0	
94	Bartenwerfer (2023)	598 U.S. 69	–	–	1	–	0+0/1+0	
95	Holland (2004)	542 U.S. 649	–	–	1	–	0+0/1+0	
96	Cutter (2005)	544 U.S. 709	–	–	1	–	0+0/1+0	
97	Sexton (2018)	585 U.S. 961	–	–	1	–	0+0/1+0	
98	Erickson (2007)	551 U.S. 89	–	–	1	–	0+0/1+0	x
99	Brame (1878)	95 U.S. 754	–	–	1	–	0+0/1+0	
100	Bucklew (2019)	587 U.S. 119	–	–	1	–	0+0/1+0	

#	Case	Cite	Pet. party	Pet. amici	Resp. party	Resp. amici	Filings	Below
101	Ingraham (1977)	430 U.S. 651	–	–	1	–	0+0/1+0	
102	Parden (1964)	377 U.S. 184	–	–	1	–	0+0/1+0	
103	McKnight (1997)	521 U.S. 399	–	–	1	–	0+0/1+0	
104	Nelson J. Elliott v. Samuel Swartwout (1836)	35 U.S. 137	–	–	1	–	0+0/1+0	
105	Central Bank of Denver, N. A. v. First Interstate Bank of D… (1994)	511 U.S. 164	–	–	1	–	0+0/1+0	
106	Howard (1959)	360 U.S. 593	–	–	1	–	0+0/1+0	
107	Blue Chip Stamps v. Manor Drug Stores (1975)	421 U.S. 723	–	–	1	–	0+0/1+0	
108	Vreeland (1913)	227 U.S. 59	–	1	1	–	0+1/1+0	
109	Cummings v. Missouri (1867)	71 U.S. 277	–	–	1	–	0+0/1+0	
110	Kurns (2012)	565 U.S. 625	–	–	1	–	0+0/1+0	
111	Cort (1975)	422 U.S. 66	–	–	1	–	0+0/1+0	
112	Agostini (1997)	521 U.S. 203	–	–	1	–	0+0/1+0	
113	Chisom (1991)	501 U.S. 380	–	–	1	–	0+0/1+0	
114	Students for Fair Admissions, Inc. v. President and Fellows… (2023)	600 U.S. 181	–	–	1	–	0+0/1+0	
115	Seminole Tribe of Florida v. Florida (1996)	517 U.S. 44	–	–	1	–	0+0/1+0	
Amici only (no party cites it)								
116	Radiya Buchanan v. William Barr (2023)	71 F.4th 1003	–	–	–	11	0+0/0+1	
117	Franklin (1992)	503 U.S. 60	–	–	–	9	0+0/0+4	
118	United States v. Lee (1882)	106 U.S. 196	–	–	–	6	0+0/0+4	
119	Lewis (2018)	584 U.S. 497	–	–	–	6	0+0/0+1	
120	Reynolds (2010)	559 U.S. 633	–	–	–	6	0+0/0+1	
121	Hernandez (2017)	582 U.S. 548	–	–	–	5	0+0/0+1	
122	Byrd (2021)	990 F.3d 879	–	1	–	3	0+1/0+2	
123	Teague (1989)	489 U.S. 288	–	3	–	–	0+2/0+0	
124	Davis (1989)	489 U.S. 803	–	–	–	3	0+0/0+1	
125	Mittleman (1991)	773 F. Supp. 442	–	3	–	–	0+1/0+0	
126	Harmony (1852)	54 U.S. 115	–	–	–	3	0+0/0+1	
127	Little (1804)	6 U.S. 170	–	–	–	3	0+0/0+1	
128	Hawo Ahmed v. Heather Weyker (2020)	984 F.3d 564	–	–	–	3	0+0/0+2	
129	Goar (1982)	688 F.2d 27	–	–	–	3	0+0/0+1	
130	Martin (2025)	605 U.S. 395	–	–	–	3	0+0/0+2	
131	Iqbal (2009)	556 U.S. 662	–	1	–	2	0+1/0+1	x
132	Appling (2018)	584 U.S. 709	–	–	–	3	0+0/0+1	
133	Elaine Mittleman v. United States (1997)	104 F.3d 410	–	2	–	–	0+1/0+0	
134	Ex Parte Young (1908)	209 U.S. 123	–	–	–	2	0+0/0+2	
135	Strieff (2016)	579 U.S. 232	–	–	–	2	0+0/0+1	
136	Jesner (2018)	584 U.S. 241	–	–	–	2	0+0/0+1	
137	Curran (1982)	456 U.S. 353	–	–	–	2	0+0/0+1	
138	Tony Fisher v. Jordan Hollingsworth (2024)	115 F.4th 197	–	–	–	2	0+0/0+1	
139	In Re Kemmler (1890)	136 U.S. 436	–	–	–	2	0+0/0+1	
140	Batterton (2019)	588 U.S. 358	–	2	–	–	0+1/0+0	
141	Elgin (2012)	567 U.S. 1	–	2	–	–	0+1/0+0	
142	Browder (2015)	787 F.3d 1076	–	–	–	2	0+0/0+1	
143	Exxon Mobil Corp. v. Allapattah Services, Inc. (2005)	545 U.S. 546	–	–	–	2	0+0/0+1	
144	Bolling (1954)	347 U.S. 497	–	–	–	2	0+0/0+1	
145	Marbury (1803)	5 U.S. 137	–	–	–	2	0+0/0+1	
146	Osborn (2007)	549 U.S. 225	–	1	–	1	0+1/0+1	
147	Jones (2007)	549 U.S. 199	–	1	–	1	0+1/0+1	
148	Gillespie (1980)	629 F.2d 637	–	–	–	2	0+0/0+2	
149	Brown (2011)	563 U.S. 493	–	–	–	2	0+0/0+2	

#	Case	Cite	Pet. party	Pet. amici	Resp. party	Resp. amici	Filings	Below
150	Miles (1990)	498 U.S. 19	–	–	–	2	0+0/0+1	
151	Unicolors, Inc. v. H&M Hennes & Mauritz, L. P. (2022)	595 U.S. 178	–	–	–	2	0+0/0+1	
152	Doe (2021)	593 U.S. 628	–	2	–	–	0+1/0+0	
153	Mitchell Garraway v. Jacquiline Ciufo (2024)	113 F.4th 1210	–	2	–	–	0+1/0+0	
154	Procunier (1974)	416 U.S. 396	–	1	–	1	0+1/0+1	
155	Steve Marquez v. C. Rodriguez (2023)	81 F.4th 1027	–	–	–	2	0+0/0+1	
156	Peter Bistrian v. Troy Levi (2018)	912 F.3d 79	–	–	–	2	0+0/0+1	
157	Muhammad (1984)	739 F.2d 122	–	–	–	2	0+0/0+1	
158	Bates v. Clark (1877)	95 U.S. 204	–	–	–	2	0+0/0+2	
159	Payne (1991)	501 U.S. 808	–	1	–	–	0+1/0+0	
160	Persin (2018)	143 Haw. 283	–	–	–	1	0+0/0+1	
161	Morton (1974)	417 U.S. 535	–	–	–	1	0+0/0+1	
162	Jama (2005)	543 U.S. 335	–	–	–	1	0+0/0+1	
163	Hall (2012)	566 U.S. 506	–	–	–	1	0+0/0+1	
164	Wilson (1999)	526 U.S. 603	–	–	–	1	0+0/0+1	
165	Standard Oil (1947)	332 U.S. 301	–	–	–	1	0+0/0+1	
166	Murthy (2024)	603 U.S. 43	–	–	–	1	0+0/0+1	
167	Jackson (2005)	544 U.S. 167	–	–	–	1	0+0/0+1	
168	Wood (2014)	572 U.S. 744	–	–	–	1	0+0/0+1	
169	FDA (2025)	606 U.S. 226	–	–	–	1	0+0/0+1	
170	Square D (1986)	476 U.S. 409	–	–	–	1	0+0/0+1	
171	Youngstown (1952)	343 U.S. 579	–	–	–	1	0+0/0+1	
172	Kevin Gillan v. Calvin Edwards (1985)	780 F.2d 1021	–	–	–	1	0+0/0+1	
173	Logsdon (2024)	91 F.4th 1352	–	–	–	1	0+0/0+1	
174	Simmons (2016)	578 U.S. 621	–	–	–	1	0+0/0+1	
175	Rose (1982)	455 U.S. 509	–	1	–	–	0+1/0+0	
176	DeShaney (1989)	489 U.S. 189	–	–	–	1	0+0/0+1	
177	al-Kidd (2011)	563 U.S. 731	–	–	–	1	0+0/0+1	
178	Thompson (2025)	604 U.S. 408	–	–	–	1	0+0/0+1	
179	Earl X. Smoake v. J. T. Willingham, Warden, United States P… (1966)	359 F.2d 386	–	–	–	1	0+0/0+1	
180	Joselyn Santiago v. Raytheon Technologies Corporation (2020)	973 F.3d 1254	–	–	–	1	0+0/0+1	
181	Hinderlider (1938)	304 U.S. 92	–	–	–	1	0+0/0+1	
182	Dickerson (2000)	530 U.S. 428	–	–	–	1	0+0/0+1	
183	Chevron (1984)	467 U.S. 837	–	1	–	–	0+1/0+0	
184	Comstock (2010)	560 U.S. 126	–	1	–	–	0+1/0+0	
185	Logan (1892)	144 U.S. 263	–	–	–	1	0+0/0+1	
186	Allen (2023)	599 U.S. 1	–	–	–	1	0+0/0+1	
187	Jones (1977)	433 U.S. 119	–	1	–	–	0+1/0+0	
188	Vullo (2024)	602 U.S. 175	–	–	–	1	0+0/0+1	
189	John B. Tarlton, Jr. v. United States (1970)	429 F.2d 1297	–	–	–	1	0+0/0+1	
190	Youngberg (1982)	457 U.S. 307	–	–	–	1	0+0/0+1	
191	Christopher Shorter v. United States (2021)	12 F.4th 366	–	–	–	1	0+0/0+1	
192	Muniz (1963)	374 U.S. 150	–	1	–	–	0+1/0+0	
193	Schindler Elevator Corp. v. United States ex rel. Kirk (2011)	563 U.S. 401	–	–	–	1	0+0/0+1	
194	NFIB (2012)	567 U.S. 519	–	1	–	–	0+1/0+0	
195	Nixon (1927)	273 U.S. 536	–	–	–	1	0+0/0+1	
196	Rhonda Fleming v. FCI Tallahassee Warden (2025)	127 F.4th 837	–	1	–	–	0+1/0+0	
197	Spokeo (2016)	578 U.S. 330	–	–	–	1	0+0/0+1	
198	Kirtz (2024)	601 U.S. 42	–	–	–	1	0+0/0+1	

#	Case	Cite	Pet. party	Pet. amici	Resp. party	Resp. amici	Filings	Below
199	Hartford Underwriters (2000)	530 U.S. 1	–	–	–	1	0+0/0+1	
200	Ramirez (2021)	594 U.S. 413	–	–	–	1	0+0/0+1	
201	Collins (2018)	584 U.S. 586	–	–	–	1	0+0/0+1	
202	Lamagno (1995)	515 U.S. 417	–	1	–	–	0+1/0+0	
203	McDonald (2010)	561 U.S. 742	–	–	–	1	0+0/0+1	
204	Fischer (2024)	603 U.S. 480	–	–	–	1	0+0/0+1	
205	Lorillard (1978)	434 U.S. 575	–	–	–	1	0+0/0+1	
206	Conrad L. Hoever v. R. Marks (2021)	993 F.3d 1353	–	–	–	1	0+0/0+1	
207	Neal (1996)	516 U.S. 284	–	–	–	1	0+0/0+1	
208	United States v. Kwai Fun Wong (2015)	575 U.S. 402	–	–	–	1	0+0/0+1	
209	Lewis v. Sullivan (2002)	279 F.3d 526	–	1	–	–	0+1/0+0	
210	Helling (1993)	509 U.S. 25	–	–	–	1	0+0/0+1	
211	Keifer & Keifer v. Reconstruction Finance Corp. (1939)	306 U.S. 381	–	–	–	1	0+0/0+1	
212	Danforth (2008)	552 U.S. 264	–	–	–	1	0+0/0+1	
213	Thacker (2019)	587 U.S. 218	–	–	–	1	0+0/0+1	
214	NSPE (1978)	435 U.S. 679	–	1	–	–	0+1/0+0	
215	MacKey (1971)	401 U.S. 667	–	1	–	–	0+1/0+0	
216	Funk (1933)	290 U.S. 371	–	–	–	1	0+0/0+1	
217	Florence (2012)	566 U.S. 318	–	1	–	–	0+1/0+0	
218	Edwards (2024)	107 F.4th 81	–	1	–	–	0+1/0+0	
219	Martin (2005)	546 U.S. 132	–	–	–	1	0+0/0+1	
220	Bufkin (2025)	604 U.S. 369	–	–	–	1	0+0/0+1	
221	Lohr (1996)	518 U.S. 470	–	–	–	1	0+0/0+1	
222	Stimson (1912)	223 U.S. 605	–	–	–	1	0+0/0+1	
223	Medina (2025)	606 U.S. 357	–	–	–	1	0+0/0+1	
224	Michael Sparks v. Ronald Fuller, Etc., Ashley A. Flagg v. J… (1974)	506 F.2d 1238	–	–	–	1	0+0/0+1	
225	Johnson (2015)	576 U.S. 591	–	1	–	–	0+1/0+0	
226	Bruen (2022)	597 U.S. 1	–	–	–	1	0+0/0+1	
227	Brice (1979)	604 F.2d 664	–	–	–	1	0+0/0+1	
228	David Green v. United States (1960)	283 F.2d 687	–	–	–	1	0+0/0+1	
229	Imbler (1976)	424 U.S. 409	–	–	–	1	0+0/0+1	
230	Kisela (2018)	584 U.S. 100	–	–	–	1	0+0/0+1	
231	Whorton (2007)	549 U.S. 406	–	1	–	–	0+1/0+0	
232	Heller (2008)	554 U.S. 570	–	–	–	1	0+0/0+1	
233	Clearfield Trust Co. v. United States (1943)	318 U.S. 363	–	–	–	1	0+0/0+1	
234	Fausto (1988)	484 U.S. 439	–	1	–	–	0+1/0+0	
235	Haymond (2019)	588 U.S. 634	–	–	–	1	0+0/0+1	
236	Mittleman (1996)	76 F.3d 1240	–	1	–	–	0+1/0+0	
237	Judith Henry v. Essex County (2024)	113 F.4th 355	–	–	–	1	0+0/0+1	
238	Rucho (2019)	588 U.S. 684	–	–	–	1	0+0/0+1	
239	Gomez-Perez (2008)	553 U.S. 474	–	–	–	1	0+0/0+1	
240	Pierson (1967)	386 U.S. 547	–	–	–	1	0+0/0+1	
241	Curtis (1974)	415 U.S. 189	–	–	–	1	0+0/0+1	
242	The Apollon. (1824)	22 U.S. 362	–	–	–	1	0+0/0+1	
243	Ali (2008)	552 U.S. 214	–	–	–	1	0+0/0+1	
244	Boyd (1886)	116 U.S. 616	–	–	–	1	0+0/0+1	
245	Rhodes (1981)	452 U.S. 337	–	–	–	1	0+0/0+1	
246	Dan S. Hessbrook v. M.C. Lennon, Jr., D.A. French, and J. S… (1986)	777 F.2d 999	–	–	–	1	0+0/0+1	
247	Townsend (2009)	557 U.S. 404	–	–	–	1	0+0/0+1	
248	Crawford-El (1998)	523 U.S. 574	–	–	–	1	0+0/0+1	

#	Case	Cite	Pet. party	Pet. amici	Resp. party	Resp. amici	Filings	Below
249	Jose Oliva v. United States of America (2020)	973 F.3d 438	–	–	–	1	0+0/0+1	
250	Donald Vance v. Donald Rumsfeld (2012)	701 F.3d 193	–	–	–	1	0+0/0+1	
251	Daniels (1986)	474 U.S. 327	–	–	–	1	0+0/0+1	
252	Kiowa Tribe of Oklahoma v. Manufacturing Technologies, Inc. (1998)	523 U.S. 751	–	–	–	1	0+0/0+1	
253	Cruz (1972)	405 U.S. 319	–	–	–	1	0+0/0+1	
254	William H. Tracy and John B. Balestier, in Error v. Samuel… (1836)	35 U.S. 80	–	–	–	1	0+0/0+1	
255	Midlantic National Bank v. New Jersey Department of Environ… (1986)	474 U.S. 494	–	–	–	1	0+0/0+1	
256	Goodyear Atomic (1988)	486 U.S. 174	–	–	–	1	0+0/0+1	
257	Albert Earle Smith-Bey v. Hospital Administrator (1988)	841 F.2d 751	–	–	–	1	0+0/0+1	
258	Wilson (1991)	501 U.S. 294	–	–	–	1	0+0/0+1	
259	Whitley (1986)	475 U.S. 312	–	–	–	1	0+0/0+1	
260	Pearson (2009)	555 U.S. 223	–	1	–	–	0+1/0+0	

↑

Statutes and provisions the filings cite.

Not part of the record. Statutes, regulations and constitutional provisions cited in each filing (its appendix left out), at section level; a short form ("§ 26.5-4-205") takes the code of the last full cite. Named = mentions by name ("the First Amendment"), counted apart. Sides: the parties' filings plus the amici supporting each.

Petitioners' side: 34 provisions (party 26, amici 16), 90 citations.
Respondent's side: 30 provisions (party 14, amici 21), 114 citations.
Cited by both parties: 6 provisions (both sides counting amici: 11); by amici only: 19.

The law in question (named in the questions presented or a party's provisions-involved section): U.S. Const. amend. IV; U.S. Const. amend. VIII; 18 U.S.C. § 3626; 42 U.S.C. § 1997e; 28 C.F.R. § 542.10

Coupling between the filings (shared provisions ÷ provisions cited by either of the two, %; amici grouped by stage and side, with the number of briefs; n = provisions cited; appendices not counted)

	A	B	C	D	E	F	G	H	I	J	K	L	n
A Pet.	·	20	0	0	0	0	0	20	20	25	22	17	6
B Br. in Opp.	20	·	17	0	0	0	0	15	29	25	22	23	6
C Cert. Reply	0	17	·	0	0	0	0	4	8	25	6	5	1
D Supplemental	0	0	0	·	0	0	0	0	0	0	0	0	0
E Supplemental	0	0	0	0	·	0	0	0	0	0	0	0	0
F Supplemental	0	0	0	0	0	·	0	0	0	0	0	0	1
G Supplemental	0	0	0	0	0	0	·	0	0	0	0	0	0
H Pet'rs Br.	20	15	4	0	0	0	0	·	20	17	25	15	24
I Resp. Br.	20	29	8	0	0	0	0	20	·	23	33	14	12
J Reply Br.	25	25	25	0	0	0	0	17	23	·	25	14	4
K Merits amici, pet. (3)	22	22	6	0	0	0	0	25	33	25	·	19	16
L Merits amici, resp. (10)	17	23	5	0	0	0	0	15	14	14	19	·	21

↑ Every provision, by side

Pet./Resp.: mentions by the side's party filings and by its amici, apart; Filings = party+amici filings citing it, pet./resp. Bands follow the parties: a case one party cites and the other side reaches only through amici sits in the citing party's band. Named = mentions by name, pet./resp. (amici included).

		Pet.		Resp.			
#	Provision	party	amici	party	amici	Filings	Named
The law in question (questions presented; provisions involved)							
1	U.S. Const. amend. IV	–	–	–	–	0+0/0+0	15/17
2	U.S. Const. amend. VIII	1	–	–	2	1+0/0+1	48/96
3	18 U.S.C. § 3626	5	1	2	–	2+1/1+0	
4	42 U.S.C. § 1997e	12	3	13	7	3+1/2+4	
5	28 C.F.R. § 542.10	6	1	3	1	2+1/2+1	
Cited by both parties							
6	28 U.S.C. § 2679	6	3	8	29	3+1/2+8	
7	28 U.S.C. § 1346	1	1	2	2	1+1/2+2	
8	46 U.S.C. § 30302	2	1	1	–	2+1/1+0	
The petitioners, not the respondent							
9	5 U.S.C. § 413	8	1	–	–	1+1/0+0	
10	42 U.S.C. § 1983	7	3	–	5	3+2/0+3	
11	18 U.S.C. § 1365	2	–	–	–	1+0/0+0	
12	28 U.S.C. § 1254	2	–	–	–	2+0/0+0	
13	U.S. Const. art. I	1	–	–	–	1+0/0+0	
14	2 U.S.C. § 1302	1	–	–	–	1+0/0+0	
15	2 U.S.C. § 1311	1	–	–	–	1+0/0+0	
16	5 U.S.C. § 8105	1	–	–	–	1+0/0+0	
17	5 U.S.C. § 8133	1	–	–	–	1+0/0+0	
18	5 U.S.C. § 8102a	1	–	–	–	1+0/0+0	
19	18 U.S.C. § 844	1	–	–	–	1+0/0+0	
20	18 U.S.C. § 3621	1	–	–	–	1+0/0+0	
21	28 U.S.C. § 2674	1	–	–	–	1+0/0+0	
22	28 U.S.C. § 2680	1	–	–	6	1+0/0+4	
23	33 U.S.C. § 909	1	–	–	–	1+0/0+0	
24	33 U.S.C. § 1001	1	–	–	–	1+0/0+0	
25	42 U.S.C. § 1952	1	–	–	–	1+0/0+0	
26	42 U.S.C. § 1992	1	–	–	–	1+0/0+0	
27	28 C.F.R. § 50.15	1	–	–	–	1+0/0+0	
The respondent, not the petitioners							
28	28 U.S.C. § 2671	–	–	1	1	0+0/1+1	
29	2 U.S.C. § 1361	–	–	1	–	0+0/1+0	
30	5 U.S.C. § 8102	–	–	1	–	0+0/1+0	
31	15 U.S.C. § 78u-4	–	–	1	–	0+0/1+0	
32	33 U.S.C. § 908	–	–	1	–	0+0/1+0	
33	34 U.S.C. § 30302	–	1	1	–	0+1/1+0	
34	45 U.S.C. § 51-60	–	–	1	–	0+0/1+0	
35	28 C.F.R. § 542.12	–	–	1	–	0+0/1+0	
Amici only (no party cites it)							
36	28 U.S.C. § 1331	–	–	–	5	0+0/0+2	
37	U.S. Const. art. III	–	–	–	4	0+0/0+2	
38	28 U.S.C. § 2676	–	–	–	3	0+0/0+3	
39	34 U.S.C. § 30301	–	1	–	2	0+1/0+1	
40	28 U.S.C. § 1350	–	2	–	–	0+2/0+0	
41	28 C.F.R. § 542.18	–	–	–	2	0+0/0+1	
42	5 U.S.C. § 705	–	–	–	1	0+0/0+1	
43	5 U.S.C. § 1101	–	1	–	–	0+1/0+0	

#	Provision	Pet. party	Pet. amici	Resp. party	Resp. amici	Filings	Named
44	18 U.S.C. § 242	–	1	–	–	0+1/0+0	
45	28 U.S.C. § 1442	–	–	–	1	0+0/0+1	
46	28 U.S.C. § 1606	–	1	–	–	0+1/0+0	
47	29 U.S.C. § 666	–	1	–	–	0+1/0+0	
48	34 U.S.C. § 30304	–	1	–	–	0+1/0+0	
49	28 C.F.R. § 542.13	–	–	–	1	0+0/0+1	
50	Cal. Civ. Code § 52.1	–	–	–	1	0+0/0+1	
51	Mass. Const. pt. 1, art. XXX	–	–	–	1	0+0/0+1	
52	Mass. Gen. Laws ch. 12, § 11H	–	–	–	1	0+0/0+1	
53	Me. Stat. tit. 5, § 4682	–	–	–	1	0+0/0+1	
54	N.J. Stat. Ann. § 10:6-2	–	–	–	1	0+0/0+1	

↑ U.S. Code provisions in the case law

Not part of the record. The U.S. Code provisions the filings cite, most cited first, as the case law sees them: the co-citation areas whose appellate decisions cite each most in the newest five years (share of the area's decisions), the decisions citing it most cited by later courts, and the newest appellate ones. A mark = a case the filings cite too. 15 more not shown.

Provision	Areas citing it most	Decisions citing it
28 U.S.C. § 2679 pet. 9, resp. 37 3,501 decisions	–	*Most cited:* Meyer (1994) √; Ziglar (2017) √; Carlson (1980) √ *Newest:* Trey Cholewa v. United States (2026-06-11); Pamon (2026-05-28)
42 U.S.C. § 1997e pet. 15, resp. 20 24,545 decisions	2025–29: around Padgett 22 (6%); Pro se pleadings and Twombly/Iqbal in prisoner suits 14 (1%)	*Most cited:* Farmer (1994) √; Jones (2007) √; Lopez (2000) *Newest:* Tariq Wyatt v. Christina Hauser (2026-06-03); David Watts v. Kevin Jones (2026-05-29)
42 U.S.C. § 1983 pet. 10, resp. 5 296,710 decisions	2025–29: Pro se pleadings and Twombly/Iqbal in prisoner suits 554 (28%); around Pearson 224 (68%)	*Most cited:* Ashcroft (2009) √; Celotex Corp. v. Catrett, Administratrix of the Estate of... (1986); Monell (1978) *Newest:* Tuttle (2026-06-29); Dana Little v. City of Owensboro, Ky. (2026-06-29)
5 U.S.C. § 413 pet. 9, resp. 0 12 decisions	–	*Most cited:* Logsdon (2024) √; Cafeteria and Restaurant Workers Union, Local 473, Afl-Ci... (1960); Monteria Najuda Robinson v. William Sauls (2024) *Newest:* Monteria Najuda Robinson v. William Sauls (2024-06-04); Logsdon (2024-02-05) √
18 U.S.C. § 3626 pet. 6, resp. 2 2,456 decisions	2025–29: Article III standing 6 (1%); Statutory surplusage, delegation and immigration detention (2025) 6 (2%)	*Most cited:* Woodford (2006) √; Porter (2002) √; Wilkinson (2005) *Newest:* Edward Braggs v. Commissioner, Alabama Department of Corr... (2026-06-24); Brooks (2026-06-23)
28 U.S.C. § 2680 pet. 1, resp. 6 8,387 decisions	2025–29: around Carlson 13 (13%); Pro se pleadings and Twombly/Iqbal in prisoner suits 8 (0%)	*Most cited:* Farmer (1994) √; Ben Gary Triestman v. Federal Bureau of Prisons, United S... (2006); Meyer (1994) √ *Newest:* Sansone (2026-06-24); Gengshu He v. Marco Rubio (2026-06-23)
28 U.S.C. § 1346 pet. 2, resp. 4 20,858 decisions	2025–29: around Carlson 22 (22%); Pro se pleadings and Twombly/Iqbal in prisoner suits 17 (1%)	*Most cited:* Ben Gary Triestman v. Federal Bureau of Prisons, United S... (2006); Arbaugh (2006); Meyer (1994) √ *Newest:* Gengshu He v. Marco Rubio (2026-06-23); Sergei Kovalev v. Laboratory Corp of America Holdings (2026-06-12)
28 U.S.C. § 1331 pet. 0, resp. 5 64,844 decisions	2025–29: Pro se pleadings and Twombly/Iqbal in prisoner suits 116 (6%); Employment discrimination: McDonnell Douglas pretext 49 (6%)	*Most cited:* Monell (1978); Bivens (1971) √; Younger (1971) *Newest:* Myron Crisdon v. North Gate II (2026-06-29); Tiffany Turner v. Philadelphia FIGHT (2026-06-29)
46 U.S.C. § 30302 pet. 3, resp. 1 74 decisions	–	*Most cited:* Atlantic Sounding Co. (2009) √; Fraser (2010); Zhang Bin v. Boeing Company (2015) *Newest:* Richard Murphy, III v. Airway Air Charter, Inc. (2026-01-16); Laura Smith v. Boeing Company (2024-08-06)

Provision	Areas citing it most	Decisions citing it
28 U.S.C. § 2676 pet. 0, resp. 3 185 decisions	–	*Most cited:* Dallas Cty. Mental Health and Mental Retardation (1998); Barbara P. Hutchinson v. United States of America (1988); Brownback (2021) *Newest:* James King v. United States (2025-07-10); Justin Longworth v. A. Mansukhani (2025-04-16)
34 U.S.C. § 30301 pet. 1, resp. 2 296 decisions	–	*Most cited:* Christopher Shorter v. United States (2021) √; Tangreti (2020); Kristin Sconiers v. FNU Lockhart (2020) *Newest:* Jane Doe v. Todd Blanche (2026-04-17); S.G. (2026-03-04)
18 U.S.C. § 1365 pet. 2, resp. 0 229 decisions	–	*Most cited:* Jones (1999); Begay (2008); N-A-M (2007) *Newest:* United States v. Everett Nelson (2026-05-26); Ortiz (2026-05-20)
28 U.S.C. § 1254 pet. 2, resp. 0 425 decisions	–	*Most cited:* Miller-El (2003); Harlow (1982) √; Burger King Corp. (1985) *Newest:* Sansone (2026-06-24); United States v. John McLaurin (2026-03-06)
28 U.S.C. § 1350 pet. 2, resp. 0 1,122 decisions	–	*Most cited:* Daimler AG (2014); Grieveson (2008); Sosa (2004) √ *Newest:* Cisco Systems (2026-06-23); Manara (2026-06-15)
28 U.S.C. § 2671 pet. 0, resp. 2 6,789 decisions	2025–29: around Carlson 5 (5%)	*Most cited:* Farmer (1994) √; Amanda Beck, a Minor, by Her Father, Henry J. Beck v. Sec... (1991); Smith v. United States (2009) *Newest:* Gengshu He v. Marco Rubio (2026-06-23); Carroll (2026-04-29)
34 U.S.C. § 30302 pet. 1, resp. 1 94 decisions	–	*Most cited:* Gregory Ricks v. D. Shover (2018); Kristin Sconiers v. FNU Lockhart (2020); Dewayne Bearchild v. Kristy Cobban (2020) *Newest:* JUVENILE JUSTICE PROB. OFFICERS ASSOC. v. CLARK CNTY. (CI... (2026-04-09); Troy Stephens v. Department of Corrections (2025-10-20)
2 U.S.C. § 1302 pet. 1, resp. 0 72 decisions	–	*Most cited:* Brady (2008); Dotson v. Griesa (2005); Fields, Beverly v. Off Eddie Johnson (2006) *Newest:* Caryn Strickland v. United States (2022-04-26); Ooc (2018-11-06)
2 U.S.C. § 1311 pet. 1, resp. 0 90 decisions	–	*Most cited:* Bostock (2020); Gomez-Perez (2008) √; Syed Hassan v. City of New York (2015) *Newest:* Jodi Breiterman v. United States Capitol Police (2021-10-15); Bostock (2020-06-15)
2 U.S.C. § 1361 pet. 0, resp. 1 10 decisions	–	*Most cited:* Blackmon-Malloy (2009); Adams (2008); Bailey (2002) *Newest:* Blackmon-Malloy (2009-07-31)
5 U.S.C. § 705 pet. 0, resp. 1 377 decisions	2025–29: Preliminary injunctions and stays against the government (2025) 7 (2%)	*Most cited:* Abbott Laboratories (1967); Sampson (1974); Monsanto Co. v. Geertson Seed Farms (2010) *Newest:* Mullin (2026-06-25); National Park Conservation Ass'n v. US Dep't of the Interior (2026-06-23)
5 U.S.C. § 1101 pet. 1, resp. 0 348 decisions	–	*Most cited:* Perry (2017); Elgin (2012) √; Garcia (2006) *Newest:* Margolin (2026-05-26); Ishmahil Barrie v. U.S. Attorney General (2026-02-19)
5 U.S.C. § 8102 pet. 0, resp. 1 254 decisions	–	*Most cited:* Andreoli v. Gates (2007); Annamma A. Ezekiel and Al Ezekiel v. Jaime T. Michel and ... (1995); Brown (2016) *Newest:* Randall Spade (2022-02-14); David Bourke v. United States (2022-02-02)
5 U.S.C. § 8105 pet. 1, resp. 0 30 decisions	–	*Most cited:* United States v. Prentice Harold Dawkins (2000); Arcadipane (1994); James L. Hanauer v. Robert B. Reich, Secretary of Labor (1996) *Newest:* Garner (2025-12-09); Roberts (2004-02-04)
5 U.S.C. § 8133 pet. 1, resp. 0 13 decisions	–	*Most cited:* Silbowitz (1975); Tomarchio (1977); Allison (1970) *Newest:* Roy (2003-01-09); Tomarchio (1977-11-03)

Provision	Areas citing it most	Decisions citing it
5 U.S.C. § 8102a pet. 1, resp. 0 1 decisions	–	*Most cited:* Maine Community Health Options v. United States (2020) *Newest:* Maine Community Health Options v. United States (2020-04-27)

↑ Authorities and their status

Not part of the record. Status from `casemap.py goodlaw`: words in later opinions from courts that could overrule it — ● good, ● doubts, ● likely overruled or superseded (a lead to check, with the year the words start). Counts are each side's, amici included; † = cited only by amici, no party.

↑ Common authorities

#	Case	Cite	Status	Kekai Watanabe	Francis Nielsen
1	● Ziglar (2017)	582 U.S. 120	*good*	70	119
2	● Carlson (1980)	446 U.S. 14	*doubts from 2026*	60	52
3	● Egbert (2022)	596 U.S. 482	*doubts from 2025*	42	111
4	● Bivens (1971)	403 U.S. 388	*doubts from 2009*	37	36
5	● Hernández (2020)	589 U.S. 93	*good*	32	45
6	● Goldey (2025)	606 U.S. 942	*good*	13	50
7	● Malesko (2001)	534 U.S. 61	*good*	12	19
8	● Bush (1983)	462 U.S. 367	*good*	11	10
9	● Davis (1979)	442 U.S. 228	*good*	9	13
10	● Minneci (2012)	565 U.S. 118	*doubts from 2016*	7	10
11	● Sandoval (2001)	532 U.S. 275	*good*	7	7
12	● Laquan Johnson v. Elaine Terry (2024)	119 F.4th 840	*good*	4	11
13	● Roy Sargeant v. Aracelie Barfield (2023)	87 F.4th 358	*good*	4	5
14	● Green (1978)	48 A.L.R. Fed. 576	*good*	4	3
15	● Spaulding (2024)	113 F.4th 311	*good*	3	4
16	● Westfall (1988)	484 U.S. 292	*bad law? from 1998*	3	4
17	● Estelle (1976)	429 U.S. 97	*good*	14	2
18	● McCarthy (1992)	503 U.S. 140	*doubts from 2026*	12	2
19	● Schweiker (1988)	487 U.S. 412	*good*	2	9
20	● Boyle (1988)	487 U.S. 500	*good*	8	2
21	● Wilkie (2007)	551 U.S. 537	*good*	5	2
22	● Kevin Brooks v. Josh Richardson (2025)	131 F.4th 613	*good*	2	5
23	● Rowland (2024)	121 F.4th 1237	*good*	2	5
24	● Stanley (1987)	483 U.S. 669	*good*	2	5
25	● Donald Snowden v. Jeremy Henning (2023)	72 F.4th 237	*good*	2	3
26	● Sosa (2004)	542 U.S. 692	*good*	2	3
27	● Harlow (1982)	457 U.S. 800	*good*	2	2
28	● Armstrong (2015)	575 U.S. 320	*doubts from 2017*	2	2
29	● Hui (2010)	559 U.S. 799	*good*	9	1
30	● Edwards (2021)	593 U.S. 255	*good*	1	9
31	● Chappell (1983)	462 U.S. 296	*good*	1	8
32	● Kimble (2015)	576 U.S. 446	*good*	6	1
33	● Waltermeyer (2025)	136 F.4th 361	*good*	1	5
34	● Hernandez (2024)	124 F.4th 325	*good*	1	4
35	● Wheeldin (1963)	373 U.S. 647	*good*	1	4
36	● Byrd (2021) †	990 F.3d 879	*good*	3	1
37	● Joseph Mays v. T. Smith (2023)	70 F.4th 198	*good*	2	1
38	● Iqbal (2009) †	556 U.S. 662	*good*	2	1
39	● Raimondo (2024)	603 U.S. 369	*good*	1	2
40	● Meyer (1994)	510 U.S. 471	*good*	1	2
41	● Woodford (2006)	548 U.S. 81	*good*	1	2
42	● Gregg (1976)	428 U.S. 153	*good*	1	2
43	● Booth (2001)	532 U.S. 731	*good*	1	1
44	● Vreeland (1913)	227 U.S. 59	*good*	1	1
45	● Poindexter (1885)	114 U.S. 270	*good*	1	1
46	● Osborn (2007) †	549 U.S. 225	*good*	1	1
47	● Jones (2007) †	549 U.S. 199	*good*	1	1

#	Case	Cite	Status	Kekai Watanabe	Francis Nielsen
48	● Kekai Watanabe v. Estela Derr (2024)	115 F.4th 1034	*good*	1	1
49	● Hood (1946)	327 U.S. 678	*doubts from 1974*	1	1
50	● Texas Industries (1981)	451 U.S. 630	*good*	1	1
51	● William Bulger v. Hugh Hurwitz (2023)	62 F.4th 127	*good*	1	1
52	● Harmelin (1991)	501 U.S. 957	*good*	1	1
53	● Procunier (1974) †	416 U.S. 396	*bad law? from 1991*	1	1

↑ Each side's own

Kekai Watanabe respondent side only, plaintiff below	**Francis Nielsen** petitioner side only, defendant below
1. ● Hernandez (2020) ×18 589 U.S. 93 — *good*	1. ● Mohamed (2024) ×5 100 F.4th 1214 — *good*
2. ● Farmer (1994) ×18 511 U.S. 825 — *good*	2. ● Brown (2022) ×5 596 U.S. 118 — *good*
3. ● Tanzin (2020) ×15 592 U.S. 43 — *good*	3. ● Turner (1987) ×3 482 U.S. 78 — *good*
4. ● Porter (2002) ×14 534 U.S. 516 — *good*	4. ● Teague (1989) † ×3 489 U.S. 288 — *doubts from 1993*
5. ● Radiya Buchanan v. William Barr (2023) † ×11 71 F.4th 1003 — *good*	5. ● Mittleman (1991) † ×3 773 F. Supp. 442 — *good*
6. ● Franklin (1992) † ×9 503 U.S. 60 — *good*	6. ● Gino Carlucci v. Rachel Chapa (2018) ×2 884 F.3d 534 — *good*
7. ● Michigan v. Bay Mills Indian Community (2014) ×7 572 U.S. 782 — *good*	7. ● Scott Callahan v. Fed. Bureau of Prisons (2020) ×2 965 F.3d 520 — *good*
8. ● Erie R. Co. (1938) ×7 304 U.S. 64 — *bad law? from 1948*	8. ● Webster (1925) ×2 266 U.S. 507 — *good*
9. ● United States v. Smith (1991) ×7 499 U.S. 160 — *good*	9. ● Borak (1964) ×2 377 U.S. 426 — *bad law? from 2006*
10. ● Butz (1978) ×6 438 U.S. 478 — *good*	10. ● Elaine Mittleman v. United States (1997) † ×2 104 F.3d 410 — *good*
11. ● United States v. Lee (1882) † ×6 106 U.S. 196 — *good*	11. ● Mitchell Garraway v. Jacquiline Ciufo (2024) † ×2 113 F.4th 1210 — *good*
12. ● Lewis (2018) † ×6 584 U.S. 497 — *good*	12. ● Elgin (2012) † ×2 567 U.S. 1 — *good*
13. ● Reynolds (2010) † ×6 559 U.S. 633 — *good*	13. ● Batterton (2019) † ×2 588 U.S. 358 — *good*
14. ● Hernandez (2017) † ×5 582 U.S. 548 — *good*	14. ● Doe (2021) † ×2 593 U.S. 628 — *good*
15. ● Ross (2016) ×4 578 U.S. 632 — *good*	15. ● Stephen Koprowski v. Karen Baker (2016) ×1 822 F.3d 248 — *good*
16. ● Hilton (1991) ×4 502 U.S. 197 — *doubts from 1998*	16. ● Sineneng-Smith (2020) ×1 590 U.S. 371 — *good*
17. ● Cannon (1979) ×4 441 U.S. 677 — *good*	17. ● Kekai Watanabe v. Estela Derr (2025) ×1 139 F.4th 1056 — *good*
18. ● Scientific-Atl. (2008) ×4 552 U.S. 148 — *doubts from 2014*	18. ● Atkins (2002) ×1 536 U.S. 304 — *good*
19. ● Ramos (2020) ×3 590 U.S. 83 — *good*	19. ● Wolfish (1979) ×1 441 U.S. 520 — *good*
20. ● Lewis (1979) ×3 444 U.S. 11 — *good*	20. ● Janus (2018) ×1 585 U.S. 878 — *good*

Kekai Watanabe respondent side only, plaintiff below	**Francis Nielsen** petitioner side only, defendant below
21. ● Martin (2025) † ×3 605 U.S. 395 — *good*	21. ● Levin (2013) ×1 568 U.S. 503 — *good*
22. ● Hawo Ahmed v. Heather Weyker (2020) † ×3 984 F.3d 564 — *good*	22. ● Florence (2012) † ×1 566 U.S. 318 — *good*
23. ● Appling (2018) † ×3 584 U.S. 709 — *good*	23. ● Comstock (2010) † ×1 560 U.S. 126 — *good*
24. ● Davis (1989) † ×3 489 U.S. 803 — *good*	24. ● Lewis v. Sullivan (2002) † ×1 279 F.3d 526 — *good*
25. ● Goar (1982) † ×3 688 F.2d 27 — *good*	25. ● Jones (1977) † ×1 433 U.S. 119 — *good*
26. ● Harmony (1852) † ×3 54 U.S. 115 — *doubts from 2010*	26. ● Muniz (1963) † ×1 374 U.S. 150 — *good*
27. ● Little (1804) † ×3 6 U.S. 170 — *good*	27. ● Johnson (2015) † ×1 576 U.S. 591 — *doubts from 2023*
28. ● Rodriguez De Quijas v. Shearson/American Ex… (1989) ×2 490 U.S. 477 — *good*	28. ● Mittleman (1996) † ×1 76 F.3d 1240 — *good*
29. ● Shalala (2000) ×2 529 U.S. 1 — *good*	29. ● Edwards (2024) † ×1 107 F.4th 81 — *good*
30. ● Spicer (1926) ×2 191 N.C. 487 — *good*	30. ● Rhonda Fleming v. FCI Tallahassee Warden (2025) † ×1 127 F.4th 837 — *good*
31. ● Dobbs (2022) ×2 597 U.S. 215 — *good*	31. ● Pearson (2009) † ×1 555 U.S. 223 — *good*
32. ● Ebay Inc. v. Mercexchange, L. L. C. (2006) ×2 547 U.S. 388 — *good*	32. ● Payne (1991) † ×1 501 U.S. 808 — *good*
33. ● Belknap (1896) ×2 161 U.S. 10 — *good*	33. ● Chevron (1984) † ×1 467 U.S. 837 — *bad law? from 2024*
34. ● Brown (2011) † ×2 563 U.S. 493 — *good*	34. ● Lamagno (1995) † ×1 515 U.S. 417 — *good*
35. ● Browder (2015) † ×2 787 F.3d 1076 — *good*	35. ● Fausto (1988) † ×1 484 U.S. 439 — *doubts from 2018*
36. ● Strieff (2016) † ×2 579 U.S. 232 — *good*	36. ● NFIB (2012) † ×1 567 U.S. 519 — *good*
37. ● Curran (1982) † ×2 456 U.S. 353 — *doubts from 2003*	37. ● MacKey (1971) † ×1 401 U.S. 667 — *good*
38. ● Exxon Mobil Corp. v. Allapattah Services, I… (2005) † ×2 545 U.S. 546 — *good*	38. ● Whorton (2007) † ×1 549 U.S. 406 — *good*
39. ● Unicolors, Inc. v. H&M Hennes & Mauritz, L.… (2022) † ×2 595 U.S. 178 — *good*	39. ● Rose (1982) † ×1 455 U.S. 509 — *good*
40. ● Miles (1990) † ×2 498 U.S. 19 — *doubts from 2004*	40. ● NSPE (1978) † ×1 435 U.S. 679 — *good*
41. ● Muhammad (1984) † ×2 739 F.2d 122 — *good*	41. ● Kennedy (2008) ×1 554 U.S. 407 — *good*
42. ● Gillespie (1980) † ×2 629 F.2d 637 — *good*	42. ● Hartman (2006) ×1 547 U.S. 250 — *good*
43. ● Jesner (2018) † ×2 584 U.S. 241 — *good*	43. ● Citizens United (2010) ×1 558 U.S. 310 — *good*

Kekai Watanabe respondent side only, plaintiff below	**Francis Nielsen** petitioner side only, defendant below
44. ● Peter Bistrian v. Troy Levi (2018) † ×2 912 F.3d 79 — *good*	
45. ● Tony Fisher v. Jordan Hollingsworth (2024) † ×2 115 F.4th 197 — *good*	
46. ● Steve Marquez v. C. Rodriguez (2023) † ×2 81 F.4th 1027 — *good*	
47. ● Bolling (1954) † ×2 347 U.S. 497 — *doubts from 2014*	
48. ● Bates v. Clark (1877) † ×2 95 U.S. 204 — *good*	
49. ● Ex Parte Young (1908) † ×2 209 U.S. 123 — *good*	
50. ● Marbury (1803) † ×2 5 U.S. 137 — *good*	
51. ● In Re Kemmler (1890) † ×2 136 U.S. 436 — *good*	
52. ● Roscoe Chambers v. C. Herrera (2023) ×1 78 F.4th 1100 — *good*	
53. ● Gamble (2019) ×1 587 U.S. 678 — *doubts from 2021*	
54. ● Kurns (2012) ×1 565 U.S. 625 — *good*	
55. ● Students for Fair Admissions, Inc. v. Presi… (2023) ×1 600 U.S. 181 — *good*	
56. ● Cummings v. Missouri (1867) ×1 71 U.S. 277 — *good*	
57. ● Bartenwerfer (2023) ×1 598 U.S. 69 — *good*	
58. ● Parden (1964) ×1 377 U.S. 184 — *bad law? from 1987*	
59. ● Chisom (1991) ×1 501 U.S. 380 — *doubts from 1998*	
60. ● Cutter (2005) ×1 544 U.S. 709 — *good*	
61. ● Piper (1977) ×1 430 U.S. 1 — *good*	
62. ● Cort (1975) ×1 422 U.S. 66 — *bad law? from 2018*	
63. ● Nelson J. Elliott v. Samuel Swartwout (1836) ×1 35 U.S. 137 — *good*	
64. ● Howard (1959) ×1 360 U.S. 593 — *good*	
65. ● Tharpe (2018) ×1 583 U.S. 33 — *good*	
66. ● Sexton (2018) ×1 585 U.S. 961 — *good*	
67. ● Liles Et Al. v. Oregon (1976) ×1 425 U.S. 963 — *good*	
68. ● Seminole Tribe of Florida v. Florida (1996) ×1 517 U.S. 44 — *good*	

Kekai Watanabe respondent side only, plaintiff below	**Francis Nielsen** petitioner side only, defendant below
69. • Bucklew (2019) ×1 587 U.S. 119 — *doubts from 2020*	
70. • Brame (1878) ×1 95 U.S. 754 — *good*	
71. • United States v. Oregon State Medical Socie… (1952) ×1 343 U.S. 326 — *good*	
72. • Holland (2004) ×1 542 U.S. 649 — *good*	
73. • Ingraham (1977) ×1 430 U.S. 651 — *good*	
74. • WRTL (2007) ×1 551 U.S. 449 — *good*	
75. • Agostini (1997) ×1 521 U.S. 203 — *good*	
76. • Blue Chip Stamps v. Manor Drug Stores (1975) ×1 421 U.S. 723 — *doubts from 2011*	
77. • Sabbatino (1964) ×1 376 U.S. 398 — *doubts from 2010*	
78. • State Ex Rel. Morris v. National Surety Co. (1931) ×1 9 Smith & H. 547 — *good*	
79. • McKnight (1997) ×1 521 U.S. 399 — *doubts from 2004*	
80. • Erickson (2007) ×1 551 U.S. 89 — *good*	
81. • Central Bank of Denver, N. A. v. First Inte… (1994) ×1 511 U.S. 164 — *good*	
82. • DeShaney (1989) † ×1 489 U.S. 189 — *good*	
83. • Youngberg (1982) † ×1 457 U.S. 307 — *good*	
84. • Michael Sparks v. Ronald Fuller, Etc., Ashl… (1974) † ×1 506 F.2d 1238 — *good*	
85. • Funk (1933) † ×1 290 U.S. 371 — *good*	
86. • Rucho (2019) † ×1 588 U.S. 684 — *good*	
87. • Danforth (2008) † ×1 552 U.S. 264 — *good*	
88. • Judith Henry v. Essex County (2024) † ×1 113 F.4th 355 — *good*	
89. • Boyd (1886) † ×1 116 U.S. 616 — *doubts from 1977*	
90. • Thompson (2025) † ×1 604 U.S. 408 — *good*	
91. • Joselyn Santiago v. Raytheon Technologies C… (2020) † ×1 973 F.3d 1254 — *good*	
92. • Conrad L. Hoever v. R. Marks (2021) † ×1 993 F.3d 1353 — *good*	

Kekai Watanabe respondent side only, plaintiff below	**Francis Nielsen** petitioner side only, defendant below
93. ● Goodyear Atomic (1988) † ×1 486 U.S. 174 — *good*	
94. ● Lohr (1996) † ×1 518 U.S. 470 — *good*	
95. ● Fischer (2024) † ×1 603 U.S. 480 — *good*	
96. ● Simmons (2016) † ×1 578 U.S. 621 — *good*	
97. ● Keifer & Keifer v. Reconstruction Finance C… (1939) † ×1 306 U.S. 381 — *good*	
98. ● Persin (2018) † ×1 143 Haw. 283 — *good*	
99. ● Logsdon (2024) † ×1 91 F.4th 1352 — *good*	
100. ● Jose Oliva v. United States of America (2020) † ×1 973 F.3d 438 — *good*	
101. ● Townsend (2009) † ×1 557 U.S. 404 — *good*	
102. ● Midlantic National Bank v. New Jersey Depar… (1986) † ×1 474 U.S. 494 — *good*	
103. ● Gomez-Perez (2008) † ×1 553 U.S. 474 — *good*	
104. ● Jackson (2005) † ×1 544 U.S. 167 — *good*	
105. ● Medina (2025) † ×1 606 U.S. 357 — *good*	
106. ● FDA (2025) † ×1 606 U.S. 226 — *good*	
107. ● Jama (2005) † ×1 543 U.S. 335 — *good*	
108. ● Martin (2005) † ×1 546 U.S. 132 — *good*	
109. ● Hall (2012) † ×1 566 U.S. 506 — *good*	
110. ● Hartford Underwriters (2000) † ×1 530 U.S. 1 — *good*	
111. ● Kirtz (2024) † ×1 601 U.S. 42 — *good*	
112. ● Morton (1974) † ×1 417 U.S. 535 — *good*	
113. ● Albert Earle Smith-Bey v. Hospital Administ… (1988) † ×1 841 F.2d 751 — *good*	
114. ● Dan S. Hessbrook v. M.C. Lennon, Jr., D.A.… (1986) † ×1 777 F.2d 999 — *good*	
115. ● Brice (1979) † ×1 604 F.2d 664 — *doubts from 1996*	

Kekai Watanabe respondent side only, plaintiff below	**Francis Nielsen** petitioner side only, defendant below
116. • Kevin Gillan v. Calvin Edwards (1985) † ×1 780 F.2d 1021 — *good*	
117. • Nixon (1927) † ×1 273 U.S. 536 — *good*	
118. • Hinderlider (1938) † ×1 304 U.S. 92 — *good*	
119. • Clearfield Trust Co. v. United States (1943) † ×1 318 U.S. 363 — *good*	
120. • Collins (2018) † ×1 584 U.S. 586 — *good*	
121. • Pierson (1967) † ×1 386 U.S. 547 — *good*	
122. • Imbler (1976) † ×1 424 U.S. 409 — *good*	
123. • al-Kidd (2011) † ×1 563 U.S. 731 — *good*	
124. • Kisela (2018) † ×1 584 U.S. 100 — *good*	
125. • Crawford-El (1998) † ×1 523 U.S. 574 — *good*	
126. • Dickerson (2000) † ×1 530 U.S. 428 — *good*	
127. • Wilson (1999) † ×1 526 U.S. 603 — *good*	
128. • Square D (1986) † ×1 476 U.S. 409 — *good*	
129. • Neal (1996) † ×1 516 U.S. 284 — *good*	
130. • Allen (2023) † ×1 599 U.S. 1 — *good*	
131. • Thacker (2019) † ×1 587 U.S. 218 — *good*	
132. • United States v. Kwai Fun Wong (2015) † ×1 575 U.S. 402 — *good*	
133. • Kiowa Tribe of Oklahoma v. Manufacturing Te… (1998) † ×1 523 U.S. 751 — *good*	
134. • Standard Oil (1947) † ×1 332 U.S. 301 — *good*	
135. • Wilson (1991) † ×1 501 U.S. 294 — *good*	
136. • Whitley (1986) † ×1 475 U.S. 312 — *good*	
137. • Rhodes (1981) † ×1 452 U.S. 337 — *good*	
138. • Helling (1993) † ×1 509 U.S. 25 — *good*	
139. • Christopher Shorter v. United States (2021) † ×1 12 F.4th 366 — *good*	
140. • Wood (2014) † ×1 572 U.S. 744 — *good*	

Kekai Watanabe respondent side only, plaintiff below	**Francis Nielsen** petitioner side only, defendant below
141. ● David Green v. United States (1960) † ×1 283 F.2d 687 — *good*	
142. ● Earl X. Smoake v. J. T. Willingham, Warden,… (1966) † ×1 359 F.2d 386 — *good*	
143. ● John B. Tarlton, Jr. v. United States (1970) † ×1 429 F.2d 1297 — *good*	
144. ● Lorillard (1978) † ×1 434 U.S. 575 — *good*	
145. ● William H. Tracy and John B. Balestier, in… (1836) † ×1 35 U.S. 80 — *good*	
146. ● Curtis (1974) † ×1 415 U.S. 189 — *good*	
147. ● Heller (2008) † ×1 554 U.S. 570 — *doubts from 2025*	
148. ● Bruen (2022) † ×1 597 U.S. 1 — *good*	
149. ● McDonald (2010) † ×1 561 U.S. 742 — *good*	
150. ● Schindler Elevator Corp. v. United States e… (2011) † ×1 563 U.S. 401 — *good*	
151. ● Ali (2008) † ×1 552 U.S. 214 — *good*	
152. ● Bufkin (2025) † ×1 604 U.S. 369 — *good*	
153. ● The Apollon. (1824) † ×1 22 U.S. 362 — *good*	
154. ● Youngstown (1952) † ×1 343 U.S. 579 — *good*	
155. ● Donald Vance v. Donald Rumsfeld (2012) † ×1 701 F.3d 193 — *good*	
156. ● Vullo (2024) † ×1 602 U.S. 175 — *good*	
157. ● Murthy (2024) † ×1 603 U.S. 43 — *good*	
158. ● Spokeo (2016) † ×1 578 U.S. 330 — *good*	
159. ● Ramirez (2021) † ×1 594 U.S. 413 — *good*	
160. ● Haymond (2019) † ×1 588 U.S. 634 — *good*	
161. ● Logan (1892) † ×1 144 U.S. 263 — *doubts from 1993*	
162. ● Stimson (1912) † ×1 223 U.S. 605 — *good*	
163. ● Daniels (1986) † ×1 474 U.S. 327 — *good*	
164. ● Cruz (1972) † ×1 405 U.S. 319 — *good*	

Decision Below

Paez, J. opinion of the Court

*Before: Richard A. Paez, Milan D. Smith, Jr., and Lucy H. Koh, Circuit Judges. Opinion by Judge Paez; Partial Concurrence and Partial Dissent by Judge M. Smith SUMMARY * Bivens The panel reversed the district court's dismissal of a Bivens action brought by Kekai Watanabe, incarcerated at Federal Detention Center, who alleged that his Eighth Amendment rights were violated when the medical staff were deliberately indifferent to his serious medical needs. Watanabe alleged that after he sustained severe injuries from an assault, the prison nurse treated him with over-the-counter medication for his pain instead of transporting him to a hospital or permitting him to be examined by a specialist. The panel held that Watanabe's claim does not present a new Bivens context—it is not meaningfully different from the cases in which the Supreme Court has implied a damages action against federal officials for violating the Constitution—and therefore the district court erred in dismissing his Bivens claim. His claim is in all meaningful respects identical to Carlson v. Green, 446 U.S. 14 (1980), where the Supreme Court recognized an implied damages cause of action under the Eighth Amendment against prison officials who acted with deliberate indifference to an incarcerated individual's serious medical needs. Accordingly, the panel reversed and remanded so that Watanabe's Bivens claim could proceed. * This summary constitutes no part of the opinion of the court. It has been prepared by court staff for the convenience of the reader. The panel construed Watanabe's request for injunctive relief related to his ongoing medical care as claims not under Bivens, but rather as standalone claims for injunctive relief, and remanded to the district court to address in its discretion whether Watanabe may amend his request for injunctive relief and to address any claim for injunctive relief in the first instance. Concurring in part and dissenting in part, Judge M. Smith dissented as to the reinstatement of Watanabe's Bivens claim because his claim is meaningfully different than Carlson and therefore presents a new Bivens context. Judge M. Smith concurred in the majority's decision to remand to the district court Watanabe's claim for injunctive relief. COUNSEL D. Dangaran (argued), Sophie Angelis, and Samuel Weiss, Rights Behind Bars, Washington, D.C., for Plaintiff-Appellant. Dana A. Barbata (argued) and Harry Yee, Assistant United States Attorneys; Clare E. Connors, United States Attorney, District of Hawaii; United States Department of Justice, Office of the United States Attorney, Honolulu, Hawaii; for Defendants-Appellees. OPINION*

Kekai Watanabe ("Watanabe"), an incarcerated individual at Federal Detention Center ("FDC") Honolulu, was brutally assaulted during a gang-related fight in July 2021. Watanabe sustained severe injuries, and he later learned that his coccyx had been fractured and bone chips had entered the surrounding soft tissue. Instead of transporting him to a hospital or permitting him to be examined by a specialist, the nurse at FDC Honolulu treated him with nothing more than over-the-counter medication for his pain.

Watanabe filed this damages action under Bivens v. Six Unknown Named Agents of Federal Bureau of Narcotics,[1] alleging that his Eighth Amendment rights were violated when the medical staff at FDC Honolulu were deliberately indifferent to his serious medical needs. While a Bivens remedy—i.e., an implied damages remedy against federal officers for violating the Constitution—exists, the Supreme Court has approved of such a claim in only three cases. See Ziglar v. Abbasi, 582 U.S. 120, 131 (2017) (describing the three cases). One of those cases is Carlson v. Green, 446 U.S. 14 (1980), where the Court recognized an implied damages cause of action when prison officials failed to provide adequate medical treatment in violation of the Eighth Amendment. And while the Court has cautioned [*5] against extending Bivens remedies to new contexts, it has consistently maintained that the three recognized cases are still good law. See, e.g., Ziglar, 582 U.S. at 131 (recognizing three "instances in which the Court has approved of an implied damages remedy under the Constitution itself"); see also Egbert v. Boule, 596 U.S. 482, 490–91 (2022) (iterating the Court's reluctance to recognize new causes of action under Bivens, but nonetheless acknowledging that three Bivens causes of action exist, including the one articulated in Carlson).

Considering this backdrop, when a plaintiff brings a Bivens claim, we must apply a two-step inquiry. First, we ask whether a "case presents 'a new Bivens context'—i.e., is it 'meaningful[ly]' different from the three cases in which the Court has implied a damages action." Egbert, 596 U.S. at 492 (quoting Ziglar, 582 U.S. at 139–40). If the case does not present a new context, we need not proceed to the second step, as "no further analysis is required." Lanuza v. Love, 899 F.3d 1019, 1023 (9th Cir. 2018).

Here, because Watanabe's claim is identical to Carlson in all meaningful respects, we need not consider the second step. Watanabe alleges he suffered deliberate medical indifference while incarcerated, in violation of the Eighth Amendment's proscription against cruel and unusual punishment. Carlson dealt with the exact

[1] Bivens v. Six Unknown Named Agents of Fed. Bureau of Narcotics, 403 U.S. 388 (1971), established that a violation of a citizen's constitutional rights by a federal officer can give rise to a federal cause of action for damages.

same issue. See 446 U.S. at 17–18. The district court thus erred in dismissing Watanabe's Eighth Amendment claim, and we accordingly reverse and remand so that his claim can proceed.

↑ **I. Factual and Procedural Background** [2]

[*6] On July 12, 2021, a gang riot broke out in Unit 5A at FDC Honolulu, where individuals with rival gang affiliations were housed. Watanabe was sitting at a table in Unit 5A when he was attacked by multiple members of a rival gang during the riot and was beaten with an improvised weapon known as a "lock in a sock."

As a result of the beating, Watanabe sustained serious injuries. He and other individuals involved in the incident were sent to solitary confinement units. Prison officials documented Watanabe's "known and visible injuries" and put him on sick call. That evening, Watanabe requested to be seen by medical staff. At that time, Watanabe described his headache and other severe pain he was experiencing to two correctional officers.

Several days later, Watanabe was seen by Defendant Francis Nielsen ("Nielsen"), a staff nurse at FDC Honolulu. Medical records reflect that Watanabe told Nielsen he was experiencing severe back pain, rating the pain as a "10." Watanabe alleges that Nielsen told him "to stop being a cry baby." When Watanabe requested treatment at a hospital, Nielsen refused, replying: "[Y]ou are not going to the hospital."

Watanabe alleged that he was kept in solitary confinement for more than two months after the July 12 incident. During that period, he submitted multiple requests for medical attention. Watanabe was not taken to a hospital[2] [*7] during this time, and to the extent he was treated, he was only given over-the-counter pain medication.

Around seven months later, in February 2022, Watanabe was finally diagnosed with a fractured coccyx, and an x-ray revealed that bone chips had migrated and entered the surrounding soft tissue. At that point, prison officials agreed to send Watanabe to be treated by a specialist.[3]

Watanabe filed his original complaint pro se in the district court, alleging that four officials at FDC Honolulu, including Nielsen, violated his Eighth Amendment rights. He sought monetary damages and injunctive relief directing the warden of FDC Honolulu "to follow United States law regarding the housing of federal inmates." Reviewing the complaint under 28 U.S.C. § 1915, the district court dismissed the majority of Watanabe's claims, but allowed his claim against Nielsen to proceed and granted him leave to amend.

Watanabe filed a First Amended Complaint ("FAC") supplementing his allegations and again seeking damages. He did not explicitly renew his claim for injunctive relief. The district court, upon reviewing the pro se complaint under § 1915, dismissed the FAC in part, again allowing only the claim against Nielsen to proceed. Nielsen filed a motion to dismiss the claim against him for failure to state a claim, which the district court granted, concluding that "Watanabe cannot pursue his claim against Nielsen under Bivens" because "no such Bivens remedy exists" for Watanabe's Eighth Amendment claim. Watanabe timely appealed.

[*8] We have jurisdiction under 28 U.S.C. § 1291, and we review de novo the district court's grant of a motion to dismiss. Chambers v. C. Herrera, 78 F.4th 1100, 1103 (9th Cir. 2023). Dismissal for failure to state a claim under Federal Rule of Civil Procedure 12(b)(6) is appropriate only "if the complaint fails to allege 'enough facts to state a claim to relief that is plausible on its face.'" Fayer v. Vaughn, 649 F.3d 1061, 1064 (9th Cir. 2011) (per curiam) (quoting Bell Atl. Corp v. Twombly, 550 U.S. 544, 570 (2007)).

↑ **II. Legal Framework**

Bivens cases require a two-step inquiry. First, we must "ask whether the case presents 'a new Bivens context'—i.e., is it 'meaningful[ly]' different from the three cases in which the Court has implied a damages action." Egbert, 596 U.S. at 492 (quoting Ziglar, 582 U.S. at 139–40). Factors to consider in analyzing whether the case presents a new context include:

[T]he rank of the officers involved; the constitutional right at issue; the generality or specificity of the official action; the extent of judicial guidance as to how an officer should respond to the problem or emergency to

[2] We take the factual background from the allegations in the First Amended Complaint, the operative complaint.

[3] At the time of argument in February 2024, however, Watanabe's counsel stated that Watanabe still had not been treated by the specialist.

be confronted; the statutory or other legal mandate under which the officer was

operating; the risk of disruptive intrusion by the Judiciary into the functioning of other branches; or the presence of potential special factors that previous Bivens cases did not consider.

Ziglar v. Abbasi, 582 U.S. at 139–40. If upon undertaking this analysis, we determine that the case does not present a [*9] new context, "no further analysis is required." Lanuza, 899 F.3d at 1023.

Second, if we determine that the case does present a new context, we must then ask whether there "are 'special factors' indicating that the Judiciary is at least arguably less equipped than Congress to 'weigh the costs and benefits of allowing a damages action to proceed.'" Egbert, 596 U.S. at 492 (quoting Ziglar, 582 U.S. at 136). If any reason exists "to think that Congress might be better equipped to create a damages remedy," we cannot recognize a new Bivens remedy. Id. at 492.

↑ **III. Bivens Analysis**

Watanabe argues that because his claim is similar to Carlson, it falls within an established Bivens context and does not require proceeding to the second step of the analysis. Defendants argue that because Watanabe's claim "differs from prior Bivens cases in a meaningful way," it presents a new context and requires further analysis under the second step. Defendants additionally contend that, at the second step, Watanabe's claim fails because Congress has "provided alternative remedial processes for [Watanabe] to vindicate his claim."

Importantly, this appeal is from an order dismissing Watanabe's FAC under Federal Rule of Civil Procedure 12(b)(6). At this stage in the proceeding, Watanabe only needs to "state a claim to relief that is plausible on its face." Ashcroft v. Iqbal, 556 U.S. 672, 678 (2009). We are therefore required to accept Watanabe's well-pleaded allegations as true. See id. Thus, we emphasize that we do not make any determinations as to the merits of Watanabe's claim—rather, we are only concerned with whether the [*10] allegations, on their face, present a claim that is sufficiently analogous to the one in Carlson.

Watanabe is correct that his claim does not present a new Bivens context. For the reasons discussed below, the district court erred in dismissing his claim.

A. Eighth Amendment Claim

In Carlson, the Supreme Court recognized an implied cause of action under the Eighth Amendment against prison officials who acted with deliberate indifference to an incarcerated individual's serious medical needs. 446 U.S. at 16 n.1. There, Jones, an inmate in a federal correctional center, died after having an asthma attack. Id. At the time of his asthma attack, "no doctor was on duty and none was called in." Stanard v. Dy, 88 F.4th 811, 816 (9th Cir. 2023) (citing Green v. Carlson, 581 F.2d 669, 671 (7th Cir. 1978)).

Prison officials kept Jones in the "facility against the advice of doctors," failed to "give him competent medical attention for some eight hours" after the asthma attack, administered antipsychotic drugs that worsened his condition, and failed to transfer him to an outside hospital. Carlson, 446 U.S. at 16 n.1. Jones's estate sued, alleging that "these acts and omissions" caused Jones's death, and that the prison officials were "deliberately indifferent to Jones's serious medical needs" in violation of the Eighth Amendment. Id. The Supreme Court recognized that such a scenario gave rise to a Bivens cause of action. Id.

B. Step One Inquiry

The parties in this case agree that Carlson is the appropriate analogue to Watanabe's case. To determine whether Watanabe's Bivens claim can proceed, we must first ask whether the case presents a "new context" from that [*11] of Carlson. Egbert, 596 U.S. at 492. Although there exists "no definitive list of how meaningful differences must be to create a new Bivens context," the "non-exhaustive series of considerations" laid out in Ziglar provide a useful starting point. Stanard, 88 F.4th at 816. Analyzing Watanabe's claim under the Ziglar factors, it is clear that his claim does not meaningfully differ from Carlson.

1. Ziglar Non-Exhaustive Factors

The first factor is the rank of the officers involved. Ziglar, 582 U.S. at 139–40. The rank of the officials involved here is the same as in Carlson: Nielsen is a prison nurse just as one of the defendants in Carlson, William Walters, was a prison nurse. Carlson, 446 U.S. at 16 n.1; Green, 581 F.2d at 671. The second factor, "the constitutional right at issue," Ziglar, 582 U.S. at 140, is also the same as in Carlson: the right under the Eighth Amendment to be free from cruel and unusual punishment through deliberate medical indifference. And Watanabe's claim is also identical to Carlson with respect to the third factor, "the generality or specificity of the official action." Id. Watanabe alleged official action to the same degree of specificity as that alleged in Carlson—"acts and omissions" that were deliberately indifferent to Watanabe's serious medical condition. Such alleged official actions include the refusal to transport Watanabe to an outside hospital and the failure to provide him competent medical attention. Carlson, 446 U.S. at 16 n.1.

The fourth Ziglar factor is "the extent of judicial guidance as to how an officer should respond to the problem or emergency to be confronted." 582 U.S. at 140. Here, judicial guidance as to how a Bureau of Prisons ("BOP") officer should respond to an inmate's serious medical [*12] condition is significantly more developed than it was in Carlson. Nielsen was working as part of the BOP's medical staff, as were the defendants in Carlson. Thus, at the time of the incident in 2021, Nielsen would at least have had the judicial guidance from Carlson—i.e., that BOP medical staff cannot act with deliberate indifference to an inmate's serious medical needs—that has existed since the case was decided in 1980. See 446 U.S. at 14.

Carlson, however, is far from the only guidance that BOP medical staff would have to rely on in this case. There exists an abundance of judicial guidance arising from federal litigation of Eighth Amendment claims for deliberate medical indifference brought against state officials under 42 U.S.C. § 1983. This case law provides ample guidance to BOP officials about how to appropriately respond to the serious medical conditions of incarcerated individuals. See, e.g., Jett v. Penner, 439 F.3d 1091, 1096 (9th Cir. 2006) (concluding that incarcerated individual who brought a § 1983 claim alleging a violation of the Eighth Amendment for an untreated broken thumb "need not show his harm was substantial," and presented sufficient evidence that state prison officials were deliberately indifferent to his condition); Colwell v. Bannister, 763 F.3d 1060, 1069–70 (9th Cir. 2014) (holding that incarcerated individual had a claim under § 1983 for deliberate medical indifference where state prison officials denied his requests for cataract surgery, resulting in blindness in one eye).

The fifth factor, "the statutory or other legal mandate under which the officer was operating," Ziglar, 582 U.S. at 140, is the same here as in Carlson, as both sets of defendants were operating as BOP medical staff. And Watanabe's claim also does not meaningfully differ from Carlson with respect to the sixth Ziglar factor: "the risk of [*13] disruptive intrusion by the Judiciary into the functioning of other branches." Id. This case does not present a risk of intrusion by the judiciary into the operations of the BOP any more than what Carlson already permits.

The final Ziglar factor asks about the "presence of potential special factors that previous Bivens cases did not consider." Id. The district court concluded that "although Watanabe's claim has some parallels to the claims in Carlson, the specifics of [his] allegations are dissimilar in both their 'nature and severity' from the facts in Carlson." As discussed below, because the nature and severity of Watanabe's claim do not meaningfully differ from the nature and severity of the claim alleged in Carlson, the district court erred in reaching this conclusion.

2. Nature

The district court determined that the "nature" of Watanabe's claim was meaningfully different from the claim in Carlson. The court characterized Watanabe's allegation as an "interfere[nce] with the proper diagnosis and treatment of his injuries by denying his request to be taken to the hospital," and distinguished this from the claim in Carlson, which the court characterized as "largely based on treatment provided to [Jones] during a medical emergency." On appeal, Nielsen reiterates this argument, stressing that Watanabe's claim is "about what Nielsen did not do"—i.e., an omission—whereas the Carlson claim was about "numerous overt actions."

This purported distinction based on the "nature" of the claims is unfounded. Watanabe alleges that Nielsen violated his Eighth Amendment rights through both overt acts and omissions. True, Watanabe contends that Nielsen violated his Eighth Amendment rights by failing to order that he be [*14] transported to an outside hospital—but he also alleges that the on-site treatment he received (an overt act) was woefully inadequate. Further, the district court incorrectly characterized Carlson, because Jones's estate similarly alleged both overt actions, such as the use of a "respirator known to be inoperative," and omissions, such as the delay "for too long a time [of Jones's] transfer to an outside hospital." Carlson, 446 U.S. 16 n.1. The nature of Watanabe's claim is thus functionally identical to the nature of the claim in Carlson.

Additionally, Nielsen's attempt to distinguish this case on the basis of the "nature" of the claim is unsupported by our precedent. We have previously recognized that if denial of proper medical treatment—an "omission," according to the district court's characterization—is the underlying basis of a Bivens claim, it may proceed.

Indeed, in Stanard v. Dy, we held that an incarcerated individual's Eighth Amendment claim that prison officials denied him treatment for Hepatitis C did not present a new Bivens context, using Carlson as its analogue. 88 F.4th at 818. There, Stanard did not allege any "overt action"— rather, he alleged that his rights were violated because prison officials continually denied his requests for treatment, showing a deliberate indifference to his serious medical needs. Id. at 813–15. Reversing the district court's dismissal order and holding that the claim did not arise in a new Bivens context, we explained that "[d]elaying treatment is an established example of deliberate indifference to a serious medical need, in violation of the Eighth Amendment." Id. at 817 (citing Jett, 439 F.3d at 1096).

And in Chambers v. C. Herrera, the plaintiff alleged that prison officials failed to treat his broken arm and wrist for [*15] six weeks. 78 F.4th at 1103, 1108. There, we characterized the claim in Carlson as the "failure to provide adequate medical treatment," id. at 1106, and concluded that the plaintiff's claim "would be the same constitutional right in Carlson," id. at 1108. Because the plaintiff was proceeding pro se and failed to allege certain facts, we concluded that it was "unclear from his complaint" whether his claim presented a new context and remanded to determine whether he could amend his complaint to allege additional facts. Id. We nonetheless preserved the possibility that his Bivens claim—failure to treat a broken arm for a period of time—could be viable as an analogue to Carlson. Id. ("The claim would be the same constitutional right in Carlson. But the other Egbert factors would need to be addressed. . . .").

Watanabe alleged that Nielsen's overt actions and omissions resulted in a violation of his Eighth Amendment rights, making the nature of his claim functionally identical to the nature of the claim in Carlson. But even if Watanabe had only alleged an omission—e.g., that his requests for treatment were repeatedly denied—his claim would still be one of deliberate medical indifference, a viable Bivens cause of action. In short, focusing on an overt action versus a failure to act misconstrues the required analysis. The nature of Watanabe's claim is virtually identical to the nature of the claim in Carlson: prison officials were deliberately indifferent to their respective serious medical needs. This kind of claim has long been recognized as one of the three Bivens causes of action. See Egbert, 596 U.S. at 490–91. The district court thus erred in distinguishing Watanabe's claim on this ground.

[*16] 3. Severity

The district court also distinguished Watanabe's claim from Carlson on the basis that "the severity of Watanabe's claim does not compare to the seriousness of the claims in Carlson," reasoning that "[w]hile the pain that Watanabe experienced because of his fractured coccyx and bone chips is certainly regrettable, it is not akin to the medical emergency faced by the inmate in Carlson that ultimately resulted in that inmate's death." On appeal, Defendants emphasize this purported difference, arguing that "[t]he difference between [Watanabe's] alleged on-going pain management and the life-threatening condition in Carlson is meaningfully different."

The district court erred in drawing this conclusion, and Defendants' arguments in support of it are not persuasive. Most glaringly, this conclusion misconstrues the law. A plaintiff need not suffer death or a life-threatening injury for his claim to be sufficiently analogous to Carlson. In Chambers, we held that it could be possible for an incarcerated person to bring a viable Bivens claim where he had suffered a

broken arm and was denied treatment. 78 F.4th at 1108. And in Stanard, we held that a Bivens claim for repeated denial of Hepatitis C treatment while incarcerated did not present a new context from Carlson. 88 F.4th at 817. In doing so, we reaffirmed that a plaintiff need not allege a harm as severe as the one in Carlson, noting that "even assuming [the plaintiff] received less deficient care than the inmate in Carlson, that difference in degree is not a meaningful difference giving rise to a new context," because the underlying harm was still a "failure to provide medical attention evidencing deliberate indifference to serious medical needs." Id.; see also Jett, 439 F.3d at 1098 (concluding that the prison officials' failure to treat the [*17] plaintiff's broken thumb could constitute deliberate indifference to a serious medical condition).

As in Stanard, even if we assume that Watanabe received less deficient care than Jones in Carlson, this is not a meaningful difference. Watanabe was injured in July 2021, his injury resulted in a serious medical condition, and the condition has caused extreme pain ever since. He repeatedly complained about the pain to prison medical personnel, and he described the pain as a "10" on a scale from one to ten. It was not until seven months after his initial complaints that he was finally diagnosed with a fractured coccyx, and at the time he filed his complaint, over one year after the initial injury, he had still not seen a specialist.

Failure to respond to an incarcerated individual's serious medical need, even if that need is not technically life-threatening, can constitute deliberate indifference in violation of the Eighth Amendment. See, e.g., Jett, 439 F.3d at 1096. The district court thus erred in concluding that Watanabe's claim differed meaningfully from Carlson on the basis that his claim was not as severe.

4. Alternative Remedial Programs

The district court further concluded that the existence of alternative remedial structures within the BOP constituted a "special factor" that weighed in favor of finding a new context. The court noted that the BOP's administrative remedy program 4 "was not considered by the Court in[4] [*18] Carlson," and thus concluded that its existence offered "another reason that Watanabe's claim arises in a new context." The district court erred in this conclusion, as the existence of alternative remedial structures does not render this case a new context.

In Egbert, the Supreme Court clarified that the existence of alternative remedial structures can be one "special factor," to be considered at the second step of the Bivens analysis. 596 U.S. at 493, 498. Here, we are not required to undertake the second step of the analysis, because we conclude that Watanabe's case is not meaningfully different from Carlson, and thus does not present a new context. And even if we were to consider this factor at step one, we have previously held that a claim similar to Watanabe's does not present a new Bivens context, notwithstanding the fact that the incarcerated individual had access to and used the BOP's administrative complaint system. See Stanard, 88 F.4th at 814, 818.

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The dissent acknowledges that "Watanabe's claim is, at least superficially, similar to Carlson," but nonetheless concludes that "the distinctions" between the two are enough to create a new Bivens context. Dissent at 26. The dissent makes these distinctions improperly, however. Concluding that Nielsen's response was not as "flagrantly deficient" as the response in Carlson, for example, requires making an impermissible determination on the merits by weighing the evidence. Dissent at 24 (quoting Stanard, 88 F.4th at 817).

facility's warden," "(3) appeal[] to the appropriate Regional Director," and "(4) appeal[] to the BOP's General Counsel." Cacayorin v. Derr, No. CV 23-00077 JMS-WRP, 2023 WL 2349596, at *3 (D. Haw. Mar. 3, 2023).

[*19] The dissent notes that "had Nielsen known of Watanabe's broken coccyx and nevertheless refused to send him to a hospital," the dissent may have reached a different outcome. Dissent at 24. But determining what Nielsen did or did not know requires us to evaluate and weigh the evidence, something we are not concerned with at this stage in the proceedings. Instead, we are concerned only with whether

[4]The Administrative Remedy Program was created "to allow an inmate to seek formal review of an issue relating to any aspect of his/her own confinement," 28 C.F.R. § 542.10(a), and "applies to all inmates in institutions operated by the [BOP]," § 542.10(b). The program allows incarcerated individuals to "(1) present[] an issue of concern informally to staff," "(2) submit[] a formal request for administrative remedies to a

> Watanabe's claim—consisting of allegations we presently take as true—falls within the same context as Carlson. See Iqbal, 556 U.S. at 678; see also Stanard, 88 F.4th at 817 ("[E]ven assuming that [the petitioner] received less deficient care . . . that difference in degree is not a meaningful difference [because the petitioner] seeks a damages remedy for failure to provide medical attention evidencing deliberate indifference to serious medical needs.").
>
> In all meaningful respects, Watanabe's claim is functionally identical to the claim asserted in Carlson. The district court erred in proceeding to the second step of the Bivens analysis and dismissing Watanabe's claim. This case does not present a new Bivens context at step one, and thus "no further analysis is required." Lanuza, 899 F.3d at 1023.

↑ **IV. Injunctive Relief**

On appeal, Watanabe also contends that the district court erroneously dismissed his request for injunctive relief against the other defendants related to his ongoing medical care. Watanabe sought equitable relief in his original complaint, but the district court dismissed this claim with leave to amend. In his FAC, Watanabe did not specifically renew his claim for equitable relief and sought only monetary damages. The district court dismissed all of Watanabe's claims in the FAC without prejudice, [*20] concluding that he could not bring claims for equitable relief under Bivens. At oral argument before this court, Watanabe's counsel represented that Watanabe had not yet received treatment from a specialist.

Before Watanabe obtained counsel for this appeal, he had proceeded pro se in the district court. We are "obligated to 'liberally construe' documents filed pro se." Ross v. Williams, 950 F.3d 1160, 1173 n.19 (9th Cir. 2020) (en banc) (cleaned up) (quoting Erickson v. Pardus, 551 U.S. 89, 94 (1976)). This obligation means that "courts must frequently look to the contents of a pro se filing rather than its form." Id.; see also Adams v. Nankervis, 902 F.2d 1578 (9th Cir. 1990), at *2 ("We recognize that pro se litigants, especially prisoners, must be given special solicitude.").

Because we construe Watanabe's pro se filings "liberally," see Ross, 950 F.3d at 1173 n.19, we interpret his requests for injunctive relief as official capacity claims not under Bivens, but rather as standalone claims for equitable relief. On remand, he may request leave from the district court to clarify his claim for injunctive relief, and if warranted, seek appropriate injunctive relief. We thus remand to the district court to address in its discretion whether Watanabe may amend his request for injunctive relief and to address any claim for injunctive relief in the first instance.

↑ **V. Conclusion**

Watanabe alleges that prison officials were deliberately indifferent to his serious medical needs, in violation of the Eighth Amendment. This is functionally identical to the context in Carlson, where the Supreme Court recognized an implied cause of action under the Eighth Amendment. The [*21] district court thus erred in dismissing Watanabe's Bivens claim.

Accordingly, we REVERSE and REMAND for further proceedings consistent with this opinion.

M. SMITH, Circuit Judge, concurring in part and dissenting in part:

The Supreme Court has reminded us time and time again that "expanding the Bivens remedy is . . . a 'disfavored' judicial activity" and that "even a modest extension" of the remedy, to a new context or new category of defendants, "is still an extension." Ziglar v. Abbasi, 582 U.S. 120, 135, 147 (2017). Because Watanabe's claim is meaningfully different than Carlson v. Green, 446 U.S. 14 (1980), I respectfully dissent as to the reinstatement of his Bivens claim. I concur in the majority's decision to remand to the district court his claim for injunctive relief.

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In Bivens v. Six Unknown Federal Narcotics Agents, the Supreme Court held that a plaintiff could seek monetary damages for violation of his Fourth Amendment rights by federal agents. 403 U.S. 388, 397 (1971). Eight years later, the Court held that a damages remedy was also "surely appropriate" for a suit against a Congressperson for alleged violations of Fifth Amendment Due Process. Davis v. Passman, 442 U.S. 228, 245 (1979). The following year, the Court again recognized a Bivens damages remedy in a suit against federal prison officials alleging deliberate indifference to medical needs in violation of the Eighth Amendment.

Carlson, 446 U.S. at 20.

[*22] In a series of subsequent decisions, however, the Court repeatedly declined to further expand the scope of Bivens. In Bush v. Lucas, it held that a federal employee could not claim damages when his superiors allegedly violated his First Amendment rights, reasoning that "Congress is in a better position to decide whether or not the public interest would be served by creating" such a remedy. 462 U.S. 367, 390 (1983); see also, e.g., Chappell v. Wallace, 462 U.S. 296 (1983). In 2009, the Court summarized its recent jurisprudence by noting that Bivens actions were "implied," and therefore "disfavored." Ashcroft v. Iqbal, 556 U.S. 662, 675 (2009). Citing separation-of-powers principles, the Court has not extended Bivens relief to previously unrecognized contexts. See Ziglar, 582 U.S. at 135–36; Egbert v. Boule, 596 U.S. 482, 519 n.3 (2022).

The first step in a Bivens analysis is to determine whether a case presents a new Bivens context or a new category of defendants. See Hernandez v. Mesa, 589 U.S. 93, 102 (2020). "If the answer to this question is 'no,' then no further analysis is required." Lanuza v. Love, 899 F.3d 1019, 1023 (9th Cir. 2018) (citation omitted). If the case does present a new context, the court then must determine whether "special factors" indicate that the judiciary is "at least arguably less equipped than Congress to weigh the costs and benefits" of extending the Bivens remedy to this new context. Egbert, 596 U.S. at 492 (internal quotation marks omitted). In Egbert, the Supreme Court observed that the "new context" and "special factors" steps "often resolve to a single question: whether there is any reason to think that Congress might be better equipped to create a damages remedy." Id. But our post-Egbert cases nonetheless continue to "apply a two-step framework, asking first whether the claim arises in a new context, and second, if so, whether other special [*23] factors counsel hesitation against extending Bivens." Harper v. Nedd, 71 F.4th 1181, 1185 (9th Cir. 2023) (citation omitted).

A Bivens claim arises in a new context if it differs "in a meaningful way from previous Bivens cases." Ziglar, 582 U.S. at 139. Here, the relevant Bivens case is Carlson. 446 U.S. at 20. In Carlson, the Court recognized a Bivens remedy against prison officials who were deliberately indifferent to an inmate's serious medical condition. Id. at 16 n.1. Against the advice of doctors, the inmate was detained at a corrections facility with "gross[ly] inadequa[te]" medical facilities. Id. When he suffered an asthma attack, no doctor was on duty, and no doctor was subsequently called in. Instead, after some delay, a medical training assistant tried to use a broken respirator on the inmate. When the inmate pulled away and said the respirator was making his breathing worse, the assistant administered an antipsychotic medication. Id. The inmate went into respiratory arrest and died. Id.

The Supreme Court's "understanding of a 'new context' is broad." Hernandez, 589 U.S. at 102. Although there is no definitive list of how meaningful differences must be to create a new Bivens context, precedent provides a starting point. Ziglar, the first case in which the Supreme Court articulated the new context inquiry, provided a non-exhaustive series of considerations, including "the rank of the officers involved; the constitutional right at issue; the generality or specificity of the official action; the extent of judicial guidance as to how an officer should respond to the problem or emergency to be confronted; [and] the statutory or other legal mandate under which the officer was operating," among others. 582 U.S. at 139–40.

[*24] The Supreme Court has stated that "[a] claim may arise in a new context even if it is based on the same constitutional provision as a claim in a case in which a damages remedy was previously recognized." Hernandez, 589 U.S. at 103. Thus, even where a "case has significant parallels to one of the [Supreme Court's] previous Bivens cases," it can present a new context. Ziglar, 582 U.S. at 147.

Watanabe's Eighth Amendment Bivens claim presents a "new context." His claim is meaningfully different than Carlson when considering in toto: (1) the severity of the mistreatment and (2) the severity of the medical need.

First, the severity of Watanabe's mistreatment does not come close to that in Carlson. See Stanard v. Dy, 88 F.4th 811, 817 (9th Cir. 2023) (considering the "[s]everity of [m]istreatment" in determining whether plaintiff's Bivens claim arose in a new context). On July 16, 2021, few days after the riot, Nielsen met with Watanabe and performed a physical examination. The examination indicated that, although Watanabe appeared distressed and suffered from substantial pain, his results were within normal limits. Nielsen treated Watanabe accordingly: Nielsen spoke to an on-call provider who authorized an order for painkillers and anti-inflammatory drugs, encouraged gentle stretching exercises as tolerated, and made a note to follow-up

with a sick call if necessary. This response was "less flagrantly deficient than in Carlson." See id. By contrast, had Nielsen known of Watanabe's broken coccyx and nevertheless refused to send him to a hospital for further care, this case would look closer to Carlson. See id. (noting that medical personnel "attempted to use a respirator known to be inoperative" (emphasis added)). But the record does not indicate, nor does Watanabe allege, that Nielsen knew, or should have known, the extent of Watanabe's injury at the [*25] time of his evaluation. Absent such an allegation, and in light of the normal results of the physical examination, the prison's response here was meaningfully less severe.

The majority suggests that "even if we assume that Watanabe received less deficient care than [the plaintiff] in Carlson, this is not a meaningful difference" because

(1) Watanabe's injury "resulted in a serious medical condition," which caused him extreme pain, (2) he described the pain as a ten on a scale from one to ten, and (3) it took seven months to diagnose him with a fractured coccyx. That Watanabe suffered from his injury without treatment is certainly regrettable. But the majority fails to articulate, as does Watanabe, how the prison should have known—without the benefit of hindsight—to send Watanabe to an outside hospital. As noted, his test results were normal. Does a Bivens claim arise every time a prison refuses to send an inmate for outside treatment if they report severe pain? Such a rule would violate the spirit of Bivens and its progeny.

Second, as the district court noted, Watanabe's medical need was less severe than that in Carlson, which resulted in that inmate's death. That is not to suggest that one needs to face a life-threatening condition to fall within Carlson. See, e.g., Chambers v. C. Herrera, 78 F.4th 1100, 1108 (9th Cir. 2023) (treating medical indifference claim based on broken arm as "mostly dead" but "slightly alive"). But the difference in severity is meaningful and weighs in favor of finding a new context under Ziglar. See 582 U.S. at 147 ("[E]ven a modest extension is still an extension.").

The cases cited by the majority, where the Bivens claim survived, are distinguishable. Cf., e.g., Stanard, 88 F.4th at 817 (remanding claim where plaintiff was repeatedly informed he "would not receive any . . . treatment at [the [*26] prison] at all); Chambers, 78 F.4th at 1108 (remanding claim where physician's assistant knew of broken arm and intentionally refused to treat injury to cover up assault); Jett v. Penner, 439 F.3d 1091 (9th Cir. 2006) (lacking discussion of Bivens). For the reasons above, the district court did not err in finding that Watanabe's case presents a new context.

Next, in step two of Bivens, the district court held that special factors counsel against recognizing a remedy. The district court explained that it could not recognize a new Bivens remedy because "alternative remedies are available to Watanabe," including the Bureau of Prisons' alternative remedial program and the Federal Tort Claims Act. Watanabe does not challenge this part of the decision on appeal. In his brief, he states: "Bivens remedies may be available in 'new contexts' too. But as this appeal does not involve a new context, the circumstances that warrant an extension of Bivens are not discussed here."

***

Even a case that has "significant parallels to Carlson" may constitute an extension of Carlson to a new context. See Ziglar, 582 U.S. at 147. That is the case here. Although Watanabe's claim is, at least superficially, similar to Carlson—i.e., brought pursuant to the Eighth Amendment involving an injury suffered in prison—the distinctions are "sufficient to make this a new Bivens context." See Harper, 71 F.4th at 1186. I respectfully dissent as to the reinstatement of Watanabe's Bivens claim.

Certiorari Stage

Francis Nielsen Petition for a Writ of Certiorari · Oct. 3, 2025

Petition for a writ of certiorari filed. (Response due November 6, 2025)

Nielsen · Petition for a Writ of Certiorari · Oct. 3, 2025 · petitioner — coupling row A
Cites 20 cases (118 mentions), 11 citations not resolved; 6 statutes and provisions (5 bare section cites not resolved).
Shares with Br. in Opp. 27% · Cert. Reply 42% · Supplemental 0% · Supplemental 0% · Supplemental 5% · Supplemental 10% · Pet'rs Br. 20% · Resp. Br. 11% · Reply Br. 17%; closest: Cert. Reply
Its own ground: 3 cases no other filing cites; 1 shared with its own side only, 16 with the other side.
Statutes: 42 U.S.C. § 1997e ×3 (around Padgett); 18 U.S.C. § 3626 ×2 (Article III standing); 28 C.F.R. § 542.10 ×2; U.S. Const. amend. VIII; 28 U.S.C. § 1254; 42 U.S.C. § 1983 (Pro se pleadings and Twombly/Iqbal in prisoner suits).

Questions Presented. [*i] This case concerns the judicially created damages remedy first recognized in Bivens v. Six Unknown Named Agents of Federal Bureau of Narcotics, 403 U.S. 388 (1971). In Carlson v. Green, 446 U.S. 14 (1980), the Court extended Bivens to an Eighth Amendment claim of deliberate indifference to medical needs where prison officials failed to address an inmate's acute asthma attack and exacerbated it, causing his death on-site within hours.

Since then, this Court has emphasized that the creation of damages actions rests with Congress, not courts. The judicially created Bivens remedy thus cannot be extended to any "new Bivens context" if any "special factor counsel[s] hesitation" in doing so. Ziglar v. Abbasi, 582 U.S. 120, 139-140 (2017). "[T]he new-context inquiry is easily satisfied," encompassing cases with " 'meaningful[ly]' " different facts, or " 'potential special factors' "—including "alternative remedial structures"—" 'not consider[ed]' " in the Court's prior cases. Egbert v. Boule, 596 U.S. 482, 492- 493 (2022). "[A] court may not recognize a Bivens remedy" if "there is any reason to think that Congress might be better equipped to create a damages remedy." Id. at 492.

In this case, respondent alleged that he suffered a fractured coccyx in a prison gang fight, causing chronic pain, but was not sent to a hospital. The Ninth Circuit held the suit did not present a "new" context from Carlson—notwithstanding an alternative remedial scheme this Court did not consider in Carlson, and despite significant factual differences such as the immediacy and severity of the harm alleged. The question presented is:

Whether the Ninth Circuit here erred in recognizing a Bivens cause of action.

[*1] IN THE

Supreme Court of the United States ————

FRANCIS NIELSEN, Petitioner, v.

KEKAI WATANABE, Respondent. ————

On Petition for a Writ of Certiorari to the United States Court of Appeals

for the Ninth Circuit ————

PETITION FOR A WRIT OF CERTIORARI [*2]

Statement of Jurisdiction. The court of appeals entered judgment on September 6, 2024, App., infra, 1a, and denied rehearing and rehearing en banc on June 5, 2025, id. at 76a. On August 21, 2025, Justice Kagan extended the time to file the petition to and including October 3, 2025. 25A208. This Court has jurisdiction under 28 U.S.C. § 1254(1).

↑ **Constitutional, Statutory, and Regulatory Provisions Involved.** Relevant provisions of U.S. Const. amend. VIII; the Prison Litigation Reform Act, 18 U.S.C. § 3626 and 42 U.S.C. § 1997e; and the Bureau of Prisons' Administrative Remedy Program, 28 C.F.R. §§ 542.10, 542.13-542.15, are set forth in the Appendix, infra, 117a-121a.

↑ **Preliminary Statement.** The decision below presents "multiple," openly acknowledged, "deep circuit splits" on whether and when plaintiffs may invoke the implied cause of action first recognized in Bivens v. Six Unknown Named Agents of Federal Bureau of Narcotics, 403 U.S. 388 (1971). App., infra, 91a (Nelson, J., dissenting from denial). Those conflicts prompted eleven judges to dissent from denial of rehearing en banc below. Id. at 89a-116a. Circuit after circuit has acknowledged the conflicts. E.g., Muniz v. United States, 149 F.4th 256, 264 n.4 (3d Cir. 2025); Arias v. Herzon, 150 F.4th 27, 51 & n.11 (1st Cir. 2025) (Lynch, J., concurring in part and dissenting in part); Watkins v. Mohan, 144 F.4th 926, 947 & n.* (7th Cir. 2025) (Kirsch, J., concurring in part and dissenting in part). The Court should "resolve the multiple deep circuit splits," App., infra, 91a (Nelson, J., dissenting from denial), and restore "clarity" to the law, id. at 116a (Collins, J., dissenting from denial).

[*3] Bivens created a damages action against federal officers accused of conducting an unreasonable, warrantless search and seizure inside the plaintiff 's home in violation of the Fourth Amendment. The Court has extended Bivens only twice. The last was in Carlson v. Green, 446 U.S. 14 (1980), where the Court extended Bivens to an action against prison officials accused of violating the detainee's Eighth Amendment rights, where they not only failed to treat his acute asthma attack, but exacerbated it, causing his onthe-scene death.

This Court, however, has since "come 'to appreciate more fully the tension between' judicially created causes of action and 'the Constitution's separation of legislative and judicial power.' " Egbert v. Boule, 596 U.S. 482, 491 (2022). It has "repeatedly emphasized that 'recognizing a cause of action under Bivens is "a disfavored judicial activity." ' " Goldey v. Fields, 606 U.S. 942, 944 (2025) (per curiam). The Court has thus imposed a "two-step test" that must be applied before any Bivens action may proceed. Ibid. First, courts must consider whether the case presents " 'a new Bivens context'—that is, whether the case 'is different in a meaningful way' from the cases in which this Court has recognized a Bivens remedy." Ibid. If the context is new, courts must ask "whether there are special factors indicating that the Judiciary is at least arguably less equipped than Congress to weigh the costs and benefits of allowing a damages action to proceed." Ibid. (quotation marks omitted). That two-step inquiry "often resolve[s] to a single question: whether there is any reason to think that Congress might be better equipped to create a damages remedy." Egbert, 596 U.S. at 492.

The Ninth Circuit's decision exacerbates circuit conflicts over those requirements. At the first step, the Ninth Circuit held that this case does not present a "new Bivens [*4] context" because here, as in Carlson, "prison officials * * * acted with deliberate indifference to an incarcerated individual's serious medical needs." App., infra, 7a. It thus did not matter to the Ninth Circuit that Congress had provided respondent with "alternative remedial structures" apart from suing under Bivens—structures that were " 'not considered by the Court in Carlson.' " Id. at 14a-15a; see id. at 79a (urging that "alternative remedies are generally not relevant at step one") (respecting denial of rehearing). Nor did it matter that the harm respondent claimed to have suffered here—in terms of cause, impact, and immediacy—differed dramatically from Carlson. Respondent here complains that he did not receive sufficiently prompt treatment for a fractured coccyx; the plaintiff in Carlson died on the scene as a result of egregious conduct. Because of the suddenness and severity of the harm in Carlson, "it [was] damages or nothing." Bivens, 403 U.S. at 410 (Harlan, J., concurring in the judgment). Respondent, by contrast, sought the alternative of injunctive relief in this very lawsuit. The Ninth Circuit dismissed those contrasts as "not a meaningful difference * * * because the underlying harm was still a 'failure to provide medical attention evidencing deliberate indifference to serious medical needs.' " App., infra, 13a.

That turns this Court's precedent "on its head." App., infra, 91a (Nelson, J., dissenting from denial). This Court has already held that one way "a case can present a new context" is "the existence of alternative remedies" not previously considered. Ziglar v. Abbasi, 582 U.S. 120, 147-148 (2017). And the Ninth Circuit ignored that claims "may arise in a new context even if [they are] based on the same constitutional provision as a claim in a case in which a damages remedy was previously recognized." Hernández v. Mesa, 589 U.S. 93, 103 (2020). Even the same "mechanism [*5] of injury"—here, "failure to provide adequate medical treatment"—is not enough to make contexts "the same." Ziglar, 582 U.S. at 139.

The Ninth Circuit's contrary holdings exacerbate two deep and acknowledged circuit conflicts. The Third, Fifth, Seventh, Tenth, and Eleventh Circuits have held that the availability of alternative remedies that were not considered in prior cases makes the Bivens context "new" and precludes Bivens' extension. See Kalu v. Spaulding, 113 F.4th 311, 328 (3d Cir. 2024); Hernandez v. Causey, 124 F.4th 325, 334 (5th Cir. 2024), cert. denied, 145 S. Ct. 1930 (2025); Sargeant v. Barfield, 87 F.4th 358, 366-369 (7th Cir. 2023), cert. denied, 145 S. Ct. 285 (2024); Silva v. United States, 45 F.4th 1134, 1142 (10th Cir. 2022); Johnson v. Terry, 119 F.4th 840, 858 (11th Cir. 2024). In the Eleventh Circuit's words, the "context of [the asserted] claims is different from * * * Carlson because [in Carlson] the Court did not consider whether there were alternative remedies under the current alternative remedy analysis." Johnson, 119 F.4th at 858. But the Ninth and First Circuits have held the opposite. App., infra, 15a; Arias, 150 F.4th at 49-50. In addition, the First, Tenth, and Eleventh Circuits have held that allegations of non-lethal injuries, or mistreatment of lesser severity than that in Carlson, render the context "new." See Waltermeyer v. Hazlewood, 136 F.4th 361, 366-368 (1st Cir. 2025); Rowland v. Matevousian, 121 F.4th 1237, 1243 (10th Cir. 2024); Johnson, 119 F.4th at 858-859. By contrast, the Ninth Circuit, along with the Seventh and Third Circuits, have rejected such differences as irrelevant to the new-context inquiry. See App., infra, 13a; Muniz, 149 F.4th at 262-263; Brooks v. Richardson, 131 F.4th 613, 615 (7th Cir. 2025). Those important and recurring conflicts warrant review. [*6]

↑ **Statement.**

↑ **I. Legal Framework**

A. This Court's Creation of Implied Damages Actions

In 1971, this Court's decision in Bivens created, for the first time, an implied damages action against federal agents for constitutional violations. In particular, the Court held that federal officers could be liable for a warrantless search and seizure inside the plaintiff 's home in violation of the Fourth Amendment. Bivens, 403 U.S. at 389, 397. The Court has "extended [Bivens] only twice." Corr. Servs. Corp. v. Malesko, 534 U.S. 61, 70 (2001). In Davis v. Passman, the Court allowed a congressional staffer to sue for sex-based discrimination in violation of the Fifth Amendment. 442 U.S. 228, 248-249 (1979). And, in Carlson, the Court allowed a suit under the Eighth Amendment where prison officials failed to treat the inmate's acute asthma attack—and exacerbated his condition—causing him to die on the scene. 446 U.S. at 16-25. In each case, the plaintiff had no other remedy against the officials: It was Bivens " 'damages or nothing.' " Malesko, 534 U.S. at 67-68.

This Court, however, has since come to recognize that "creating a cause of action is a legislative endeavor." Egbert, 596 U.S. at 491. Thus, "[f]or the past 45 years" since Carlson, "this Court has consistently declined to extend Bivens to new contexts." Goldey, 606 U.S. at 945.

B. This Court's Two-Step Bivens Framework

Because judicially created damages actions are " 'disfavored,' " this Court requires federal courts to evaluate "proposed Bivens claim[s]" using a two-step analysis. Egbert, 596 U.S. at 491-492.

[*7] First, courts must assess whether the claim "arises in a new Bivens context"—that is, whether it differs "in a meaningful way" from the cases where this Court previously recognized Bivens actions. Ziglar, 582 U.S. at 139. The Court's "understanding of a 'new context' is broad," Hernández, 589 U.S. at 102, and the "new-context inquiry is easily satisfied," Ziglar, 582 U.S. at 149. "[E]xamples" of meaningful differences include factors as diverse as:

the rank of the officers involved; the constitutional right at issue; * * * the risk of disruptive intrusion by the Judiciary into the functioning of other branches; or the presence of potential special factors that previous Bivens cases did not consider.

Id. at 139-140. That two cases may appear " 'parallel' " at a "superficial" level is insufficient to prevent a context from being "new." Egbert, 596 U.S. at 495-496, 501. What matters is whether Congress, exercising legislative judgment, could determine that some difference alters the policy balance—the "costs and benefits"—involved in deciding whether to create a damages cause of action. Id. at 495-496. If the answer is "yes," the context is new. See ibid.

Second, if the context is "new," courts must ask whether "there are special factors counselling hesitation in the absence of affirmative action by Congress." Ziglar, 582 U.S. at 136 (quotation marks omitted). "If there is a rational reason to think" Congress would be better suited to create the remedy—"as it will be in most every case"—"no Bivens action may lie." Egbert, 596 U.S. at 492.

Those two steps "often resolve to a single question: whether there is any reason to think that Congress might be better equipped to create a damages remedy." Egbert, 596 U.S. at 492 (emphasis added). [*8]

C. Prisoner-Litigation Legislation and the Administrative Remedy Program

In the years since Carlson, Congress has passed statutes addressing prisoner litigation.

1. In 1996, Congress enacted the Prison Litigation Reform Act or "PLRA"—the most comprehensive federal legislation concerning prisoner litigation to date. Pub. L. No. 104-134, 110 Stat. 1321 (1996). The PLRA was motivated in part by a desire to keep the "key" to prisons "safely out of reach of overzealous Federal courts." 141 Cong. Rec. 26,553 (1995) (Sen. Hatch). The PLRA, for example, restricts the scope and availability of injunctive relief. 18 U.S.C. § 3626(a)(1)(A), (b)(1)(A)(i), (e).

The PLRA also includes reforms to stem the proliferation of litigation by state and federal inmates. It requires exhausting administrative remedies before any lawsuit is filed. 42 U.S.C. § 1997e(a). That requirement contemplates the possibility of inmates filing lawsuits against state officials, tort suits against employees in privately operated prisons, Malesko, 534 U.S. at 72-73, and injunctive actions against federal officials, see 42 U.S.C. § 1997e(a). The Act does not "provide for a standalone damages remedy against federal jailers." Ziglar, 582 U.S. at 149.

2. The Bureau of Prisons ("BOP") operates a grievance process, called the "Administrative Remedy Program" or "ARP," codified at 28 C.F.R. §§ 542.10-542.19. The ARP's "purpose" is "to allow an inmate to seek formal review of an issue relating to any aspect of his/her own confinement." Id. § 542.10(a)-(b). The ARP encompasses four steps: (1) an informal complaint, id. § 542.13(a); (2) a formal complaint on a standardized federal form, id. § 542.14(a), (c); (3) an appeal to the appropriate BOP Regional Director, id. § 542.15(a); and (4) a request for final review from the BOP's General Counsel, id. § 542.15(a), (b)(1). [*9]

↑ **II. Proceedings Below**

Petitioner Francis Nielsen is a staff nurse at the Federal Detention Center in Honolulu. Respondent Kekai Watanabe suffered injuries during a gang riot at that facility. App., infra, 25a.

A. District Court Proceedings

1. In July 2021, Watanabe was attacked by rival gang members while in detention. App., infra, 25a. Once prison officials restored order, they documented Watanabe's known and visible injuries. Ibid. They placed him on sick call. Ibid. Later that day, Watanabe told correctional officers he was experiencing headaches and pain; he asked to be seen by medical staff. Ibid. At "some point" later, Watanabe allegedly "described his medical condition" to petitioner, who allegedly "denied Watanabe's request to be taken to the hospital." Id. at 25a-26a. Prison officials "provided Watanabe with over-the-counter pain medication." Id. at 26a.

Months later, Watanabe was diagnosed with a fractured coccyx with bone chips in surrounding soft tissue. App., infra, 26a. Prison officials agreed to refer Watanabe to a specialist. Ibid.

2. Watanabe filed a pro se complaint alleging that petitioner and others violated his Eighth Amendment rights by calling him a " 'cry baby,' " denying him " 'actual treatment,' " and denying his request to go to the hospital. App., infra, 24a & n.[1], 26a. Watanabe sought $3 million in damages and

injunctive relief. Id. at 54a.

The district court granted petitioner's motion to dismiss. App., infra, 24a-25a. Applying this Court's two-step framework for assessing Bivens claims, the district court held that Watanabe's claim presented a "new context" that was distinct from Carlson. Watanabe, the court held, had [*10] access to an alternative remedy: the ARP. Id. at 36a-38a. Because the existence of that remedy is a "[special] factor * * * not considered by the Court in Carlson," the court found it to be "another reason that Watanabe's claim arises in a new context." Id. at 36a. Watanabe's injury was also "not akin to" the fatal "medical emergency faced by the inmate in Carlson." Id. at 34a. And allowing Watanabe's Bivens claim could transform district courts into "medical review board[s]" supervising treatment of prison injuries. Id. at 35a. At Bivens step two, the district court held that special factors counseled against recognizing a Bivens remedy. Id. at 36a-38a.

B. The Ninth Circuit's Decision

A divided panel of the Ninth Circuit reversed. The panel majority (Paez and Koh, JJ.) held that Watanabe's access to "alternative remedial structures does not render this case a new context" at step one. App., infra, 15a. Instead, alternative remedial schemes like the ARP "can be one 'special factor,' to be considered at the second step of the Bivens analysis." Ibid.; see id. at 79a ("alternative remedies are generally not relevant at step one") (respecting denial of rehearing). In this case, the majority explained, it was "not required to undertake the second step of the analysis." Id. at 15a. "[E]ven if " the court "were to consider" alternative remedial structures "at step one," the court stated, Watanabe's claim "does not present a new Bivens context notwithstanding the fact that the incarcerated individual had access to" an alternative remedial scheme. Ibid.

The panel rejected any distinction based on the conduct or injuries. "Carlson," it asserted, "dealt with the exact same issue" as this case—"deliberate indifference to an inmate's serious medical needs." App., infra, 3a, 9a. "A plaintiff need not suffer death or a life-threatening injury [*11] for his claim to be sufficiently analogous to Carlson." Id. at 13a. If "Watanabe received less deficient care" than in Carlson, the majority continued, that was "not a meaningful difference." Id. at 14a. Nor did it matter that, for Watanabe, it was not "damages or nothing." Watanabe could assert his Bivens claim for damages alongside a claim for prospective relief. Id. at 16a-17a.

Judge M. Smith dissented in part. He would have held that Watanabe's claim "is meaningfully different than Carlson." App., infra, 20a. The allegations of "mistreatment," he found, do "not come close to th[ose] in Carlson." Id. at 21a. While the personnel in Carlson " 'attempted to use a respirator known to be inoperative,' " here there is no indication petitioner even "knew, or should have known, the extent of Watanabe's injury." Ibid. "Watanabe's medical need," moreover, "was less severe than that in Carlson, which resulted in that inmate's death." Id. at 22a. That difference in severity "is meaningful": Even " 'a modest extension' " of Bivens " 'is still an extension.' " Ibid. (quoting Ziglar, 582 U.S. at 147).

C. The Ninth Circuit Denies Rehearing With Eleven Judges Dissenting

The Ninth Circuit denied rehearing and rehearing en banc with eleven judges dissenting.

1. In a statement respecting denial of rehearing, the panel majority acknowledged that "the circuits have split on the role of alternative remedies and the continued viability of Carlson actions." App., infra, 78a. But the statement urged that the panel decision had "joined" at least "the Sixth Circuit" in "holding that the ARP does not distinguish Carlson actions at step one." Id. at 86a. The statement acknowledged that " '[s]pecial factors' can * * * be considered at both steps" of the Bivens inquiry, but insisted that "alternative remedies take on greater significance [*12] at step two" because "[s]tep one focuses on the alleged violation." Id. at 80a. "[A]lternative remedies * * * unrelated to the official's conduct, the constitutional right allegedly violated, or the legal framework governing the challenged action * * * bear little significance at step one, which focuses on the context of the violation itself." Id. at 81a. The statement defended the panel's ruling that "the severity of the injury or misconduct" was irrelevant to the new-context inquiry, invoking decisions of the Fourth, Fifth, and Seventh Circuits.

[1]District courts in the Second and Fourth Circuits have reached the same conclusion, again in the context of Eighth Amendment claims under Carlson. E.g., Carter v. United States, No. 22-cv-6715, 2024 WL 1345313, at *12-13 (E.D.N.Y. Mar. 29, 2024); Waldron v. Streeval, 7:24-cv-324, 2025 WL 2233684, at *7 (W.D. Va. Aug. 5, 2025).

Id. at 84a-88a.

2. Judge Nelson dissented, joined by Judges Callahan, M. Smith, Ikuta, Bennett, Bade, Lee, Bress, Bumatay, and VanDyke. App., infra, 89a-111a. The Ninth Circuit, he lamented, "has become famous for repeatedly ignoring the Supreme Court on Bivens questions." Id. at 90a. This case was another example—and one that implicated "multiple deep circuit splits over Carlson-related Bivens actions" warranting this Court's review. Id. at 91a.

a. The dissent urged that the existence of an alternative remedial scheme, not considered in Carlson, rendered this case a new Bivens context. App., infra, 98a-99a. The panel's rejection of that argument "underscores a circuit split": "At least two other circuits [the Eleventh and Third Circuits] have held that the availability of alternative remedies—specifically the ARP—creates a new Bivens context." Id. at 106a. "Still more circuits recognize that special factors—like alternative remedies—'play a part in both steps of the [Bivens] inquiry.' " Id. at 107a. This Court's Ziglar decision itself "point[s] to alternative remedies as an indication of a new Bivens context." Id. at 98a.

Here, the alternative remedial structure created by the ARP was a " 'potential special factor[ ] that [was] not considered in' " Carlson. App., infra, 97a. That rendered the context "new." Ibid. Indeed, the ARP was not available [*13] to the "mother suing on behalf of her deceased son's estate" in Carlson. Id. at 100a. That was "easily" a "meaningful difference." Ibid.

b. In finding no meaningful factual difference between this case and Carlson, moreover, the panel majority had "simply point[ed] to the Eighth Amendment and not[ed] that Carlson dealt with the same type of claim." App., infra, 103a. That "did violence to" this Court's precedents. Id. at 102a-103a (citing Hernández, 589 U.S. at 103). It was error to "latch[ ] onto superficial similarities," and to "downplay[ ]" key factual differences—like the fact that, in Carlson, the inmate died. Id. at 103a-106a. "Taking the Supreme Court at its word, Carlson * * * support[s] a Bivens claim on its facts: a wrongful death case where the remedy is 'damages or nothing.' " Id. at 109a.

In concluding otherwise, the panel majority had split with the First, Tenth, and Eleventh Circuits. App., infra, 103a-106a. Those courts, the dissent explained, consider differences in severity and treatment; they "reject the majority's conclusion that 'receiving less deficient care' " than the inmate in Carlson " 'is not a meaningful difference.' " Id. at 106a (brackets omitted).

3. Judge Collins dissented separately, urging that the Ninth Circuit should have gone en banc to render "our Bivens precedent * * * more faithful to the Supreme Court's caselaw." App., infra, 112a. Failing that, however, the dissent urged this Court to take the opportunity "to provide a greater degree of clarity than we could ever have done in this area." Ibid.

↑ **Reasons for Granting the Petition.** This Court has repeatedly reminded lower courts that " 'the heady days in which [courts] assumed common-law powers to create causes of action' " are "long past." Egbert, [*14] 596 U.S. at 491; see Hernández, 589 U.S. at 99-101; Ziglar, 582 U.S. at 138-140. Congress—not the judicial branch—is charged with creating causes of action. Egbert, 596 U.S. at 491. To that end, Egbert limits Bivens to the three circumstances in which the Court previously recognized Bivens actions. Id. at 492. Under Egbert, federal courts must inquire whether the case before them presents a "new context" compared to those cases. Ibid.

The courts of appeals, however, have openly divided in Egbert's wake. First, as court after court has recognized, "the circuits have split on the role of alternative remedies." App., infra, 78a (respecting denial of rehearing). Like this Court in Ziglar, many courts hold that "the existence of alternative remedies" not previously considered in this Court's cases is a potential "special factor[ ]" that raises "a new context," Ziglar, 582 U.S. at 147-148, or otherwise "independently" forecloses a Bivens remedy, Egbert, 596 U.S. at 497. The decision below, now joined by the First Circuit, holds the opposite.

Second, the circuits have divided over whether the extent or nature of the mistreatment, the resulting harm, and its immediacy can render the context "new." App., infra, 103a-106a, 108a-109a (Nelson, J., dissenting from denial). Four circuits agree that such distinctions matter. But the Ninth Circuit has joined two others in holding that those distinctions are not "meaningful."

Those divisions "deserve the Court's attention." App., infra, 108a-109a (Nelson, J., dissenting from denial of rehearing en banc); see id. at 112a (Collins, J., dissenting from denial); accord Arias, 150 F.4th at 51 n.11 (Lynch, J., concurring in part and dissenting in part) (urging that this Court "may wish to address these circuit splits" given "the need for additional guidance"). The proper scope of Bivens implicates fundamental separation-of-powers concerns. [*15] The questions are important and recurring. And neither federal detainees nor federal officers should confront different standards of federal law based on the happenstance of the circuit in which their case arises.

↑ **I. The Courts of Appeals Are Deeply and Openly Divided on How To Conduct the "New Context" Inquiry**

The decision below creates or exacerbates openly acknowledged circuit conflicts on two different issues.

A. The Circuits Are Divided Over Whether Alternative Remedies Create a New Bivens Context

The courts have openly "split on the role of alternative remedies" in the Bivens new-context analysis at step one. App., infra, 78a (respecting denial of rehearing). The panel majority acknowledged that "split." Ibid. The eleven judges that dissented from denial of rehearing en banc noted the split as well: "The majority's alternative remedies holding," they urged, "underscores a circuit split." Id. at 106a (Nelson, J., dissenting from denial); id. at 112a (Collins, J., dissenting from denial). Other courts too have acknowledged a "circuit split" on that issue. Arias, 150 F.4th at 51, 54 (Lynch, J., concurring in part and dissenting in part) (decision "exacerbates the existing splits among the circuits and introduces a new split"); Muniz, 149 F.4th at 264 n.4 ("a circuit split has arisen on this issue" with "[a]t least one circuit agree[ing] with our firststep analysis" and "others * * * com[ing] to differing conclusions"). That division is open, entrenched, and ripe for this Court's review.

1. Circuit after circuit has held that an alternative remedial scheme, not considered in prior cases, gives rise to a "new Bivens context" at step one. Four have so held in the specific context of Carlson cases under the Eighth [*16] Amendment. That includes the Third Circuit, Kalu, 113 F.4th at 328; the Seventh Circuit, Sargeant, 87 F.4th at 366-369; the Tenth Circuit, Silva, 45 F.4th at 1142; and the Eleventh Circuit, Johnson, 119 F.4th at 858-859. The Fifth Circuit has so held in the Fourth Amendment context. Causey, 124 F.4th at 334.1

In Johnson, for example, the Eleventh Circuit addressed whether the Eighth Amendment claims before it reflected a "new context" despite " 'significant parallels' to Carlson's." 119 F.4th at 857. Invoking the ARP, the court held the context new. The "context of these claims is different from * * * the claim in Carlson because [in Carlson] the [Supreme] Court did not consider whether there were alternative remedies under the current alternative remedy analysis." Id. at 858.

The Third Circuit reached the same conclusion in Kalu. "Because the PLRA and the BOP's remedy program are 'features that were not considered' by the Supreme Court when it decided Carlson," the Third Circuit explained, "they present an additional reason to conclude that Kalu's claim arises in a new context." 113 F.4th at 328. Reaffirming that holding in Muniz, the Third Circuit again held that, because "the BOP ARP did not factor into the Supreme Court's remedial analysis in Carlson, the availability of that mechanism to Muniz creates a new context at the first step." 149 F.4th at 264. The Seventh Circuit agrees. Sargeant, 87 F.4th at 368-369. And the Fifth Circuit has held that a Fourth Amendment claim presented a new context where, among other things, the plaintiff had "an [*17] alternative remedial structure provided by Congress." Causey, 124 F.4th at 334.

Going further, the Tenth Circuit has ruled that Eighth Amendment Bivens claims are "foreclosed by the availability of the BOP Administrative Remedy Program," wholly apart from Egbert 's two-step inquiry. Silva, 45 F.4th at 1141-1142. Egbert, that court held, made clear that alternative remedial schemes " 'independently' " foreclose Bivens remedies. Id. at 1140; see Noe v. United States, No. 23-1025, 2023 WL 8868491, at *3 (10th Cir. Dec. 22, 2023) ("availability of the ARP is sufficient to foreclose a Bivens claim despite any factual similarity" with Carlson), cert. denied, Noe v. Berkley, 144 S. Ct. 2562 (2024). Under Egbert, "an alternative remedial scheme 'alone' is a 'special factor' under the Supreme Court's Bivens jurisprudence that terminates the action." Sigalovskaya v. Braden, 149 F.4th 226, 236 (2d Cir. 2025) (Pérez, J., concurring) (quoting Egbert, 596 U.S. at 493).

2. Two courts of appeals, however, have reached the opposite conclusion. An alternative remedial scheme, they have held, does not render the context "new" at the first step under Egbert. The panel decision below so held in a single paragraph:

In Egbert, the Supreme Court clarified that the existence of alternative remedial structures can be one "special factor," to be considered at the second step of the Bivens analysis. Here, we are not required to undertake the second step of the analysis, because we conclude that Watanabe's case is not meaningfully different from Carlson, and thus does not present a new context.

App., infra, 15a (citation omitted). The panel majority expanded on that in its statement on rehearing. While [*18] " '[s]pecial factors' " generally are "considered at both steps" of the Bivens inquiry, the panel majority urged "alternative remedies" generally should be considered at "step two" rather than in step one's new-context inquiry, because "[s]tep one focuses on the alleged violation, including the nature of the right violated * * *." Id. at 80a (emphasis added) (respecting denial of rehearing). "[W]hen alternative remedies are unrelated to the official's conduct, the constitutional right allegedly violated, or the legal framework governing the challenged action, they bear little significance at step one, which focuses on the context of the violation itself." Id. at 81a (emphasis added). As the Ninth Circuit later described its rule: "Step one focuses on the alleged violation * * *. Step two, by contrast, focuses on remedies. * * * When the alleged violation can be established and analyzed without reference to the alternative remedial structure at issue, that structure has little import at step one." Schwartz v. Miller, — F.4th —, 2025 WL 2473008, at *6 (9th Cir. 2025). Consequently, Ninth Circuit "cases are * * * uniform in treating the ARP as a special factor only at step two." Id. at *7 (emphasis added).

In so holding, the Ninth Circuit "struck out on its own, deriving" a "one-of-a-kind rule from Egbert." App., infra, 111a (Nelson, J., dissenting from denial).[2] But the First [*19] Circuit soon followed. In Arias, the First Circuit held that an excessive-force claim against Drug Enforcement Administration agents did not present a "new Bivens context" despite the availability of a new administrative grievance process. Arias, 150 F.4th at 45, 49 (quotation marks omitted). The First Circuit acknowledged that Ziglar "make[s] clear that previously unconsidered alternative remedies may be relevant at the first step" of the Bivens inquiry. Id. at 42. The court nonetheless concluded that the "mere existence of a previously unconsidered administrative mechanism" does not make a context "new." Ibid.

A more open and clear conflict is hard to imagine. It has repeatedly been noted by multiple circuits. See pp. 2, 15, supra. And the courts are in conflict not merely on the proper treatment of alternative remedial schemes in the step-one new-context inquiry generally. Their decisions directly conflict on whether the Bureau of Prisons' ARP in particular gives rise to a "new Bivens context." Four circuits—the Third Circuit, Kalu, 113 F.4th at 328; Muniz, 149 F.4th at 264; the Seventh Circuit, Sargeant, 87 F.4th at 368; the Tenth Circuit, Silva, 45 F.4th at 1141; and the Eleventh Circuit, Johnson, 119 F.4th at 857, agree that it does, or that it independently forecloses a Bivens action. The decision below expressly holds that it does not. App., infra, 15a; see Schwartz, 2025 WL 2473008, at *6-7. [*20]

B. The Circuits Are Divided on Whether Lesser or Less Immediate Injury and Mistreatment Can Render the Context "New"

The courts of appeals likewise disagree on whether "differences in severity between * * * the claim in Carlson" are relevant "to the cognizability of a Bivens remedy." App., infra, 103a (Nelson, J., dissenting from denial). That conflict over whether to take a "permissive stance on the nature and extent of the injury for Carlson claims" is part of a "flood of inconsistent case law" on how to conduct the " 'new context' analysis." Watkins, 144 F.4th at 951 & n.* (Kirsch, J., concurring in part and

[2]On rehearing, the panel majority insisted its decision followed "the Fourth, Fifth, Sixth, and Seventh Circuits." App., infra, 89a. If true, that would only underscore the conflict's depth and the resulting need for this Court's review. But the cited Fourth and Seventh Circuit decisions do not address whether or how alternative remedies are considered in the new-context inquiry. See id. at 87a-88a. Of the two cited Fifth Circuit decisions, one is unpublished, Vaughn v. Bassett, No. 22- 10962, 2024 WL 2891897 (5th Cir. June 10, 2024), and the other pre-dates Egbert and contains no Bivens analysis, Carlucci v. Chapa, 884 F.3d 534, 537-540 (5th Cir. 2018). The Sixth Circuit decision, Koprowski v. Baker, 822 F.3d 248 (6th Cir. 2016), pre-dates Ziglar. App., infra, 87a. The Sixth Circuit did not "confirm[ ] its holding," ibid., in Callahan v. Federal Bureau of Prisons, 965 F.3d 520 (6th Cir. 2020). Callahan distinguished Koprowski and rejected an extension of Bivens. 965 F.3d at 525.

dissenting in part).

1. Three courts of appeals—the Third, Seventh, and Ninth Circuits—have concluded that the severity of an injury is irrelevant to the new-context inquiry for Carlson claims. App., infra, 14a; Muniz, 149 F.4th at 262-263; Brooks, 131 F.4th at 615.3

Respondent here, for example, alleged chronic pain related to a fractured coccyx, not an acute medical emergency resulting in death, as in Carlson. App., infra, 13a. The panel held, however, that "[a] plaintiff need not suffer death or a life-threatening injury for his claim to be sufficiently analogous to Carlson." App., infra, 13a. The Third Circuit in Muniz recently found that view "persuasive"—a painful[3] [*21] toe infection could suffice—but the court found a new context existed for other reasons. 149 F.4th at 262-264.

The Seventh Circuit similarly has permitted Carlsonlike claims to proceed based on non-lethal conditions like a bout with "appendicitis" that "lasted ten days * * * before [the plaintiff] was sent to a hospital." Brooks, 131 F.4th at 615-616. Differences in the "duration of the poor care or the gravity of the condition" compared to Carlson, the Seventh Circuit held, did not render the context "new." Ibid.; see Watkins, 144 F.4th at 931, 934 (hernia surgery). 2. By contrast, three courts of appeals—the First, Tenth, and Eleventh Circuits—have found that a "new context" exists when the severity of the alleged injury or mistreatment differs from that in Carlson. Waltermeyer, 136 F.4th at 366-368; Rowland, 121 F.4th at 1243; Johnson, 119 F.4th at 858-859.4

In Waltermeyer, for example, the First Circuit rejected a Bivens claim for inadequate medical attention related to a chronic knee condition. 136 F.4th at 366-368. The inmate's claim was meaningfully different from Carlson because, among other reasons, "[t]he medical procedures administered by the medical staff * * * were not contrary to medically advised procedures," and because "[t]he claim does not involve a wrongful death-like action and at no time did the alleged failure to adequately treat concern either a life-threatening condition or extreme pain." Id. at 366-367. The Tenth and Eleventh Circuits hold that "se[4]vere [*22] but ultimately non-lethal" injuries that are "eventually treated" are sufficiently different from those in Carlson. Johnson, 119 F.4th at 858-859; see Rowland, 121 F.4th at 1243 (plaintiff had not "died as a result," unlike Carlson).

That division goes to the fundamental rationale underlying Bivens. In Bivens, Davis, and Carlson, it was critical that the plaintiffs' options were "damages or nothing." Bivens, 403 U.S. at 410 (Harlan, J., concurring in the judgment); see id. at 390 (majority opinion) (petitioner should not be "entirely without remedy"); Davis, 442 U.S. at 245 ("For Davis, as for Bivens, 'it is damages or nothing.' "); see Malesko, 534 U.S. at 67-68, 72 (declining to extend Bivens where, unlike in prior Bivens cases, the plaintiff could seek other remedies). In Carlson, too, it was damages or nothing. The inmate there died within hours of a serious asthma attack that federal officials "made * * * more severe." 446 U.S. at 16 n.1. Yet the Third, Seventh, and Ninth Circuits have ruled that months-long failures to treat, App., infra, 4a (fractured coccyx); Muniz, 149 F.4th at 258 (chronic diabetes, leading to acute infection), or a ten-day wait before treatment occurred, Brooks, 131 F.4th at 615, arise in the same context. Far from "lack[ing] effective remedies" due to the severity and immediacy of harm, inmates in those circumstances can seek injunctive or other relief requiring treatment; it is not " 'damages or nothing.' " Malesko, 534 U.S. at 72. That makes the context not just "new" but fundamentally different.

↑ **II. The Issues Are Important and Recurring**

[3]Unpublished Fourth and Fifth Circuit decisions have reached similar conclusions. Masias v. Hodges, No. 21-6591, 2023 WL 2610230, at *2 (4th Cir. Mar. 23, 2023) ("ankle injury"); Vaughn, 2024 WL 2891897, at *1, 4 ("facial fractures"). Both rely on published decisions that did not conduct the "new context" analysis. See Langford v. Joyner, 62 F.4th 122 (4th Cir. 2023); Carlucci v. Chapa, 884 F.3d 534 (5th Cir. 2018). District courts in the Sixth Circuit have also held that cases do not raise new "contexts" even where they do not involve emergencies or wrongful-death-type claims. E.g., Mattox v. United States, No. 7:24- cv-74, 2025 WL 2524845, at *8-10 (E.D. Ky. Sept. 2, 2025).

[4]District courts in the Second, Fourth, Fifth, and Eighth Circuits have reached the same conclusion. E.g., Bravo v. U.S. Marshals Serv., 684 F. Supp. 3d 112, 125 (S.D.N.Y. 2023); Waldron, 2025 WL 2233684, at *6; Brooks v. Foreman, No. 3:20-cv-599, 2023 WL 11228264, at *3- 4 (S.D. Miss. Aug. 24, 2023); Skinner v. Obi-Okoye, No. 2:23-cv-34, 2025 WL 850149, at *7 (E.D. Ark. Feb. 19, 2025), report and recommendation adopted, 2025 WL 849187 (Mar. 18, 2025).

The issues are important and recurring. Bivens' scope implicates fundamental principles. It is "a significant step under separation of powers principles" for courts to exercise "the judicial power[ ] to create and enforce a cause of action for damages against federal officials." Ziglar, 582 [*23] U.S. at 133. This Court regularly grants review (and reverses) Bivens extensions, including a summary reversal last Term. See Goldey, 606 U.S. at 945; Egbert, 596 U.S. at 501; Hernández, 589 U.S. at 100-102; Ziglar, 582 U.S. at 135. The judicial creation and enforcement of a damages action is particularly significant where, as here, courts do so despite the legislature's intervention through statutes like the PLRA; where Congress has regulated with the specific goal of limiting judicial intervention; and Congress has authorized, and the Executive adopted, mandatory administrative grievance processes. By expanding Carlson to the full range of injuries judicially deemed "serious," App., infra, 7a, 13a, the decision below threatens to convert the judiciary into an " 'ad hoc medical review board,' " id. at 35a.

The issues are recurring. There has been a veritable "flood of inconsistent case law." Watkins, 144 F.4th at 951 (Kirsch, J., concurring in part and dissenting in part). Since Egbert was decided, at least 18 court of appeals opinions have addressed whether alternative remedies render the context "new"; 14 have expressly addressed whether non-fatal injuries raise a new context compared to Carlson. App., infra, 122a-124a. Thirteen of those were decided in the last year alone. Id. at 122a. And the district courts confront these issues regularly. Id. at 124a-131a. The issue is likewise important to the 150,000 federal inmates now in detention. Fed. Bureau of Prisons, Population Statistics, https://www.bop.gov/about/statistics/population_statistics. jsp (last visited Oct. 1, 2025). Their rights and the legal exposure of federal agents should not depend on the happenstance of litigation geography. Court of appeals judges have expressed the fervent "hope[ ]" that this Court will "resolve the multiple deep circuit splits," App., infra, 91a (Nelson, J., dissenting from [*24] denial), and "provide some greater clarity," id. at 116a (Collins, J., dissenting from denial). This Court, they have observed, "may wish to address these circuit splits" and provide necessary "additional guidance to lower court judges." Arias, 150 F.4th at 51 n.11 (Lynch, J., concurring in part and dissenting in part). Review is warranted.

↑ **III. The Decision Below Is Wrong**

The decision below does not merely exacerbate a pair of circuit conflicts. It is wrong.

A. The Ninth Circuit Erred in Disregarding Previously Unconsidered Alternative Remedial Structures When Determining Whether the Context Is "New"

This Court's decisions are clear: The "presence of potential special factors that previous Bivens cases did not consider" is one of the "differences that are meaningful enough to make a given context a new one." Ziglar, 582 U.S. at 139. No one contends otherwise. And this Court has held that the existence of "alternative remedial structures" like the ARP is a "special factor." Egbert, 596 U.S. at 493; see Ziglar, 582 U.S. at 148; Goldey, 606 U.S. at 944- 945. The outcome here thus should have been obvious: The existence of an alternative remedial structure like the ARP, which previous Bivens cases did not consider, is sufficient to make the Bivens context "new."

In Ziglar itself, this Court held that one of the claims at issue would have "extend[ed] Carlson to a new context" because it involved potentially available "alternative remedies." 582 U.S. at 147-149. "[C]ertain features" of the claim "were not considered in the Court's previous Bivens cases"—including the fact that "there might have been alternative remedies available here." Id. at 148. The enactment of the "Prison Litigation Reform Act of 1995," Ziglar [*25] continued, "suggests Congress chose not to extend the Carlson damages remedy" to prisoner-abuse claims. Id. at 148-149; see Goldey, 606 U.S. at 944. Because of such "differences," Ziglar held the "new-context inquiry" satisfied. 582 U.S. at 149.

The panel decision below nonetheless held, in a single paragraph, that alternative remedial schemes like the ARP "can be one 'special factor,' to be considered at the second step of the Bivens analysis." App., infra, 15a. On rehearing, the panel majority urged that the "new context" inquiry at "[s]tep one focuses on the alleged violation" such as "the nature of the right violated" or "the mechanism of harm." Id. at 80a-81a (emphasis added). "[W]hen alternative remedies are unrelated to the official's conduct, the constitutional right allegedly violated, or the legal framework governing the challenged action," the panel majority declared, alternative remedies "bear little significance at step

one, which focuses on the context of the violation itself." Id. at 81a. Thus, in Schwartz, the Ninth Circuit reiterated that court's rule that "alternative remedial structure[s] * * * ha[ve] little import at step one," and that the ARP thus is a "special factor only at step two." 2025 WL 2473008, at *6-7 (emphasis added).

That analysis defies this Court's decision in Ziglar. In listing various differences that can render the context "new," Ziglar listed "special factors" that were not previously considered. 582 U.S. at 139-140. And it found one of the claims there raised a new context precisely because of such alternative remedial schemes. Id. at 148-149.5 The[5] [*26] Ninth Circuit's effort to relegate remedial schemes primarily to the second step of the analysis also defies this Court's explanation that the two steps "often resolve to a single question: whether there is any reason to think that Congress might be better equipped to create a damages remedy." Egbert, 596 U.S. at 492 (emphasis added). The Ninth Circuit's distinction—confining certain special factors to step one or two—cannot be reconciled with the singular nature of that inquiry. Courts must ask whether Congress, in its legislative capacity, could identify any factual or legal difference that might alter the policy balance that previously led this Court to create a cause of action. Ibid.; Snowden v. Henning, 72 F.4th 237, 239 (7th Cir. 2023), cert. denied, 145 S. Ct. 137 (2024). They cannot evade that inquiry by giving alternative remedial schemes—a critical consideration in any policy balance—so little weight that they cannot render the context "new" (thereby dispensing with any need to consider them at step two as well).

The panel's statement that it would not deem the alternative scheme to be a "meaningful" difference at step one repeats the mistake. See App., infra, 15a-16a. The Ninth Circuit rejected the alternative scheme as insufficiently meaningful in the step-one, new-context inquiry precisely because it viewed remedial schemes as primarily relevant at step two and of "little significance" at step one. Id. at 15a, 80a-81a; see Schwartz, 2025 WL 2473008, at *7 (ARP [*27] not "appropriately considered at the first step"); pp. 17-19, supra. But claims implicating "potential special factors"— including alternative remedies—are prototypical "examples" of those arising in a context that is "new." Ziglar, 582 U.S. at 139-140, 148-149. Indeed, this Court has held that "alternative remedial structures" " 'alone' " foreclose a Bivens cause of action. Egbert, 596 U.S. at 492-493 (emphasis added); see id. at 497 (existence of "alternative remedies * * * independently foreclose[s] a Bivens action"). The "new-context inquiry" is "easily satisfied." Ziglar, 582 U.S. at 149; see Hernández, 589 U.S. at 102. A special factor so central to the Bivens inquiry—and to whether it is "damages or nothing," p. 22, supra—surely suffices. "If that is not a meaningful difference, then it's hard to say what is." App., infra, 98a-99a (Nelson, J., dissenting from denial).

Finally, the eleventh-hour theory that the "ARP was in place when Carlson was decided"—first raised in a statement respecting rehearing, App., infra, 78a—is meritless. A special factor can render the context new if it is one the prior Bivens case "did not consider." Ziglar, 582 U.S. at 140 (emphasis added). Carlson did not consider the ARP (or the PLRA). No party brought the ARP to the Court's attention; the Court did not address it. That is a complete answer. And there was a reason the ARP was not considered. The inmate in Carlson died in August 1975, years before the first version of the ARP existed. See Control, Custody, Care, Treatment, and Instruction of Inmates, 44 Fed. Reg. 62250 (Oct. 29, 1979). Moreover, "the Carlson plaintiff "—the mother of the inmate who died—concededly could not have invoked "the ARP" in any event. App., infra, 82a. "[I]f the question is whether there is a single meaningful difference between Carlson and this case, the fact that the mother in Carlson could not use a remedy [*28] that was available to Watanabe easily meets that bar." App., infra, 100a (Nelson, J., dissenting from denial).[6]

[5]The panel majority thus erred in asserting Ziglar's discussion of alternative remedies was dictum to guide the "Court of Appeals" in performing the step-two analysis on remand. App., infra, 81a n.2. Ziglar itself addressed alternative remedies when deciding whether the claim arose in a "new context" and then "decline[d] to perform" step two. 582 U.S. at 148-149 (emphasis added); see Arias, 150 F.4th at 42. The opinion first identifies alternative remedies and the PLRA as the "meaningful" "differences identified above" that "satisf [y]" "the new-context inquiry." 582 U.S. at 148-149. The opinion then begins an entirely new subsection addressing—and "declin[ing] to perform"—step two of the inquiry, leaving it for the court of appeals instead. Id. at 149.

[6]The panel majority also urged that considering "the ARP" at step one could "effectively overrule" Carlson. App., infra, 89a. But that would not overrule Carlson, even if it restricted Carlson's range of application. For example, years after Davis created a damages remedy in favor of a congressional staffer alleging sex discrimination, 442 U.S. at 230, 242-249, Congress created "special statutory

B. The Ninth Circuit Erred in Extending Carlson Despite Differences in Severity and Immediacy of Harm

The Ninth Circuit likewise erred in excluding the extremely different harms—in terms of cause, severity, and immediacy—from the new-context inquiry. In Carlson, federal prison officials not only failed to treat the inmate's acute asthma attack but exacerbated it—effectively killing him. They "administered contraindicated drugs which made his attack more severe, attempted to use a respirator known to be inoperative which further impeded his breathing, and delayed for too long a time his transfer to an outside hospital." Carlson, 446 U.S. at 16 n.1. The inmate died in the prison, then and there.

This case could not be more different. Respondent here alleges chronic pain from an untreated fractured coccyx. App., infra, 4a. His complaint does not assert that his condition was immediately life threatening. As the district court found, respondent's pain "is not akin to the medical emergency faced by the inmate in Carlson that ultimately resulted in that inmate's death." Id. at 34a. Respondent had ample time to seek redress through non-damages avenues. [*29] In his original complaint, he sought injunctive relief (and the Ninth Circuit later remanded his injunctiverelief claim). See id. at 16a-17a. Respondent could invoke the BOP Administrative Remedy Program.[7] By contrast, the inmate in Carlson had none of those options. He could not have run to court for an injunction or followed a grievance procedure in the middle of an acute asthma attack to protest the use of an inoperative respirator or contraindicated medications. And after the attack, it was too late; he had passed.

Those differences make this context "new." "A difference is 'meaningful' when it involves a factual distinction or new legal issue that might alter the policy balance that initially justified the implied damages remedies in the Bivens trilogy." Snowden, 72 F.4th at 239. The extent and immediacy of harm surely could affect that balance. Congress could rationally determine that inmates with chronic concerns, who can file grievances or seek injunctive relief, should not have the option of costly and potentially harassing damages actions—but still afford such actions when (as in Carlson) an inmate in urgent need of medical care dies. A " 'wrongful death-like action' " is appropriate in those latter cases, Congress might determine, because "the remedy" there is " 'damages or nothing.' " App., infra, 109a (Nelson, J., dissenting from denial). Congress could reasonably find that, with greater misconduct and [*30] the gravest of harms, damages are appropriate as a deterrent—but not for lesser misconduct and lesser harms.[8]

Indeed, allowing damages actions for the full range of harms could risk "disruptive intrusion by the Judiciary into the functioning of other branches," Ziglar, 582 U.S. at 140, potentially converting district courts into "medical review board[s]" supervising prisoner medical treatment, App., infra, 35a. Bivens claims could "arise every time a prison refuses to send an inmate for outside treatment." Id. at 22a. That is especially problematic given Congress's enactment of legislation—the PLRA—to limit court interference with the operation of federal prisons. See p. 8, supra.

The Ninth Circuit nowhere disputed that a rational legislature could draw those distinctions. It nowhere denied there are "rational reason[s]" to think Congress is "better suited" to examine the costs and benefits of extending Bivens beyond the extreme and immediate harm in Carlson. Egbert, 596 U.S. at 495-496. It never even cited Egbert's "rational reason" formulation. Instead, the court proclaimed this case "identical to Carlson in all meaningful respects," because the inmate in Carlson and the inmate in this case allegedly both "suffered deliberate medical indifference while incarcerated, in violation of the Eighth Amendment's proscription against cruel and unusual punishment." App., infra, 3a. But this Court has held that claims "may arise in a new context even if [they are] based on

remedies" for congressional employees, George Rutherglen, Major Issues in the Federal Law of Employment Discrimination 106 (5th ed. 2012), https:// www.fjc.gov/sites/default/files/2012/EmplDis5.pdf. Those remedies do not overrule Davis. They limit (or eliminate) Davis's application.

[7]Watanabe also could have sought relief under the "Federal Tort Claims Act," App., infra, 38a, or through DOJ 's Office of Inspector General ("OIG"), which can "review information and receive complaints alleging abuses of civil rights and civil liberties by employees and officials of the Department of Justice," Pub. L. No. 107-56, 115 Stat. 391, § 1001 (2001).

[8]Here, for example, "the record does not indicate, nor does Watanabe allege, that Nielsen knew, or should have known, the extent of Watanabe's injury." App., infra, 21a (Smith, J., concurring in part and dissenting in part).

the same constitutional provision as a claim in a case in which a damages remedy was previously recognized." Hernández, 589 U.S. at 103. And alleging " 'almost parallel [*31] circumstances' or a similar 'mechanism of injury' " is not enough to show a context is the same. Egbert, 596 U.S. at 495; see Hernández, 589 U.S. at 103. Such "superficial similarities" obscure the "only * * * question" federal courts must answer: "whether there is any rational reason (even one) to think that Congress is better suited to 'weigh the costs and benefits of allowing a damages action to proceed.' " Egbert, 596 U.S. at 495-496.

*****

Last Term, this Court summarily reversed another court of appeals for failing to appreciate how an " 'alternative remedial structure' * * * for aggrieved federal prisoners" showed both that the case "arises in a new context, and [how] 'special factors' counsel against recognizing an implied Bivens cause of action." Goldey, 606 U.S. at 944 (emphasis added). Given the clarity of the Ninth Circuit's errors, this Court may wish to summarily reverse again here.

Insofar as plenary review is warranted, this Court may wish to consider whether it should dispense with Bivens altogether. This Court has repeatedly attempted to confine Bivens and thereby limit judicial intrusion into a fundamentally legislative function. E.g., Ziglar, 582 U.S. at 139-140, 148-149; Hernández, 589 U.S. at 103, 113-114; Egbert, 596 U.S. at 495-496; Goldey, 606 U.S. at 944. But the federal courts have repeatedly fallen into disarray. Preserving what remains of Bivens does little good. Bivens is now little more than a "zombie." Mohamed v. Jones, 100 F.4th 1214, 1239-1240 (10th Cir. 2024) (Tymkovich, J., dissenting). It offers only "false hope, * * * invit[ing] still more 'protracted litigation destined to yield nothing.' " Egbert, 596 U.S. at 504 (Gorsuch, J., concurring). And it disserves the interests of civil rights and "the public writ large because, absent [Bivens'] formal abrogation, Congress [*32] has no incentive to legislate in the space." Mohamed, 100 F.4th at 1240 (Tymkovich, J., dissenting). A federal version of § 1983 may well be desirable. But with Bivens' zombie still roaming the jurisprudence, no Congress has sufficient incentive to do the work of considering that option.

This Court, of course, need not go that far. But so long as Bivens remains good law, this Court must police its bounds and provide needed guidance. Review is warranted for that reason alone.

↑ **IV. This Case Presents an Ideal Vehicle**

This case is an ideal vehicle for addressing both circuit conflicts. The case was resolved on the pleadings, leaving no factual disputes to impede review. The arguments were preserved and passed upon below. App., infra, 6a-16a (panel majority), 20a-23a (panel dissent), 31a-39a (district court decision). Arguments on both sides of both issues were well aired by members of the Ninth Circuit. Id. at 77a-116a. Other courts have weighed in as well. See pp. 15-22, supra. While this Court has rejected Bivens' expansion for multiple "independent reasons" before, Egbert, 596 U.S. at 494—and can do so again here—reversal in any form would likely be case dispositive: Watanabe conceded below that his case cannot survive step two if his claims present a "new Bivens context" at step one. App., infra, 96a n.1.

↑ **Conclusion.** The petition should be granted. [*33] Respectfully submitted.

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↑ **Kekai Watanabe** Brief in Opposition · Jan. 5, 2026

Brief of respondent Kekai Watanabe in opposition filed.

Watanabe · Brief in Opposition · Jan. 5, 2026 · respondent — coupling row B
Cites 51 cases (90 mentions), 10 citations not resolved; 6 statutes and provisions.
Shares with Pet. 27% · Cert. Reply 16% · Supplemental 0% · Supplemental 0% · Supplemental 2% · Supplemental 4% · Pet'rs Br. 12% · Resp. Br. 28% · Reply Br. 12%; closest: Resp. Br.
Its own ground: 16 cases no other filing cites; 13 shared with its own side only, 22 with the other side.
Statutes: 28 U.S.C. § 2679 ×2; 28 C.F.R. § 542.10 ×2; 28 U.S.C. § 1346 (around Carlson); 28 U.S.C. § 2671 (around Carlson); 42 U.S.C. § 1997e (around Padgett); 45 U.S.C. § 51-60.

↑ **Questions Presented.** [*i] Whether the Ninth Circuit erred in allowing respondent's claim to go forward in circumstances not meaningfully different from those of the claim for deliberate indifference to serious medical needs recognized in Carlson v. Green, 446 U.S. 14 (1980).

[*1] In the Supreme Court of the United States

NO. 25-417 FRANCIS NIELSEN, PETITIONER v. KEKAI WATANABE

ON PETITION FOR A WRIT OF CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE NINTH CIRCUIT

BRIEF IN OPPOSITION

↑ **Introduction.** Respondent Kekai Watanabe's case does not extend Carlson v. Green, 446 U.S. 14 (1980), beyond its original context. Watanabe alleges a violation of the same constitutional right (the Eighth Amendment) for the same kind of conduct (deliberate indifference to a serious medical need) injuring the same kind of plaintiff (a federal prisoner) under the same circumstances (failure to provide adequate treatment) against the same class of officers (medical staff at a federal prison) as in Carlson. Along every dimension, Watanabe's claim lines up with Carlson. There is no "new context" here.

Petitioner nonetheless seeks review on the basis of two alleged circuit splits—one regarding the Administrative Remedy Program (ARP), 28 C.F.R. 542.10-19, and one regarding the severity of Watanabe's injuries— [*2] about what circumstances give rise to a new "context" for Carlson claims. Neither warrants review.

First, petitioner overstates the claimed circuit splits. In reality, only two courts of appeals have indicated that the existence of the ARP is sufficient on its own to foreclose a Carlson claim. The resulting split is both nascent and shallow, and those contrary decisions cannot be squared with this Court's precedent reaffirming that Carlson remains good law in its context. And no court has clearly adopted petitioner's view that Carlson does not apply unless the victim was sufficiently maimed by or died from their injuries. The courts are therefore largely in agreement that a claim like Watanabe's remains viable.

Second, regardless of the nature or depth of the alleged splits, the decision below does not warrant review. This Court in Carlson already considered the availability of alternative remedies, including under the Federal Tort Claims Act (FTCA), 28 U.S.C. 1346(b), 2671 et seq., yet still confirmed that a federal cause of action remains available. Nothing about the ARP—which was in place at the time of Carlson and routes damages claims by prisoners to the FTCA—alters that analysis. This Court also has never hinted (and in fact has rejected) that the severity of the constitutional violation is a relevant factor in determining whether a plaintiff has a cause of action. And critically, Congress has legislated in clear reliance on Carlson through the Westfall Act, which preempts state-law causes of action against federal officers but expressly carves out constitutional claims. See Federal Employees Liability Reform and Tort Compensation Act of 1988 (Westfall Act), Pub. L. No. 100-694, 102 Stat. 4563, 28 U.S.C. 2671, 2674, 2679. Foreclosing Carlson claims in effectively all cases—as petitioner [*3] seeks—would thus contravene Congress's determination that claims like these should be able to go forward.

This Court has made clear that Carlson is disfavored precedent not to be expanded beyond its context. But

at the same time, the Court has confirmed that Carlson claims remain viable within their limited sphere. Watanabe's claim falls squarely within the original ambit of Carlson. Certiorari should be denied.

Statement.

A. Legal background

Federal officers have been subject to damages for misconduct since the early Republic. See p. 23, infra. In Bivens v. Six Unknown Federal Narcotics Agents, this Court recognized a damages remedy against federal officers for unconstitutional searches or seizures. 403 U.S. 388 (1971). The Court later recognized two additional circumstances in which plaintiffs may recover damages against federal officers: congressional employees alleging gender discrimination in violation of the Fifth Amendment, Davis v. Passman, 442 U.S. 228 (1979), and federal prisoners alleging that federal prison officials were deliberately indifferent to their serious medical needs, in violation of the Eighth Amendment, Carlson, 446 U.S. 14.

Since Carlson, the Court has "consistently refused to extend Bivens liability to any new context." Corr. Servs. Corp. v. Malesko, 534 U.S. 61, 68 (2001). But the Court also has repeatedly declined to overrule Bivens, Davis, or Carlson, reaffirming that those decisions remain "settled law." Ziglar v. Abbasi, 582 U.S. 120, 134 (2017). Accordingly, plaintiffs may continue to bring claims that are not "'meaningful[ly]' different" from those endorsed by the Court in the Bivens trilogy. Egbert v. Boule, 596 [*4] U.S. 482, 492 (2022) (alteration in original) (citation omitted).

B. Factual background

On July 12, 2021, respondent Watanabe was in federal custody on a federal conviction in Federal Detention Center (FDC) Honolulu when he was "brutally assaulted during a gang-related fight." Pet. App. 2a-3a, 57a n.1. "Watanabe sustained severe injuries," id. at 2a-3a, and described his pain to two prison officials, id. at 4a, 25a. Watanabe requested treatment through the ARP and through repeated requests to prison officials, including petitioner Francis Nielsen, a staff nurse. Id. at 4a, 25a-26a. "Instead of transporting him to a hospital or permitting him to be examined by a specialist, [petitioner] treated him with nothing more than over-thecounter medication for his pain." Id. at 2a.

Several months after the attack, Watanabe finally received an x-ray: It showed that he had a fractured coccyx and that bone chips had migrated to surrounding soft tissue areas. Id. at 4a, 26a. Although prison officials agreed to refer Watanabe to outside medical treatment, ibid., Watanabe never received further treatment before his discharge from federal custody in May 2024, id. at 4a n.3.

C. Procedural history

Watanabe brought this suit pro se in the United States District Court for the District of Hawaii. Pet. App. 24a. His amended complaint named four officials at FDC Honolulu and sought damages and injunctive relief for violations of his Eighth Amendment rights. Id. at 5a, 16a-17a, 24a. The district court dismissed Watanabe's suit in full, concluding as relevant here that Watanabe's claim against petitioner presents a "new [*5] context" under Bivens because of the "nature and severity" of his claims and the existence of the ARP. Id. at 31a-36a (citation omitted); id. at 57a-58a.

Watanabe timely appealed as to petitioner. In briefing on appeal, petitioner did not defend the district court's reasoning that the existence of the ARP was enough to create a "new context." See Pet. C.A. Br. 9-14.

The Ninth Circuit reversed. Pet. App. 2a-17a. The panel resolved the case at step one of the two-part test this Court applied in Egbert, 596 U.S. at 494, concluding that Watanabe's case did not arise in a new context because it did not "meaningfully differ from Carlson." Pet. App. 8a.

In reaching this conclusion, the panel considered the "non-exhaustive series of considerations" this Court set forth in Ziglar. Id. at 8a-10a (citation omitted). Specifically, the court found that Watanabe's suit and the suit in Carlson involved federal officials of the same rank, the same Eighth Amendment right of a federal prisoner to be free from cruel and unusual punishment through deliberate medical indifference, and similar "acts and omissions." Id. at 8a-9a (quoting Carlson, 446 U.S. at 16 n.1).

Among other factors, the panel also considered the nature of Watanabe's injuries, noting that he was in "extreme pain" that he endured for seven months with virtually no medical care. Id. at 14a. The panel explained that while Watanabe's injuries were not life-threatening like those in Carlson, that did not make this a new context because "[f]ailure to respond to an incarcerated individual's serious medical need" does not need to be "life threatening" to "constitute deliberate indifference." Ibid.

[*6] The panel also rejected the district court's assumption that the existence of the ARP rendered the context new. Id. at 14a-15a. Because the panel concluded that the case did not present a new Bivens context at step one, it did not proceed to step two. Id. at 15a. The panel additionally remanded for further proceedings regarding Watanabe's request for injunctive relief. Id. at 16a-17a.

Judge Milan Smith concurred regarding Watanabe's request for injunctive relief, but otherwise dissented. Id. at 18a. The partial dissent acknowledged similarities between Watanabe's claim and those in Carlson, but argued Watanabe's claims were meaningfully different because his injury and the misconduct were less severe than those alleged in Carlson. Id. at 20a-23a. Judge Smith did not contend that the existence of the ARP rendered the context new.

The Ninth Circuit denied petitioner's request for rehearing en banc. Id. at 77a. In a statement respecting denial, Judges Paez and Koh reiterated that both Watanabe's claims and those in Carlson involved "the same officer rank, type and specificity of official action, judicial guidance, governing legal mandate, and risk of disruptive intrusion by the Judiciary into the functioning of the other branches." Ibid. And, per the panel majority, there were "no other 'meaningful' differences" from Carlson. Ibid. (quoting Ziglar, 582 U.S. at 139-40).

Judge Ryan Nelson dissented from the denial of rehearing en banc, joined by nine other judges. Id. at 89a-111a. Judge Nelson urged that Watanabe's case presented a new context at step one because of the availability of the ARP and the severity of Watanabe's mistreatment and injury. Id. at 98a, 103a-04a.

[*7] Judge Collins separately dissented from the denial of rehearing en banc, id. at 111a-116a, though he acknowledged that the Court had not overruled Carlson, id. at 112a.

On September 9, 2025, the district court stayed proceedings pending resolution of this petition for certiorari. D. Ct. Doc. 43; see also D. Ct. Doc. 49 (Dec. 17, 2025).*

↑ **Reasons for denying the petition.** This Court's instructions are clear: although courts should not extend Bivens and Carlson beyond the contexts already recognized, those decisions remain binding within their existing, limited spheres. See Ziglar, 582 U.S. at 134. The panel below faithfully adhered to that directive. Petitioner's disagreement with the panel's analysis in these circumstances does not warrant this Court's review.

↑ **I. The claimed conflicts do not merit this Court's review**

The two circuit splits alleged by petitioner do not justify this Court's review. Petitioner exaggerates the first split, regarding whether the ARP categorically forecloses all Carlson claims. In reality, that conflict is both nascent and shallow. The second alleged split, regarding whether purported difference in the severity of an injury is sufficient to foreclose a Carlson claim, is largely illusory: different courts have reached different outcomes on distinct facts. That is fact-specific variation, not a circuit conflict. This Court's review is unwarranted.

* Although petitioner has private counsel in this Court, the Department of Justice represents petitioner in the district court. [*8]

A. The division concerning the ARP is nascent and shallow

Petitioner focuses first on lower court decisions addressing whether alternative remedial schemes may be considered at step one of the Bivens inquiry rather than step two. See Pet. 15. But that distinction is immaterial here: The panel held that "even if [the panel] were to consider [the ARP] at step one," Watanabe's claim could still go forward because it is not meaningfully different from other claims allowed under Carlson. Pet. App. 15a (emphasis added). The question here instead is whether the panel was correct to reject petitioner's view that the mere existence of the ARP creates a per se new context for all potential Carlson claims. Viewed through that lens, the disagreement among the lower courts is nascent, limited, and unworthy of this Court's review.

1. Petitioner exaggerates the purported "split" regarding the significance of the ARP at step one of the Bivens inquiry. Some cases petitioner cites do not arise under Carlson and do not implicate the ARP at all. For example, petitioner cites Hernandez v. Causey, 124 F.4th 325 (5th Cir. 2024) (Pet. 15-17), but that case alleged a different constitutional violation (the Fourth Amendment) and involved the exact same administrative remedy scheme addressed in Egbert—not the ARP, id. at 334. And Arias v. Herzon, although fully consistent with the decision below, arose under the Fourth Amendment and implicated the Inspector General Act, not the ARP. 150 F.4th 27, 29 (1st Cir. 2025).

Other cases, while discussing the ARP, do not hold that the ARP creates a per se new context for all Carlson claims. Petitioner cites Sargeant v. Barfield, 87 F.4th 358 (7th Cir. 2023), cert. denied, 145 S. Ct. 285 (2024) [*9] (Pet. 16), but the plaintiff there brought a failure-to-protect claim, id. at 360-61, 367. The Seventh Circuit emphasized that the plaintiff's claim failed "[n]o matter how we decipher the test—as one step or two." Id. at 366. And the court took pains to emphasize that its "holding is narrow." Id. at 369. The Seventh Circuit therefore did not hold that the ARP creates a "new context" per se for all Carlson claims. Indeed, as petitioner elsewhere acknowledges, the Seventh Circuit continues to allow Carlson claims. See Pet. 21 (citing Brooks v. Richardson, 131 F.4th 613 (7th Cir. 2025) and Watkins v. Mohan, 144 F.4th 926 (7th Cir. 2025)).

The same is true for the Tenth Circuit. Petitioner cites Silva v. United States, 45 F.4th 1134 (10th Cir. 2022) (Pet. 17), but that case did not involve a deliberate indifference claim and did not assert that the ARP creates a new context for all Carlson claims. Id. at 1137. And the Tenth Circuit later clarified in Rowland v. Matevousian, 121 F.4th 1237, 1243-44 (10th Cir. 2024) (cited Pet. 22), that the ARP does not per se create a new context for all Carlson claims, because it considered the ARP only at step two.

2. That leaves petitioner with two courts of appeals—the Third and Eleventh Circuits—that have held or suggested the existence of the ARP may alone be sufficient to render a context new. See Muniz v. United States, 149 F.4th 256 (3d Cir. 2025); Johnson v. Terry, 119 F.4th 840 (11th Cir. 2024), cert. denied, No. 24-1170 (Oct. 6, 2025). Those decisions conflict with the panel below but cannot be reconciled with this Court's affirmation that Carlson remains viable within its limited sphere. See, e.g., Malesko, 534 U.S. at 72 ("If a federal [*10] prisoner in a BOP facility alleges a constitutional deprivation, he may bring a Bivens claim against the offending individual officer . . . .").

The Eleventh Circuit in Johnson held that a prisoner's Eighth Amendment claim arose in a new context because Carlson "did not consider the existence of alternative remedies under the framework explained in Egbert." 119 F.4th at 858 (emphasis added). But as explained below, pp. 16-17, infra, Carlson did "consider the existence of alternative remedies." Cf. ibid. Moreover, whether the Court analyzed remedies "under the framework" used today is not the test: As this Court has recognized, "it is possible that the analysis in the Court's three Bivens cases might have been different if they were decided today," but that does not undermine the "settled law" of Bivens where it applies. Ziglar, 582 U.S. at 134. The Court's use of an earlier methodology thus does not deprive Carlson of stare decisis force. See also Loper Bright Enters. v. Raimondo, 603 U.S. 369, 412 (2024) (prior holdings "are still subject to statutory stare decisis despite [the Court's] change in interpretive methodology").

The Third Circuit, for its part, does not even align with the Eleventh Circuit on the contours of its proffered rule. In Muniz, the court acknowledged that "[t]he mere existence of the BOP ARP cannot meaningfully distinguish the remedial analysis here from that in Carlson," unless the court also considers "the availability of that administrative remedy." 149 F.4th at 265 & n.5 (emphasis added). The panel thus recognized that a Carlson claim may remain viable where "'prison administrators thwart inmates from taking advantage' of the ARP." Id. at 265 (quoting Ross v. Blake, 578 U.S. 632, 644 (2016)). In any event, the Third Circuit in Muniz [*11] simply relied on its holding from a prior case involving alleged sexual assault by a prison officer—an indisputably new context. See id. at 264 (citing Kalu v. Spaulding, 113 F.4th 311, 327-28 (3d Cir. 2024)). There is no analysis from the Third Circuit effectively grappling with any of the Court's decisions repeatedly reaffirming Bivens and Carlson in their respective spheres.

Such variation at the margins of these recent decisions—some less than a year old—underscores that the issue remains unsettled and that further percolation is warranted before this Court considers the issue, if at all. That practice conserves the Court's resources and ensures that, if an issue ultimately warrants resolution, it will benefit from the insights that debate at the lower courts can provide over time. See Gonzalez v. United States, 145 S. Ct. 529, 533 (2025) (Sotomayor, J., respecting denial of certiorari) (recognizing "need for percolation").

B. The claimed disagreement over the severity of injury reflects case-specific variation, not doctrinal disagreement

Petitioner's second purported split—regarding the significance of the severity of a plaintiff's injury—is even more tenuous.

The first step of the Bivens framework—whether the facts of a case are "meaningful[ly]" different from those of the Bivens trilogy, Ziglar, 582 U.S. at 139—is holistic and inherently fact-specific. Courts in turn often reach different results based on different facts. That case-specific disagreement does not mean there is a conflict in legal principle.

1. Petitioner first argues that the Third, Seventh, and Ninth Circuits follow the rule that "the severity of [*12] an injury is irrelevant to the new-context inquiry." Pet. 20 (emphasis added). That is not accurate.

In the decision below, the panel held that "[a] plaintiff need not suffer death or a life-threatening injury for his claim to be sufficiently analogous to Carlson," and that a "difference in degree is not a meaningful difference." Pet. App. 13a (emphasis added and citation omitted). It then concluded that Watanabe's mistreatment and injury were not meaningfully different from those in Carlson, because Watanabe's "injury resulted in a serious medical condition, and the condition has caused extreme pain ever since." Id. at 14a. The panel did not exclude the possibility that a difference in the nature of a plaintiff's injury or mistreatment (rather than degree) might give rise to a new context, and the Ninth Circuit has elsewhere reserved that very issue. See Chambers v. Herrera, 78 F.4th 1100, 1108 (9th Cir. 2023) (remanding for factual development regarding injury, treatment, and plaintiff's "ultimate condition," as, without these details, it was "unclear … whether [his] Bivens claim is viable").

The Third Circuit's decision in Muniz is similar. There, the court considered claims from an inmate who developed open wounds leading to infection and amputation. Muniz, 149 F.4th at 258 (cited Pet. 20-21). It concluded that the differences between the plaintiff's injuries and those in Carlson were not "meaningful," i.e., they did not "provide[] a 'reason[] to think Congress might doubt the efficacy or necessity of a damages remedy' in this context." Id. at 262-63 (quoting Egbert, 596 U.S. at 491). The panel thus did not conclude that the nature of the injury was "irrelevant," cf. Pet. 20; instead, it concluded there was not a meaningful "difference between amputation and death," Muniz, 149 F.4th at 262.

[*13] So too in the Seventh Circuit. Petitioner gestures to Brooks, 131 F.4th 613 (Pet. 21). But that case concluded simply that there was no meaningful difference when mistreatment of appendicitis led to a ruptured appendix, peritonitis, and "agonizing pain." Id. at 614-16. The panel did not set down a bright-line categorical rule that the nature of the injury can never be relevant.

2. Contrary to petitioner's insistence, see Pet. 21, the First, Tenth, and Eleventh Circuits follow fundamentally the same approach.

In the First Circuit case cited by petitioner, the plaintiff obtained extensive treatment and accommodation. Waltermeyer v. Hazlewood, 136 F.4th 361, 364-65 (1st Cir. 2025) (Pet. 21). The plaintiff filed suit because his request for knee surgery was denied. Id. at 365. The First Circuit concluded that his claims were meaningfully different from those in Carlson for at least six reasons, including that the treatment he received was not contrary to medical advice, the "claim d[id] not involve a wrongful death-like action[,] and at no time did the alleged failure to adequately treat concern either a life-threatening condition or extreme pain." Id. at 366-67. The court did not hold that a plaintiff must suffer death or life-threatening injury for a Carlson claim to be cognizable.

So too in the Tenth Circuit. In Rowland, cited by petitioner (Pet. 22), the plaintiff had a hernia that a physician concluded was "reducible and stable." 121 F.4th at 1240. His principal claim was for delay in receiving surgery and for insufficient post-operative care. The Tenth Circuit rejected the claim, identifying myriad factors that made the plaintiff's case "significantly different" from Carlson. Id. at 1243. Namely, officials did not [*14] act "against the doctor's orders," the plaintiff did not receive contra-indicated drugs or a medical tool "known to be inoperative," the injury was not as serious as that in Carlson, "[a]nd critically, [plaintiff] ultimately did receive surgery for his hernia." Ibid. The court thus reached a holistic conclusion based on all of those facts; it did not announce a rule that non-fatal injuries create a per se new context.

The Eleventh Circuit is similar. In Johnson, the court addressed the "non-lethal" nature of the plaintiff's injuries only in the context of observing that the plaintiff's injuries "were eventually treated by the defendants." 119 F.4th at 859. And the court made that observation only after it had already concluded the ARP created a new context. Id. at 858-59. Johnson thus did not hold that a plaintiff must die for a claim to fall within Carlson's context.

No circuit has adopted petitioner's suggested rule that an inmate must suffer a life-threatening emergency or die in order to have a Carlson claim. Instead, the lower courts consider the facts of each case and determine whether there are meaningful differences based on the totality of the circumstances. There is no split for this Court to resolve.

↑ **II. The Ninth Circuit's decision is correct**

This Court's review is further unwarranted because the Ninth Circuit's decision faithfully applies this Court's precedent.

A. The ARP does not create a per se new context for all Carlson claims

This Court has never suggested that the mere existence of the ARP—which was already in place at the time [*15] Carlson was decided—creates a per se new context for every claim arising under Carlson. While not expanding Carlson, this Court has confirmed it remains good law. In Malesko, this Court reaffirmed that Carlson claims remain viable within their sphere—even after discussing the ARP as a potential alternative remedy in place at the time. 534 U.S. at 72, 74. Petitioner's theory therefore rests on the premise that this Court in Malesko misunderstood the impact of the ARP on the continued viability of Carlson. But courts rightly do not "ascribe to the Supreme Court a misapprehension about the continuing vitality of its own precedents." Arias, 150 F.4th at 41-42.

The panel's decision also is consistent with Ziglar, in which the Court considered a suit by federal detainees and found a new context based on "meaningful differences other than the presence of the ARP." Arias, 150 F.4th at 43 (citing Ziglar, 582 U.S. at 148). Although the Court had examined the ARP in Malesko several years earlier, the Court in Ziglar did not even mention the ARP as a potentially relevant distinguishing factor. Yet if petitioner were correct, the ARP would have rendered the entirety of the Court's analysis of other factors superfluous. See Arias, 150 F.4th at 42-43.

Relying on the ARP as a distinguishing factor from Carlson is particularly inappropriate in light of the fact that the ARP was in effect when the Court decided Carlson, yet it did not give the Court any pause. Pet. App. 78a (Paez, J. & Koh, J.) (citing 44 Fed. Reg. 62,250 (Oct. 29, 1979)). Contrary to petitioner's assertion (Pet. 27), the fact that the ARP was not in place when the inmate in Carlson died is immaterial: The Bivens inquiry does not turn on whether an alternative remedy was available or adequate as to a particular plaintiff, but on [*16] whether "Congress or the Executive has created a remedial process that it finds sufficient to secure an adequate level of deterrence," as a prospective matter. Egbert, 596 U.S. at 498 (emphasis added).

Petitioner and the judges dissenting from en banc rehearing below urge that any alternative remedy not specifically discussed by the Court in the original Bivens trilogy is a "special factor" necessarily giving rise to a new context. Pet. 24, 27; Pet. App. 98a-100a (Nelson, J., dissenting). But this Court has never said that, and it is well settled that precedent does not lose its force merely because a later litigant contrives a different argument. Cf. Gamble v. United States, 587 U.S. 678, 691 (2019); Rodriguez de Quijas v. Shearson/Am. Express, Inc., 490 U.S. 477, 484 (1989). Instead, the existence of a special factor not previously considered may be addressed as one factor at step one, but the

inquiry at step one remains "whether the case 'is different in a meaningful way'" from the Bivens trilogy. Goldey v. Fields, 606 U.S. 942, 944 (2025) (per curiam) (citation omitted). Accordingly, a previously unconsidered special factor will render a context new only if that difference "might alter the policy balance that initially justified the causes of action recognized in Bivens, Davis, and Carlson." Snowden v. Henning, 72 F.4th 237, 239, 244 (7th Cir. 2023), cert. denied, 145 S. Ct. 137 (2024).

The ARP, even if considered at step one, does not satisfy that standard. In Carlson, the Court expressly considered alternative remedies—namely, the FTCA—and concluded they did not foreclose the availability of a remedy. The Court emphasized that the FTCA contained no "expression" from Congress that it intended to foreclose constitutional claims against individual officers [*17] and identified several reasons why "the Bivens remedy is more effective than the FTCA remedy." Carlson, 446 U.S. at 19-23.

The same rationales the Court invoked for the FTCA in Carlson apply with even greater force to the ARP. Like the FTCA, the ARP (1) contains no "explicit congressional declaration" foreclosing a Carlson claim,

(2) provides no relief against individual officers and thus is a less "effective deterrent," (3) does not permit punitive damages, and (4) affords no right to a jury. Carlson, 446 U.S. at 19-23. The ARP provides far less relief than the FTCA because it does not allow for damages and does not permit adjudication by a neutral tribunal. There is accordingly no reason to think Carlson would have come out differently had the Court expressly discussed the ARP.

In fact, under the ARP, if an inmate asserts a tort claim for damages, the proper course is to "refer the inmate to the appropriate statutorily-mandated procedures," i.e., the FTCA. 28 C.F.R. 542.10(c). In other words, the ARP itself points inmates back to the very remedial framework—the FTCA—the Court already considered at length in Carlson. There is accordingly nothing new about the ARP that would alter the Court's analysis in Carlson.

Nor does the Prison Litigation Reform Act (PLRA), 42 U.S.C. 1997e, change the calculus. As this Court explained in Ziglar, the PLRA may reflect Congress's desire to limit new Carlson actions, but it does not disturb the remedies this Court has already recognized. See 582 U.S. at 148-49. [*18]

B. An inmate need not die in order to bring a Carlson claim

Likewise, this Court has never suggested that an inmate must die (or suffer a life-threatening injury) in order to pursue a Carlson claim. Instead, the Court's cases limiting Carlson have involved efforts to dramatically extend Carlson, such as to private employees in private prisons (rather than federal officers in federal prisons). See Minneci v. Pollard, 565 U.S. 118, 120 (2012); Malesko, 534 U.S. at 63.

The Court has repeatedly explained that the relevant inquiry at step one is whether any differences are meaningful. See Ziglar, 582 U.S. at 139. And in Carlson, the Court's recognition of a cause of action had nothing to do with the fact that the inmate died—the Court instead focused on the status of the individual officers, the lack of an effective alternative remedy, the absence of a congressional declaration foreclosing such claims, the harm to the "constitutional design" without a remedy, and the need for a uniform rule. 446 U.S. at 18-23 (citation omitted). Those factors persist here regardless of whether Watanabe's injuries were life threatening.

When this Court has found a Bivens claim presents a new context, the factual and legal differences were stark and involved different categories of defendants, or entirely different constitutional rights. Egbert, 596 U.S. at 489-90 (immigration enforcement); Hernandez v. Mesa, 589 U.S. 93, 103 (2020) (cross-border shooting raising foreign affairs and national security concerns); Ziglar, 582 U.S. at 140 ("high-level executive policy" decisions concerning noncitizen detainees following the September 11 attacks). Notably, in Ziglar, which arose [*19] in the prison context, the Court did not identify the severity of the injury as a relevant factor creating a new context.

In no case has the Court found a new context based on a difference in degree rather than a qualitative difference in the nature of the claim. In fact, the Court in Davis explained that whether a plaintiff has "a cause of action . . . depends not on the quality or extent of her injury, but on whether the class of litigants of which [plaintiff] is a member may use the courts to enforce the right at issue." 442

U.S. at 239 n.18 (emphasis added). There is no basis for a different rule now.

C. There is no basis for revisiting Carlson

In reality, petitioner's disagreement is not with the decision below, but with Carlson—and, ultimately, with Bivens. See Pet. 31 ("[T]his Court may wish to consider whether it should dispense with Bivens altogether."). Yet, petitioner "do[es] not ask [this Court] to overrule" Carlson and therefore "do[es] not seek to overcome the presumption of stare decisis that attaches." Kurns v. R.R. Friction Prods. Corp., 565 U.S. 625, 633 (2012).

Instead, petitioner asserts that he is merely asking the Court to "eliminate" Carlson's "application" in light of the ARP. Pet. 28 n.6. That is a distinction without a difference. Watanabe's case presents a paradigmatic Carlson claim, and if he cannot maintain a claim because of the ARP—which has applied to virtually all federal prisoners from the day Carlson was decided—there would be nothing left of Carlson. Rendering Carlson inapplicable to every possible case would overrule it, whatever the label. Cf. Students for Fair Admissions, Inc. v. President & Fellows of Harvard Coll., 600 U.S. [*20] 181, 230 (2023) ("The Constitution deals with substance, not shadows ...." (quoting Cummings v. Missouri, 71 U.S. 277, 325 (1867)).

"[T]his Court does not overturn its precedents lightly." Michigan v. Bay Mills Indian Cmty., 572 U.S. 782, 798 (2014). And precedent cannot be discarded by implication or erosion. See, e.g., Shalala v. Ill. Council on Long Term Care, Inc., 529 U.S. 1, 17-18 (2000). If Carlson is to be reconsidered, it must be done forthrightly, with full engagement of the stare decisis factors. See Kimble v. Marvel Ent., LLC, 576 U.S. 446, 455-56 (2015). Yet petitioner never even engages in that analysis, much less argues that the question warrants this Court's review. That weighs heavily against review.

The stare decisis framework generally requires the Court to consider three broad questions: whether the precedent is "grievously or egregiously wrong," whether it has produced serious "negative jurisprudential or real-world consequences," and whether overruling it would "unduly upset reliance interests." Ramos v. Louisiana, 590 U.S. 83, 121-22 (2020) (Kavanaugh, J., concurring in part). "Taken together, th[e]se three considerations set a high ... bar for overruling a precedent," id. at 123, and each supports denying review and thus retaining Carlson in its limited sphere.

1. Taking the last of the three first, Congress has legislated in clear reliance on Carlson. In the Westfall Act, Congress preempted state-law claims against individual federal officers for money damages, making the FTCA the exclusive remedy for such injuries. 28 U.S.C. 2679. But Congress expressly carved out claims against officers "brought for a violation of the Constitution of the United States," an unambiguous reference to Bivens and Carlson. See 28 U.S.C. 2679(b)(2)(A). And Congress [*21] did so even though the Carlson Court had indicated that Congress could preempt Carlson claims by making an "explicit congressional declaration" directing aggrieved plaintiffs "to another remedy." 446 U.S. at 19.

Congress thus ratified Carlson's understanding that the FTCA is "parallel" and "complementary" to Bivens. id. at 20; see also Malesko, 534 U.S. at 68 (same). And Congress clearly intended that its broad preemption of claims against individual officers would not leave plaintiffs like Watanabe without a remedy. See Bartenwerfer v. Buckley, 598 U.S. 69, 80 (2023) ("This Court generally assumes that, when Congress enacts statutes, it is aware of this Court's relevant precedents." (citation omitted)). Overruling Carlson would therefore thwart Congress's intent and transform the Westfall Act into a bar against essentially all claims for damages against federal officers—contravening Congress's express preservation of those claims. See Hui v. Castaneda, 559 U.S. 799, 807 (2010) (noting "[t]he Westfall Act's explicit exception for Bivens claims").

Congress's reliance on Carlson is similar to that examined in Hilton v. South Carolina Public Railways Commission, 502 U.S. 197 (1991). There, the Court invoked stare decisis and declined to overturn its 28-yearold precedent holding that the Federal Employers' Liability Act (FELA), 45 U.S.C. 51-60, provides a cause of action against a state-owned railroad, allowing such claims in state court. See Hilton, 502 U.S. at 199, 201- 02 (citing Parden v. Terminal Ry. of Ala. Docks Dep't, 377 U.S. 184 (1964)). The Court emphasized that in reliance on that precedent, "[w]orkers' compensation laws in many States specifically exclude railroad workers from their coverage because of the assumption that FELA provides adequate protection for those workers," [*22] and thus overruling precedent "would

require these States to reexamine their statutes." Id. at 202-03. So too here, where Congress has eliminated an entire class of remedies based on the assumption that Carlson provides for a federal damages cause of action.

The PLRA points in the same direction. That statute mandates administrative exhaustion for prisoner complaints, including Carlson claims. See Porter v. Nussle, 534 U.S. 516, 524 (2002). Yet Congress left Carlson and the Westfall Act untouched. Cf. Chisom v. Roemer, 501 U.S. 380, 396 n.23 (1991) ("Congress' silence in this regard can be likened to the dog that did not bark."). In requiring federal prisoners to exhaust via the ARP before filing a Bivens suit, Congress could not have intended to use the former to replace the latter. Had Congress—whose goal was to curb frivolous prisoner litigation, see Cutter v. Wilkinson, 544 U.S. 709, 726 (2005)— wanted to foreclose Carlson claims altogether, it again could have easily done so.

2. Nor was Carlson egregiously wrong. Even a "good argument" that the Court "got [it] wrong" "cannot by itself justify scrapping settled precedent." Kimble, 576 U.S. at 455. Although this Court has steadily moved away from Bivens over time, Carlson itself is on stronger footing.

One of the alleged defects of Bivens and Carlson is that they are products of an "ancien regime" under which "the Court assumed it to be a proper judicial function to provide such remedies as are necessary to make effective a statute's purpose." Ziglar, 582 U.S. at 131-32 (quotation marks and citations omitted). After Bivens, "the Court adopted a far more cautious course before finding implied causes of action," deferring instead to express congressional direction. Id. at 132-33.

[*23] That narrative, however, cannot fully explain the decision in Carlson. The Court has observed that "[t]he decision to recognize an implied cause of action under a statute involves somewhat different considerations than when the question is whether to recognize an implied cause of action to enforce a provision of the Constitution itself." Ziglar, 582 U.S. at 133. And, notably, Carlson was decided after the series of cases in which the Court retreated from its earlier practice of implying private rights of action under statutes. See id. at 132-33 (citing Transamerica Mortg. Advisors, Inc. v. Lewis, 444 U.S. 11 (1979); Cannon v. Univ. of Chicago, 441 U.S. 677 (1979); Piper v. Chris-Craft Indus., Inc., 430 U.S. 1 (1977); Cort v. Ash, 422 U.S. 66 (1975)). Carlson therefore cannot be understood solely as an extension of that now-abandoned practice.

Instead, Carlson is best understood as a federal common-law analogue to common-law tort actions historically available against government officers for misconduct, including false imprisonment and negligence. See generally Carlos M. Vázquez & Stephen I. Vladeck, State Law, The Westfall Act, and the Nature of the Bivens Question, 161 U. Pa. L. Rev. 509, 531-42 (2013). At common law, an official could be individually sued for damages for trespass and false imprisonment under color of an unlawful warrant, see Huckle v. Money, 95 Eng. Rep. 768 (C.P. 1763), or to recover duties collected without a legal basis, see Elliott v. Swartwout, 35 U.S. 137 (1836). And common law has long provided prisoners with a cause of action against a jailer for failure to provide adequate care. See, e.g., Spicer v. Williamson, 132 S.E. 291, 293 (N.C. 1926). Carlson is simply a modern iteration of that claim for federal officials.

[*24] This Court has previously observed in this context that "[t]here is no federal general common law" and that "federal courts today cannot fashion new claims in the way that they could before [Erie Railroad Co. v. Tompkins, 304 U.S. 64 (1938)]." Hernandez, 589 U.S. at 100 (citation omitted). That is true as a general matter, but the Court has retained common-law authority in certain "limited enclaves" where uniquely federal interests are at stake. Sosa v. Alvarez-Machain, 542 U.S. 692, 729 (2004); see also Boyle v. United Techs. Corp., 487 U.S. 500, 504 (1988) (noting that federal courts may still formulate federal common law in certain areas implicating "uniquely federal interests" (citation omitted)). One such enclave involves "civil liability of federal officials for actions taken in the course of their duty." Boyle, 487 U.S. at 505 & n.1 ("[T]he liability of federal officials . . . is an area of uniquely federal interest."); see also Howard v. Lyons, 360 U.S. 593, 597 (1959) (extent of privilege for civil liability for defamatory statements by federal officers is a "peculiarly federal concern" governed by federal law).

A Carlson claim concerns the "civil liability of federal officials for actions taken in the course of their duty," Boyle, 487 U.S. at 505, but more specifically implicates numerous federal interests: a Carlson claim involves a federal prisoner held in a federal facility in the custody and care of federal officials subject to federal duties arising from a federal judgment issued by a federal court. Notably, "[a]n inmate must rely on prison authorities to treat his medical needs," and thus "[i]t is but just that the public be required to care for the prisoner, who cannot by reason of the deprivation of his liberty, care for himself." Estelle v. Gamble, 429 U.S. 97, 103-04 (1976) [*25] (citation omitted). It is therefore a federal duty to provide adequate medical care. Where, as here, every aspect of a claim is federal in nature, the justification for application of federal common law is at its strongest.

Carlson therefore falls within this Court's authority to define uniform common-law rules in an area of unique federal interest. There is accordingly no need to resurrect the "heady days" of implied statutory causes of action to retain Carlson within its already narrow sphere. Malesko, 534 U.S. at 75 (Scalia, J., concurring).

3. Finally, stare decisis has "special force" where Congress "remains free to alter what [this Court] ha[s] done." Bay Mills Indian Cmty., 572 U.S. at 799 (citation omitted). This Court's intervention is most necessary when a prior decision "short-circuit[s] the democratic process" by preventing States or Congress from addressing an issue. See Dobbs v. Jackson Women's Health Org., 597 U.S. 215, 269 (2022).

Carlson does nothing of the sort. The Court in Carlson acknowledged that Congress can at any time eliminate a Carlson cause of action by an "explicit congressional declaration" directing plaintiffs to an alternative, equally effective remedy. 446 U.S. at 19. Yet, as discussed above, Congress has done the opposite: through the Westfall Act and the PLRA it has legislated in view of Carlson, decidedly preserving it—just as this Court has done repeatedly. The strongest form of stare decisis therefore applies to Carlson.

↑ **III. The issue is not important and recurring**

Petitioner asks this Court to decide whether "the Ninth Circuit here erred in recognizing a Bivens cause of action." Pet. i. But this Court has repeatedly refused requests to take up a case simply to determine whether a given claim is sufficiently similar to a recognized [*26] Bivens context. See Ferreyra v. Hicks, 144 S. Ct. 555 (2024) (denying certiorari); Henning v. Snowden, 145 S. Ct. 137 (2024) (same). It should do the same here.

Petitioner nonetheless argues that the Court should grant the petition because "clarity" is needed for the courts of appeals. Pet. 2 (citation omitted). But as set forth above, pp. 7-14, supra, petitioner overstates the nature and extent of any disagreement in the courts of appeals. Consistent with this Court's instructions, the lower courts are overwhelmingly rejecting efforts to expand Bivens and Carlson to new contexts: In the Ninth Circuit alone, "[i]n the last three years," the court has "rejected Bivens claims in eight published opinions (and even more in unpublished dispositions)." Pet. App. 90a (Nelson, J., dissenting). That courts are allowing a very small number of cases with facts not meaningfully different from the original Bivens trilogy to proceed is no cause for certiorari.

Petitioner appears to court a summary reversal. Pet 31. But summary dispositions are "rare[ly]" appropriate, Tharpe v. Sellers, 583 U.S. 33, 43 (2018) (Thomas, J., dissenting) (per curiam) (citation omitted), and are reserved for decisions that are clearly and egregiously wrong, see Sexton v. Beaudreaux, 585 U.S. 961, 967 (2018) (per curiam). Although Goldey, 606 U.S. 942 (cited Pet. 31), is the rare case that met that exacting standard, this case does not. In Goldey, the Fourth Circuit acknowledged it was extending Bivens to a new context—something this Court has repeatedly warned against. Id. at 942-43. Here, by contrast, the Ninth Circuit merely applied Carlson in the same context as Carlson itself. Petitioner identifies no case in which this Court has summarily reversed to effectively overrule one of its prior precedents. [*27]

↑ **IV. This case is a poor vehicle**

Finally, this case is a poor vehicle for the Court to define the outer bounds of Carlson. Watanabe's complaint presents the prototypical Carlson claim. Accordingly, taking this case would do little more than allow the Court to confirm that Carlson remains good law—which it has already done, see pp. 9-10, 15, supra—but would not meaningfully elucidate any disputed issues. See Liles v. Oregon, 425 U.S. 963

(1976) (Stevens, J., concurring in denial of certiorari) ("[I]t would be pointless to grant certiorari in case after case of this character only to have [precedent] reaffirmed time after time.").

This case also comes to the Court in an interlocutory posture: Watanabe has received no relief and may never receive any damages. The case would be entering discovery in the district court but for the maintenance of this petition. See D. Ct. Doc. 49 (Dec. 17, 2025). Accordingly, the Court's intervention would be premature and may prove entirely unnecessary. Nat'l Football League v. Ninth Inning, Inc., 141 S. Ct. 56, 56-57 (2020) (Kavanaugh, J., respecting denial of certiorari) (noting "interlocutory posture . . . counsel[s] against . . . review" of appellate opinion reversing district court's dismissal). [*28]

↑ **Conclusion.** The petition for a writ of certiorari should be denied. Respectfully submitted.

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↑ **Francis Nielsen** Reply Brief · Jan. 20, 2026

Reply of petitioner Francis Nielsen filed. (Distributed)

Nielsen · Reply Brief · Jan. 20, 2026 · petitioner — coupling row C
Cites 14 cases (22 mentions), 7 citations not resolved; 1 statutes and provisions (1 bare section cites not resolved).
Shares with Pet. 42% · Br. in Opp. 16% · Supplemental 0% · Supplemental 0% · Supplemental 0% · Supplemental 0% · Pet'rs Br. 14% · Resp. Br. 6% · Reply Br. 9%; closest: Pet.
Its own ground: 2 cases no other filing cites; 1 shared with its own side only, 11 with the other side.
Statutes: 28 U.S.C. § 2679.

[*1] IN THE

Supreme Court of the United States

FRANCIS NIELSEN,

Petitioner, v.

KEKAI WATANABE,

Respondent.

On Petition for a Writ of Certiorari to the United States Court of Appeals for the Ninth Circuit

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REPLY FOR PETITIONER

[*2] Tenth, and Eleventh Circuits, the different nature of the alleged injury and mistreatment compared to Carlson would have rendered the context "new" as well.

Circuit after circuit has acknowledged those conflicts. Pet.2. Eleven judges dissented from denial of rehearing below, urging this Court to "provide some greater clarity" and resolve the "multiple deep circuit splits over Carlson-related Bivens actions." Pet.App.91a, Pet.App.116a. Even Watanabe concedes the conflicts. He admits the Third and Eleventh Circuits "conflict with the panel below" on whether an alternative remedy here—the "ARP"—may "render a context new." Br.in.Opp.9. And he admits the First, Tenth, and Eleventh Circuits have found new contexts where injuries were "not as serious as th[ose] in Carlson." Br.in.Opp.13-14.

On the merits, Watanabe practically confesses error. The Ninth Circuit holds courts may not consider alternative remedies at Bivens step one, Pet.App.15a; they can be considered "only at step two," Schwartz v. Miller, 153 F.4th 918, 930 (9th Cir. 2025). But Watanabe admits courts can consider alternative remedies at step one. Br.in.Opp.16. And he admits that differences are sufficiently "meaningful" to make a context "new" if they " 'might alter the policy balance that initially justified' " recognizing a Bivens cause of action. Br.in.Opp.16. The Ninth Circuit never addressed that question. Watanabe does not either. He thus ignores a key difference between this case and Carlson: There, unlike here, the fast-moving and fatal nature of the circumstances meant the remedy was "damages or nothing." Pet.4, 22. "If that is not a meaningful difference, then it's hard to say what is." Pet.App.98a-99a (Nelson, J., dissenting from denial).

The new-context inquiry should be "easily satisfied" and thus easily applied. Ziglar, 582 U.S. at 149. But [*3] Watanabe concedes the Ninth Circuit uses a "holistic," multifactor test to assess similarities with Carlson, Br.in.Opp.11—not a straightforward test to identify differences that might alter "the policy balance."

↑ **I. The Circuits Are Divided**

A. The Circuits Are Divided Over Whether Alternative Remedies Create a New Bivens Context

Watanabe does not dispute the circuits are divided over whether alternative remedies can create a new Bivens context. Pet.15-19. The panel majority recognized a "split on the role of alternative remedies." Pet.App.78a (respecting denial of rehearing). So did ten dissenting judges. Pet.App.106a-109a. So

do other circuits. Pet.15. Watanabe downplays the split by focusing on whether the ARP specifically creates a new context. But the conflict goes beyond the ARP. And the conceded split on the ARP is highly consequential and warrants review regardless.

1. Watanabe concedes a conflict on whether the ARP "render[s] a context new." Br.in.Opp.9. In "conflict with the panel below," he admits, the Third and Eleventh Circuits hold "the ARP may alone be sufficient to render a context new." Br.in.Opp.9 (citing Muniz v. United States, 149 F.4th 256 (3d Cir. 2025); Johnson v. Terry, 119 F.4th 840 (11th Cir. 2024), cert. denied, No. 24-1170 (Oct. 6, 2025)). In the Ninth Circuit, however, the ARP does not create a new context—it is relevant only "at the second step." Pet.App.15a; see Schwartz, 153 F.4th at 929-930.

That conceded split warrants review. In a circuit covering nine States, prisoners have a judicially created damages action despite the ARP; in another broad swath of the Nation, they do not. While Watanabe urges the Third and Eleventh Circuits are wrong, Br.in.Opp.9-11, that is a merits response (an erroneous one, pp. 7-10, infra)—not an [*4] argument against resolving an admitted conflict. Watanabe asks for "percolation," Br.in.Opp.11, but identifies nothing that would further illuminate the issue.

2. Watanabe understates the conflict regardless. The Seventh and Tenth Circuits have also addressed the ARP specifically. Pet.16-17. The Seventh Circuit held "[t]he PLRA and the Bureau of Prisons' [ARP] grievance program satisfy th[e] low bar" of showing "a new context" "at step one." Sargeant v. Barfield, 87 F.4th 358, 366, 368-369 (7th Cir. 2023), cert. denied, 145 S. Ct. 285 (2024). The Tenth Circuit holds Carlson claims independently "foreclosed by the availability of the BOP Administrative Remedy Program." Silva v. United States, 45 F.4th 1134, 1142 (10th Cir. 2022).

Watanabe protests that other cases in those circuits "allow[ed] Carlson claims" or considered the ARP at step two. Br.in.Opp.8-9. But the parties in those other cases never invoked the ARP at step one.[1] Parties, not courts, "frame the issues for decision." United States v. Sineneng-Smith, 590 U.S. 371, 375 (2020). When actually presented with the issue, the Seventh and Tenth Circuits—unlike the Ninth—held the ARP forecloses Bivens relief.

3. The conflict runs deeper still. The Fifth Circuit agrees with the Third, Seventh, Tenth, and Eleventh Circuits that "an alternative remedial structure" "indeed present[s] a new context" at step one. Hernandez v. Causey, 124 F.4th 325, 334 (5th Cir. 2024), cert. denied, 145 S. Ct. [*5] 1930 (2025). But the First Circuit sides with the Ninth in finding no " ' "new Bivens context" ' " despite new administrative remedies. Arias v. Herzon, 150 F.4th 27, 45, 49 (1st Cir. 2025). That 5-2 conflict is anything but "shallow." Br.in.Opp.7.

Watanabe complains Causey and Arias did not "arise under Carlson" or "implicate the ARP." Br.in.Opp.8. But he cannot say why that matters. This Court has discussed the role of "alternative remedial structures" generally in analyzing "Bivens" claims generally. Egbert v. Boule, 596 U.S. 482, 493 (2022). Neither Causey nor Arias invokes any such distinction. Nor does the Ninth Circuit: It holds "the existence of alternative remedial structures" cannot be considered at step one of "the Bivens analysis"— period. Pet.App.15a.

B. The Circuits Are Divided on Whether the Nature and Seriousness of the Injury or Mistreatment Can Render the Context "New"

Watanabe admits circuits have reached "different results" over whether the severity of harm or mistreatment makes a context "new" compared to Carlson. Br.in.Opp.11. He concedes the Third, Seventh, and Ninth Circuits deem such differences " 'not * * * meaningful.' " Br.in.Opp.12- 13. And he concedes the First, Tenth, and Eleventh Circuits have found new contexts where (as here) "the injury was not as serious as that in Carlson." Br.in.Opp.13-14. Attempting to reconcile the cases as "fundamentally" consistent, Watanabe urges they apply the same "holistic" approach to "different facts." Br.in.Opp.11, 13. But Watanabe never reconciles the facts or results.[2] And the cases [*6] apply "fundamentally" conflicting rules. In the Third, Seventh, and Ninth Circuits, a difference in degree or urgency of injury is categorically " 'not a meaningful difference.' " Muniz, 149 F.4th at 262-263; Pet.App.13a; see Brooks v. Richardson, 131 F.4th 613, 615 (7th Cir. 2025). But the First, Tenth, and Eleventh Circuits consider

[1] See Brief of Defendants-Appellees, Brooks v. Richardson, No. 24- 1651, Dkt. 17 (7th Cir. Sept. 6, 2024); Brief of Defendants-Appellees, Watkins v. Mohan, No. 24-1151, Dkt. 27 (7th Cir. Aug. 30, 2024); Brief of Defendants-Appellees, Rowland v. Matevousian, No. 23-1343, Dkt. 30 (10th Cir. Apr. 8, 2024).

such differences. Pet.21-22. The conflict between circuits that take a "permissive stance on the nature and extent of the injury for Carlson claims," and those that do not, is widely recognized. Watkins v. Mohan, 144 F.4th 926, 947 & n.* (7th Cir. 2025) (Kirsch, J., concurring in part and dissenting in part); see Pet.App.103a (Nelson, J., dissenting from denial). Invoking that "conflict," the United States has urged the Seventh Circuit to go en banc to realign its precedents with the First, Tenth, and Eleventh Circuits'. Rehearing Pet. 22-23, Watkins v. Mohan, No. 24-1151, Dkt. 56 (7th Cir. Oct. 16, 2025), reh'g denied, 2025 WL 3074657 (Nov. 3, 2025).

If the circuits were applying Watanabe's "holistic" balancing test, that would cement the need for review. That would transform this Court's "easily satisfied" inquiry asking whether cases "differ in a[ny] meaningful way," Ziglar, 582 U.S. at 139-140, 149, into an anything-goes, totality-of-the-circumstances gumbo that contravenes precedent and expands the judicial role.

↑ **II. The Issues Are Important And Recurring**

The issues are important and recurring. They concern the rights of 150,000 federal inmates, the officers responsible for them, and separation-of-powers concerns that

son—involved non-lethal injuries resulting from less extreme conduct that could be redressed by other means. Pet.App.3a-4a; Waltermeyer v. Hazlewood, 136 F.4th 361, 366-367 (1st Cir. 2025); Rowland v. Matevousian, 121 F.4th 1237, 1243 (10th Cir. 2024); Johnson, 119 F.4th at 859. But this case came out the opposite way. [*7] should not vary by geography. Pet.22-23. The issues arise frequently. Pet.23; Pet.App.122a-131a. Watanabe nowhere contends otherwise.

Watanabe insists courts "overwhelmingly" get the analysis right, "rejecting" Bivens claims. Br.in.Opp.26. But the Ninth Circuit—the largest circuit—has endorsed Carlson claims despite alternative remedies not previously considered and despite differences in the nature of the misconduct and harm. Pet.App.13a-15a; Schwartz, 153 F.4th at 929-931. Others have joined it. Pet.18-21; pp. 5-6, supra. The resulting conflicts will persist, affecting case after case, until this Court intervenes. That is why court of appeals judges have pleaded for this Court to "provide some greater clarity" and stem the "flood of inconsistent case law" by "resolv[ing] the multiple deep circuit splits over Carlson-related Bivens actions." Pet.App.116a (Collins, J., dissenting from denial), Watkins, 144 F.4th at 951 & n.* (Kirsch, J., concurring in part and dissenting in part), Pet.App.91a (Nelson, J., dissenting from denial); see Arias, 150 F.4th at 51 & n.11 (Lynch, J., concurring in part and dissenting in part).

↑ **III. The Decision Below Is Wrong**

A. Watanabe never defends the Ninth Circuit's holding that "alternative remedial structures" may only "be considered at the second step." Pet.App.15a. He concedes error: "[T]he existence of a special factor not previously considered," he admits, "may be addressed as one factor at step one." Br.in.Opp.16 (emphasis altered). That concession is unsurprising: Ziglar, Egbert, and Goldey all considered alternative remedies at step one. Pet.24-26. Watanabe invokes the panel's dictum that, " 'even if [it] were to consider [the ARP] at step one,' " the context would not be new. Br.in.Opp.8, 16. But he ignores that the Ninth Circuit held—and has since confirmed—it "treat[s] [*8] the ARP as a special factor only at step two." Schwartz, 153 F.4th at 930 (emphasis added); see Pet.18, 25. And Watanabe nowhere defends the panel's sole justification for its "even if " dictum: that the ARP does not create a "new context" because remedial schemes supposedly have at most "little significance" at step one. Pet.App.15a, 80a-81a. That's a slightly diluted version of the court's rationale for entirely refusing to consider alternative remedies—that alternative remedies shouldn't matter at step one. Either formulation ("no" significance or "little" significance) defies this Court's instruction that "alternative remedial structures" " 'alone' " create a new context and foreclose a Bivens action. Egbert, 596 U.S. at 492-493; Pet.26-27. Far from rendering the error here "immaterial," Br.in.Opp.8, the panel's dictum doubles down on it. And the conflict over whether the ARP ultimately renders the context "new" exists regardless.

Watanabe says "this Court has never said" that "any alternative remedy not specifically discussed * * * in the

[2]The facts in this case, for example, track the First, Tenth, and Eleventh Circuit cases finding the context new: Each case—unlike Carl-

original Bivens trilogy is a 'special factor' necessarily giving rise to a new context." Br.in.Opp.16. But Ziglar says one "example" of a "differenc[e] that [is] meaningful enough to make a given context a new one" is "the presence of potential special factors"—including "alternative remedies"—that "previous Bivens cases did not consider." 582 U.S. at 139, 148-149; see Pet.27. Egbert held the existence of "alternative remedial structures" not previously considered " 'alone' " forecloses a Bivens action. 596 U.S. at 492-493, 497; see Pet.27. And Goldey ruled that, because the ARP was " 'an alternative remedial structure,' " the case arose "in a new context [at step one], and 'special factors' counsel[ed]" hesitation at step two. Goldey v. Fields, 606 U.S. 942, 944 (2025) (per curiam). There is no dispute the ARP is a potential special factor, and that [*9] Carlson did not consider it. Under this Court's precedents, that renders the context "new." Pet.24.

That the ARP was "in effect" when Carlson issued is irrelevant. Br.in.Opp.15. The question is whether the ARP was "consider[ed]." Ziglar, 582 U.S. at 140. It was not—nor even raised. Pet.27. "Questions which merely lurk in the record, neither brought to the attention of the court nor ruled upon, are not to be considered as having been so decided * * * ." Webster v. Fall, 266 U.S. 507, 511 (1925). Watanabe offers no answer.[3] Stray language from Correctional Services Corp. v. Malesko, 534 U.S. 61, 72 (2001), see Br.in.Opp.9-10, 15, cannot change the result. Such "general expressions" are "seldom completely investigated" and thus not "control[ling]." Cohens v. Virginia, 19 U.S. (6 Wheat.) 264, 399-400 (1821) (Marshall, C.J.); see Brown v. Davenport, 596 U.S. 118, 141 (2022). Under Ziglar, Egbert, and Goldey—all postdating Malesko—the ARP renders the context "new."

So Watanabe extolls Carlson's reasoning. But Carlson carries "little weight because it predates [this Court's] current approach to implied causes of action." Egbert, 596 U.S. at 500. Carlson addressed a different alternative remedy, the Federal Tort Claims Act. But that says nothing about whether the ARP (which Carlson never considered) renders the context different here. The ARP plainly could affect Congress's preferred " 'policy balance.' " Br.in.Opp.2, 16-17. Indeed, the ARP's administrative remedies may offer swifter, more specific relief than FTCA damages suits.

Carlson also says nothing about the effect of the Prison Litigation Reform Act along with the ARP. Pet.30. The [*10] PLRA concededly presents a "meaningful" "differenc[e]" from Carlson. Ziglar, 582 U.S. at 149; see Pet.24-25 & n.5; Br.in.Opp.17. While Watanabe insists the PLRA bars only "new Carlson actions," Br.in.Opp.17, that begs the question. Actions present "new" contexts where they implicate alternative remedial structures Carlson "did not consider." Ziglar, 582 U.S. at 140. Carlson considered neither the PLRA nor the ARP.

Watanabe insists the "rationales" Carlson "invoked for the FTCA" apply to the ARP and PLRA. Br.in.Opp.17. But any remedies Carlson did not consider must be assessed under the Court's current " 'analytic framework.' " Egbert, 596 U.S. at 500-501. "[S]tare decisis" does not require applying Carlson's outmoded "methodology" here. Br.in.Opp.10; see Alexander v. Sandoval, 532 U.S. 275, 287 (2001).

B. The Ninth Circuit erred in holding that differences in the harm's severity or immediacy cannot render the context "new." Watanabe concedes that differences that " 'might alter the policy balance that initially justified' " a Bivens remedy can make the context new. Br.in.Opp.16. Congress rationally could conclude that wrongful death (as in Carlson) presents weightier concerns than a stilltreatable fractured coccyx (as here). And Congress rationally could conclude that, even if a damages remedy were appropriate for on-the-scene death (making it damages-ornothing, as in Carlson), a damages remedy is unwarranted where (as here) prisoners can pursue administrative or injunctive remedies for chronic conditions. Pet.29-30.

Watanabe's argument that the Court's reasoning in Carlson didn't turn on "the fact that the inmate died," Br.in.Opp.18, is misplaced. The question is whether "Congress" could "weigh such policy considerations" when assessing [*11] " 'the efficacy or necessity of a damages remedy.' " Egbert, 596 U.S. at 491, 496, 501. Plainly it could.

C. Especially given Watanabe's refusal to defend much of the decision below, this Court may wish to consider summary reversal. Pet.31. If the Court grants plenary review, however, it may consider whether Bivens should be overruled. Pet. 31-32. Experience suggests that efforts to cabin Bivens and its progeny have

[3]The ARP also did not exist when the conduct in Carlson occurred and was unavailable to the Carlson plaintiff (the decedent's mother). Pet.27-28. Congress could think those differences meaningful, too.

proved unworkable. Disarray has prevailed. And the Court has repeatedly had to reverse decisions that misapprehend its instructions. Pet.23. "In fairness to future litigants and [the] lower court[s]," the Court may wish to clean the slate and "return the power to create new causes of actions" solely to "Congress." Egbert, 596 U.S. at 504 (Gorsuch, J., concurring); see Mary Mason, Reckoning With Bivens, Lawfare (Nov. 12, 2025), https://www.lawfaremedia.org/article/ reckoning-with-bivens.

That course is squarely within the question presented. If Bivens is not good law, then "the Ninth Circuit here erred in recognizing a Bivens cause of action." Pet. i. Watanabe tries to defend Carlson as a "federal common-law analogue to common-law tort actions." Br.in.Opp.23. But this Court has rejected attempts to "[a]nalogiz[e] Bivens to the work of a common-law court." Hernández v. Mesa, 589 U.S. 93, 100 (2020). "[A]uthority to recognize a damages remedy must rest at bottom on a statute," id. at 101— not on whether plaintiffs can use the word "federal" eight times in one sentence, Br.in.Opp.24.[4] [*12]

↑ **IV. This Case Presents An Ideal Vehicle**

This case cleanly presents both circuit splits; all issues were preserved and passed upon; and reversal would be case-dispositive. Nor is the case "interlocutory" in any meaningful sense. Br.in.Opp.27. The district court granted judgment on the pleadings, holding the context "new"; the Ninth Circuit reversed, holding the opposite. Burdensome "discovery" and potentially trial, ibid., would not inform the issues. If anything, those burdens underscore the need for intervention. Ziglar, 582 U.S. at 134. This Court has reviewed other Bivens cases in similar postures. Id. at 130; Goldey, 606 U.S. at 945.

↑ **Conclusion.** The petition should be granted. [*13] Respectfully submitted.

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[4]The Westfall Act's "carve[-]out" for Bivens, Br.in.Opp.20, means Congress left Bivens' fate to the courts. And the FTCA "remedy against the United States" the statute recognizes, 28 U.S.C. § 2679(b)(1) (citing §§ 1346(b), 2672), refutes the assertion that overruling Bivens would "leave plaintiffs * * * without a remedy" Congress wanted to provide, Br.in.Opp.21.

↑ **Francis Nielsen** Supplemental Brief · Feb. 13, 2026

Supplemental brief of petitioner Francis Nielsen filed. (Distributed)

Nielsen · Supplemental Brief · Feb. 13, 2026 · petitioner — coupling row D
Cites 0 cases (0 mentions); 0 statutes and provisions.
Shares with Pet. 0% · Br. in Opp. 0% · Cert. Reply 0% · Supplemental 0% · Supplemental 0% · Supplemental 0% · Pet'rs Br. 0% · Resp. Br. 0% · Reply Br. 0%
Its own ground: 0 cases no other filing cites; 0 shared with its own side only, 0 with the other side.

[*1] IN THE

Supreme Court of the United States ————

FRANCIS NIELSEN, Petitioner, v.

KEKAI WATANABE,

Respondent. ————

On Petition for a Writ of Certiorari to the United States Court of Appeals

for the Ninth Circuit ————

SUPPLEMENTAL BRIEF FOR PETITIONER [*2] Prisons' "Administrative Remedy Program" and the "Prison Litigation Reform Act"—give rise to "a new Bivens context." Id. at 11-12, 18-21 (quotation marks omitted); accord Pet.15-19; Reply.3-5.

The circuits are likewise divided over whether a new Bivens context arises where a "case involves a different type of injury than Carlson," e.g., a " 'chronic, non-emergent medical condition' " (like here and in Mohan), as opposed to the " 'acute medical emergency' " in Carlson that " 'should have received immediate treatment to avoid serious injury or death' "—and that in fact resulted in the inmate's on-scene death in Carlson. Gov't Pet.12-13, 20- 21; Pet.20-22; Reply.5-6. As the Solicitor General explains, the Seventh Circuit (in Mohan) and the Ninth Circuit (in this case) have taken the wrong side of both conflicts. Gov't Pet.10-13; accord Pet.24-31.

2. The Solicitor General explains that "the question presented is important" and recurring. Gov't Pet.23. "Questions about Carlson's scope arise frequently." Ibid. Thousands of prisoner civil-rights suits are filed every year, and in the past two calendar years alone, "six courts of appeals * * * issued conflicting decisions about the viability of [Carlson] claims." Ibid. The question presented also bears directly on the " 'complex and difficult' " " 'realities of running a penal institution.' " Ibid. The decisions below—here and in Mohan—"ad[d] to those challenges by countermanding the political branches' policy judgments about the proper remedies for inadequate care in prisons, by exposing prison staff to harassing litigation, and by confronting staff with the risk of 'personal financial liability.' " Ibid.; see id. at 13; accord Pet.22-23, 29-30. They also "undermin[e] the separation of powers by usurping a function, the creation of new [*3] causes of action, that the Constitution reserves to Congress." Gov't Pet.23; accord Pet.22-23.

3. The Solicitor General explains that this case (Nielsen) is "an even better vehicle" than Mohan for the Court "to clarify Carlson's scope and continuing vitality." Gov't Pet.24; id. at 4. Among other things, granting Nielsen's petition avoids unnecessary delay. The "certiorari-stage briefing in Nielsen" is "already complete" and ready for Conference, while the Mohan petition was just filed on February 10. Gov't Pet.24. "Granting review in Nielsen could enable a prompter resolution of the question presented than granting review in [Mohan]." Ibid.

CONCLUSION

For the reasons articulated by the Solicitor General, as well as those in Nielsen's petition and reply, "[t]his Court should * * * grant the petition for a writ of certiorari in Nielsen and hold the [government's] petition in [Mohan]." Gov't Pet.24-25.

[*4] Respectfully submitted.

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↑ **Kekai Watanabe** Supplemental Brief · Feb. 17, 2026

Supplemental brief of respondent Kekai Watanabe filed.

Watanabe · Supplemental Brief · Feb. 17, 2026 · respondent — coupling row D
Cites 0 cases (0 mentions); 0 statutes and provisions.
Shares with Pet. 0% · Br. in Opp. 0% · Cert. Reply 0% · Supplemental 0% · Supplemental 0% · Supplemental 0% · Pet'rs Br. 0% · Resp. Br. 0% · Reply Br. 0%
Its own ground: 0 cases no other filing cites; 0 shared with its own side only, 0 with the other side.

[*1] In the Supreme Court of the United States

NO. 25-417 FRANCIS NIELSEN, PETITIONER v. KEKAI WATANABE

ON PETITION FOR A WRIT OF CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE NINTH CIRCUIT

SUPPLEMENTAL BRIEF FOR RESPONDENT

Respondent Kekai Watanabe respectfully submits this supplemental brief in response to petitioner's submission regarding the Solicitor General's petition for a writ of certiorari in Mohan v. Watkins, No. 25-952 (filed Feb. 10, 2026). As previously noted, the Department of Justice represents petitioner Francis Nielsen in the district court in this case. Br. in Opp. 7 n.*.

1. The Solicitor General's filing underscores the limited and nascent nature of any circuit disagreement. The Solicitor General agrees with Watanabe that only two circuits have suggested or held that the ARP per se creates a new context. Gov't Pet. 19-20; contra Pet. 5, 15- 16 (arguing five circuits take petitioner's position). And the Solicitor General agrees with Watanabe that petitioner has overstated the purported split regarding the severity of a plaintiff's injury. Compare Pet. 5, 20-21, [*2] with Gov't Pet. 20. For the reasons set forth in Watanabe's brief in opposition, even these more limited splits do not justify certiorari. See Br. in Opp. 7-14. And the disagreement between the Solicitor General and petitioner on the contours of the purported circuit splits highlights that further percolation is needed. Id. at 11.

2. This issue does not warrant the Court's review. Neither the ARP nor the PLRA represents a changed circumstance that would justify granting certiorari to overrule Carlson. As the Solicitor General admits, the ARP "already existed in some form" at the time this Court decided Carlson, Gov't Pet. 12, and the ARP merely routes damages claims through the FTCA (already addressed in Carlson), see Br. in Opp. 14-17. And the PLRA (which petitioner did not raise below as a new context) did not eliminate preexisting Carlson claims. See id. at 17, 22. The final factor the Solicitor General emphasizes—the difference between acute injuries (as in Carlson) and chronic conditions (as in Mohan), Gov't Pet. 12-13—is not implicated here, because Watanabe suffered an acute injury during a physical assault.

The "[t]housands of prisoner civil-rights suits" filed annually is immaterial. Supp. Br. 2; Gov't Pet. 23. The relevant metric is the number of Carlson suits that courts are permitting to go forward, and that number is vanishingly small. Br. in Opp. 26. And it is petitioner, not Watanabe, that seeks to "countermand[]" the judgment of "the political branches[]," Gov't Pet. 23, because Congress has legislated in reliance on Carlson. Br. in Opp. 20-22. Most notably, Congress in the Westfall Act preempted state-law causes of action against federal officers but expressly preserved constitutional claims. Ibid. If accepted, petitioner's and the Solicitor General's [*3] position would grant federal officials impunity to deliberately deprive federal prisoners of basic medical care and in turn to violate their Eighth Amendment right to be free from cruel and unusual punishment. There is no reason to take that dramatic step, particularly without analysis of the stare decisis factors.

3. Petitioner's assertion that this case presents a "better vehicle" than Mohan is misplaced. Supp. Br. 3 (quoting Gov't Pet. 24). The Solicitor General's discussion primarily highlights why Mohan is a poor vehicle, see Gov't Pet. 24 (noting pretrial detention issues), not why this case is a good one. In fact, the Solicitor General acknowledges this case concerns an Eighth Amendment claim and is therefore "more typical" of "Carlson claims"—review here would not clarify the outer bounds of Carlson. Ibid. Nor is there any urgency for Supreme Court review—Bivens and Carlson are decades-old precedent, and the circuit decisions petitioner

draws on were issued relatively recently. Br. in Opp. 11.

[*4] For the reasons articulated in Watanabe's brief in opposition, the petition for a writ of certiorari should be denied.

Respectfully submitted.

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↑ **Francis Nielsen** Supplemental Brief · May 5, 2026

Supplemental brief of petitioner Francis Nielsen filed.

Nielsen · Supplemental Brief · May 5, 2026 · petitioner — coupling row D
Cites 3 cases (3 mentions), 1 citations not resolved; 1 statutes and provisions.
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Its own ground: 0 cases no other filing cites; 0 shared with its own side only, 3 with the other side.
Statutes: 18 U.S.C. § 3621.

[*1] IN THE

Supreme Court of the United States ————

NO. 25-417

FRANCIS NIELSEN, Petitioner, v.

KEKAI WATANABE, Respondent. ————

On Petition for a Writ of Certiorari to the United States Court of Appeals

for the Ninth Circuit ————

SUPPLEMENTAL BRIEF FOR PETITIONER

[*2] 1. The Fourth Circuit first held that Spivey presented a new context from Carlson because—although both cases involved Eighth Amendment claims for inadequate medical treatment—the claims in Spivey were "different in kind, severity, and results" from those in Carlson. 2026 WL 1060429, at *4. Spivey alleged delayed or inadequate care for tooth decay and inflammation, rectal bleeding, and depression. Ibid. Those allegations were not "even close to the severity of those in Carlson," where "discrete acts of malfeasance"—such as administering "contraindicated" drugs and "us[ing] a respirator that was known to be inoperative"—"worsened" an inmate's asthma attack and "led to the inmate's death." Ibid. The Fourth Circuit had "little difficulty in recognizing that Spivey's claims for inadequate medical treatment present[ed] a materially different context than the inadequate medical treatment claim presented in Carlson." Ibid.

That ruling deepens the acknowledged circuit conflict over whether a case presents a new context where the alleged harm is less severe or urgent, and the consequences less immediate or profound, than in Carlson. See Pet.20-22; Reply 5-6. Four circuits—the First, Tenth, Eleventh, and now the Fourth—hold that it does. Three circuits—the Third, Seventh, and Ninth—hold the opposite. And it is clear that conflict makes a difference. Here, Watanabe alleges delayed and inadequate treatment for a fractured coccyx resulting in chronic pain. Pet.9, 20. That alleged harm closely resembles the delayed and inadequate treatment for tooth pain, rectal bleeding, and depression alleged in Spivey. But it is not "even close to the severity of [the harm] in Carlson," which resulted in the inmate's death. 2026 WL 1060429, at *4. There can be little doubt this case would have been decided differently in the Fourth Circuit.

[*3] 2. The Fourth Circuit also held that an alternative remedial scheme not considered by Carlson presents a new context at Bivens step one. 2026 WL 1060429, at *5. In particular, the Fourth Circuit considered Congress's post-Carlson enactment of the Prison Litigation Reform Act. The court held that the "failure of the PLRA to provide for a 'standalone damages remedy against federal jailers [is] a silence that speaks volumes and counsels strongly against judicial usurpation of the legislative function to create one.' " Ibid. (alteration in original). "Congress's 'conspicuous[ ] silen[ce] about creating a remedy for prisoners to obtain damages from individual officers' in the aftermath of Carlson, along with an 'expressed legislative desire to prevent courts from interfering with [Bureau of Prisons] decisions,' " the court held, "implicate separation-of-powers considerations that also render Spivey's claims a new context" at Bivens step one. Ibid. (alterations in original). The PLRA likewise presents a new context here. Pet.23, 27, 30; Reply 9-10. Judicial creation of an implied damages action always strains separation-of-powers principles, but especially where "courts do so despite the legislature's intervention through statutes like the PLRA." Pet.23.

The Fourth Circuit's consideration of the PLRA accords with the Third, Fifth, Seventh, Tenth, and Eleventh

Circuits—all of which agree that alternative remedial schemes are properly considered in the "new context" inquiry at Bivens step one. See Pet.15-17; Reply 3-5. But it conflicts with the decision below. The Ninth Circuit insisted that "alternative remedial structures can be one 'special factor,' to be considered at the second step of the Bivens analysis." Pet.App.15a. As the Ninth Circuit has explained: "Our cases * * * trea[t] the PLRA" and other alternative remedial structures "as a special factor only at [*4] step two." Schwartz v. Miller, 153 F.4th 918, 928 (9th Cir. 2025) (emphasis added); see id. at 930 ("[O]ur cases are also uniform in treating the ARP as a special factor only at step two."). Thus, in the Ninth Circuit, "the PLRA may be relevant in determining whether to extend Bivens to a new context at step two, but it is not a special factor at step one." Id. at 927-928 (emphasis added). That is directly contrary to the Fourth Circuit's decision in Spivey, which held "the PLRA" "render[ed] Spivey's claims a new context" at Bivens step one. 2026 WL 1060429, at *5.

In so holding, moreover, Spivey relied on earlier decisions that held the PLRA was a special factor that foreclosed Bivens's extension at step two. 2026 WL 1060429, at *5 (citing Bulger v. Hurwitz, 62 F.4th 127, 141 (4th Cir. 2023); Mays v. Smith, 70 F.4th 198, 206 (4th Cir. 2023)). The Fourth Circuit thus rejects the Ninth Circuit's view that certain factors relevant to Bivens step two (such as the PLRA and alternative remedial schemes) cannot also be considered at Bivens step one. The Fourth Circuit's approach reflects this Court's instruction that the "presence of potential special factors that previous Bivens cases did not consider" is one of the "differences that are meaningful enough to make a given context a new one." Ziglar v. Abbasi, 582 U.S. 120, 139-140 (2017); see Pet.24. The Ninth Circuit's contrary approach does not. Again, it is clear this case would have come out differently in the Fourth Circuit. The PLRA—as well as the BOP's Administrative Remedies Program (ARP)—is a special factor that Carlson did not consider. Pet.23-28, 30; Reply 7-10. Under this Court's precedents—and the [*5] Fourth Circuit's decision in Spivey—that renders the context "new." Pet.24. 1

3. In addition to deepening the circuit conflicts here, Spivey reinforces the importance of the issues at stake. As the Fourth Circuit explained, allowing damages actions against federal prison employees based on "dissatisfaction with the prison system's institutional decisions regarding the proper treatment of particular medical conditions" implicates "broader systemic issues"—such as "staffing levels"—that "relate directly to the prison system's institutional management of medical care, a domain that Congress has statutorily assigned to the Executive." 2026 WL 1060429, at *4 (citing 18 U.S.C. § 3621(i)(1)). Permitting inmates to sue for damages based on allegations of inadequate treatment for chronic conditions—conditions miles away from the acute, fatal medical emergency in Carlson—risks "converting district courts into 'medical review boards' supervising prisoner medical treatment." Pet.30 (quoting Pet.App.35a) (brackets omitted). A preponderance of circuits now properly rejects such an approach. But the decision below threatens precisely that sort of judicial micromanagement throughout our Nation's largest circuit. This Court's review is warranted.

[*6] CONCLUSION

The petition should be granted.

[*7] Respectfully submitted.

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MAY 2026

↑ **Kekai Watanabe** Supplemental Brief · May 15, 2026

Supplemental brief of respondent Kekai Watanabe filed.

Watanabe · Supplemental Brief · May 15, 2026 · respondent — coupling row D
Cites 3 cases (4 mentions), 4 citations not resolved; 0 statutes and provisions.
Shares with Pet. 10% · Br. in Opp. 4% · Cert. Reply 0% · Supplemental 0% · Supplemental 0% · Supplemental 50% · Pet'rs Br. 3% · Resp. Br. 2% · Reply Br. 4%; closest: Supplemental
Its own ground: 0 cases no other filing cites; 0 shared with its own side only, 3 with the other side.

[*1] In the Supreme Court of the United States

NO. 25-417 FRANCIS NIELSEN, PETITIONER v. KEKAI WATANABE

ON PETITION FOR A WRIT OF CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE NINTH CIRCUIT

SUPPLEMENTAL BRIEF FOR RESPONDENT

Respondent Kekai Watanabe respectfully submits this supplemental brief in response to petitioner's submission regarding Spivey v. Breckon, 173 F.4th 174 (4th Cir. 2026). Spivey does not support certiorari in this case. Although petitioner asserts that the opinion in Spivey "deepens" two circuit conflicts, Supp. Br. 1, the Fourth Circuit does not share this view. It did not mention a split, did not purport to make new law, and noted it was following years of circuit precedent. See Spivey, 173 F.4th at 178-81.

1. Spivey did not create or deepen a split regarding the significance of the severity of a plaintiff's injury. Cf. Br. in Opp. 11-14. In particular, the Fourth Circuit did not adopt petitioner's rule that a plaintiff must suffer death or life-threatening injury to have a cognizable Carlson claim. See Pet. 20-22; see also Gov't Br. at 31, [*2] Spivey v. Breckon, 173 F.4th 174 (4th Cir. 2026) (No. 24- 6490) (disclaiming any such position). Instead, the panel indicated that "a Bivens claim for inadequate medical treatment in violation of the Eighth Amendment" is permitted for claims of "egregious" mistreatment. Spivey, 173 F.4th at 179. Indeed, petitioner previously identified the Fourth Circuit as being on the Ninth Circuit's side of the purported split. Pet. 20 & n.3 (discussing Masias v. Hodges, No. 21-6591, 2023 WL 2610230 (4th Cir. Mar. 23, 2023) (per curiam), and Langford v. Joyner, 62 F.4th 122 (4th Cir. 2023)).

Spivey did not purport to depart from that precedent. Instead, the same circuit, following the same legal framework, reached a different outcome when presented with different facts. The plaintiff in Spivey alleged he suffered temporary dental issues (for which he was treated), experienced bleeding (for which he was tested), and was denied access to a prerelease psychology class. 173 F.4th at 179. The Spivey panel considered a variety of factors in determining that the claim was "different in kind, severity, and results" from Carlson, including the "temporary" nature of the plaintiff's injuries, the medical treatment and testing the plaintiff received, and the fact that the plaintiff's request to attend a "psychology class" was potentially "not even … a medical issue, but an educational one." Ibid. That kind of holistic and inherently fact-specific analysis is the same framework followed by the panel below, which reached a different result based on markedly different facts. See Pet. App. 14a (Watanabe's "injury resulted in a serious medical condition, and the condition has caused extreme pain ever since"); see also Br. in Opp. 5, 11-12.

Spivey's policy discussion confirms the fact-specific nature of the inquiry. Contra Supp. Br. 5. The Fourth [*3] Circuit observed that whereas the claims in Carlson "involved the deliberate indifference of prison officials to an inmate's health and their discrete acts of malfeasance," the claims in Spivey "implicate broader systemic issues," such as "staffing levels," standard "treatment care," and "inmate eligibility for prerelease psychology classes." 173 F.4th at 180. Those characteristics introduce new issues that "might alter the policy balance that initially justified the cause[] of action recognized in … Carlson" and therefore present a new context. Snowden v. Henning, 72 F.4th 237, 239, 244 (7th Cir. 2023), cert. denied, 145 S. Ct. 137 (2024). Conversely, claims like Watanabe's—which track the claims in Carlson—do not present the same policy concerns. See Spivey, 173 F.4th at 180.

2. Nor does Spivey meaningfully contribute to a circuit disagreement regarding remedial schemes. As petitioner concedes, Supp. Br. 5 n.1, the Fourth Circuit in Spivey considered the ARP only at step two of the

Bivens analysis, not at step one. Spivey, 173 F.4th at 181. That is consistent with how the Fourth Circuit has previously analyzed alternative remedies under Bivens. See Mays v. Smith, 70 F.4th 198, 205-06 (4th Cir. 2023). Nothing in Spivey announced a new rule on this point.

To the extent Spivey could be read to hold that all cases covered by the PLRA necessarily arise in a new context, that is simply incorrect. The PLRA may suggest that "Congress chose not to extend" Carlson to new contexts, Ziglar v. Abbasi, 582 U.S. 120, 148-49 (2017) (emphasis added), but it left the existing Carlson remedy where it found it. See Br. in Opp. 17; see, e.g., Mays, 70 F.4th at 206 (considering PLRA at step two). Spivey does not grapple with the fact that this Court has continued to acknowledge the availability of a remedy for [*4] Carlson claims since the passage of the PLRA, or the fact that Congress has elsewhere legislated in clear reliance on the continued availability of Carlson claims against federal officers, including through the Westfall Act. See Br. in Opp. 15, 17, 20-22. Given these unaddressed questions, further percolation is appropriate before this Court's intervention.

***

Spivey is a fact-bound decision that breaks no new ground, and the panel there did not suggest otherwise. The application of settled legal rules to different factual scenarios does not justify certiorari.

Respectfully submitted.

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Merits Stage

Francis Nielsen Brief on the Merits · Aug. 14, 2026

Brief of petitioner Francis Nielsen filed.

Nielsen · Brief on the Merits · Aug. 14, 2026 · petitioner — coupling row H
Cites 35 cases (206 mentions), 6 citations not resolved; 24 statutes and provisions (16 bare section cites not resolved).
Shares with Pet. 20% · Br. in Opp. 12% · Cert. Reply 14% · Supplemental 0% · Supplemental 0% · Supplemental 3% · Supplemental 3% · Resp. Br. 19% · Reply Br. 27%; closest: Reply Br.
Its own ground: 6 cases no other filing cites; 2 shared with its own side only, 27 with the other side.
Statutes: 5 U.S.C. § 413 ×8; 42 U.S.C. § 1997e ×5 (around Padgett); 28 C.F.R. § 542.10 ×4; 18 U.S.C. § 3626 ×3 (Article III standing); 42 U.S.C. § 1983 ×3 (Pro se pleadings and Twombly/Iqbal in prisoner suits); 18 U.S.C. § 1365 ×2; U.S. Const. art. I; 2 U.S.C. § 1302; 16 more.

Questions Presented. [*i] This case concerns the judicially created damages remedy first recognized in Bivens v. Six Unknown Federal Narcotics Agents, 403 U.S. 388 (1971). In Carlson v. Green, 446 U.S. 14 (1980), the Court extended Bivens to an Eighth Amendment claim of deliberate indifference to medical needs where prison officials failed to address an inmate's acute asthma attack and exacerbated it, causing his death within hours.

Since then, this Court has emphasized that the creation of damages actions rests with Congress, not courts. The judicially created Bivens remedy thus cannot be extended to any "new Bivens context" if any "special factor counsel[s] hesitation" in doing so. Ziglar v. Abbasi, 582 U.S. 120, 139-140 (2017). "[T]he new-context inquiry is easily satisfied," encompassing cases with " 'meaningful[ly]' " different facts, or " 'potential special factors' "—including "alternative remedial structures"—" 'not consider[ed]' " in the Court's prior cases. Id. at 148-149; Egbert v. Boule, 596 U.S. 482, 492-493 (2022). "[A] court may not recognize a Bivens remedy" if "there is any reason to think that Congress might be better equipped to create a damages remedy." Id. at 492.

In this case, respondent alleged that he suffered a fractured coccyx in a prison gang fight, but was not sent to a hospital. The Ninth Circuit held the suit did not present a "new" context from Carlson—notwithstanding an alternative remedial scheme this Court did not consider in Carlson, and despite significant factual differences such as the immediacy and severity of the harm alleged. The question presented is:

Whether the Ninth Circuit here erred in recognizing a Bivens cause of action.

[*1] IN THE

Supreme Court of the United States

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NO. 25-417

FRANCIS NIELSEN,

Petitioner, v.

KEKAI WATANABE,

Respondent. ————

On Writ of Certiorari

to the United States Court of Appeals for the Ninth Circuit

———

BRIEF FOR PETITIONER

[*2] extending Bivens because this case purportedly arises in the same context as Carlson v. Green, 446 U.S. 14 (1980). But a case presents a "new Bivens context" if it has any meaningful difference from past cases where this Court allowed a Bivens remedy. Carlson allowed a Bivens suit against prison staff who exacerbated

an inmate's asthma attack, killing him within hours. This case is meaningfully—profoundly—different.

In Carlson, the immediacy of the inmate's medical emergency and death made administrative or equitable relief impossible: It was "damages or nothing." Here, respondent could (and did) seek nonmonetary relief. Personal liability in extreme cases like Carlson also raises different policy considerations than cases involving less-severe conditions. And this case implicates alternative remedial structures not considered in Carlson. Each difference renders this a new Bivens context compared to Carlson. And no one disputes that, if the context is new, Carlson—and thus Bivens—cannot be extended here.

The decision below fails to afford "utmost deference to Congress' preeminent authority in this area." Egbert, 596 U.S. at 492. Authorizing a cause of action is a "legislative endeavor." Id. at 491. Whether a context is "new" thus depends on whether Congress, from a legislative perspective, could find differences between this case and prior ones that affect the costs and benefits of a damages remedy. Here, the answer is plainly "yes." Congress could find any or all of the differences—from the harm's immediacy, to its severity, to alternative remedies—sufficient to differentiate this case from Carlson.

The Court may decide it is finally time to overrule Bivens and its progeny. Those cases are relics of the bygone days when federal courts thought it appropriate to create causes of action Congress had not authorized. The [*3] Court has since rejected every stitch of Bivens's reasoning. It has refused to extend Bivens time (and time and time and time and time and time and time and time and time and time and time) and again. It has indicated that, if "called to decide Bivens today, [it] would decline to discover any implied causes of action in the Constitution." Egbert, 596 U.S. at 502.

Yet Bivens continues to haunt our constitutional jurisprudence. It gives false hope to litigants whose suits are (almost) invariably doomed. It burdens federal employees caught in its crosshairs. It forces this Court to repeatedly remind federal courts of their limited constitutional station. And it gives Congress an excuse not to claim its rightful role in this area. Rather than continually engage in Bivens error correction, the Court may wish to recognize that the error is Bivens itself.

↑ **Opinions Below.** The court of appeals' opinion (Pet.App.1a-23a) is reported at 115 F.4th 1034. That court's denial of rehearing (Pet.App.76a-116a), including accompanying opinions, is reported at 139 F.4th 1056. The district court's opinion granting Nielsen's motion to dismiss (Pet.App.24a-39a) is unreported but available at 2023 WL 2500933.

↑ **Statement of Jurisdiction.** The court of appeals entered judgment on September 6, 2024, and denied rehearing on June 5, 2025. Pet.App.1a, 76a. On August 21, 2025, Justice Kagan extended the time to file the petition to October 3, 2025. 25A208. The petition was filed October 3, 2025, and granted June 22, 2026. This Court has jurisdiction under 28 U.S.C. § 1254(1). [*4]

↑ **Constitutional, Statutory, and Regulatory Provisions Involved.** Relevant provisions of the Eighth Amendment; Prison Litigation Reform Act, 18 U.S.C. § 3626, 42 U.S.C. § 1997e; USA PATRIOT Act, Pub. L. No. 107-56, 115 Stat. 391 (2001); Federal Prison Oversight Act, Pub. L. No. 118-71, 138 Stat. 1492 (2024); and Bureau of Prisons Administrative Remedy Program, 28 C.F.R. §§ 542.10-542.19, are set forth in the appendix to this brief.

↑ **Statement.**

↑ **I. Legal Framework**

This case involves the scope and propriety of the damages remedy for constitutional violations this Court created in Bivens v. Six Unknown Federal Narcotics Agents, 403 U.S. 388 (1971), Davis v. Passman, 442 U.S. 228 (1979), and Carlson v. Green, 446 U.S. 14 (1980).

A. Historical Background

From the Framing until 1971, "the traditional way in which civil litigation addressed abusive conduct" by federal officials "was by subjecting them to liability for common-law torts." Hernández v. Mesa, 589 U.S. 93, 110 (2020); see Alfred Hill, Constitutional Remedies, 69 Colum. L. Rev. 1109, 1128 & nn.88-89 (1969) (Hill) (collecting cases). In such cases, allegations of constitutional violations would arise only indirectly. An official sued for a common-law tort could assert, as a "defense," that "the conduct complained of was done pursuant to a federally imposed duty." Wheeldin v. Wheeler, 373 U.S. 647, 652 (1963). But the plaintiff could defeat the defense by showing that the conduct was not federally authorized because it contravened the Constitution or other federal law. Hill 1128-1129; see, e.g., Mitchell v. Harmony, 54 U.S. (13 How.) 115, 136-137 (1851); Slocum v. Mayberry, 15 U.S. (2 [*5] Wheat.) 1, 12-13 (1817); cf. Poindexter v. Greenhow, 114 U.S. 270, 282-283 (1885) (similar; state official).

Other remedies existed, too. As now, plaintiffs could invoke federal courts' equitable power "to enjoin unconstitutional actions by state and federal officers." Armstrong v. Exceptional Child Ctr., Inc., 575 U.S. 320, 327 (2015). That practice "reflects a long history of judicial review of illegal executive action" by "courts of equity," "tracing back to England." Ibid.; see Bell v. Hood, 327 U.S. 678, 684 & nn.4-5 (1946) (collecting cases). For two centuries, there was no similar tradition of federal damages suits against individual federal officers for constitutional violations.

In 1871, Congress authorized damages actions against state officials who violate the Constitution. 17 Stat. 13 (1871), as amended, 42 U.S.C. § 1983. In the intervening "100 years leading up to Bivens, Congress did not provide a specific damages remedy for plaintiffs whose constitutional rights were violated by agents of the Federal Government." Ziglar v. Abbasi, 582 U.S. 120, 130 (2017) (emphasis added).

Thus, shortly before Bivens, this Court observed that state law ordinarily provided the only damages remedy against federal officials. Wheeldin, 373 U.S. at 652. Congress had enacted "no general statute making federal officers liable for acts committed 'under color,' but in violation, of their federal authority." Ibid. "Congress could, of course, provide otherwise, but it has not done so." Ibid. And, the Court concluded, "it is not for us to fill any hiatus Congress has left in this area." Ibid.

B. This Court Creates Damages Remedies for Constitutional Violations in Bivens, Davis, and Carlson

In 1971, Bivens "broke new ground," Hernández, 589 U.S. at 99, recognizing for the first time an implied damages [*6] action against federal officials for alleged constitutional violations.

In Bivens, the Court allowed a damages suit against Federal Bureau of Narcotics agents for a warrantless search and seizure in violation of the Fourth Amendment. 403 U.S. at 389, 397. The Court, and Justice Harlan's concurrence, found support in the then-common practice of allowing "suits for damages based on violations of federal statutes lacking any express authorization of a damage remedy." Id. at 402, 407 (Harlan, J., concurring in judgment) (citing J.I. Case Co. v. Borak, 377 U.S. 426 (1964)); see id. at 397 (opinion of the Court) (same).

Justice Harlan further observed that "damages [was] the only possible remedy for someone in Bivens' alleged position." 403 U.S. at 409-410. Bivens could not, for example, have sought "injunctive relief " while the search and seizure were occurring. Id. at 410. "For people in Bivens' shoes, it is damages or nothing." Ibid.

This Court has extended Bivens only twice. In Davis, the Court allowed a former congressional staffer to sue a Congressman for damages based on alleged sex discrimination in violation of the Fifth Amendment. 442 U.S. at 230-231, 248-249. "[E]quitable relief in the form of reinstatement" was unavailable because the Congressman had left office. Id. at 245. "For Davis, as for Bivens, 'it [was] damages or nothing.' " Ibid. (quoting Bivens, 403 U.S. at 410 (Harlan, J., concurring in judgment)).

Finally, in Carlson, the Court allowed the mother of a deceased inmate, representing his estate, to seek damages against federal prison officials for an alleged Eighth Amendment violation. 446 U.S. 14. The defendants had failed to treat the inmate's life-threatening asthma attack, and instead exacerbated it with "contraindicated drugs [*7] which made his attack more severe" and "a respirator known to be inoperative which further impeded his breathing." Id. at 16 n.[1]. The inmate died within

hours. Ibid.; Green v. Carlson, 581 F.2d 669, 671 (7th Cir. 1978). The emergent nature of those events gave the inmate no opportunity to seek injunctive, administrative, or similar relief. As in Bivens and Davis, it was " 'damages or nothing.' " Pet.App.98a (R. Nelson, J., dissenting from denial).

C. Recognizing the Tension Between Bivens and the Separation of Powers, This Court Adopts a Demanding Two-Step Bivens Framework

1. After Carlson, "the Court changed course." Hernández, 589 U.S. at 99. Recognizing that "creating a cause of action is a legislative endeavor," the Court has "come 'to appreciate more fully the tension between' judicially created causes of action and 'the Constitution's separation of legislative and judicial power.' " Egbert v. Boule, 596 U.S. 482, 491 (2022) (emphasis added). Permitting judicially created damages remedies, the Court has noted, requires courts to "evaluate a 'range of policy considerations . . . at least as broad as the range . . . a legislature would consider.' " Ibid. (quoting Bivens, 403 U.S. at 407 (Harlan, J., concurring in judgment)). But "Congress is 'far more competent than the Judiciary' to weigh such policy considerations. And the Judiciary's authority to do so at all is, at best, uncertain." Ibid. (citation omitted).

This Court thus has "repeatedly emphasized that 'recognizing a cause of action under Bivens is "a disfavored judicial activity." ' " Goldey v. Fields, 606 U.S. 942, 944 (2025) (per curiam). In the 45 years since Carlson, the Court has rejected every invitation to extend Bivens—thirteen times in all. See Chappell v. Wallace, 462 U.S. 296 (1983); Bush v. Lucas, 462 U.S. 367 (1983); United States v. Stanley, 483 U.S. 669 (1987); Schweiker v. Chilicky, 487 [*8] U.S. 412 (1988); FDIC v. Meyer, 510 U.S. 471 (1994); Correctional Services Corp. v. Malesko, 534 U.S. 61 (2001); Wilkie v. Robbins, 551 U.S. 537 (2007); Hui v. Castaneda, 559 U.S. 799 (2010); Minneci v. Pollard, 565 U.S. 118 (2012); Ziglar, 582 U.S. 120; Hernández, 589 U.S. 93; Egbert, 596 U.S. 482; Goldey, 606 U.S. 942. The Court has indicated that, if "called to decide Bivens today, [it] would decline to discover any implied causes of action in the Constitution." Egbert, 596 U.S. at 502. 2. Accordingly, Bivens claims are now subject to a demanding two-part test.

At step one, courts assess whether the claim "presents a new Bivens context"—that is, whether it differs "in a meaningful way" from the three cases (Bivens, Davis, and Carlson) where this Court recognized Bivens actions. Ziglar, 582 U.S. at 139. The Court's "understanding of a 'new context' is broad," Hernández, 589 U.S. at 102, and the "new-context inquiry is easily satisfied," Ziglar, 582 U.S. at 149. Even "small" differences from the original Bivens trio will present a new context; "a modest extension is still an extension." Id. at 147, 149.

Differences in the "right at issue" or "mechanism of injury" suffice to render the context new. Ziglar, 582 U.S. at 139. But the new-context inquiry is broader than that. Ibid. Other—still non-exhaustive—examples of meaningful differences include:

• "the rank of the officers involved";

• "the generality or specificity of the official action"; • "the extent of judicial guidance as to how an officer

should respond to the problem or emergency"; • "the statutory or other legal mandate under which the officer was operating";

[*9] • "the risk of disruptive intrusion by the Judiciary into the functioning of other branches"; and • "the presence of potential special factors that previous Bivens cases did not consider." Id. at 139-140, 148.

When the context is "new," courts at step two ask "if there are 'special factors' indicating that the Judiciary is at least arguably less equipped than Congress to 'weigh the costs and benefits of allowing a damages action to proceed.' " Egbert, 596 U.S. at 492. "If there is even a single 'reason to pause before applying Bivens in a new context,' a court may not recognize a Bivens remedy." Ibid.

This Court has identified numerous special factors that foreclose extending Bivens (and Carlson) with respect to prisoner claims. Those factors include:

[1]E.g., Bivens Act of 2025, H.R. 6091, 119th Cong. § 2 (2025); Bivens Act of 2025, S. 3187, 119th Cong. § 2 (2025); Bivens Act of 2021, H.R. 6185, 117th Cong. § 2 (2021); Bivens Act of 2021, S. 3343, 117th Cong. § 2 (2021).

• damages liability "could have negative systemic consequences for prison officials and the 'inordinately difficult undertaking' of running a prison." • " 'an alternative remedial structure' already exists for aggrieved federal prisoners"—"even if such 'procedures are "not as effective as an individual damages remedy." ' "

• "Congress has actively legislated in the area of prisoner litigation but has not enacted a statutory cause of action for money damages."

Goldey, 606 U.S. at 944-945.

3. The two steps overlap. For example, step two asks whether any " 'special factors' " counsel against extending Bivens to a new context. Egbert, 596 U.S. at 492. And step one instructs that "a new context arises when there are 'potential special factors that previous Bivens cases did not consider.' " Ibid. A previously unconsidered special [*10] factor thus both presents a new context at step one, and forecloses Bivens's extension to that context at step two.

Accordingly, this Court has explained that the two steps "often resolve to a single question: whether there is any reason to think that Congress might be better equipped to create a damages remedy." Egbert, 596 U.S. at 492. "If there is a rational reason to think" Congress might be better suited—"as it will be in most every case"—"no Bivens action may lie." Ibid.

D. Remedial Structures for Federal Prisoners

Congress and the Executive have created extensive remedial structures for federal prisoner complaints.

1. In 1979—four years after the inmate's death in Carlson—the Bureau of Prisons (BOP) established a grievance process called the Administrative Remedy Program (ARP). See Administrative Remedy Program, 44 Fed. Reg. 62,250 (Oct. 29, 1979); 28 C.F.R. §§ 542.10-542.19. The ARP "allow[s] an inmate to seek formal review of an issue relating to any aspect of his/her own confinement." § 542.10(a)-(b). It requires BOP officials to investigate and respond to inmate complaints. § 542.11(a). If an "emergency" situation "threatens the inmate's immediate health or welfare," BOP must respond within three days. § 542.18.

The ARP has four steps: (1) informal complaint and attempt at informal resolution, § 542.13(a); (2) formal complaint, § 542.14(a); (3) appeal to the regional director, § 542.15(a); and (4) final appeal to BOP's General Counsel, ibid. If disclosure would endanger inmate "safety or wellbeing," an inmate may complain directly to the regional director. § 542.14(d)(1). Inmates may obtain assistance from other inmates, staff, family, or attorneys. § 542.16. 2. Congress has also been active. In 1996, Congress enacted the Prison Litigation Reform Act (PLRA). 110 [*11] Stat. 1321–66 (1996), as amended, 18 U.S.C. § 3626, 42 U.S.C. § 1997e. The PLRA seeks "to eliminate unwarranted federal-court interference with the administration of prisons" and " 'reduce the quantity and improve the quality of prisoner suits.' " Woodford v. Ngo, 548 U.S. 81, 93-94 (2006). It requires prisoners to exhaust administrative remedies—such as the ARP—before filing any suit challenging prison conditions. 42 U.S.C. § 1997e(a). The PLRA contemplates § 1983 damages actions against state officials. See ibid. But Congress chose "not [to] provide for a standalone damages remedy against federal jailers." Ziglar, 582 U.S. at 149 (emphasis added).

In 2001, Congress directed the Department of Justice's Office of Inspector General (OIG) to "receive complaints alleging abuses of civil rights and civil liberties" by Department (including BOP) personnel. USA PATRIOT Act, Pub. L. No. 107-56, § 1001, 115 Stat. 391 (2001). OIG must report "any abuses" to Congress. Ibid.

In 2024, Congress enacted the Federal Prison Oversight Act, Pub. L. No. 118-71, 138 Stat. 1492 (2024), to be codified at 5 U.S.C § 413(e). It provides for an Ombudsman to investigate inmate complaints regarding the "health, safety, welfare, or rights of incarcerated people." Id. at 1496 (§ 413(e)(3)(A)). The Ombudsman "shall render a decision on the merits," which may lead to BOP "disciplinary" action. Id. at 1497-1498 (§ 413(e)(3)(C), (D)(iii)).

3. Congress has repeatedly declined proposals to create damages remedies for constitutional violations by federal officials. Some proposals would extend § 1983's damages remedy to federal officials. 1 Others would cover only [*12] law-enforcement officers.[2] Others would apply to certain rights, such as the First Amendment,[3] Fourth Amendment,[4] or voting.[5] Still others would allow damages actions

"directly against the Federal Government."[6] None has been enacted.

↑ **II. Proceedings Below**

Petitioner Francis Nielsen is a paramedic at the Federal Detention Center in Honolulu.[7] Respondent Kekai Watanabe suffered injuries during a gang riot while an inmate at that facility. Pet.App.3a-4a; see C.A. ER-75-85 (Dkt. 12) (operative first amended complaint).

A. District Court Proceedings

1. In July 2021, Watanabe was attacked by rival gang members. Pet.App.3a-4a. After restoring order, prison officials documented Watanabe's known and visible injuries and placed him on sick call. Pet.App.4a. Watanabe later asked to see medical staff for headaches and pain. Ibid. [*13] Watanabe was seen by Nielsen, who treated Watanabe but declined his request to be taken to the hospital. Ibid.[8]

Watanabe does not allege further interaction with Nielsen. Pet.App.26a; see C.A. ER-81-83. Watanabe alleges that, in the months that followed, he made multiple requests to prison staff for medical attention. Pet.App.4a. He alleges he received over-the-counter pain medication but no " 'actual treatment.' " Pet.App.4a, 26a. He alleges he filed an ARP complaint, to which the warden allegedly falsely responded that he had received treatment. C.A. ER-83.

Watanabe was eventually diagnosed with a fractured coccyx (tailbone) with bone chips in surrounding tissue. Pet.App.4a. After the diagnosis, prison officials agreed to refer Watanabe to a specialist. Ibid.

2. Watanabe filed this Bivens action, alleging that Nielsen violated his Eighth Amendment rights by " 'denying him proper medical treatment that would have properly diagnosed and treated his injury,' " calling him a " 'cry baby,' " and denying his request to go to the hospital. Pet.App.24a-26a; see C.A. ER-81-83. Watanabe sought $3 million in damages. Pet.App.26a; C.A. ER-85. He sought injunctive relief against other defendants. Pet.App.16a-17a; C.A. ER-117 (original complaint).

The district court dismissed, holding Watanabe's claim not cognizable under Bivens. Pet.App.24a-25a. At Bivens step one, the court held the claim presented a "new context" [*14] from Carlson. Pet.App.31a-36a. "Watanabe's allegations are dissimilar in both their 'nature and severity' from the facts in Carlson": Watanabe's fractured coccyx was "not akin to the medical emergency" in Carlson that "resulted in that inmate's death." Pet.App.32a-34a. Allowing Watanabe's claim risked transforming district courts into "medical review board[s]" superintending treatment of prison injuries. Pet.App.35a.

Watanabe also had access to an alternative remedy—the ARP. Pet.App.36a. That remedy was a " 'special facto[r]' " "not considered by the Court in Carlson," and "another reason that Watanabe's claim arises in a new context." Pet.App.36a.

At step two, the district court held that special factors, including the ARP's "alternative remedial program for federal prisoners," foreclosed a Bivens remedy. Pet.App.36a-38a.

B. The Ninth Circuit's Decision

[2]E.g., Qualified Immunity Abolition Act, H.R. 7046, 119th Cong. § 3 (2026); Qualified Immunity Abolition Act, S. 3625, 119th Cong. § 3 (2026); Constitutional Accountability Act, H.R. 6092, 119th Cong. § 3 (2025); Constitutional Accountability Act, S. 3186, 119th Cong. § 3 (2025); Constitutional Accountability Act, H.R. 6327, 117th Cong. § 3 (2021); Constitutional Accountability Act, S. 3415, 117th Cong. § 3 (2021).

[3]E.g., Right to Record Act of 2026, H.R. 9189, 119th Cong. § 3(b)(1) (2026); Censorship Accountability Act, H.R. 4848, 118th Cong. § 2 (2023).

[4]E.g., Surveillance Accountability Act, H.R. 8470, 119th Cong. § 3 (2026).

[5]E.g., Protecting American Voters' Rights Act, H.R. 8858, 119th Cong. § 2 (2026).

[6]Meyer, 510 U.S. 486 n.11 (collecting examples); see also, e.g., Accountability for Federal Law Enforcement Act, S. 2103, 117th Cong. § 2 (2021); Victims of Immigration Conduct Enforcement Act, S. 4333, 119th Cong. § 2 (2026); ICE and CBP Constitutional Accountability Act, H.R. 7297, 119th Cong. § 3 (2026).

[7]Although the complaint calls Nielsen a "nurse," he is a paramedic. Nothing here turns on the distinction.

[8]Watanabe's medical records, invoked by the Ninth Circuit, reflect that Watanabe complained of severe back pain. Pet.App.4a. The records show that, after consulting with an on-call physician, Nielsen provided an anti-inflammatory injection (ketorolac/Toradol) and a prescription for pain medication (ibuprofen/Motrin), and encouraged Watanabe to perform "gentle stretching exercises as tolerated" and follow up with sick call. Pet.App.21a, 94a; C.A. SER-7-9 (Dkt. 17).

A divided Ninth Circuit panel reversed. Watanabe conceded that, if this case presents a new context, special factors foreclose extending Carlson at Bivens step two. Pet.App.22a-23a, 96a n.1; C.A. Oral Arg. 6:05-6:12 (http://youtu.be/sU-8uFCTxs8). But the panel majority (Paez & Koh, JJ.) held Watanabe's claim did not present a new context at step one, obviating any need to consider step two. Pet.App.16a.

The panel ruled that "Watanabe's claim is identical to Carlson in all meaningful respects": He alleged "deliberate medical indifference while incarcerated, in violation of the Eighth Amendment's proscription against cruel and unusual punishment," and "Carlson dealt with the exact same issue." Pet.App.3a; accord Pet.App.12a, 17a. The panel acknowledged that, unlike in Carlson, Watanabe's [*15] injury was neither fatal nor life-threatening. Pet.App.13a. But it declared that difference not "meaningful" because failure to respond to non-life-threatening conditions can "constitute deliberate indifference in violation of the Eighth Amendment." Pet.App.14a. Nor did it matter that, for Watanabe, it was not "damages or nothing." The panel ruled he could seek Bivens damages as well as injunctive relief "related to his ongoing medical care." Pet.App.16a-17a.

The panel asserted that "[t]his case does not present a risk of intrusion by the judiciary into the operations of the BOP any more than what Carlson already permits." Pet.App.10a. The panel did not address the concern that allowing Bivens remedies for lesser harms like Watanabe's would transform district courts into " 'medical review board[s]' " for federal prisons. Pet.App.35a.

The panel did not dispute this Court's statement that "a new context arises when there are 'potential special factors that previous Bivens cases did not consider.' " Egbert, 596 U.S. at 492. But the panel ruled that "alternative remedial structures can be one 'special factor,' to be considered at the second step of the Bivens analysis." Pet.App.15a. The panel was "not required to undertake the second step" because it had already determined that Watanabe's claim did not present a new context at step one. Ibid. "And even if [it] were to consider" alternative remedial structures "at step one," the panel insisted the ARP "does not present a new Bivens context." Ibid.

Judge Milan Smith dissented. This suit and Carlson, he explained, are "meaningfully different" with respect to severity of the alleged mistreatment and medical need. Pet.App.20a-22a. And " 'alternative remedies' " like the ARP are "special factors counsel[ing] against recognizing a [Bivens] remedy." Pet.App.22a-23a. [*16]

C. Denial of Rehearing

The Ninth Circuit denied rehearing, with eleven judges dissenting.

1. In a statement respecting denial of rehearing, the panel-majority members urged that "severity of misconduct or injury" was irrelevant because severity concerns only "the merits of the constitutional claim," not whether a claim presents a new context. Pet.App.84a-85a.

The panel majority did not deny the ARP is a special factor not considered in Carlson. But they reiterated their view that "alternative remedies are generally not relevant at step one" because "[s]tep one focuses on the alleged violation," while "[s]tep two" "focuses on remedies." Pet.App.79a-80a. They also urged that the ARP could not present a new context because it was created in October-November 1979, and so "already existed when the Supreme Court decided Carlson" in April 1980. Pet.App.78a. They deemed it "irrelevant" that the Carlson plaintiff "could not herself use the ARP." Pet.App.82a.

2. Judge Ryan Nelson dissented, joined by nine other judges. Pet.App.89a-111a. The dissent explained that courts "cannot identify a preexisting Bivens context by simply pointing to the Eighth Amendment and noting that Carlson dealt with the same type of claim." Pet.App.103a. It identified several "meaningful differences" from Carlson. Ibid. Carlson was "a wrongful death case where the remedy [was] 'damages or nothing.' " Pet.App.109a. Watanabe's injury was "meaningfully less severe"—and, unlike Carlson, relief was not " 'damages or nothing.' " Pet.App.98a, 103a-104a. The ARP is also an "alternative remedy" that "Carlson did not consider" and that was "available to Watanabe [but] unavailable to the plaintiff in Carlson." Pet.App.98a. "If that is not a meaningful difference," [*17] the dissent concluded, "it's hard to say what is." Pet.App.98a-99a.

The dissent rejected the contention that alternative remedies are generally irrelevant at Bivens step one. It explained that, in Ziglar, this Court held " 'alternative remedies' " presented a new context at step one. Pet.App.97a-98a. And Egbert explained the two steps are "not theoretically distinct." Pet.App.102a.

While the ARP existed when Carlson was decided (but not when the conduct occurred), the dissent explained, what mattered was that " ' "previous Bivens cases did not consider " ' " it. Pet.App.99a-100a (quoting Egbert, 596 U.S. at 492). And the plaintiff in Carlson—the inmate's mother, suing for his estate—could not have used the ARP anyway. Pet.App.98a, 100a. "[I]f the question is whether there is a single meaningful difference between Carlson and this case," the dissent concluded, "the fact that the mother in Carlson could not use a remedy that was available to Watanabe easily meets that bar." Pet.App.100a.

3. Judge Collins dissented separately. Lamenting "confusion" over Bivens, he expressed hope that this Court would provide "clarity." Pet.App.111a, 116a.

↑ **Summary of Argument.** I. A. Given the grave separation-of-powers concerns Bivens creates, this Court subjects Bivens claims to a demanding two-step test. Step one asks whether the case presents a "new Bivens context"—whether there is any difference from earlier Bivens cases that Congress could find meaningful. If so, at step two, a Bivens suit cannot proceed if any "special factor" indicates Congress is arguably better equipped to weigh the costs and benefits of a damages remedy. Those steps resolve to a single [*18] question: whether there is any reason to think Congress might be better equipped to create a damages remedy.

B. This case meaningfully differs from Carlson. The prison staff in Carlson exacerbated an inmate's asthma attack, killing him within hours: He could not pursue nonmonetary remedies; it was "damages or nothing." Watanabe could and did pursue nonmonetary remedies.

Congress commonly distinguishes based on severity of injury—and treats death differently. Life-threatening conduct raises meaningfully different policy concerns, including the balance of costs, benefits, and disruption from prisoner lawsuits.

The Ninth Circuit insisted that this case and Carlson present the same context because both involve Eighth Amendment deliberate-indifference claims. But cases involving the same right and mechanism of injury still present different contexts if there is any difference Congress could find meaningful. That is not arbitrary line-drawing; it reflects that creating causes of action is a legislative endeavor. Differences between life and death, and "damages or nothing," are anything but arbitrary.

C. Special factors, not considered in Carlson, also render the context new. The ARP provides an alternative remedial structure for federal prisoners. The PLRA, enacted after Carlson, mandates that prisoners exhaust administrative remedies like the ARP. Unlike in Carlson, Watanabe could seek an injunction. And post-Carlson legislation allows inmate complaints against BOP employees, while declining a damages remedy.

The Ninth Circuit erred in relegating alternative remedies to Bivens step two. Ziglar held that alternative remedies not considered in Carlson render a context "new." Confining a special factor to step two makes no [*19] sense; it would allow courts to authorize damages remedies even though Congress is better suited to make that call. It is irrelevant that the ARP existed when Carlson issued: What matters is that it was not considered. The ARP was also unavailable to the inmate and plaintiff in Carlson. Nor could Carlson consider the ARP in combination with post-Carlson legislation. Watanabe's reliance on Carlson's reasoning, meanwhile, fails to apply the prevailing Bivens framework.

D. Special factors preclude extending Bivens and Carlson to a new context at step two, as Watanabe concedes. That concession confirms this case presents a new context at step one. The two steps resolve to the single question whether Congress might be better equipped to create a damages remedy. As one step or two, Watanabe's Bivens claim cannot proceed.

II. The Court may wish to overrule Bivens. Creating causes of action is a legislative, not judicial, endeavor. Every stare decisis factor counsels letting Bivens go. The Court has repudiated its reasoning; it is unworkable; and no reliance favors retention. Leaving Bivens on the books gives plaintiffs false hope, burdens defendants,

and deters Congress from exercising its rightful role.

↑ **Argument.** Over the past 45 years, in 13 cases, this Court has refused to extend the Bivens damages remedy to any new contexts. Bivens and its progeny—Davis and Carlson—are remnants of " ' the heady days in which this Court assumed common-law powers to create causes of action.' " Egbert v. Boule, 596 U.S. 482, 491 (2022). Those days are "long past." Ibid. This Court now recognizes that "creating a cause of action is a legislative endeavor," and that judicial creation of a damages remedy Congress has not authorized "risks arrogating legislative power" in violation [*20] of the separation of powers. Ibid. (emphasis added); Hernández v. Mesa, 589 U.S. 93, 100 (2020).

This Court now approaches Bivens claims with "utmost deference to Congress' preeminent authority in this area." Egbert, 596 U.S. at 492. Claims present a " 'new Bivens context' " if there is any reason Congress could find them meaningfully different from Bivens, Davis, and Carlson. Ibid. And new Bivens claims must be rejected if "there is any reason to think that Congress might be better equipped to create a damages remedy." Ibid. (emphasis added).

Under those principles, this Bivens suit cannot proceed. Watanabe seeks to hold Nielsen, a prison paramedic, personally liable under the Eighth Amendment for not sending him to the hospital for what was later diagnosed as a fractured coccyx. Congress has never created such a damages remedy. And while the Ninth Circuit insisted this case presents the exact same context as Carlson—where prison staff exacerbated an inmate's asthma attack, killing him within hours—the differences are myriad and meaningful. Each could affect Congress's view of the costs and benefits of a damages remedy. Each makes this a new context to which Bivens and Carlson cannot be extended.

"This Court has repeatedly emphasized that 'recognizing a cause of action under Bivens is "a disfavored judicial activity." ' " Goldey v. Fields, 606 U.S. 942, 944 (2025) (per curiam). It has held that the new-context inquiry is easily satisfied. And it has left no doubt that Bivens, Davis, and Carlson cannot be extended to any new context. As a result, this should have been an easy case. But the Ninth Circuit, like too many courts in too many cases over too many years, blessed a Bivens remedy nonetheless. This Court may conclude that enough is enough. Until Bivens's zombie is finally interred, courts will continue to [*21] meddle in the "legislative endeavor" of creating causes of action. Egbert, 596 U.S. at 491. Bivens will continue to offer litigants false hope as they pursue damages claims no legislature has authorized and which almost always fail. Federal agencies and employees will continue to bear the burdens of that litigation. This Court will continue to work cleanup. And Congress will continue to have an excuse not to step into the field itself. That state of affairs could continue. Or the Court could decide it is time to give Bivens, Davis, and Carlson a proper burial, and hand responsibility back to Congress where it belongs.

↑ **I. The Ninth Circuit Improperly Extended Bivens to a New Context**

Time and again, this Court has "emphasized that 'recognizing a cause of action under Bivens is "a disfavored judicial activity." ' " Goldey, 606 U.S. at 944. In the 45 years since the three original Bivens cases—Bivens v. Six Unknown Federal Narcotics Agents, 403 U.S. 388 (1971), Davis v. Passman, 442 U.S. 228 (1979), and Carlson v. Green, 446 U.S. 14 (1980)—this Court has refused every invitation to extend Bivens to any new context.

This Court's "understanding of a 'new context' is broad." Hernández, 589 U.S. at 102. A new context arises if there is any difference from Bivens, Davis, and Carlson that Congress could find "meaningful" from a "policy" perspective. Egbert, 596 U.S. at 491-492; Ziglar v. Abbasi, 582 U.S. 120, 139-140, 147-149 (2017). This case self-evidently presents a new context under that "easily satisfied" inquiry. Ziglar, 582 U.S. at 149. Unlike Carlson, this is not a case of "damages or nothing." The injury differs in nature, severity, and immediacy. And this case presents special factors—including alternative remedial structures—that Carlson never considered. [*22]

A. The Expansive "New Bivens Context" Inquiry Is Satisfied If There Is Any Difference Congress Could Find Meaningful

1. "Bivens, Davis, and Carlson were the products of an era when the Court routinely inferred 'causes of action' that were 'not explicit' in the text of the provision that was allegedly violated." Hernández, 589 U.S. at 99. "During this ' ancien regime,' * * * the Court assumed it to be a proper judicial function to 'provide such remedies as are necessary to make effective' a statute's purpose." Ziglar, 582 U.S. at 131-132. "Bivens extended this practice to claims based on the Constitution itself," allowing a damages remedy against federal agents for alleged Fourth Amendment violations. Hernández, 589 U.S. at 99. Davis and Carlson soon extended Bivens to two other contexts.

Since Carlson, however, this Court has come "to appreciate more fully the tension between" judicially created causes of action and "the Constitution's separation of legislative and judicial power." Hernández, 589 U.S. at 100. "At bottom, creating a cause of action is a legislative endeavor": It requires "balancing interests," weighing the "costs and benefits" of myriad "policy considerations," and "compromise." Egbert, 596 U.S. at 491; Hernández, 589 U.S. at 100; Ziglar, 582 U.S. at 133-134, 136. As Justice Harlan acknowledged in Bivens, recognizing a damages remedy requires courts to "evaluate a 'range of policy considerations . . . at least as broad as the range . . . a legislature would consider.' " Egbert, 596 U.S. at 491 (quoting 403 U.S. at 407 (Harlan, J., concurring in judgment)). Such policy-laden decisionmaking fits uneasily—perhaps irreconcilably—with the judicial role. It "risks arrogating legislative power," and " 'places great stress on the separation of powers.' " Hernández, 589 U.S. at 100; Egbert, 596 U.S. at 497 n.3.

[*23] In light of those grave separation-of-powers concerns, this Court long ago "abandoned" the practice of fashioning private causes of action to enforce statutes that do not provide them. Alexander v. Sandoval, 532 U.S. 275, 287 (2001). The Court has correspondingly indicated that, if "called to decide Bivens today, [it] would decline to discover any implied causes of action in the Constitution." Egbert, 596 U.S. at 502. And while the Court has not yet "dispense[d] with Bivens altogether," it warns that "recognizing a cause of action under Bivens is 'a disfavored judicial activity' " that may not be undertaken if there is " '[e]ven a single sound reason to defer to Congress.' " Id. at 491.

2. This Court accordingly subjects Bivens claims to a demanding two-step test. Egbert, 596 U.S. at 492. At step one, the Court asks "whether the case presents 'a new Bivens context.' " Ibid. If so, at step two, "a Bivens remedy is unavailable if there are 'special factors' indicating that the Judiciary is at least arguably less equipped than Congress to 'weigh the costs and benefits of allowing a damages action to proceed.' " Ibid.; see Ziglar, 582 U.S. at 136 (describing such factors as " ' " special factors counselling hesitation" ' "). A court may not recognize a new Bivens claim if "there is any rational reason (even one) to think that Congress is better suited to 'weigh the costs and benefits of allowing a damages action to proceed.' " Egbert, 596 U.S. at 496.

Because the Court's "understanding of a 'new context' is broad," the step-one "new-context inquiry" is "easily satisfied." Hernández, 589 U.S. at 102; Ziglar, 582 U.S. at 149. A case presents a "new" context if it differs from Bivens, Davis, and Carlson in any " 'meaningful way.' " Hernández, 589 U.S. at 102. Importantly, authorizing a cause of action is a "legislative endeavor." Egbert, 596 U.S. at 491. And legislators may consider a near-infinite " 'range [*24] of policy considerations.' " Ibid. A case thus presents a new Bivens context if it displays any difference from prior Bivens cases that might affect the policy considerations legislators could consider when deciding whether to allow, limit, or deny a damages remedy. Put otherwise: A difference is "meaningful" enough to render the context "new" so long as Congress, exercising plenary legislative judgment, could think it meaningful.

A case thus may present a new context even if "the right at issue" and "the mechanism of injury" are the "same" as a prior Bivens case. Ziglar, 582 U.S. at 139. This Court's cases catalogue a host of meaningful differences, from officer rank to "risk of disruptive intrusion by the Judiciary into the functioning of other branches." Id. at 139-140; pp. 8-9, supra. And a case "present[s] a new context * * * if there are potential special factors that were not considered in previous Bivens cases." Ziglar, 582 U.S. at 148. That makes sense. A "special factor" is any reason to defer to Congress's authority to grant or deny a damages remedy. Egbert, 596 U.S. at 492-493. A special factor earlier Bivens cases did not consider is thus necessarily a difference Congress could find meaningful.

While this Court has described the Bivens inquiry as two steps, "those steps often resolve to a single question: whether there is any reason to think that Congress might be better equipped to create a damages remedy." Egbert, 596 U.S. at 492. The answer here—as in "most every case," ibid.—is "yes."

B. Differences in Nature, Severity, and Immediacy Make This a New Context from Carlson

The Ninth Circuit found no new Bivens context at step one because, in its view, there is no meaningful difference between this case and Carlson. Pet.App.8a-14a. But the cases differ markedly in nature, severity, and immediacy. [*25] Those differences are meaningful—and Congress certainly could so find—for a host of reasons.

1. For Watanabe, It Is Not "Damages or Nothing"

This Court and its members have repeatedly identified one critical feature of cases where it has allowed a Bivens remedy: For the plaintiffs in those cases, it was "damages or nothing." In Bivens itself, federal agents conducted a warrantless search and seizure. As Justice Harlan explained, "damages [was] the only possible remedy for someone in Bivens' alleged position." 403 U.S. at 409-410 (concurring in judgment). Bivens could not, for example, have sought "injunctive relief " while the alleged search and seizure were occurring. Id. at 410. "For people in Bivens' shoes, it is damages or nothing." Ibid. Likewise, the plaintiff in Davis could not obtain injunctive or administrative relief. "For Davis, as for Bivens, 'it [wa]s damages or nothing.' " Davis, 442 U.S. at 245.

That was true in Carlson, too. The inmate there suffered an acute and fatal medical emergency: an asthma attack that prison staff exacerbated with contraindicated drugs and a broken respirator, causing the inmate's death within hours. 446 U.S. at 16 n.1; Green v. Carlson, 581 F.2d 669, 671 (7th Cir. 1978). That rapidly unfolding emergency left no opportunity for the inmate (or his estate) to seek nonmonetary relief to address the constitutional violation. The inmate could not have sought an injunction while suffering his attack; nor could his estate have obtained injunctive relief after his death. Carlson, like Bivens and Davis, "was a case of 'damages or nothing.' " Pet.App.98a (R. Nelson, J., dissenting from denial) (quoting Bivens, 403 U.S. at 410 (Harlan, J., concurring in judgment)).

Here, by contrast, Watanabe alleges he was not adequately treated or sent to a hospital for back pain that was [*26] diagnosed as a fractured coccyx months later. Pet.App.4a; pp. 12-13 & n.8, supra. That is a far cry from the dire and fatal emergency in Carlson. Unlike the inmate there, Watanabe could pursue non-damages remedies. He could file an administrative complaint requesting a hospital transfer or other treatment believed necessary. 28 C.F.R. §§ 542.10, 542.13-542.15. Failing that, he could go to court for an appropriate injunction. 18 U.S.C. § 3626; Ziglar, 582 U.S. at 144, 148 (noting possibility of injunctive or habeas relief). Indeed, a suit for injunctive relief could be "a faster and more direct route to relief than a suit for money damages." Id. at 145. "A successful [injunction request] would have required officials" to send Watanabe to a hospital, or provide other treatment found necessary, "immediately." Ibid. But "this damages suit remains unresolved" years later. Ibid. Watanabe did pursue administrative and injunctive relief, and the Ninth Circuit held he could pursue injunctive relief "related to his ongoing medical care." Pet.App.16a-17a.[9]

The Court regularly consults whether Bivens plaintiffs could invoke "traditional equitable powers." Ziglar, 582 U.S. at 133, 148. More important, whether the case is "damages or nothing" is something Congress could believe relevant when deciding whether to create a private cause of action. That makes this "a new context." Id. at 148. Simply put, Carlson was "damages or nothing." This case is not. "If that is not a meaningful difference, then it's hard [*27] to say what is." Pet. App. 98a-99a (R. Nelson, J., dissenting from denial).

2. Differences in Severity Make the Context New

[9] Watanabe alleges he filed an "Administrative Remedy (BP-9)" complaint under the ARP, and that the warden responded by "stat[ing] that the Plaintiff has received treatment which he has not." C.A. ER-83. Watanabe's original district-court complaint requested an injunction concerning prison housing policy, and the Ninth Circuit construed his filings as also seeking injunctive relief for "his ongoing medical care." Pet.App.5a, 16a; C.A. ER-117.

This case differs from Carlson not merely in the harm's immediacy, but also its severity. The inmate in Carlson died. Watanabe's injury was neither fatal nor life-threatening. There are few differences more meaningful than that between life and death.

Congress regularly singles out conduct resulting in death for both deterrence and compensation. Criminal statutes often allow or mandate heightened penalties where offending conduct "causes the death of any person."[10] Statutes also specifically address compensation in event of death. E.g., 5 U.S.C. § 8102a(a); § 8133; 33 U.S.C. § 909; 46 U.S.C. § 30302. Congress could draw the same distinction between fatal and non-fatal harm when evaluating whether to impose civil deterrence and afford compensation through individual officer liability. This Court has described Bivens as " 'concerned solely with deterring the unconstitutional acts of individual officers.' " Egbert, 596 U.S. at 498 (emphasis added). And deciding "adequate level[s] of deterrence" is "a legislative determination that must be left to Congress, not the federal courts." Ibid. Because differences in severity—including death—could affect Congress's view of appropriate deterrence, that difference is meaningful for Bivens purposes.

The recognition that "death is different" has also long informed this Court's approach to the Eighth Amendment's ban on cruel and unusual punishments—the basis for suit both here and in Carlson. Gregg v. Georgia, 428 U.S. 153, 188 (1976). If death is a "differen[ce]" that can [*28] justify special Eighth Amendment safeguards, ibid., it likewise is a difference Congress could find meaningful in assessing possible Eighth Amendment remedies, such as damages liability. And even if "death-is-different" were jurisprudentially unsound, Atkins v. Virginia, 536 U.S. 304, 337 (2002) (Scalia, J., dissenting), it remains a meaningful "policy" distinction in the "legislative endeavor" of creating causes of action, Egbert, 596 U.S. at 491 (emphasis added).

Congress could draw different lines. It might think the deterrent of damages liability is warranted where offenses cause "serious bodily injury." Cf. 18 U.S.C. § 1365(a)(3); § 2119(2). Or it could distinguish among "bodily injury," "serious bodily injury," and "life threatening bodily injury." Cf. § 1864(b)(2)-(3), § 2261(b)(2)-(3). It could make other distinctions. Cf. 5 U.S.C. §§ 8105-8107 (compensation for, e.g., total and partial disability, disfigurement, and dismemberment). It could think constitutional violations by federal employees warrant personal liability always—or never, given other means of deterrence. What matters is that legislators weighing the costs and benefits of a damages remedy could see a meaningful difference between the injury in Carlson and the less-severe injury alleged here. That renders this Bivens context "new."

The potential for increased "risk of disruptive intrusion by the Judiciary into the functioning of other branches" likewise makes this a new context. Ziglar, 582 U.S. at 140. The "operation of our correctional facilities is peculiarly the province of the Legislative and Executive Branches of our Government, not the Judicial." Bell v. Wolfish, 441 U.S. 520, 548 (1979). Exposing prison staff to personal damages liability makes "the 'inordinately difficult undertaking' of running a prison" harder. Goldey, 606 U.S. at 944. Congress could readily think that, even if such disruption [*29] might be acceptable for extreme cases like Carlson, extending it to less-severe injuries would have intolerable "negative systemic consequences." Ibid.

For example, damages actions based on inmate deaths are far less likely to be used as a tool of harassment against prison staff. See Egbert, 596 U.S. at 499. And non-life-threatening situations are far more "common" than those resulting in death. Id. at 500. Extending Carlson to less-severe injuries is thus "likely to impose 'a significant expansion of Government liability.' " Ibid.

Medical decisionmaking driven by fear of liability—"defensive medicine"—can lead to unnecessary and costly treatments. See Daniel Kessler & Mark McClellan, Do Doctors Practice Defensive Medicine?, 111 Q.J. Econ. 353 (1996). Prison medical professionals faced with patients like Watanabe, for example, may be tempted to reduce personal liability risk by acquiescing to demands to visit the hospital or order additional tests, even if an inmate's condition does not otherwise counsel such steps. That imposes serious costs. Prisons do not "traditionally house specialists

[10] 18 U.S.C. § 844(f)(3); see, e.g., § 1365(a)(2); § 1864(b)(1); § 1952(a)(B); § 1992(a); § 2113(e); § 2119(3); § 2251(e); § 2261(b)(1); § 2262(b)(1).

or diagnostic and testing equipment." Watkins v. Mohan, 144 F.4th 926, 949 (7th Cir. 2025) (Kirsch, J., concurring in judgment in part and dissenting in part). "And because prisoners must be transported and monitored by armed guards at all times, these visits generate significant costs and risks on top of the need to schedule and pay for the care itself." Ibid.

Congress is attuned to that risk of disruption. Cf. 42 U.S.C. § 1997e(f)(1) (providing for prisoner-suit hearings "without removing the prisoner from the facility in which the prisoner is confined"). It could readily weigh the risk differently where, as here, an injury is less severe than in Carlson. That renders the context new. [*30]

3. Contrary Arguments Lack Merit

The decision below declared that "Watanabe's claim is identical to Carlson in all meaningful respects" because "Watanabe alleges he suffered deliberate medical indifference while incarcerated, in violation of the Eighth Amendment's proscription against cruel and unusual punishment," and "Carlson dealt with the exact same issue." Pet.App.3a; accord Pet.App.12a, 17a. It urged differences in severity were irrelevant because less-severe conduct could still "constitute deliberate indifference in violation of the Eighth Amendment." Pet.App.14a.

That misunderstands the test. A case may present a new context even if "the right at issue" and "mechanism of injury" are "the same" as a prior Bivens case. Ziglar, 582 U.S. at 139. The Court has so held with respect to Carlson specifically: In Malesko, "the Court held that the contexts were different" "[e]ven though the right and the mechanism of injury were the same as they were in Carlson." Ibid. (citing 534 U.S. at 70 & n.4). The proper test is instead whether Congress could find any differences between the cases meaningful when weighing the costs and benefits of a damages remedy. It plainly could here. The differences in nature, severity, and immediacy are the difference between life and death, and between "damages or nothing."

The Ninth Circuit insisted this "case does not present a risk of intrusion by the judiciary into the operations of the BOP any more than what Carlson already permits." Pet.App.10a. But there is a vast difference between imposing damages liability in rare cases like Carlson, where the inmate dies and cannot pursue other relief, and doing so in the many more cases involving less-severe injuries. Congress could think the disruption tolerable there but intolerable here. Even a "modest extension is still an extension." Ziglar, 582 U.S. at 147.

[*31] The panel majority suggested that "severity" should inform only "the merits of the constitutional claim." Pet.App.84a. This Court has rejected the argument that considerations cannot establish a new Bivens context simply because they are also relevant to "whether a constitutional violation exists." Ziglar, 582 U.S. at 176-178 (Breyer, J., dissenting). Properly so: Even if a violation is established, differences in severity or other particulars can inform legislative judgments regarding whether deterrence, disruption, and other considerations weigh for or against a damages remedy.

Nor does recognizing such differences require "arbitrary line-drawing." Pet.App.85a. The "legislative endeavor" of creating causes of action inevitably involves drawing lines that balance competing interests. Egbert, 596 U.S. at 491; see Hernández, 589 U.S. at 100. The question is not whether courts exercising judicial judgment would themselves draw a particular line, but whether Congress exercising legislative judgment could. Any other approach would fail to afford "utmost deference to Congress' preeminent authority in this area." Egbert, 596 U.S. at 492. Besides, the lines here are hardly "arbitrary." The law has long drawn distinctions based on the severity of injury, including death. And distinguishing suits based on whether relief is "damages or nothing" is foundational to Bivens itself.

The panel majority's assertion that "the wrongful conduct and injuries Watanabe suffered were not meaningfully less severe" than the fatal mistreatment in Carlson, Pet.App.86a n.4, thus blinks reality. Congress could surely see things differently.[11] [*32]

C. Special Factors Not Considered in Carlson Present a New Bivens Context

[11]While immaterial to the legal issue here, the panel majority was mistaken in suggesting that Nielsen "provided no meaningful treatment

Cases also present a "new context" if they implicate "potential special factors that previous Bivens cases did not consider." Ziglar, 582 U.S. at 139-140, 148. One "special factor" is the existence of "alternative remedial structures." Egbert, 596 U.S. at 492-493, 498; see Ziglar, 582 U.S. at 137, 145, 148 (collecting cases); Goldey, 606 U.S. at 944-945. Such structures pervade this case.

1. This Case Is Replete with Alternative Remedial Structures Carlson Never Considered

This case implicates a host of alternative remedial structures Carlson did not consider.

BOP's Administrative Remedy Program. The ARP provides " 'an alternative remedial structure' * * * for aggrieved federal prisoners" to challenge allegedly unconstitutional conduct. Goldey, 606 U.S. at 944 (citing Malesko, 534 U.S. at 74); see 28 C.F.R. § 542.10(a); p. 10, supra. That makes the ARP a "special factor." Egbert, 596 U.S. at 493, 497-498. This Court so held in Goldey. 606 U.S. at 944. And Carlson undisputedly did not consider the ARP, which was established years after the inmate's death in that case. The presence of that previously unconsidered special factor is a difference "meaningful enough to make [this] context a new one." Ziglar, 582 U.S. at 139-140. Court after court has so held. Pet.15-17.

Ziglar makes that conclusion especially clear. There, the Court considered prisoner-mistreatment claims with "significant parallels" to Carlson, including "allegations of

despite Watanabe's repeated pleas over several months." Pet.App.86a n.4. Watanabe alleges multiple requests to other prison staff, but only one encounter with Nielsen (who provided anti-inflammatory and pain medication). See pp. 12-13 & n.8, supra.

[*33] injury * * * just as compelling as those at issue in Carlson." 582 U.S. at 147. The Court nonetheless held the case sought "to extend Carlson to a new context." Ibid. The Court explained that "a case can present a new context for Bivens purposes * * * if there are potential special factors that were not considered in previous Bivens cases." Id. at 148. It then identified "the existence of alternative remedies" as a special factor "not considered in the Court's previous Bivens cases," and declared that difference sufficiently "meaningful" to present a new context from Carlson. Id. at 148-149. So, too, here with the ARP's alternative remedy.

Prison Litigation Reform Act. "Some 15 years after Carlson was decided, Congress passed the Prison Litigation Reform Act of 1995, which made comprehensive changes to the way prisoner abuse claims must be brought in federal court." Ziglar, 582 U.S. at 148. The PLRA mandated that prisoners exhaust administrative remedies, 42 U.S.C. § 1997e(a)—cementing the ARP's role as an alternative remedial structure for federal prisoners.

More fundamentally, the PLRA gave Congress "specific occasion to consider the matter of prisoner abuse and to consider the proper way to remedy those wrongs." Ziglar, 582 U.S. at 148. Yet Congress chose "not [to] provide for a standalone damages remedy against federal jailers." Id. at 149 (emphasis added). That "Congress has actively legislated in the area of prisoner litigation but has not enacted a statutory cause of action for money damages" "suggest[s] that Congress does not want a damages remedy." Goldey, 606 U.S. at 944; Ziglar, 582 U.S. at 148. That post-Carlson "legislative action" is "itself a [special] factor counseling hesitation" that Carlson did not consider. Ziglar, 582 U.S. at 148. It, too, presents a new context.

[*34] Injunctive Relief. Carlson had no occasion to consider injunctive relief, given the immediacy of the inmate's death. Ziglar thus identified "an injunction" as an "alternative remed[y]" "not considered in the Court's previous Bivens cases" that presented a new context from Carlson. 582 U.S. at 147-149. Similarly here, Watanabe could—and did—seek an injunction ordering a hospital transfer or other treatment. Pet.App.16a; p. 26 & n.9, supra. That notpreviously-considered remedy renders the context new.

Investigation and Discipline. Egbert held that agency "investigation[s]" and "grievance process[es]" are "alternative remedies" that constitute special factors foreclosing a Bivens remedy. 596 U.S. at 497-498. Such structures exist here, even beyond the ARP.

Since 2001, Congress has required the Justice Department's OIG to "receive complaints alleging abuses of civil rights and civil liberties" by Department (including BOP) personnel. USA PATRIOT Act, Pub. L. No. 107-56, § 1001, 115 Stat. 391 (2001). Prisoner complaints can lead to

investigation by OIG or BOP's Office of Internal Affairs, reports to Congress, and discipline.[12] Enacted in 2024, the Federal Prison Oversight Act, Pub. L. No. 118-71, 138 Stat. 1492 (2024), to be codified at [*35] 5 U.S.C. § 413(e), directs OIG to inspect federal-prison medical care. Id. at 1496-1497 (§ 413(e)(2)(B)(viii)). It also provides for an Ombudsman to investigate inmate "complaint[s]" regarding the "health, safety, welfare, or rights of incarcerated people"—including "denial or delay of necessary medical treatment"—and recommend action. Id. at 1496-1497, 1499 (§ 413(e)(3)(A)(i), (3)(C), (4)(C)(ii)(II)). BOP may pursue "disciplinary" or other corrective measures. Id. at 1497-1498 (§ 413(e)(3)(D)(i), (iii)). The Ombudsman must report uncorrected problems to Congress and the Attorney General. Id. at 1497 (§ 413(e)(3)(D)(ii)).[13]

Those statutorily prescribed investigatory and grievance processes—all postdating Carlson—are special factors that militate against a Bivens remedy. Egbert, 596 U.S. at 493, 497-498. It is no answer that such remedies may seem less effective than damages actions. Ibid. And Congress's choice to address prisoner rights and health through agency and congressional oversight—rather than "a statutory cause of action for money damages"—is itself a special factor. Goldey, 606 U.S. at 944. Those special factors, too, render the context new.

2. The Ninth Circuit Erred in Relegating Alternative Remedial Structures to Bivens Step Two

The Ninth Circuit did not deny that Carlson never considered the ARP's alternative remedial structure. But it dismissed the ARP as irrelevant. Such "alternative remedial structures," it declared, "can be one 'special factor,' to be considered at the second step of the Bivens analysis." Pet.App.15a; see Schwartz v. Miller, 153 F.4th 918, 930 (9th Cir. 2025) (Ninth Circuit "treat[s] the ARP as a special [*36] factor only at step two"). Alternative remedies "bear little significance at step one," the panel majority urged, because "[s]tep one focuses on the alleged violation" while "[s]tep two * * * focuses on remedies." Pet.App.80a-81a.

That defies precedent and logic alike. Ziglar held that "potential special factors that were not considered in previous Bivens cases" "present a new context for Bivens purposes." 582 U.S. at 148; id. at 139-140. Ziglar then specifically held that "alternative remedies" "not considered in the Court's previous Bivens cases" were a "meaningful" difference that meant the case before it sought "to extend Carlson to a new context." Id. at 147-149. Ziglar could not be clearer that previously unconsidered alternative remedies render the context "new." It also forecloses any suggestion that alternative remedies are insufficiently "meaningfu[l]" at step one. Pet.App.15a. Indeed, "alternative remedies" "independently foreclose a Bivens action." Egbert, 596 U.S. at 497. Ziglar's "uncertainty regarding the available alternative remedies," Pet.App.81a n.2, underscores the point. Ziglar held that even "potential special factors" present "a new context" at step one; step two then considers whether those factors actually exist and foreclose a Bivens remedy. 582 U.S. at 148-149 (emphasis added). That nuance is immaterial here, because alternative remedial structures plainly exist (and foreclose a Bivens remedy). But it reinforces just how "easily satisfied" the new-context inquiry is. Id. at 149.

Nor did Egbert "clarif [y]" that alternative remedial structures should be relegated to step two. Pet.App.15a. Quite the contrary: Egbert explained that the two steps "often resolve to a single question" because "a new context arises when there are 'potential special factors that previous Bivens cases did not consider.' " 596 U.S. at 492. [*37] That forecloses the panel majority's purported sharp "difference between step one and step two." Pet.App.80a. The theory fails regardless. Step one is not limited to considering "the alleged violation" while disregarding "remedies." Pet.App.80a. Step one considers "the risk of disruptive intrusion" on other branches,

[12] § 1001(3); U.S. Gov't Accountability Office, GAO-25-107339, Bureau of Prisons: Strategic Approach Needed to Prevent and Address Employee Misconduct 7-12, 40-42 (Sept. 29, 2025), https://www.gao.gov/ products/gao-25-107339; U.S. Dep't of Justice, Office of Inspector Gen., Evaluation & Inspections Div. Rep. 23-065, Limited-Scope Review of the Federal Bureau of Prisons' Strategies to Identify, Communicate, and Remedy Operational Issues 15-18 (May 2023), https://oig.justice.gov/reports/limited-scope-review-federal-bureauprisons-strategies-identify-communicate-and-remedy; U.S. Dep't of Justice, Fed. Bureau of Prisons, Program Statement No. 3711.01, Employee and Labor Management Relations 11-14 (Jun. 28, 2017), https://www.bop.gov/policy/progstat/3711.01.pdf (discipline procedures).

[13] The Oversight Act takes effect following appropriations, § 2(b), 138 Stat. 1501, which have not yet been enacted. That underscores Congress's reticulated, resource-attentive approach in this field.

Ziglar, 582 U.S. at 140—i.e., the impact of judicial remedies. And, of course, step one considers "potential special factors that previous Bivens cases did not consider," ibid.—and "alternative remedial structures" are a quintessential "special factor," Egbert, 596 U.S. at 493.

Confining a special factor to step two makes no sense. Special factors are reasons to think Congress may be better equipped to weigh the costs and benefits of a damages remedy—and, consequently, why a judicially created damages remedy is unavailable. Egbert, 596 U.S. at 492. Refusing to consider a special factor, based on some artificial distinction between steps one and two, would allow courts to authorize a damages remedy even though Congress is better equipped to make that call. That is irreconcilable with affording "utmost deference to Congress' preeminent authority in this area." Ibid.

3. The ARP Cannot Be Dismissed Based on Its Date of Creation

The panel majority's protest that the ARP "existed when the Supreme Court decided Carlson," Pet.App.78a-79a, likewise fails. The question is whether the ARP was "considered " in Carlson. Ziglar, 582 U.S. at 148. It was not. No party raised it. The Court never mentioned it. "Questions which merely lurk in the record, neither brought to the attention of the court nor ruled upon, are not to be considered as having been so decided[.]" Webster v. Fall, 266 U.S. 507, 511 (1925).

[*38] The ARP, moreover, became effective in late 1979— mere months before Carlson issued and four years after the inmate there died. See 44 Fed. Reg. 62,250; Green, 581 F.2d at 671. Neither he nor the Carlson plaintiff (the decedent's mother) could have used it. Pet.App.98a. The availability here of a remedy unavailable in Carlson is a meaningful difference. Ziglar makes that clear: It held the possibility of "an injunction"—a remedy extant at the time of Carlson but unavailable there—presented a new context from Carlson. 582 U.S. at 148.

Finally, Carlson did not consider the relevance of the ARP in combination with later-enacted legislation like the PLRA, PATRIOT Act, and Oversight Act. See pp. 33-35, supra. Such post-Carlson "legislative action suggesting that Congress does not want a damages remedy is itself a factor counseling hesitation" that Carlson never considered. Ziglar, 582 U.S. at 148 (emphasis added).

4. Watanabe's Reliance on Carlson's Reasoning Fails

Watanabe invokes Carlson's discussion of a different remedy, the Federal Tort Claims Act (FTCA). Br.in.Opp.16- 17. Carlson concluded the FTCA should not foreclose a Bivens remedy because Congress had not "explicitly declared" it an "equally effective" "substitute for recovery directly under the Constitution." 446 U.S. at 18-19; id. at 19-23. Watanabe urges the "same rationales * * * apply with even greater force to the ARP." Br.in.Opp.17.

But the two are quite different, not least because the ARP offers prospective relief while the FTCA allows only damages. Besides, Carlson's FTCA analysis "carries little weight because it predates [this Court's] current approach to implied causes of action and diverges from the prevailing framework." Egbert, 596 U.S. at 500-501. Plaintiffs seeking Bivens remedies must "satisf [y] the 'analytic [*39] framework' prescribed by the last four decades of intervening case law." Id. at 501. Under that framework, an express congressional declaration is unnecessary, and it does not "matter that 'existing remedies do not provide complete relief.' " Id. at 493, 501. Instead, the existence of " 'an alternative remedial structure' " for "aggrieved federal prisoners" is a special factor barring a Bivens remedy "even if such 'procedures are "not as effective as an individual damages remedy." ' " Goldey, 606 U.S. at 944-945.

D. Watanabe's Bivens Claim Cannot Proceed

Watanabe correctly concedes that, if his claim presents a new context, it fails at Bivens step two. Pet.App.96a n.1; C.A. Oral Arg. 6:05-6:12 (http://youtu.be/sU-8uFCTxs8). This Court thus need go no further. But the step-two analysis underscores the Ninth Circuit's error.

At step two, "a Bivens remedy is unavailable if there are 'special factors' indicating that the Judiciary is at least arguably less equipped than Congress to 'weigh the costs and benefits of allowing a damages action.' " Egbert, 596 U.S. at 492. Multiple special factors preclude Bivens's extension here. As the Court has recognized, " 'an alternative remedial structure' already exists for aggrieved federal prisoners." Goldey, 606 U.S. at 944-945; pp. 32-35, supra. " '[T]hat alone,' like any special factor,"

"foreclose[s] a Bivens action here." Egbert, 596 U.S. at 493, 497. So does the fact that "Congress has actively legislated in the area of prisoner litigation but has not enacted a statutory cause of action for money damages." Goldey, 606 U.S. at 944; pp. 33-35, supra. And so does the risk that applying Bivens here "could have negative systemic consequences for prison officials and the 'inordinately difficult undertaking' of running a prison." Goldey, 606 U.S. at 944; pp. 28-29, supra.

[*40] Watanabe's concession that special factors defeat his claim at step two confirms that this case presents a new context at step one. The two steps "often resolve to a single question: whether there is any reason to think that Congress might be better equipped to create a damages remedy." Egbert, 596 U.S. at 492 (emphasis added). Here, alternative remedial structures, Congress's activity in the field, and systemic impacts are all reasons to think Congress is better suited to the task. Carlson considered none of them. Whether viewed as one step or two, the bottom line is clear: Watanabe seeks to extend Bivens to a new context, and that he cannot do.

↑ **II. Bivens Should Be Overruled**

The Ninth Circuit erred in recognizing a Bivens cause of action here for a more fundamental reason. Appreciating the grave conflict between Bivens and the separation of powers, this Court has condemned recognition of Bivens remedies as " 'a disfavored judicial activity.' " Egbert, 596 U.S. at 491. It has repudiated Bivens's reasoning. It has consistently rejected Bivens suits, in 13 cases over 45 years. And it has explained that, if "called to decide Bivens today, we would decline to discover any implied causes of action in the Constitution." Id. at 502. That this Court is now called upon to reject a Bivens suit for a 14th time—doubtless to be followed by numbers 15, 16, 17, and more—suggests it is finally time to retire Bivens once and for all.

A. Congress, Not the Judiciary, Creates Causes of Action

"[C]reating a cause of action is a legislative endeavor," Egbert, 596 U.S. at 491, and the Constitution vests "[a]ll legislative Powers" in "Congress," U.S. Const. art. I, § 1. Accordingly, "a federal court's authority to recognize a damages remedy must rest at bottom on a statute enacted by Congress." Hernández, 589 U.S. at 101. But "no statute [*41] expressly creates a Bivens remedy." Ibid. That forecloses judicial recognition of such a remedy.

Bivens, Davis, and Carlson saw things differently. They saw the absence of a congressionally authorized damages remedy not as an obstacle, but an invitation. They embraced judicial creation of damages remedies that, in their view, would effectuate the purposes of the provisions at issue. Bivens, 403 U.S. at 396. And they candidly acknowledged that, in doing so, courts would consider a "range of policy considerations" "at least as broad as * * * a legislature would consider." Id. at 407 (Harlan, J., concurring in judgment).

Since then, however, the Court has come "to appreciate more fully the tension between this practice and the Constitution's separation of legislative and judicial power." Hernández, 589 U.S. at 100. Creating a damages remedy assigns new private rights and liabilities, and requires balancing myriad policy considerations. It is an exercise of legislative power, not judicial. See ibid.; Egbert, 596 U.S. at 491; id. at 502-503 (Gorsuch, J., concurring in judgment). It is, at the very least, a task "Congress is 'far more competent than the Judiciary' " to perform. Id. at 491 (opinion of the Court).

This Court's test at bottom asks "whether there is any reason to think that Congress might be better equipped to create a damages remedy." Egbert, 596 U.S. at 492. The answer is always "yes." Congress is always better equipped for the "legislative endeavor" of creating a damages remedy, because it is a legislature. Id. at 491. It may be time for the Court to forthrightly recognize that fact. Federal courts' putative "narrow authority" to recognize implied damages remedies under the Constitution "is more accurately described as nonexistent." Cisco Systems, Inc. v. Doe, 146 S. Ct. 1882, 1886 (2026). Here, as [*42] elsewhere, "the power to create causes of action belongs to Congress." Id. at 1890.

Bivens has been gutted by later precedent. Leaving its husk on the books serves no one. It offers false hope for plaintiffs who almost never prevail. It imposes burdens on defendants and courts. And it absolves Congress of its responsibility for addressing the issue. See Mohamed v. Jones, 100 F.4th 1214, 1239-1240 (10th Cir. 2024) (Tymkovich, J., dissenting). So long as the zombie of Bivens wanders this Court's jurisprudence, Congress has little reason to consider the issue in earnest. Ibid.

B. Bivens Has Earned Its Retirement

Every stare decisis factor—quality of reasoning and consistency with other cases; workability; and reliance—"counsels in favor of letting [Bivens] go." Trump v. Slaughter, 146 S. Ct. 2283, 2302 (2026).

1. This Court has "repudiated the foundation of the Bivens doctrine." Hernández, 589 U.S. at 117 (Thomas, J., concurring); see Pet.App.112a-116a (Collins, J., dissenting from denial) (describing "wholesale evisceration of Carlson's reasoning"). Their "premises" fatally "undermined * * * at every turn," Bivens, Davis, and Carlson are "far out of step with [the Court's] cases." Slaughter, 146 S. Ct. at 2302-2303.

Bivens and its progeny drew from the view, exemplified by J.I. Case Co. v. Borak, 377 U.S. 426 (1964), that courts should create damages remedies to effectuate the perceived purposes of statutes lacking such remedies. Bivens, 403 U.S. at 397 (citing Borak); id. at 402 & n.4 (Harlan, J., concurring in judgment) (citing Borak); Ziglar, 582 U.S. at 131-132. But the Court has now "abandoned" that practice as inconsistent with the separation of powers. Sandoval, 532 U.S. at 287 (repudiating Borak); see Hernández, [*43] 589 U.S. at 100; id. at 115-117 (Thomas, J., concurring). Just last Term, the Court "close[d] the door" on judicially created causes of action under the Alien Tort Statute, because "the power to create causes of action belongs to Congress." Cisco, 146 S. Ct. at 1886, 1890-1892.

Bivens also assumed the "general grant of [federalquestion] jurisdiction" authorized federal courts to create remedies "to make good the wrong done." 403 U.S. at 396 (opinion of the Court), 405 (Harlan, J., concurring in judgment). But the Court now holds "[t]he vesting of jurisdiction in the federal courts does not * * * give rise to authority to formulate federal common law," including "to create * * * a cause of action." Texas Industries, Inc. v. Radcliff Materials, Inc., 451 U.S. 630, 638, 640-641 (1981); see Hernández, 589 U.S. at 101; Cisco, 146 S. Ct. at 1889.

Bivens saw the absence of an "explicit congressional declaration" that plaintiffs "may not recover money damages" as justifying judicially created remedies. 403 U.S. at 397; see Davis, 442 U.S. at 246-247; Carlson, 446 U.S. at 19. But the Court now holds that " 'congressional inaction,' " including "fail[ure] to provide a damages remedy," militates against judicially created remedies. Egbert, 596 U.S. at 501 (quoting Schweiker, 487 U.S. at 423); Ziglar, 582 U.S. at 143-144.

Bivens insisted only an "equally effective" statutory remedy could foreclose a judicially created one. 403 U.S. at 397; see Davis, 442 U.S. at 248; Carlson, 446 U.S. at 19- 23. Carlson even declared the FTCA's damages remedy "not a sufficient protector of the citizens' constitutional rights" because it lacks adornments like "punitive damages." 446 U.S. at 22-23. But the Court now holds that alternative remedies foreclose a Bivens remedy "even if " they are " 'not as effective as an individual damages remedy.' [*44] " Egbert, 596 U.S. at 498 (quoting Bush, 462 U.S. at 372); see Hernández, 589 U.S. at 113-114.

Watanabe defends Carlson as a "federal common-law analogue to common-law tort actions." Br.in.Opp.23. But the Court has rejected attempts to "[a]nalogiz[e] Bivens" and its progeny "to the work of a common-law court." Hernández, 589 U.S. at 100. "With the demise of federal general common law, a federal court's authority to recognize a damages remedy must rest at bottom on a statute"—which is absent here. Id. at 101.

From the Framing until 1971, courts did not infer damages remedies from the Constitution. See pp. 4-5, supra. The Court recounted that history just a few years before Bivens in Wheeldin v. Wheeler, and concluded it was "not for [the Court] to fill any hiatus Congress has left in this area." 373 U.S. 647, 652 (1963). But eight years later Bivens did precisely that, scarcely mentioning Wheeldin. 403 U.S. at 396-397.

Since then, Bivens's foundations—never sound—have crumbled. "To persist in [Bivens] would require [the Court] to depart from almost every case on the subject [it has] decided [before and] since." Slaughter, 146 S. Ct. at 2303.

2. Bivens has proved unworkable. While the Court's current framework reins in some of Bivens's mischief, separation-of-powers problems remain. Most fundamentally, the framework contemplates that courts might create damages remedies Congress has not authorized, when in fact courts cannot (and certainly should not) do so.

The Court's Bivens tests still require courts to undertake legislative judgments foreign to the judicial role. Courts must decide whether cases are "meaningfully" different from Bivens, Davis, and Carlson and whether there is reason to think Congress might be better suited to [*45] weigh the costs and benefits of a damages remedy. Both questions require courts to evaluate myriad "policy considerations": economic, fiscal, operational, even moral. Egbert, 596 U.S. at 491. But that is something " 'a legislature would' "—and should—do. Ibid. While those questions are asked from Congress's perspective (e.g., whether Congress could think a difference meaningful), that still puts courts to imagine a legislative view. And the necessity of doing so reinforces that all these questions should be answered by Congress—not speculating courts. "To atone for Bivens, it seems [courts] continue repeating its most basic mistake." Id. at 504 (Gorsuch, J., concurring in judgment).

Lower courts have struggled. For example, the "new-context inquiry" is supposed to be "easily satisfied." Ziglar, 582 U.S. at 149. Yet "multiple deep circuit splits" have arisen over how the test applies to such basic things as alternative remedies and a claim's nature and severity. Pet.App.91a, 103a-109a (R. Nelson, J., dissenting from denial); Pet.App.86a-89a (Paez & Koh, JJ., respecting denial); Pet.15-22. The result is "confusion," Pet.App.111a (Collins, J., dissenting from denial), and a "flood of inconsistent case law across and within circuits." Watkins, 144 F.4th at 951 (opinion of Kirsch, J.).

That confusion drives home Bivens's unworkability: While the Court has tried to confine Bivens, Davis, and Carlson to their respective contexts, jurists cannot agree what those contexts are. As a result, this Court has repeatedly had to put newly summoned Bivens genies back in the bottle. Rather than try still further refinement in still further cases, the Court may wish to stopper the Bivens bottle for good.

3. No reliance interests justify Bivens's retention. "Any such interests would belong to future plaintiffs— [*46] who surely are not relying on the remote possibility that U.S. courts would" allow a Bivens remedy "if they were someday injured and sought one." Cisco, 146 S. Ct. at 1891-1892. Nor would reliance be justified. Repeated disclaimers that Bivens remedies are a disfavored judicial activity have put plaintiffs "on notice for years regarding this Court's misgivings about" Bivens. Janus v. AFSCME, 585 U.S. 878, 927 (2018).

Besides, other remedies exist. The FTCA allows recovery "against the United States" for property harm, "personal injury," and "death" caused by federal employees' "negligent or wrongful" conduct. 28 U.S.C. §§ 1346(b)(1), 2674. That includes "medical malpractice" negligence like in Carlson. Levin v. United States, 568 U.S. 503, 512-513 (2013); see also Minneci v. Pollard, 565 U.S. 118, 128-130 (2012) (discussing relevant tort law). It also includes intentional torts by law-enforcement officers like in Bivens—indeed, Congress amended the FTCA to reach such conduct shortly after Bivens. See Pub. L. No. 93-253, § 2, 88 Stat. 50 (1974), codified at 28 U.S.C. § 2680(h).[14] Congress has provided congressional staffers remedies for discrimination like in Davis. See Congressional Accountability Act of 1995, Pub. L. No. 104-1, 109 Stat. 3, codified at 2 U.S.C. §§ 1302(a), 1311(a)-(b). And injunctions (which enjoy a "long history" that Bivens remedies lack, Armstrong v. Exceptional Child Ctr., Inc., 575 U.S. 320, 327 (2015)) may be available in many cases.

Watanabe urges that "Congress" relied on Bivens in enacting the Westfall Act. Br.in.Opp.20-21. That Act [*47] generally makes the FTCA's "remedy against the United States" "exclusive" of suits against federal employees (substituting the United States as defendant), without extending that exclusivity to constitutional claims. 28 U.S.C. § 2679(b)(1), (2)(A), (d). But "the provision simply left Bivens where it found it"—in the hands of courts. Hernández, 589 U.S. at 111 n.9.[15]

[14] Carlson dismissed the FTCA based on legislative history and a view that it was not "equally effective." 446 U.S. at 19-23. Neither can justify a damages remedy Congress has not authorized. Egbert, 596 U.S. at 498; FS Credit Opportunities Corp. v. Saba Capital Master Fund, Ltd., 146 S. Ct. 1546, 1557 (2026).

[15] The Westfall Act may reflect a (mistaken) concern that Congress could not bar individual liability for constitutional violations, given the Court's suggestion that the Constitution itself imposes such liability. See Carlson, 446 U.S. at 33 n.2 (Rehnquist, J., dissenting); Minneci, 565 U.S. at 131 (Scalia, J., concurring). If so, that underscores the distortion Bivens has wrought.

> Insofar as "Congress has relied upon" Bivens, "that is precisely the problem." Slaughter, 146 S. Ct. at 2303. When courts assert legislative power, that gives Congress less incentive to legislate (or an excuse not to). That may explain the many failed bills proposing damages remedies akin (or not) to Bivens. See pp. 11-12, nn.1-6, supra. Getting courts out of the Bivens business will return full responsibility—and accountability—where it belongs: Congress.
>
> As long as Bivens survives, its distortions will persist. While most Bivens claims fail, lower courts erroneously allow some—as this Court's repeated reversals illustrate. E.g., Ziglar, 582 U.S. 120; Egbert, 596 U.S. 482; Goldey, 606 U.S. 942. Even ultimately-unsuccessful Bivens suits have "stark and personal" consequences for "line federal employees and their families": They threaten college funds and mortgage applications; impose years of litigation burdens; and inflict reputational harm. Mary Mason, Reckoning with Bivens, Lawfare (Nov. 12, 2025), https://www.lawfaremedia.org/article/reckoning-with-bivens. While indemnification is common, it is not guaranteed. Ibid.; see 28 C.F.R. § 50.15(c). If indemnification does [*48] occur, it presumably lessens the "deterrent" of "personal financial liability." Carlson, 446 U.S. at 21. And if indemnification is denied, even successful plaintiffs may receive nothing from judgment-proof defendants. No one is wellserved.
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> * * *
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> Bivens has become an "empty promise"—a disavowed doctrine that haunts the casebooks. Edwards v. Vannoy, 593 U.S. 255, 272 (2021). Its retention "perpetuat[es] what has become an illusory" remedy that "misleads litigants and judges, and needlessly expends the scarce resources of [counsel] and courts." Id. at 275. "In fairness to future litigants and [the] lower court[s]," it may be time to stop holding out the "false hope" of Bivens and have Congress reassume its rightful role in this field. Egbert, 596 U.S. at 504 (Gorsuch, J., concurring in judgment).

↑ **Conclusion.** The judgment should be reversed.

Respectfully submitted.

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August 2026

↑ **Kekai Watanabe** Brief on the Merits · Sept. 23, 2026
Brief of respondent Kekai Watanabe filed. (Distributed)

Watanabe · Brief on the Merits · Sept. 23, 2026 · respondent — coupling row I
Cites 53 cases (135 mentions), 5 citations not resolved; 12 statutes and provisions (2 bare section cites not resolved).
Shares with Pet. 11% · Br. in Opp. 28% · Cert. Reply 6% · Supplemental 0% · Supplemental 0% · Supplemental 2% · Supplemental 2% · Pet'rs Br. 19% · Reply Br. 17%; closest: Br. in Opp.
Its own ground: 15 cases no other filing cites; 17 shared with its own side only, 21 with the other side.
Statutes: 42 U.S.C. § 1997e ×12 (around Padgett); 28 U.S.C. § 2679 ×6; 18 U.S.C. § 3626 ×2 (Article III standing); 2 U.S.C. § 1361; 5 U.S.C. § 8102; 15 U.S.C. § 78u-4; 28 U.S.C. § 1346 (around Carlson); 33 U.S.C. § 908; 4 more.

↑ **Questions Presented.** [*i] Whether the Ninth Circuit erred in allowing respondent's claim to go forward under Carlson v. Green, 446 U.S. 14 (1980).

[*1] In the Supreme Court of the United States

NO. 25-417 FRANCIS NIELSEN, PETITIONER v. KEKAI WATANABE

ON WRIT OF CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE NINTH CIRCUIT

BRIEF FOR THE RESPONDENT

↑ **Introduction.** For Bivens, this Court has been clear: This far and no further. The Court has consistently refused to extend Bivens to any new context. But it also has repeatedly declined calls to overturn the doctrine entirely, choosing instead to preserve it in the three discrete contexts in which it originally arose. Relevant here, since Carlson v. Green was decided in 1980, federal prisoners in federally operated prisons have been able to pursue damages claims against individual federal officers for deliberate indifference to a serious medical need in violation of the Eighth Amendment.

Respondent Kekai Watanabe's case arises in this prototypical Carlson context. While incarcerated in federal prison, Watanabe suffered a serious injury: a broken [*2] bone that caused months of excruciating pain. Petitioner Francis Nielsen was deliberately indifferent to Watanabe's injury, in violation of his Eighth Amendment rights. Watanabe asserts the same kind of violation of the same constitutional right by the same type of defendant in the same institutional setting pursuant to the same substantive standards as the plaintiff in Carlson. This is precisely the kind of claim this Court has long understood Carlson to encompass.

It is also the kind of claim Congress has twice acted to preserve and define. In 1988, Congress passed the Westfall Act to eliminate the traditional state common-law remedies that prisoners historically could have pursued against federal officers. But the Act expressly preserved federal constitutional claims like those in Carlson. And in 1996, Congress passed the Prison Litigation Reform Act (PLRA), responding in part to this Court's decision in McCarthy v. Madigan rejecting an exhaustion requirement for Carlson claims. Under the PLRA, prisoners must exhaust administrative remedies before pursuing a Carlson claim and may not recover emotional or mental damages unless they suffer a physical injury. Congress has therefore weighed the competing policy interests surrounding Carlson and determined that the claims should survive, subject to procedural and substantive limitations.

Nielsen and the United States incorrectly assert that Watanabe's claim arises in a new context. But each of their proposed distinctions either is not a difference at all, is not meaningfully different from the factors analyzed in Carlson, or would require contravening Congress's own policy judgments made in reliance on Carlson. By their own admission, their position would not [*3] just limit Carlson to its context but instead render Carlson claims a "null set." U.S. Br. 25. Such a result would conflict with this Court's precedent and undermine Congress's judgment in the Westfall Act and the PLRA as to the viability, scope, and substance of Carlson claims. The Court should decline that invitation.

Nielsen argues that Watanabe's claim is new because he did not die. But the survivorship claim in Carlson necessarily depended on the premise that the decedent could have asserted a claim had he survived. And in response to Carlson, Congress has not drawn the line at death—the PLRA requires administrative exhaustion

for Carlson claims (something only a living plaintiff can do) and makes physical injury, not death, the key metric for obtaining damages. Requiring death for a Carlson claim also overlooks that the Eighth Amendment is meant to reduce suffering, and it would exempt officers from damages liability even if they deliberately engage in heinous conduct that causes extreme pain and injury just short of death.

Nielsen additionally argues that other regulations or statutes—most prominently, the Administrative Remedy Program (ARP) and the PLRA—render Watanabe's claim new. The ARP, though, is not even new: It was established in 1974, years before Carlson. And the ARP introduces no new special factors not already addressed in Carlson by the Court's discussion of the Federal Tort Claims Act (FTCA). The PLRA, for its part, confirms that Congress views administrative remedies like the ARP as a prerequisite, not a substitute, for a Carlson claim. And if these factors are sufficient to render the context here "new," they would apply equally to and [*4] foreclose all possible Carlson claims, dramatically undercutting Congress's policy choices in the Westfall Act and the PLRA.

Ultimately, Nielsen asks the Court to overrule Bivens. But this is a Carlson case, and through the Westfall Act and the PLRA, Congress has not just passively accepted Carlson—it has repeatedly legislated in reliance on and in response to Carlson. This Court has treated comparable congressional action as ratifying other implied private rights of action. The Court should do the same here. Having induced Congress's action, the Court should not eliminate the premise for that legislation nearly 50 years later.

The ordinary stare decisis factors also strongly counsel in favor of retaining Carlson. Though Carlson would likely be decided differently today, it was not egregiously wrong. The case followed a long history of damages claims against federal officers and jailers specifically, arising out of the fact that prisoners are wholly dependent on their jailers for their most basic needs. Congress has relied on Carlson and its progeny to eliminate traditional state common-law remedies and to adjust the procedures for Carlson claims. And Carlson is workable and has worked for decades: It is supported by a robust body of substantive case law and is limited by qualified immunity. By contrast, overruling Carlson would create a novel situation, never contemplated by Congress, in which federal prisoners who are subjected to needless suffering in violation of the Eighth Amendment have no recourse against the responsible officers.

Separation of powers means that Carlson should not be extended to new contexts. But those same principles favor deference to Congress's judgment in the Westfall [*5] Act and the PLRA about the viability and scope of Carlson claims. Redefining Carlson to comprise a "null set"—or overruling Carlson outright—would subordinate Congress's policy determinations and undermine the premise upon which Congress has legislated. The decision should be affirmed.

↑ **Constitutional and Statutory Provisions Involved.** Relevant statutory provisions, as well as a Bureau of Prisons (BOP) administrative policy, are reproduced in the appendix to this brief. App., infra, 1a-13a.

↑ **Statement.**

↑ **A. Legal Background**

1. Carlson and constitutional claims for damages

At the Founding, "the traditional way in which civil litigation addressed abusive conduct" by federal officials "was by subjecting them to liability for common-law torts." Hernandez v. Mesa, 589 U.S. 93, 110 (2020); see also Pet. Br. 4. Although federal officers were generally immune from such tort suits, that immunity dissolved if the challenged conduct violated the Constitution. Pet. Br. 4-5; Butz v. Economou, 438 U.S. 478, 489-91 (1978).

Beginning with Bivens v. Six Unknown Named Agents of Federal Bureau of Narcotics, 403 U.S. 388 (1971), this Court recognized a federal, constitutional analog for those traditional common-law claims in three contexts. In Bivens, the Court permitted a plaintiff to seek damages from federal narcotics agents for an unreasonable search in violation of the Fourth Amendment. Id. at 397. In Davis v. Passman, the Court permitted a congressional staffer to seek damages for sex [*6] discrimination in violation of the Fifth Amendment. 442 U.S. 228, 248-49 (1979).

The following year, in Carlson v. Green, the Court recognized a damages remedy for a federal prisoner alleging that prison officials were deliberately indifferent to his serious medical needs in violation of the Eighth Amendment. 446 U.S. 14, 18-23 (1980). Carlson concerned allegations that a federal prison nurse and other officials failed to provide medical care to inmate Joseph Jones for his asthma. Id. at 16 n.1; Green v. Carlson, 581 F.2d 669, 670-71 (7th Cir. 1978). The complaint alleged that this neglect caused Jones's death, and his mother, as administratrix of his estate, sued. Carlson, 446 U.S. at 16 & n.1.

The Court held that a damages remedy was available for the alleged violation of Jones's Eighth Amendment rights based on federal prison officials' "deliberate[] indifferen[ce] to [his] serious medical needs." Id. at 16 n.1, 18-23. The Court found no "special factors" counseling hesitation, explaining that qualified immunity "provides adequate protection" against any inhibition of the prison officials' "efforts to perform their official duties." Id. at 19. The Court further explained that the FTCA, 28 U.S.C. 1346(b) and 2671-2680, did not displace any implied constitutional claim. The Court found "no explicit congressional declaration" that persons injured by federal officers' violations of the Eighth Amendment "may not recover money damages from the agents but must be remitted to another remedy, equally effective in the view of Congress," and further found that the FTCA is an inadequate substitute for a direct damages claim against the individual officer. Carlson, 446 U.S. at 19- 23.

[*7] After recognizing a damages action, the Court separately held that the "action survived Jones' death." Id. at 23. Because Bivens actions are creatures of federal law, the Court adopted a uniform federal rule allowing an action to survive when the defendant's conduct causes the claimant's death and state law would otherwise abate the claim. Id. at 23-25.

Since Carlson, this Court has "consistently refused to extend Bivens liability to any new context." Corr. Servs. Corp. v. Malesko, 534 U.S. 61, 68 (2001). At the same time, though, it has continued to identify Bivens, Davis, and Carlson as "settled law" within their recognized spheres, see Ziglar v. Abbasi, 582 U.S. 120, 134 (2017); see, e.g., Goldey v. Fields, 606 U.S. 942, 942 (2025) (per curiam) (referring to three "recognized . . . contexts" for "implied Bivens causes of action"); Egbert v. Boule, 596 U.S. 482, 491 (2022) (Court has declined to "dispense with Bivens"). In Abbasi, the Court emphasized that its modern hesitation against extension of Bivens is "not intended to cast doubt on the continued force, or even the necessity, of Bivens in the . . . context in which it arose." 582 U.S. at 134.

Thus, "rather than dispense with Bivens altogether," Egbert, 596 U.S. at 491, the Court now applies a "two-step test" to determine whether a plaintiff states a claim, Goldey, 606 U.S. at 944. At step one, the Court asks whether the claim is different in a "meaningful way" from Bivens, Davis, or Carlson and therefore presents "a new Bivens context." Abbasi, 582 U.S. at 139. The non-exhaustive considerations at step one include the officer's rank, the constitutional right at issue, the generality or specificity of the challenged action, the extent of judicial guidance, the legal mandate under which [*8] the officer acted, the risk of disruptive intrusion into another branch, and potential "special factors" not considered in prior Bivens cases. Id. at 139-40.

If (and only if) the context is new, the Court proceeds to the second step: whether there are "'special factors' indicating that the Judiciary is at least arguably less equipped than Congress to 'weigh the costs and benefits of allowing a damages action to proceed.'" Egbert, 596 U.S. at 492 (quoting Abbasi, 582 U.S. at 136). The answer at step two, this Court has clarified, will almost always be that Congress is better equipped to determine whether a plaintiff has a private right of action. See id. at 491-92.

2. Legislative developments since Carlson

In 1988, Congress enacted the Federal Employees Liability Reform and Tort Compensation Act of 1988 (Westfall Act), Pub. L. No. 100-694, 102 Stat. 4563. The Act generally makes the FTCA remedy "exclusive" for common-law tort claims arising within the scope of federal employment. 28 U.S.C. 2679(b)(1) and (d)(1). But that preemption "does not extend or apply" to a civil action against a federal employee "brought for a violation of the Constitution." 28 U.S.C. 2679(b)(2)(A). The Court has since described this provision as "[t]he Westfall Act's explicit exception for Bivens claims." Hui v. Castaneda, 559 U.S. 799, 807 (2010).

Then, in 1996, Congress passed the PLRA, Pub. L. No. 104-134, 110 Stat. 1321-66. Responding to this Court's decision in McCarthy v. Madigan holding that Carlson plaintiffs need not exhaust administrative remedies, 503 U.S. 140, 156 (1992), the PLRA provides that "[n]o action shall be brought with respect to prison conditions under section 1983 of this title, or any other Federal law," until "such administrative remedies as are [*9] available are exhausted." 42 U.S.C. 1997e(a). The Court has confirmed this provision applies to Bivens actions. See Porter v. Nussle, 534 U.S. 516, 524 (2002). The PLRA also provides that "[n]o Federal civil action may be brought" by a prisoner "for mental or emotional injury suffered while in custody without a prior showing of physical injury." 42 U.S.C. 1997e(e).

↑ **B. Factual Background**

[1]On July 12, 2021, while incarcerated at Federal Detention Center (FDC) Honolulu, respondent Kekai Watanabe was "brutally assaulted" by a group of inmates using an improvised weapon known as a "lock in a sock." Pet. App. 2a-4a, 21a, 25a, 42a, 57a (quotation marks omitted). Federal prison officials documented his "known and visible injuries," and Watanabe was sent to a solitary confinement unit. Id. at 4a. He remained there for more than two months. Ibid.

On the evening of the attack, Watanabe asked to see medical staff and reported "severe pain and headaches" to two correctional officers. Id. at 4a, 25a, 42a. Several days later, Watanabe was seen by petitioner Francis Nielsen, a staff nurse at FDC Honolulu. Id. at 4a. Watanabe informed Nielsen that he was "experiencing severe back pain," rating that pain as a "10" on a tenpoint scale. Ibid. When Watanabe requested treatment at a hospital, Nielsen refused, telling him, "[y]ou are not going to" the hospital and to "stop being a cry baby." Ibid.

[*10] Watanabe repeatedly requested medical attention and filed grievances through administrative channels. Id. at 4a, 26a, 43a. During his more than two months in solitary confinement and beyond, Watanabe was not taken to a hospital or examined by a specialist; he received only intermittent and short-term treatment for pain, often over-the-counter medication. Id. at 2a, 4a, 26a, 43a.

In February 2022, roughly seven months after the injury, an x-ray revealed that Watanabe had a fractured coccyx and that bone chips had migrated into the surrounding soft tissue. Id. at 4a. Although prison officials agreed to allow Watanabe to receive treatment from a specialist, that never happened. Id. at 4a & n.3. Watanabe was released from federal custody in 2024. He remains in tremendous pain today.

↑ **C. Procedural History**

Watanabe commenced this suit pro se in the United States District Court for the District of Hawaii on March 31, 2022, seeking monetary damages and injunctive relief against Nielsen and other officials for violation of his Eighth Amendment rights. Pet. App. 5a, 42a-43a. The district court granted Nielsen's motion to dismiss, holding that Watanabe lacked a cause of action under Carlson because his claim purportedly arose in a new context. Id. at 24a-39a.

The Ninth Circuit reversed and remanded. Id. at 7a, 17a. The panel held at step one that the claim does not present a new context because it does not meaningfully differ from Carlson. Id. at 8a-16a. Applying the "non-exhaustive" considerations identified in Abbasi, the panel found Watanabe's claim mirrors the claim in Carlson in every material respect. Id. at 8a-10a (citation omitted). The panel rejected the district court's finding that the [*11] "nature and severity" of Watanabe's claim meaningfully differed from Carlson. Id. at 10a-14a. Noting that Watanabe alleged a failure to respond to a "serious medical need" for seven months, resulting in "extreme pain," the panel held that "[a] plaintiff need not suffer death or a life-threatening injury" to fall within Carlson. Id. at 13a-14a. The panel also held that the ARP "does not render this case a new context." Id. at 14a-15a.

The Ninth Circuit denied panel rehearing and rehearing en banc. Id. at 77a.

[1]Because this case arises on a motion to dismiss a pro se complaint, the facts alleged in the complaint are assumed to be true and construed liberally in Watanabe's favor. See Erickson v. Pardus, 551 U.S. 89, 94 (2007) (per curiam).

↑ **Summary of Argument.** I. Watanabe's claim arises in the same context as Carlson: It is a damages action against a federal prison officer who was deliberately indifferent to a federal prisoner's serious medical needs in violation of the Eighth Amendment. Watanabe suffered a broken bone, reported his extreme (ten out of ten) pain to a federal prison officer (Nielsen), was deliberately denied medical care for his condition for months, and endured needless suffering as a result. The claim in Carlson concerned the same kind of violation of the same constitutional right by the same kind of defendant in the same kind of federal institution under the same legal framework. Differences in the precise medical condition—inherent in any case—do not create a new context for application of Carlson. They are case-specific, factual variations to which that settled rule applies.

Nielsen and the United States resist this conclusion by raising a series of "new context" arguments. But every factor they identify was present in Carlson, is not "meaningful[ly]" different from the facts at issue in Carlson, or has been considered and weighed by Congress. Indeed, Nielsen and the government largely overlook that Congress has actively legislated to preserve [*12] and define Carlson claims, through the Westfall Act and the PLRA. Nielsen's arguments, if accepted, would subvert Congress's policy choices and thus undermine, rather than advance, the separation of powers.

Nielsen argues that this case is different because Watanabe survived while the victim in Carlson did not. But the Court recognized a survivorship claim in Carlson only after determining that the decedent would have had a claim had he survived. And in response to McCarthy, Congress determined in the PLRA that Carlson plaintiffs must first exhaust administrative remedies (an impossibility for deceased prisoners) and that only physical injury, not death, is required for a prisoner to recover most damages. Nielsen likewise asserts that it is not "damages or nothing" for Watanabe, but that is incorrect—damages are the only remedy Watanabe has for his past pain and suffering.

Nielsen next offers several statutes and regulations, including the ARP, that he says render the context new. But the ARP is not new—it was in place years before Carlson. And neither the ARP nor any of the statutes Nielsen cites alters Carlson's analysis of alternative remedies. Moreover, Congress in the PLRA specifically considered the interplay between Carlson and the ARP, determining that the ARP should be a prerequisite to a Carlson claim, not a complete bar.

II. What Nielsen and the United States really seek is the end of Carlson, reducing those claims to a "null set." But they fail to justify that request under stare decisis.

Congress could have overruled Carlson at any time—and it in fact has abrogated Davis and has limited Carlson. But Congress has elected not to overrule Carlson. To the contrary, through legislation that "touch[es] upon the implied right of action"—the Westfall Act and [*13] the PLRA—Congress has "ratified the implied right of action after the Court moved away from a broad willingness to imply private rights of action." Stoneridge Inv. Partners, LLC v. Sci.-Atlanta, Inc., 552 U.S. 148, 164 (2008). It would therefore upset Congress's judgment to subsequently overrule the precedent that provides the foundation for that legislation.

The traditional stare decisis framework confirms as much. Carlson was not egregiously wrong. Claims against jailers for breach of their duty to provide for the necessities of life have a long common-law tradition. This Court has also long recognized that federal common law still exists within certain, discrete federal enclaves. The damages liability of a federal officer in a federally operated facility for violating duties arising out of a federal conviction at least arguably fits within such an enclave. The reliance interests here also are significant, because overruling Carlson would alter the premise for Congress's subsequent actions. Finally, Carlson has not proven unworkable, and overruling it would eliminate a longstanding remedy for and deterrent against the deliberate imposition of unnecessary suffering on prisoners wholly dependent on federal officers.

This Court should affirm.

Argument.

I. Watanabe's Claim Arises In The Same Context As Carlson

Even as this Court has "consistently refused to extend Bivens liability to any new context," Malesko, 534 U.S. at 68, it has reaffirmed that Bivens and Carlson remain settled law within their respective contexts, Abbasi, 582 U.S. at 134; Egbert, 596 U.S. at 490-92; Goldey, [*14] 606 U.S. at 944-45. Watanabe's claim arises in that con-

A. Watanabe's Claim Tracks Carlson In Every Material Respect

This Court in Abbasi articulated "[t]he proper test for determining whether a case presents a new Bivens context." 582 U.S. at 139. "If the case is different in a meaningful way from previous Bivens cases decided by this Court, then the context is new." Ibid. The Court has never exhaustively identified the factors that may give rise to a new context, but it identified several potentially relevant differences in Abbasi, including "the constitutional right at issue" and "the extent of judicial guidance as to how an officer should respond." Id. at 140.

With respect to Carlson specifically, this Court has found a difference "meaningful" where a claim involved different rights, different defendants, or new political ramifications. For example, a Carlson claim does not lie when it would entail "an inquiry into sensitive issues of national security." Id. at 142, 147-49. Nor can a claim be brought against a privately operated prison or its employees. Malesko, 534 U.S. at 71-72; Minneci v. Pollard, 565 U.S. 118, 120 (2012). And entirely different types of Eighth Amendment claims, such as ones based on excessive force, also fall outside Carlson's medical-treatment context. See Goldey, 606 U.S. at 943-44.

Watanabe's claim arises in the same context as Carlson. Watanabe was a federal prisoner in a federally operated prison, experienced a serious medical injury (fractured bone with fragments that ultimately migrated into his tissue), was subjected to extreme pain because of a nurse-level officer's deliberate indifference, and seeks damages for that violation of his Eighth [*15] Amendment rights. The case thus involves the same officer rank; the same constitutional right; the same specificity of the official action; the same extent of judicial guidance; and the same (or less) risk of disruptive intrusion. Abbasi, 582 U.S. at 139-40. There are no national security issues, cf. Egbert, 596 U.S. at 494-96; Hernandez, 589 U.S. at 107-09; Abbasi, 582 U.S. at 142-43, and the defendant is a federal officer, not a privately-run prison or employee thereof, cf. Minneci, 565 U.S. at 120; Malesko, 534 U.S. at 63.

Watanabe's claim also comports with how this Court has repeatedly described Carlson's scope. In Carlson, the Court described the claim as involving federal prison officials who were "deliberately indifferent to [a prisoner's] serious medical needs." 446 U.S. at 16 n.1. In Abbasi, the Court likewise characterized Carlson as "allow[ing] a Bivens claim for prisoner mistreatment—specifically, for failure to provide medical care." 582 U.S. at 147. In Egbert, the Court described Carlson as recognizing a cause of action "for a federal prisoner's inadequatecare claim under the Eighth Amendment." 596 U.S. at 490-91. In Minneci, the Court described Carlson as permitting recovery from "personnel employed by the government" for Eighth Amendment violations involving inadequate medical care. 565 U.S. at 126; see also Malesko, 534 U.S. at 72 (when "a federal prisoner in a BOP facility alleges a constitutional deprivation, he may bring a Bivens claim against the offending individual officer"). And in McCarthy, the Court described the claim as asserting that federal prison officials "had violated [a prisoner's] constitutional rights under the Eighth Amendment by their deliberate indifference to his needs and medical condition." 503 U.S. at 142. This case arises in that same context.

[*16] This Court's past description of Carlson's scope is especially material because Congress has twice legislated in response to Carlson. In the Westfall Act, Congress preempted essentially all state tort suits for money damages against federal officers for conduct undertaken in their official capacity and made FTCA claims against the United States the exclusive damages remedies for such torts. See 28 U.S.C. 2679(b). But Congress was careful to carve out actions "brought for a violation of the Constitution of the United States." 28 U.S.C. 2679(b)(2)(A). This Court has understood that provision as "[t]he Westfall Act's explicit exception for Bivens claims." Hui, 559 U.S. at 807.

Congress further built around Carlson and its progeny specifically, through the PLRA. In McCarthy, the Court held that a federal prisoner pursuing a Carlson claim for deliberate indifference to a serious medical condition need not exhaust administrative remedies (i.e., the ARP) before filing a claim in federal court. 503 U.S. at 156. After concluding that no existing exhaustion statute applied, the Court found no "special factors" that would require exhaustion of the ARP before pursuing a Carlson claim. Id. at 151-52.

Congress thereafter enacted the PLRA, which abrogated McCarthy and now requires all prisoners (state or federal) to exhaust "such administrative remedies as are available" before any action may be brought "under section 1983 … or any other Federal law." 42 U.S.C. 1997e(a). As this Court has recognized, that is properly understood as a response to McCarthy. See Booth v. Churner, 532 U.S. 731, 739-41 (2001) ("[T]he fair inference to be drawn is that Congress meant to preclude the McCarthy result."); Nussle, 534 U.S. at 527-28. In the PLRA, Congress also limited the availability of mental [*17] or emotional damages to those circumstances in which a prisoner also suffers physical injury. 42 U.S.C. 1997e(e).

The Westfall Act and the PLRA together represent Congress's measured judgment about the existence and boundaries of Carlson claims. Nielsen urges that Congress is best positioned to "balanc[e]" the costs and benefits of a damages action. See Pet. Br. 22, 31, 41. The United States echoes that "Congress possesses the authority and competence to balance the benefits of a damages remedy against the risk of abusive litigation." U.S. Br. 14. But Congress has exercised that authority and indicated its view that Carlson claims remain available within their existing context, subject to the procedural and substantive limitations defined in the PLRA.

Nielsen cites this Court's observation in Hernandez that the Westfall Act merely "left Bivens where it found it." 589 U.S. at 111 n.9; Pet. Br. 46-47. Exactly so. And Congress did not, in 1988, find Bivens (and Carlson) as a "null set." U.S. Br. 25. Rather, when Congress passed the Westfall Act, this Court had repeatedly described Carlson as allowing a claim "under the Eighth Amendment's proscription against cruel and unusual punishment." United States v. Stanley, 483 U.S. 669, 678 (1987); Schweiker v. Chilicky, 487 U.S. 412, 421 (1988) (action permitted "under … the Cruel and Unusual Punishments Clause"). For purposes of the new context analysis, the passage of the Westfall Act confirms Congress's view that Carlson claims should continue to exist in their original context. This case arises in that context.

B. There Is No New Context

In response, Nielsen and the government point to a combination of factors that (1) existed in Carlson, (2) are not "meaningful[ly]" different from those analyzed in [*18] Carlson, and/or (3) have since been considered and legislated on by Congress.

1. Differences in the severity, timing, and outcome of a medical episode do not give rise to a new context

Purported differences in the "nature, severity, and immediacy" between this case and Carlson do not give rise to a new context. See Pet. Br. 24.

a. Nielsen does not dispute that Watanabe has alleged a serious medical injury but argues this case presents a new context because Watanabe, unlike the prisoner in Carlson, survived the violation of his Eighth Amendment rights. See Pet. Br. 27-29. Carlson forecloses that argument, as do the Eighth Amendment and Congress's policy judgments in the PLRA.

Carlson addressed two distinct, but related, issues. First, the Court determined that a federal prisoner whose Eighth Amendment rights are violated through deliberate indifference to a serious medical need may assert a damages claim for relief against the responsible officer. Carlson, 446 U.S. at 16-23. Second, the Court determined that the decedent's estate could assert that claim under a federal common-law rule of survivorship. Id. at 23-25.

The Court's conclusion that the estate could assert a survivorship claim necessarily depended on the first holding that the decedent had a cause of action before his death. That is because a survivorship claim is "wholly derivative" of the decedent's own claim—if the victim would not have had a claim had he survived, then the estate has no survivorship claim. Restatement (Third) of Torts § 71 (A.L.I., Tentative Draft No. 3, 2024); see also Mich. Cent. R.R. Co. v. Vreeland,

227 U.S. 59, 67-68 (1913) (survival statutes preserve "the [*19] right of action which the injured person might have prosecuted if he had survived").

Carlson therefore forecloses distinguishing claims based on death or survival. "[I]t is not only the result but also those portions of the opinion necessary to that result by which we are bound." Seminole Tribe of Fla. v. Florida, 517 U.S. 44, 67 (1996). And "necessary to [the] result" in Carlson was the conclusion that the decedent, had he survived, would have had a cause of action. Indeed, the Court stated clearly that "the question whether respondent's action survived Jones' death is a question of federal law." Carlson, 446 U.S. at 18 (emphasis added).

Nielsen's proposed rule also is inconsistent with how this Court has since interpreted Carlson. The Court held in Davis that "[w]hether petitioner has asserted a cause of action . . . depends not on the quality or extent of her injury, but on whether the class of litigants of which petitioner is a member may use the courts to enforce the right at issue." Davis, 442 U.S. at 239 n.18 (emphasis added). In Abbasi, the Court observed that the plaintiffs' injuries there—which did not result in death—were "just as compelling as those at issue in Carlson." 582 U.S. at 147. And the Court has described Carlson as giving the prisoner—not his estate—a cause of action for damages. See Malesko, 534 U.S. at 72 ("If a federal prisoner in a BOP facility alleges a constitutional deprivation, he may bring a Bivens claim against the offending individual officer."). Nielsen's contention that "death is different" conflicts with that precedent.

Congress has affirmed this understanding of Carlson. In the PLRA, Congress responded to McCarthy by requiring exhaustion of administrative remedies like [*20] the ARP before pursuing a Carlson claim. Congress necessarily contemplated that living prisoners like McCarthy would be pursuing those claims: The PLRA applies only to actions brought by a prisoner, 42 U.S.C. 1997e(a), and only living prisoners or ex-prisoners can use the ARP. Congress also defined the types of injuries for which a prisoner may recover damages—prisoners may not recover damages for an emotional or mental injury absent an underlying physical injury. 42 U.S.C. 1997e(e). It could have instead drawn the line between surviving and deceased plaintiffs—but it did not, even though it was responding to a Carlson case in which the plaintiff was alive.

Nielsen and the United States cite various statutes in which Congress has provided for remedies when death results. See Pet. Br. 27-28; U.S. Br. 23 & n.1. But most of those statutes only enhance the remedy available if death ensues—they do not make the existence of a remedy dependent on death. See, e.g., 5 U.S.C. 8102 and 8102a; 33 U.S.C. 908 and 909. Nielsen and the United States identify no statute in which there is a substantive violation but no damages unless death occurs. Cf. 46 U.S.C. 30302 (Death on the High Seas Act imposing both liability and damages only for death). In any event, if Congress wanted to choose death as the dividing line for Carlson claims, it could have done so in the PLRA—it did not.

Finally, Nielsen's distinction is fundamentally backward as a matter of Eighth Amendment law. The Eighth Amendment does not protect against death itself—it protects against "tortures and barbarous punishments" that intensify punishment "with a (cruel) superaddition of terror, pain, or disgrace." Bucklew v. [*21] Precythe, 587 U.S. 119, 131, 133 (2019) (alteration, citations, and quotation marks omitted). It is the suffering, not death itself, that violates the Eighth Amendment. Correspondingly, damages in a survivorship claim are available only for the suffering incurred up to the point of death. See 1 Jacob A. Stein, Stein on Personal Injury Damages § 3:53 (3d ed. 2026). That accords with the traditional rule that "by the common law no civil action lies for an injury which results in death." Mobile Life Ins. Co. v. Brame, 95 U.S. 754, 756 (1877). If anything, Nielsen's rule inverts the Eighth Amendment (and the common law) by imposing liability on officers who (through their deliberate indifference) cause a painful but quick death, while absolving those who deliberately prolong suffering.

b. Nielsen also argues that Watanabe's case arises in a new context because it is not "damages or nothing" for him and he did not suffer an "acute and fatal medical emergency." Pet. Br. 25-27. Those arguments fail on both the law and the facts.

Only damages can compensate for past pain and suffering—the crux of a Carlson claim. See Carlson, 446 U.S. at 20-21. "The sole function of an … injunction is to forestall future violations"; that remedy is "unrelated to … reparations" for the past pain and suffering caused by the violation of Eighth Amendment rights. See United States v. Or. State Med. Soc'y, 343 U.S. 326, 333 (1952). In Abbasi, the Court distinguished between cases that involved "individual instances of discrimination or law enforcement overreach, which due to their very nature are difficult to address except by way of damages actions after the fact," and cases challenging "large-scale policy decisions" that affect "hundreds of [*22] prisoners" and are more effectively addressed by injunctive relief. 582 U.S. at 144. Neither in Carlson nor any other decision has the Court indicated that a Carlson remedy is available only if the plaintiff could not also or alternatively seek injunctive relief.

Congress endorsed this view in the PLRA. There, Congress set strict limits on the type and scope of injunctive relief courts could afford prisoners. 18 U.S.C. 3626(a)(1)-(3). And it separately limited the circumstances in which a prisoner may recover for emotional or mental injury. 42 U.S.C. 1997e(e). But nowhere did it suggest that the availability of injunctive relief acts as a bar against damages—the PLRA contemplates both forms of relief. And the PLRA did not alter the traditional rule that injunctive relief is the exception, available only where there is no adequate remedy at law. See eBay Inc. v. MercExchange, LLC, 547 U.S. 388, 391 (2006). So long as the injury is not purely mental or emotional, a prisoner may recover damages.

Nielsen's "damages or nothing" argument also would render the PLRA's exhaustion requirement largely meaningless in the precise context in which it was intended to apply. The PLRA requires exhaustion of administrative remedies before a federal prisoner may pursue a Carlson claim, which can take months (or longer). But in fleeting emergencies, administrative remedies are not practically available and need not be exhausted. Cf. Ross v. Blake, 578 U.S. 632, 643-44, 648 (2016). Thus, under Nielsen's rule, the only viable Carlson claims are those that do not require exhaustion. That would make Congress's choice to add an administrative exhaustion requirement for Carlson claims essentially meaningless and render Congress's response [*23] to McCarthy largely moot. Indeed, the plaintiff in McCarthy himself would have no claim.

Nielsen's related argument distinguishing claims based on whether they are sufficiently "acute" additionally invites courts to make the precise kinds of policy judgments he argues are inappropriate. See Pet. Br. 22- 26. That proposed distinction reflects a policy judgment to allow a cause of action for deliberate indifference to only some (but not all) serious medical needs. And whether an injury is "acute" or "chronic" is fluid and illdefined. For example, the victim in Carlson was a "chronic asthmatic" and was denied medical treatment for days before the final episode that led to his death. See Green, 581 F.2d at 671. Likewise, a fractured coccyx, like that here, results in both immediate pain and longterm injury. See Gustav Ø. Andersen et al., Coccydynia—The Efficacy of Available Treatment Options: A Systematic Review, 12 Glob. Spine J. 1611, 1612 (2022). A court is ill-equipped at the pleading stage to categorize these injuries as "acute" or "chronic." And once again, Congress has not required an acute injury; it simply requires physical injury. The severity of the injury goes to the merits, not the existence of a cause of action.

Finally, it is, for all intents and purposes, "damages or nothing" for Watanabe. Watanabe was kept in solitary confinement for two months following the injury. Watanabe eventually did pursue an administrative remedy and did seek injunctive relief. But those requests were stalled for years, and Watanabe has now been released from federal custody. Thus, for Watanabe, it is damages or nothing—if his case is dismissed, he has no redress for his past suffering, and he cannot get an injunction because he was released. That is not unusual [*24] in the Carlson context—federal prisoners are often transferred or released before the administrative or judicial process is complete. See, e.g., Joseph Shapiro & Christie Thompson, 'Rejected': How Federal Prisons Stonewall Grievances and Deny Care for Years, NPR (June 17, 2026), https://www.wlrn.org/npr-breakingnews/2026-06-17/rejected-how-federal-prisons-stonewall-grievances-and-deny-care-for-years (describing long resolution time for administrative grievances).

2. The ARP and other remedies do not distinguish this case from Carlson

Nielsen additionally contends that various alternative statutory or regulatory schemes—primarily the ARP—give rise to a new context here. See Pet. Br. 32- 38. They do not.

a. Nielsen relies first on the ARP, a four-step administrative grievance scheme that governs federal prisons. See Pet. Br. 10, 32-33. For several reasons, the ARP does not create a new context.

First, the ARP grievance procedure was in place at the time of Carlson and thus is not even a "difference." Nielsen argues that the ARP was not adopted until 1979, after the underlying injury in Carlson. See id. at 38; see also U.S. Br. 17 (asserting the BOP "created its [ARP]" in "1979"). That is incorrect: The BOP—under the leadership of Norman Carlson, a named defendant in Carlson—created its administrative remedy procedure in 1974, with substantially the same four-step process that exists today. See U.S. Dep't of Just., Bureau of Prisons, Policy Statement No. 2001.6A (Oct. 18, 1974). In 1976, Chief Justice Burger praised Carlson for developing "simple, workable internal procedures to deal with prisoner complaints." Chief Justice Burger Issues Year[-]end Report, 62 A.B.A.J. 189-90 (Feb. 1976).

[*25] In 1979, the BOP formally codified its existing policy as part of a broader project to publicize the policies "presently contained in Policy Statements and Operations Memoranda." 42 Fed. Reg. 26,334 (May 23, 1977); see also 42 Fed. Reg. 64,082 (Dec. 21, 1977) (notice of proposed rulemaking for the "third installment" of that effort, including the ARP). That codification did not alter the substance of the ARP, which already existed and was well known. And regardless whether the victim in Carlson or his family could actually have used the ARP, what matters for Bivens is the existence of the remedy for this type of claim, irrespective of its effectiveness or availability to any particular plaintiff. See Goldey, 606 U.S. at 944-45; Egbert, 596 U.S. at 493.

Second, the Court's decision in Carlson necessarily forecloses relying on the ARP as a new factor. In Carlson, the Court discussed the availability of alternative remedies, including the FTCA, to determine whether the plaintiff had an implied private right of action. 446 U.S. at 19-23. The Court concluded the FTCA does not foreclose a constitutional claim for damages, including because the statute does not provide for liability against individual officers, does not allow for punitive damages, and does not allow for a jury trial. Ibid. That same analysis applies to the ARP, which has the same shortcomings as the FTCA and does not allow for damages. Indeed, when Congress enacted the Westfall Act, the ARP did not allow for tort claims. 28 C.F.R. 542.12 (1987). And today, the ARP directs the BOP to "refer the inmate to the appropriate statutorily-mandated procedures"— namely, the FTCA. 28 C.F.R. 542.10(c). The ARP therefore channels those claims into the very statutory scheme that Carlson analyzed and found insufficient.

[*26] Relying on Egbert, Nielsen argues that Carlson's FTCA analysis "carries little weight" under the Court's current approach. Pet. Br. 38-39 (quoting Egbert, 596 U.S. at 500-01). But that misses the point. Watanabe does not seek to extend Carlson's analysis to a new context, because the Court's analysis in Carlson regarding the FTCA necessarily subsumes the lesser remedy of the ARP and forecloses the arguments Nielsen now raises.

This Court's decisions have also implicitly rejected the notion that the ARP creates a new context. In Malesko, the Court expressly acknowledged the ARP as a remedial mechanism available to federal prisoners, 534 U.S. at 74, but also reaffirmed that a prisoner in a BOP facility may sue the offending officer under Carlson, id. at 72. In Abbasi, the Court found a new context based on profound differences involving confinement of noncitizens in the national security context, without so much as mentioning the ARP as a distinguishing factor. 582 U.S. at 140. And in Goldey, the Court considered the ARP only at step two, after concluding that the excessive-force claim there arose in a new context. 606 U.S. at 944. The analysis in those cases would be superfluous, incorrect, or both if Nielsen were correct.

Third, Nielsen's argument would subvert Congress's policy choices. When Congress passed the Westfall Act in 1988, it was legislating in light of the analysis in Carlson, which concluded that alternative remedies like the FTCA did not displace a constitutional claim. Congress thus would not have reasonably expected that the Court would deem the ARP—already in place at the time of Carlson—as prohibitive of a Carlson claim.

Later, Congress itself addressed the ARP directly in the PLRA. Responding to McCarthy, Congress made the [*27] ARP a prerequisite to a Carlson claim rather than a substitute. 42 U.S.C. 1997e(a). Congress therefore has already defined the role the ARP plays vis-à-vis Carlson claims and determined it does not bar such claims. Foreclosing Carlson claims on the basis of the ARP would upend Congress's judgment in the PLRA about the significance of the ARP in this exact species of prisoner claims.

b. Nielsen next invokes the PLRA as a new context, see Pet. Br. 33, but the PLRA supports, rather than refutes, the existence of a cognizable Carlson claim here. As Nielsen acknowledges, "the PLRA gave Congress 'specific occasion to consider the matter of prisoner abuse and to consider the proper way to remedy those wrongs.'" Ibid. (quoting Abbasi, 582 U.S. at 148); see also U.S. Br. 16 (similar). And one of Congress's express goals was to curb the maintenance of "frivolous" or "malicious" prisoner claims. 42 U.S.C. 1997e(c); see also Nussle, 534 U.S. at 524 (PLRA was passed with the intent "to reduce the quantity and improve the quality of prisoner suits"). Yet rather than eliminate Carlson claims altogether—a path it largely followed with Davis and that surely would have reduced the risk of frivolous or malicious claims—Congress chose instead to define the procedural and substantive limits of Carlson claims.

Nielsen points to the omission of an express damages cause of action in the PLRA. Pet. Br. 33. But Congress had no need to create a Carlson cause of action in the PLRA, because it already existed. See Abbasi, 582 U.S. at 148-49; McCarthy, 503 U.S. at 151. Congress likewise had no need to create a cause of action for injunctive relief—which the Court has long recognized—yet the United States cites the PLRA as implicitly codifying such a right. U.S. Br. 18. Instead, Congress legislated in [*28] reliance on Carlson, operating on the assumption that such claims existed, but modifying the procedural and substantive limitations on those claims. Treating the PLRA as a new context would defeat Congress's careful work.

c. Finally, Nielsen and the United States offer a handful of disparate statutes they say create a new context. See Pet. Br. 34-35; U.S. Br. 15-17. But those statutes are far afield.

The USA PATRIOT Act is a national-security statute that generally directs a designated DOJ official to receive and review civil rights complaints against government officials. Pub. L. No. 107-56, § 1001, 115 Stat. 391 (2001). The Prison Rape Elimination Act seeks to "increase the accountability of prison officials who fail to detect, prevent, reduce and punish prison rape." 34 U.S.C. 30302(6). The statute cites Farmer v. Brennan, 511 U.S. 825 (1994)—a Carlson case—with approval. See Pub. L. No. 108-79, § 2(13), 117 Stat. 973 (2003). Neither statute concerns prisoner claims for deliberate indifference to a serious medical condition. And the Federal Prison Oversight Act was enacted after Watanabe's assault, provides no damages remedies, and is not operative unless Congress provides funding—which it has not. See Pub. L. No. 118-71, § 2(b), 138 Stat. 1501 (2024); U.S. Br. 16-17; Pet. Br. 34-35 & n.13. The Act specifies that none of its oversight mechanisms "shall be construed as a necessary administrative remedy required for exhaustion under" the PLRA. § 2(a), 138 Stat. 1501.

Most crucially, in no respect do any of these statutes undermine or alter Congress's judgment in the Westfall Act or the PLRA that Carlson claims remain cognizable within their own sphere. The government cites this Court's statement in Goldey that "Congress has actively [*29] legislated in the area of prisoner litigation but has not enacted a statutory cause of action for money damages." 606 U.S. at 944; U.S. Br. 17. But that statement was made in the context of a claim for excessive force. The Court had no occasion to consider the existing cause of action for deliberate indifference to a serious medical need.

C. Nielsen's Rule Would Effectively Overrule Carlson

Ultimately, Nielsen and the United States do not seek to limit Carlson to its context, but rather to eliminate the Carlson remedy while purporting to retain the precedent in name only. They each invoke this Court's statement in Abbasi that "a case can present a new context . . . if there are potential special factors that were not considered in previous Bivens cases." 582 U.S. at 148. They contend that a case arises in a new context if it involves a factor the Court did not specifically "consider" in the Bivens trilogy—even if the factor was present in the cases, was analyzed in the cases, or has

subsequently been addressed by Congress. See, e.g., Pet. Br. 18-19, 24, 32-35; U.S. Br. 15. As the United States concedes, this approach would render Carlson cases a "null set." U.S. Br. 24-25.

This application of the two-step framework would effectively overrule Carlson and thereby contravene Congress's judgment in the Westfall Act to allow constitutional claims against federal officers within their existing context, notwithstanding the elimination of preexisting state common-law claims. It would transform that statute from one that channels constitutional claims through federal law into one that extinguishes those claims altogether. Likewise, redefining the two-step framework to eliminate all possible Carlson claims [*30] would disrupt the infrastructure for Carlson claims established through the PLRA.

That understanding of the Westfall Act and the PLRA fully comports with Abbasi. Materially different facts may lead to different outcomes. See, e.g., Cohens v. Virginia, 19 U.S. (6 Wheat.) 264, 399-400 (1821) (controlling portion of the opinion is that which resolves "[t]he question actually before the Court"). That is what happened in Abbasi—the Court distinguished the case before it from Carlson on the ground that the case entailed a "different constitutional right" with "less developed" "guidance available to" the defendants. Abbasi, 582 U.S. at 148. It did not permit parties to avoid binding precedent simply by coming up with an argument a previous litigant did not raise or by identifying an immaterial factual difference.

Indeed, to read Abbasi as Nielsen and the United States propose would render Abbasi internally incoherent. See Holland v. Jackson, 542 U.S. 649, 654 (2004) (per curiam) (rejecting a reading of a judicial opinion that "would needlessly create internal inconsistency in the opinion"). That is because even while the Court in Abbasi determined that the claims before it raised a new context, 582 U.S. at 147, it also reaffirmed that Carlson (and Bivens) remain good law within their respective spheres, id. at 131, 134. But if any new argument not expressly discussed in Carlson gives rise to a new context, then every case is a new context—including the exact facts of Carlson—and Carlson in fact is not good law. Put otherwise, Nielsen and the United States purport to apply Abbasi at the same time they imply Abbasi was wrong to suggest any Bivens claims remain. That is an untenable reading of the precedent.

[*31] The extreme consequences of Nielsen's and the government's approach are apparent from their attempted application of it. Nielsen argues that the ARP and the PLRA establish a new context, but both are implicated in every possible claim that could arise under Carlson. See, e.g., Carrin v. Strong, 182 F.4th 1351, 1362-63 (11th Cir. 2026) (finding a new context given the existence of the ARP notwithstanding that the inmate died from his injury). The United States urges that the fact that Watanabe was incarcerated at the time of his injury gives rise to a new context. Of course, Carlson also arose in prison—the decedent's conviction and imprisonment were the only reasons the Eighth Amendment applied at all. See Ingraham v. Wright, 430 U.S. 651, 671 n.40 (1977). And the Court did consider the effect a damages claim could have on officials' "efforts to perform their official duties." Carlson, 446 U.S. at 19. The United States' arguments are therefore no different from saying that Carlson should be overruled.

Nielsen takes this argument one step further by urging that there is now only one step in the framework and that a Carlson claim is foreclosed if there is any "'rational reason to think' Congress might be better suited" to create a damages remedy—regardless of the similarities to Carlson. Pet. Br. 10 (quoting Egbert, 596 U.S. at 492). But that approach is inconsistent with the two-step framework, as it would eliminate the first step entirely, no longer requiring any difference (meaningful or otherwise) from Carlson. The Court's comment in Egbert that the two steps may sometimes resolve into one, 596 U.S. at 492, is better understood as observing that if a case implicates a meaningful, new factor at step one, then that same factor will likely foreclose extension of Carlson at step two. But the Court confirmed in Egbert [*32] that the two-step framework remains operative, id. at 494, 498-99, and it reaffirmed as much in Goldey, 606 U.S. at 944.

A decision that Carlson can never apply, even on its own facts, is no different from overruling Carlson. See, e.g., FEC v. Wisconsin Right to Life, 551 U.S. 449, 463 (2007) (it "would effectively overrule" a prior decision to make its rule "unavailable for virtually all" relevant plaintiffs). But this Court "does not normally overturn, or so dramatically limit, earlier authority sub silentio." Shalala v. Ill.

Council on Long Term Care, Inc., 529 U.S. 1, 18 (2000). Even in cases where the Court has deemed its prior precedent "so undermined" by intervening developments "that it is no longer good law," it still applied the stare decisis framework before overruling the precedent. Agostini v. Felton, 521 U.S. 203, 217-18, 235-36 (1997); see also Nat'l Republican Senatorial Comm. v. FEC, 146 S. Ct. 2404, 2424 (2026) (NRSC) ("[W]e will proceed to apply the ordinary stare decisis factors."). And unlike those other cases, this Court has repeatedly reaffirmed the continuing viability of Carlson within its defined sphere, see, e.g., Abbasi, 582 U.S. at 134 (Bivens is "settled law" with "powerful reasons to retain it."); Egbert, 596 U.S. at 491 (Court has not "dispense[d] with Bivens"). Nor have Carlson claims historically been a "null set," cf. Edwards v. Vannoy, 593 U.S. 255, 271 (2021) (overruling hypothetical exception that had never actually applied); plaintiffs have actually been pursuing Carlson claims for decades, as this Court well knows, e.g., McCarthy, 503 U.S. at 141. The Court should decline Nielsen's and the government's invitation to implicitly overrule Carlson without engaging with stare decisis. [*33]

II. The Court Should Not Overrule Carlson

Although their arguments would effectively overrule Carlson, neither Nielsen nor the United States can justify that extraordinary request. Indeed, Nielsen does not even ask to overrule Carlson: He focuses only on whether Bivens should be overruled, Pet. Br. 42-48, but as the government notes, this case is about Carlson, not Bivens, U.S. Br. 23-28.

Stare decisis carries "special force" here, where Congress could displace Carlson if it chose. See Michigan v. Bay Mills Indian Cmty., 572 U.S. 782, 799, 801-03 & n.12 (2014) (citation omitted); see also Kimble v. Marvel Ent., LLC, 576 U.S. 446, 455 (2015). Overruling Carlson would upend Congress's careful judgment about the types of remedies available to victims of constitutional violations in federal prison and result in a scheme never sanctioned or contemplated by Congress. And regardless of whether Carlson would be decided differently today, it was not "egregiously wrong." NRSC, 146 S. Ct. at 2424 (citation omitted). Carlson claims arise in a federal enclave and align with centuries of common-law precedent allowing private rights of action against jailers for mistreatment.

The Court should instead reaffirm what it has said for many years: Carlson is still good law within its own context but should not be extended further. The Court's decision in Cisco Systems, Inc. v. Doe I provides an unusually close parallel. 146 S. Ct. 1882 (2026). After rejecting any power to define new torts under the Alien Tort Statute, the Court reaffirmed that plaintiffs could still proceed under the three torts long recognized at common law. See id. at 1892 n.3. "[T]o the extent there has been reliance on the availability of those three actions, we see no need to revisit them." Ibid. "[W]e say 'this far [*34] and no further.'" Ibid. That is all the Court need do here to rebuff Nielsen's arguments.

A. Overruling Carlson Would Defy Separation of Powers and Subvert Congressional Design

In the intervening decades since Carlson, Congress has twice legislated to preserve, ratify, and provide infrastructure for Carlson claims. Overruling Carlson now would subvert Congress's intent and violate the very separation-of-powers principles Nielsen advances.

1. Congress has ratified Carlson

When Congress enacted the Westfall Act, it extinguished the traditional remedy of using state common law to hold individual federal officers liable in damages for unconstitutional conduct undertaken in the course of their duties. 28 U.S.C. 2679(b)(1). That remedy had existed all the way back to the Founding. See p. 5, supra. But Congress eliminated that remedy only on the understanding that the constitutional claims recognized in Bivens and Carlson would remain available. See 28 U.S.C. 2679(b)(2)(A); see also United States v. Smith, 499 U.S. 160, 173 (1991) (Westfall Act "preserv[ed] employee liability for Bivens actions"). The House Report explained that "the courts have identified" torts that "violat[e] … one or more fundamental rights embraced in the Constitution" as "a more serious intrusion of the rights of an individual that merits special attention," and that a "major feature" of the Westfall Act "is that the exclusive remedy expressly does not extend to socalled constitutional torts. See Bivens v. Six Unknown Agents of the Federal Bureau of Narcotics, 403 U.S. 388 (1971)." H.R. Rep. No. 100-700, 100th Cong., 2d Sess. 6 (1988).

[*35] In 1996, Congress passed the PLRA in further reliance on Carlson. As detailed above, the PLRA requires exhaustion of administrative remedies for prisoner claims, 42 U.S.C. 1997e(a), a change that was made in direct response to the decision in McCarthy. The PLRA also expressly contemplates the existence of money damages—no less so than the injunctive relief the government touts. See U.S. Br. 18-19.

2. Overruling Carlson would contravene Congress's ratification

The Court has consistently treated comparable legislative action as ratification of the underlying decision—even when that decision recognized an implied right of action that conflicts with modern jurisprudence.

a. Decades ago, the Court implied a private right of action under Section 10(b) of the Securities Exchange Act of 1934. See Blue Chip Stamps v. Manor Drug Stores, 421 U.S. 723, 730 (1975). Congress has never amended the statute to expressly provide for such a right of action, but in the Private Securities Litigation Reform Act, Congress added heightened pleading requirements and a loss causation requirement for any "private action" arising under the statute. 15 U.S.C. 78u-4(b). In Stoneridge, this Court observed that even though it is now "settled that there is an implied cause of action only if the underlying statute can be interpreted to disclose the intent to create one," the amendments by Congress plainly "touch upon the implied right of action" and therefore "ratified the implied right of action after the Court moved away from a broad willingness to imply private rights of action." 552 U.S. at 164- 65 (emphasis added).

The Court offered a similar analysis in Alexander v. Sandoval. There, the Court concluded that Congress [*36] had "ratified" the Court's creation in Cannon v. University of Chicago, 441 U.S. 677 (1979), of a private right of action to enforce Title VI of the Civil Rights Act of 1964 and Title IX of the Education Amendments of 1972. Alexander v. Sandoval, 532 U.S. 275, 280 (2001). Congress did not explicitly endorse Cannon, but the Court understood subsequent enactments—those that "abrogated States' sovereign immunity against suits brought in federal court to enforce" Titles VI and IX, for example—to "'validat[e]'" Cannon. Id. at 280 (citation omitted).

Still again, in Bay Mills, the Court declined to abrogate precedent affording Native American tribes sovereign immunity for certain commercial activity because Congress had "made an initial . . . decision to retain that form of tribal immunity." 572 U.S. at 801. But Congress had not actually codified that immunity—it simply had rejected proposed legislation modifying tribal immunity in the commercial context and "chose to enact a far more modest alternative." Id. at 802. To overrule its prior precedent following such congressional action, the Court concluded, "would replace Congress's considered judgment with our contrary opinion." Id. at 803.

Carlson is on even firmer footing. Just as it did with other implied private rights of action, Congress legislated around Carlson to define the procedural framework that governs such claims. See 42 U.S.C. 1997e. And just as it did with tribal immunity, Congress has rejected efforts to overturn Carlson, see S. 1775, 97th Cong. (1981); H.R. 7034, 97th Cong. (1982), and enacted substantive limitations on Carlson claims, see 42 U.S.C. 1997e(e), but did not eliminate those claims entirely. Congress has therefore "already reflected on an issue of" [*37] federal officer liability and "declined to change settled law." Bay Mills, 572 U.S. at 803.2

The Westfall Act goes even further: It preempts virtually all state common-law tort claims against federal employees for conduct undertaken in the scope of their duties, but Congress went out of its way to preserve Carlson claims. The exclusivity provision in the Westfall Act applies on its face to Bivens claims—to preserve Bivens claims, Congress had to take the affirmative step of excepting Bivens claims from the statutory bar that would otherwise apply. To overturn Carlson now would "replace Congress's considered judgment with [the Court's] contrary opinion." Ibid.

b. Nielsen does not address the ratification effect of the PLRA and urges only briefly that the Westfall Act left Bivens "in the hands of courts." Pet. Br. 47. That is an overstatement. Congress indeed "left Bivens where it found it," Hernandez, 589 U.S. at 111 n.9, but not by leaving its ultimate fate to the Court. At the time of the Westfall Act, Carlson claims were not a "null set," U.S. Br. 25, but rather a material and real means for prisoners to obtain monetary relief for Eighth Amendment violations. The Westfall Act represents a judgment by Congress to preserve Carlson.

That is not passive indifference—it is affirmative action ratifying this Court's decision. And the PLRA further ratifies Carlson by erecting a procedural and substantive framework.[2]

[*38] Nielsen suggests, in a footnote, that perhaps Congress has not overruled Carlson because it mistakenly believes it cannot do so. Pet. Br. 47 n.15. That is baseless. A principal question in Carlson was whether Congress had displaced a constitutional claim through the FTCA. See 446 U.S. at 19-20. Then-Justice Rehnquist, in dissent, made it a point to remind Congress that it could overrule Carlson (and Bivens). Id. at 51-53 (Rehnquist, J., dissenting). And Congress took note—it has legislated to overrule Bivens cases, in whole or in part. In 1995, Congress abrogated Davis in substantial part by creating an exclusive statutory remedy for congressional-employment rights and protections through the Congressional Accountability Act of 1995, Pub. L. No. 104-1, § 225(d)(1), 109 Stat. 22. See 2 U.S.C. 1361(d)(1). Congress knows it could overrule Carlson, but it has chosen to do the opposite.

Overruling Carlson or declaring it inapplicable in every circumstance would intrude on Congress's legislative judgment and "scale the heights of presumption." Bay Mills, 572 U.S. at 803. Whatever the foundations of Carlson, it now bears the imprimatur of Congress.

B. The Ordinary Stare Decisis Factors Favor Carlson

The ordinary stare decisis factors further justify retaining Carlson. Those factors require the Court to assess "the egregiousness of the precedent's error," "any cognizable reliance interests," and "the jurisprudential and real-world effects of the decision." NRSC, 146 S. Ct. at 2424.

1. Carlson was not egregiously wrong

Carlson would likely come out differently if decided today. But "it is not alone sufficient that [the Court] would decide a case differently now than [it] did then." [*39] Kimble, 576 U.S. at 455. "Indeed, stare decisis has consequence only to the extent it sustains incorrect decisions." Ibid. And even a "good argument" that the Court "got [it] wrong" "cannot by itself justify scrapping settled precedent." Ibid. Instead, the Court "consider[s] the egregiousness of the precedent's error." NRSC, 146 S. Ct. at 2424.

a. Whatever might be said of Bivens, Carlson was not egregiously wrong. Even after the Court eliminated general federal common law in Erie R.R. Co. v. Tompkins, 304 U.S. 64, 78 (1938), it retains common-lawmaking authority in certain limited "enclaves" where uniquely federal interests are at stake, Banco Nacional de Cuba v. Sabbatino, 376 U.S. 398, 426 (1964); see also Boyle v. United Techs. Corp., 487 U.S. 500, 504 (1988) (noting that federal courts may still formulate federal common law in certain areas implicating "uniquely federal interests" (citation omitted)). One such enclave involves "the civil liability of federal officials for actions taken in the course of their duty." Boyle, 487 U.S. at 505 & n.1 ("[T]he liability of federal officials . . . is an area of uniquely federal interest.").

Carlson claims at least arguably fall within a federal enclave. In addition to affecting "the civil liability of federal officials for actions taken in the course of their duty," id. at 505, Carlson claims concern the conduct of federal officers in a physical federal enclave. The plaintiff is in prison only because of a federal conviction before a federal court for violating a federal statute. These circumstances give rise to corollary duties: Because of the nature of prisons, "[a]n inmate must rely on prison authorities to treat his medical needs," and thus "'[i]t is but just that the public be required to care for the prisoner, [*40] who cannot by reason of the deprivation of his liberty, care for himself.'" Estelle v. Gamble, 429 U.S. 97, 103-04 (1976) (citation omitted).

This application of federal common law to apportion liability is not novel. In Boyle, the Court invoked federal common law to justify immunity for government contractors from liability for design defects. 487 U.S. at 504- 06. In Harlow v. Fitzgerald, the Court again relied on federal common law to define the qualified-immunity standard for federal officers. 457 U.S. 800, 806, 818 (1982). And even McCarthy arguably rested on federal common law regarding prudential

[2] Nielsen notes that Congress has declined to pass different bills that would create a sweeping analogue to Section 1983 for federal officers. Pet. Br. 11-12, 47. That is weak evidence of congressional intent. See Central Bank of Denver, N.A. v. First Interstate Bank of Denver, N.A., 511 U.S. 164, 187 (1994) (failed proposals "deserve little weight in the interpretive process").

exhaustion of administrative remedies for a Carlson claim. See 503 U.S. at 152-56. These uses of federal common law are no less significant than Carlson in terms of allocating liability between aggrieved individuals and federal officers.

Carlson follows a long tradition of damages claims against prison officers who violate their duties to prisoners. Anglo-American law regularly tested the legality of official conduct through damages actions against the responsible officer. See Tanzin v. Tanvir, 592 U.S. 43, 49 (2020); Little v. Barreme, 6 U.S. (2 Cranch) 170 (1804); Elliott v. Swartwout, 35 U.S. (10 Pet.) 137 (1836); Mitchell v. Harmony, 54 U.S. (13 How.) 115, 137 (1851); Buck v. Colbath, 70 U.S. (3 Wall.) 334, 344 (1865); Belknap v. Schild, 161 U.S. 10, 18 (1896). Such cases predate the Founding. See, e.g., Huckle v. Money, (1763) 95 Eng. Rep. 768 (C.P.) (action for false imprisonment).

The historical foundation for Carlson claims is especially strong, because the common law imposed on the jailer a duty to provide (or allow others to provide) a prisoner with the necessities of life. At common law, an imprisoned debtor could maintain a civil action against [*41] a gaoler, who, acting out of "[m]alice . . . keep[s] his [v]ictuals from him, by reason whereof he is so spent, that he becomes lame, or hath other [i]nfirmity." 1 Anthony Fitz-Herbert, The New Natura Brevium 212 (8th ed. 1755). Courts also recognized the availability of a civil action by a prisoner against the sheriff as supervisor of an officer who left the prisoner exposed to the cold. See, e.g., Rex v. Huggins (1730) 92 Eng. Rep. 518, 522 (K.B.) ("It has been settled, that . . . a sheriff must answer for the offences of his gaoler civilly."); cf. William Style, Narrationes Modernae 432 (London, 1658) (dismissing habeas claim for "us[ing] [the prisoner] hardly," but observing that the prisoner could "bring an [a]ction against him" at law).

After the Founding, courts in the United States adhered to that tradition, recognizing that "[i]t is the duty of all keepers of jails and prisons to treat their prisoners humanely." City of Topeka v. Boutwell, 35 P. 819, 822 (Kan. 1894). "For all needless sufferings and indignities which they impose they are accountable in damages to the party injured." Ibid.; see also Tennessee ex rel. Morris v. Nat'l Sur. Co., 39 S.W.2d 581, 583 (Tenn. 1931) (overruling demurrer to claim alleging the failure of the sheriff and deputy, "knowing [the prisoner's] urgent need of medical and surgical attention" to obtain "prompt and proper medical and surgical attention and services" (quotation marks omitted)).

Carlson is therefore best understood as an application of the Court's federal common-law power to recognize that the common law "apparently authorized prisoner lawsuits to recover damages" in this narrow context. Richardson v. McKnight, 521 U.S. 399, 407 (1997) (citing 2 C. Addison, A Treatise on the Law of Torts § 1016, pp. 224-25 (1876)). Unlike Bivens claims—which [*42] arise inside the home—Carlson claims concern the conduct of federal officers in a federal prison overseeing federal prisoners incarcerated pursuant to a federal conviction. The liability Carlson imposes flows from a long tradition of common-law causes of action in the prison context specifically. There is nothing "egregiously wrong" about using the Court's common-law authority to continue that tradition in this context.

b. Nielsen argues that Bivens (and by extension Carlson) cannot be justified as "the work of a common-law court" because of "the demise of federal general common law." Pet. Br. 44 (quoting Hernandez, 589 U.S. at 100-01). But that ignores that at least for Carlson, there is substantial basis in the law for the creation of common law in such a discrete federal enclave. The United States likewise urges that this analysis would justify all Bivens claims (which are necessarily brought against federal officers), U.S. Br. 29-30, but that overlooks the additional, unique federal dimensions of a Carlson claim, such as the existence of a federal conviction and a federally administered institution. Bivens claims, by contrast, arise in the home and concern the rights of wholly private individuals not subject to constant federal supervision or dependent on federal officials for the necessities of life.

Whether the Court today agrees with the use of federal common law to justify the creation of a Carlson action, see Pet. Br. 42-44, it was at least not "egregiously wrong" for Carlson to exercise that power in this narrow context. NRSC, 146 S. Ct. at 2424. Unlike other decisions this Court has recently repudiated, Carlson is not divorced from "text, history, or precedent." Dobbs v. Jackson

Women's Health Org., 597 U.S. 215, 270 (2022). Nor has Carlson "been difficult to make sense of from [*43] the start," creating artificial categories by "'blind feats of definition.'" Trump v. Slaughter, 146 S. Ct. 2283, 2302 (2026) (citation omitted). Even if wrong under today's jurisprudence, Carlson finds ample footing in the law.[3]

2. Reliance on Carlson is concrete and unusually weighty

The second stare decisis factor—reliance—is powerful here. As set forth above, the Westfall Act and the PLRA are best understood as ratifying Carlson, foreclosing Nielsen's and the government's arguments for overruling Carlson. But at the very least, those statutes show that Congress has relied on Carlson and its progeny, weighing heavily against overruling Carlson.

The reliance inquiry "focuses on the legitimate expectations of those who have reasonably relied on the precedent" and may account for "the age of the precedent." Ramos v. Louisiana, 590 U.S. 83, 122 (2020) (Kavanaugh, J., concurring in part). And reliance interests carry significant weight when they emanate from the legislature. See Hilton v. S.C. Pub. Rys. Comm'n, 502 U.S. 197, 202 (1991).

In Hilton, the Court declined to overrule its previous decision permitting damages actions against state agencies under the Federal Employers' Liability Act (FELA). 502 U.S. at 201-02. The Court's decision rested largely on States' legislative reliance. Ibid. The Court observed [*44] that many States had passed laws exempting certain employees from workers' compensation laws on the belief that those employees could file FELA suits against their state employers. Id. at 202-03. The Court explained that "[s]tare decisis has added force when the legislature, in the public sphere, … ha[s] acted in reliance on a previous decision," and that the Court should avoid a decision that "would … require an extensive legislative response." Id. at 202.

The circumstances here are remarkably similar to Hilton. When Congress passed the Westfall Act and eliminated state-law remedies for a constitutional violation, it did so on the understanding that Bivens and Carlson claims could continue to be brought. See H.R. Rep. No. 100-700, at 6 (1988). As in Hilton, the legislature relied on this Court's recognition of a private right of action to take away a preexisting right of action that provided the same remedy. Indeed, the legislative history confirms Congress's reliance, expressing the view that Bivens and Carlson cases concern "a more serious intrusion of the rights of an individual that merits special attention." Ibid. To eliminate Carlson claims now, decades after Congress passed the Westfall Act, would upend that reliance.

Nielsen asserts that if Congress has in fact relied on Bivens or Carlson, "'that is precisely the problem,'" because Congress has "less incentive to legislate (or an excuse not to)." Pet. Br. 47 (quoting Slaughter, 146 S. Ct. at 2303). But Congress has legislated, undertaking precisely the kind of "weigh[ing] [of] policy considerations" the Court has long said is Congress's duty. Egbert, 596 U.S. at 491. And unlike in Slaughter—where Congress had relied on the existing precedent only to arrogate power properly belonging to the Executive, see 146

[*45] S. Ct. at 2310—here, Congress had every incentive to expressly eliminate Carlson claims altogether if it had intended to do so. Instead, it preserved those claims and devised nuanced requirements for bringing them. That is legislative reliance, just like in Hilton.

3. The jurisprudential and real-world effects of Carlson favor its preservation

The final stare decisis factor—the practical and real-world consequences of overturning Carlson—also weighs in favor of retaining Carlson.

The practical effect of overruling Carlson would be stark. As this Court has recognized, prisoners are wholly dependent on prison officials for access to medical care. See Estelle, 429 U.S. at 103-04. Overruling Carlson would leave federal prisoners without a damages remedy against the responsible officer for completed constitutional injuries. Federal prisoners could be subject to cruel and prolonged agony with no remedy at all. Even Nielsen acknowledges—and history shows—that

[3] Nielsen urges that Bivens was premised on the view that "courts should create damages remedies to effectuate the perceived purposes of statutes lacking such remedies," Pet. Br. 42, but he overlooks that this Court had repudiated that view by the time Carlson was decided in 1980, see Transamerica Mortg. Advisors Inc. v. Lewis, 444 U.S. 11 (1979).

such remedies have long existed and have never before been foreclosed entirely. The judiciary would thus fail to act as an "impenetrable bulwark . . . naturally led to resist every encroachment upon [constitutionally enumerated] rights." 1 Annals of Cong. 439 (1789) (statement of Rep. James Madison).

Overruling Carlson would also have the anomalous effect of making injunctive relief the primary mechanism for enforcement of constitutional rights in prison, as Nielsen repeatedly urges. See Pet. Br. 18, 25-26, 34, 38. That is the inverse of the longstanding rule that injunctive relief is available only if "remedies available at law, such as monetary damages, are inadequate." eBay, 547 U.S. at 391; Watson v. Sutherland, 72 U.S. (5 Wall.) [*46] 74, 79 (1866) ("The absence of a plain and adequate remedy at law affords the only test of equity jurisdiction."). Several provisions of the PLRA are intended specifically to limit the injunctive relief available to prisoners, see 18 U.S.C. 3626(a)(1)(A)-(C), (a)(2) and (b)(1)-(3), reaffirming Congress's judgment that damages are the ordinary remedy. Eliminating a damages remedy to make way for injunctive relief flips equity on its head.

Nielsen contends that Bivens—and presumably Carlson—is unworkable, citing lower-court disagreements that have arisen since Egbert. Pet. Br. 45. But this Court's decision in this case will resolve those disagreements. And applying Carlson's settled context is straightforward: It provides a federal prisoner with an individual-capacity Eighth Amendment action against federal prison personnel responsible for deliberate indifference to an objectively serious medical need. See 446 U.S. at 16-17 & n.1. The standard for such claims was articulated in Estelle, 429 U.S. 97, and lower courts in both the Carlson context and the Section 1983 context have developed a robust body of law for assessing such claims. Qualified immunity and the PLRA protect officers from frivolous or burdensome litigation that could interfere with their duties. See Carlson, 446 U.S. at 19.

Finally, Nielsen argues that determining whether Carlson applies in a particular case requires the exercise of legislative judgment. Pet. Br. 31. It is not a legislative task to determine whether a case presents a "meaningful" difference from a prior one. Abbasi, 582 U.S. at 139-40. That is an ordinary judicial exercise. Applying Carlson in its existing context does not require anything other than the application of precedent called for in every case.

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[*47] This Court can and should resolve this case by following the path articulated in Cisco Systems: "[T]his far and no further." 146 S. Ct. at 1892 n.3. Watanabe's claim falls in the heartland of Carlson. And the very separation of powers principles that Nielsen and the United States invoke favor deference to Congress's legislation relying on and ratifying Carlson. The Court should affirm.

CONCLUSION

For the foregoing reasons, the judgment of the court of appeals should be affirmed.

Respectfully submitted.

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SEPTEMBER 2026

↑ **Francis Nielsen** Reply Brief · Oct. 23, 2026
Reply of petitioner Francis Nielsen filed. (Distributed)

Nielsen · Reply Brief · Oct. 23, 2026 · petitioner — coupling row J
Cites 22 cases (71 mentions), 1 citations not resolved; 4 statutes and provisions.
Shares with Pet. 17% · Br. in Opp. 12% · Cert. Reply 9% · Supplemental 0% · Supplemental 0% · Supplemental 4% · Supplemental 4% · Pet'rs Br. 27% · Resp. Br. 17%; closest: Pet'rs Br.
Its own ground: 3 cases no other filing cites; 1 shared with its own side only, 18 with the other side.
Statutes: 28 U.S.C. § 2679 ×4; 42 U.S.C. § 1997e ×4 (around Padgett); 42 U.S.C. § 1983 ×3 (Pro se pleadings and Twombly/Iqbal in prisoner suits); 46 U.S.C. § 30302.

[*1] IN THE

Supreme Court of the United States

———

NO. 25-417

FRANCIS NIELSEN,

Petitioner, v.

KEKAI WATANABE,

Respondent. ————

On Writ of Certiorari

to the United States Court of Appeals for the Ninth Circuit

———

REPLY BRIEF FOR PETITIONER

[*2] ing the Administrative Remedy Program, Prison Litigation Reform Act, PATRIOT Act, and Federal Prison Oversight Act—that militate against a judicially created damages remedy. Because Congress could think those differences are meaningful when weighing the costs and benefits of a damages remedy, only Congress can decide whether to provide that remedy; courts may not.

Watanabe's insistence that this case reflects "precisely" the same context as Carlson, Resp.Br.2, is thus untenable. He theorizes that Congress endorsed claims like his in the PLRA or Westfall Act. This Court has held the opposite: The PLRA indicates "Congress does not want a damages remedy," while the Westfall Act "simply left Bivens where it found it"—in the courts' hands. Ziglar v. Abbasi, 582 U.S. 120, 148 (2017); Hernández v. Mesa, 589 U.S. 93, 111 n.9 (2020). Neither counsels Bivens's retention, much less its extension here.

Ultimately, Watanabe's brief confirms that Bivens has earned its retirement. Watanabe admits that separation of powers forecloses extending Bivens, Davis, and Carlson. Resp.Br.4. Yet he tries to lock in their encroachments on legislative power, asking the Court to declare, "This far and no further." Resp.Br.[1]. That declaration would doom this case, which seeks to push Carlson "further." But it elides a deeper problem: Lower courts cannot agree on where "this far" ends and "further" begins, as rampant conflicts in the circuits and 13 prior cases in this Court make clear. This Court could continue trying to demarcate a "this-far-but-no-further" boundary, as it has for the past 45 years. Or it could lay Bivens and its progeny to rest, stop offering plaintiffs false hope, and return responsibility for legislating causes of action to Congress where it belongs. Either way, reversal is warranted. [*3]

[1]Watanabe gets nowhere by invoking an uncodified ARP precursor that "existed" when the inmate in Carlson died. Resp.Br.24-25. That precursor also was not available, and certainly "not considered," in Carlson. It is also waived: Watanabe's brief in opposition conceded "the ARP was not in place when the inmate in Carlson died." Br.in.Opp.15; see this Court's Rule 15.2.

↑ I. The Ninth Circuit Improperly Extended Bivens to a New Context

Watanabe concedes Bivens and Carlson cannot be extended to "any new context." Resp.Br.1. But his contention that this case presents "precisely" the same context as Carlson, Resp.Br.[2], overlooks basic principles. This Court's "understanding of a 'new context' is broad." Hernández, 589 U.S. at 102. Even "small" differences can be "meaningful" and thus present "a new Bivens context." Ziglar, 582 U.S. at 149. The "new-context inquiry" is "easily satisfied." Ibid. Watanabe mentions none of that.

More fundamentally, Watanabe fails to appreciate that the new-context inquiry requires a legislative perspective. Pet.Br.22-24. He urges it "is not a legislative task to determine whether a case presents a 'meaningful' difference from a prior one." Resp.Br.46. But recognizing a Bivens remedy is a quintessentially "legislative endeavor." Egbert, 596 U.S. at 491 (emphasis added). Courts weighing Bivens remedies must consider the full " 'range of policy considerations * * * a legislature would consider.' " Ibid. They must be mindful that "Congress is 'far more competent than the Judiciary' to weigh such policy considerations"; that "the Judiciary's authority to do so at all is, at best, uncertain"; and that, ultimately, the "only" question is "whether there is any rational reason (even one) to think that Congress is better suited to 'weigh the costs and benefits of allowing a damages action.' " Id. at 491, 496.

Consequently, a new Bivens context arises whenever a case presents any difference from Bivens, Davis, and Carlson that Congress could think meaningful as a matter of legislative policy. If a difference could affect Congress's view of a damages remedy's costs and benefits, Congress must make the choice—and courts must refrain from recognizing such a remedy themselves. Treating the [*4] inquiry like an "ordinary judicial exercise," Resp.Br.46, fails to afford "utmost deference to Congress' preeminent authority in this area," Egbert, 596 U.S. at 492.

This case differs profoundly from Carlson in immediacy and severity; risk of disruption to prison administration; and alternative remedial structures neither considered nor available in Carlson. Congress could find each of those differences meaningful.

A. Differences in Nature, Severity, and Immediacy Make This a New Context from Carlson

1. Watanabe nowhere denies that in Carlson—as in Bivens and Davis—it was "damages or nothing." Pet.Br.25. The rapidly unfolding emergency, and the inmate's resulting death, left no opportunity to seek administrative or injunctive relief. Not so here: Watanabe concedes he could and did pursue administrative and injunctive relief for the treatment he seeks. Resp.Br.23. That makes this a new context. "Damages or nothing" is foundational to Bivens. Pet.Br.25-27. Congress could readily find cases that are not "damages or nothing" meaningfully different.

Watanabe insists "damages or nothing" should be irrelevant to Carlson claims. Resp.Br.21. Congress could think otherwise. This Court has held otherwise: Ziglar (cited Resp.Br.21-22) held the plaintiffs sought "to extend Carlson to a new context" because "an injunction" or other non-damages relief might be available. 582 U.S. at 147-148.

Watanabe's contention that the PLRA "endorsed" Bivens damages where other relief is available, Resp.Br.22, lacks merit. The PLRA's failure to provide a "standalone damages remedy against federal jailers" indicates "Congress does not want a damages remedy." Ziglar, 582 U.S. at 148-149 (emphasis added); see pp. 10-11, 21-22, infra. It certainly does not support creating Bivens remedies where [*5] Bivens's own logic doesn't. Nor does the principle that injunctions are "available only where there is no adequate remedy at law," Resp.Br.22, license courts to invent damages remedies where "traditional equitable powers suffice," Ziglar, 582 U.S. at 133.

Watanabe's case is not " 'damages or nothing.' " Resp.Br.21, 23-24. Watanabe admits he could—and did—seek prospective relief through the ARP and in court. Resp.Br.23. Even if prospective relief would not remedy past harm, Resp.Br.21, it does not "matter that 'existing remedies do not provide complete relief,' " Egbert, 596 U.S. at 493. Ziglar held the possibility of "an injunction" presented "a new context" from Carlson even though the plaintiffs also alleged past pain and suffering. 582 U.S. at 128, 147-148.

[2]While Westfall viewed traditional common-law-tort immunity more narrowly, 484 U.S. at 297-298 & n.4, what matters is that Congress understood the Westfall Act as restoring preexisting immunity from common-law-tort liability, not "tak[ing] away a preexisting right of action," Resp.Br.44.

Watanabe's release from prison, Resp.Br.23, does not alter the result. Even if prospective relief (e.g., ordering the government to provide unconstitutionally denied treatment) were no longer possible—a proposition Watanabe does not try to prove—Watanabe still had years to pursue non-monetary relief. The inmate in Carlson had no such opportunity. Congress could easily think that difference meaningful.

2. Congress could also find that, even if personal damages liability were appropriate in extreme cases like Carlson where death results, cases involving less severe injuries present a different policy balance. Pet.Br.27-31.

Watanabe does not deny that Congress regularly draws such lines, singling out conduct resulting in death. Pet.Br.27-28 & n.10. He objects that "most of those statutes only enhance the remedy available if death ensues." Resp.Br.20. But Watanabe admits Congress has created a "[c]ause of action" available only in cases of "death." [*6] 46 U.S.C. § 30302 (cited Resp.Br.20). And he misses the point. Bivens is " 'solely' " about imposing enhanced " 'deterr[ence]' " beyond other deterrents like agency discipline. Egbert, 596 U.S. at 498. The cited statutes show Congress regularly finds differences in severity, including death and life-threatening injury, meaningful when setting appropriate deterrence. Here, too, Congress could conclude that enhanced deterrence should be reserved for cases involving death. Whatever line Congress might draw, "calibrat[ing]" "deterrence" is a "legislative determination that must be left to Congress, not the federal courts." Ibid.

Congress could draw from this Court's repeated observation that "death is different" because of its "severity." Gregg v. Georgia, 428 U.S. 153, 187-188 (1976) (plurality opinion). While death does not per se violate the Eighth Amendment, Resp.Br.20-21, there is a long history of imposing protections unique to cases involving death—and, more importantly, Congress could do so as a matter of policy. Pet.Br.27-28. Despite Watanabe's protestation, Resp.Br.21, that is so even if the death involves a "sudden killing" rather than "prolonged physical and mental suffering," Kennedy v. Louisiana, 554 U.S. 407, 435 (2008). The "qualitative difference between death and all other" consequences, Harmelin v. Michigan, 501 U.S. 957, 995 (1991), makes this context new.

So does the "risk of disruptive intrusion by the Judiciary into the functioning of other branches." Ziglar, 582 U.S. at 140; Pet.Br.28-29. Watanabe asserts that cases like his involve "the same (or less) risk of disruptive intrusion" as Carlson. Resp.Br.15. But Congress could find any disruption risk tolerable only in extreme cases like Carlson. And Watanabe has no answer to the heightened disruptions Nielsen identified. Pet.Br.29. Suits based on less severe incidents are far more likely to be used to [*7] harass prison staff than suits based on inmate deaths. They are vastly more common, threatening more disruption and financial impact. And fear of liability can spur costly defensive medicine—such as acquiescing to demands for hospital transfers regardless of medical necessity. Each of those "negative systemic consequences" could affect Congress's view of the relative costs and benefits of a Bivens remedy. Goldey v. Fields, 606 U.S. 942, 944 (2025) (per curiam). Watanabe addresses none of them.

This case illustrates those stakes. Watanabe complains he was not sent to a hospital or specialist for months despite multiple requests to prison administrators. Resp.Br.10. But he alleges only a single encounter with Nielsen, a line-level paramedic who (in consultation with an on-call physician) provided medication and advised follow-up treatment shortly after Watanabe was injured, while declining to send him to the hospital. Pet.Br.12-13 & n.8. For that one event, Watanabe seeks to hold Nielsen personally liable for $3 million. As Watanabe's own amici recognize, delays in specialized treatment often result from "institutional," "system-wide constraints," including staffing shortages and challenges with secure transportation. Med.Justice.Br.4, 9-13. Congress could conclude that allowing Bivens suits in such cases unacceptably exposes prison staff to individual liability for—and may interfere with—fundamentally institutional decisions. Congress could readily distinguish such cases from Carlson, where an emergency presented prison staff with a straightforward duty to try to save the inmate's life.

Nor does Carlson itself foreclose distinguishing between life and death. Resp.Br.18-19. Carlson's first sentence describes the case as involving "personal injuries from which [the inmate] died," and its "survivorship" holding simply states that death will not bar a " 'Bivens-type action [*8] brought against defendants whose conduct results in death.' " Carlson v. Green, 446 U.S. 14, 16, 23-24 (1980) (emphasis added). Watanabe invokes a supposed "first holding that the decedent had a cause of action before his death." Resp.Br.18. There is no such holding. The first question presented was whether the FTCA barred

a Bivens remedy. 446 U.S. at 16-17. And the Court declined to decide whether the complaint asserted only "the decedent's own claim" (Resp.Br.18) or also his mother's "wrongful-death" claim. 446 U.S. at 17-18 n.4. "Resolution" of that question was "irrelevant" given the Court's view that Bivens's "deterrence goals" favored a damages remedy where " 'conduct results in death.' " Id. at 18 n.4, 24-25. Carlson may have assumed the inmate would have had a claim had he lived. But assumptions are not holdings. They certainly do not foreclose Congress's recognizing a meaningful difference between life and death.

B. Special Factors Not Considered in Carlson Make the Context New

This case also implicates "special factors that previous Bivens cases did not consider"—including "alternative remedial structure[s]" and post-Carlson "legislative action." Ziglar, 582 U.S. at 137, 139-140, 148-149. That, too, renders this Bivens context "new." Pet.Br.32-39.

1. Watanabe cannot deny that this Court has identified the ARP's " 'alternative remedial structure' " as a " 'special facto[r].' " Goldey, 606 U.S. at 944. Nor does he deny the ARP was "not considered" in Carlson. Ziglar, 582 U.S. at 148. That makes the context "new." Ibid.

Invoking Carlson's conclusion that the Federal Tort Claims Act was an inadequate remedy, Watanabe urges the Court to apply the "same analysis" to the ARP. Resp.Br.25; see Pet.Br.38-39. But Bivens plaintiffs must satisfy the current "prevailing framework," including its [*9] treatment of " 'remedial mechanisms' " and " 'special factors.' " Egbert, 596 U.S. at 501. Under that framework, it is irrelevant whether alternative remedies are " 'equally effective,' " ibid. (quoting Carlson, 446 U.S. at 19)—as Watanabe elsewhere concedes, Resp.Br.25. Nor did Carlson's FTCA analysis "necessarily subsum[e] the lesser remedy of the ARP." Resp.Br.26. The ARP is not a "lesser" remedy—it is a different remedy. The FTCA allows only damages, while the ARP offers specific relief, such as medical care. Carlson said nothing about the latter remedy, which may offer "a faster and more direct route to relief than a suit for money damages." Ziglar, 582 U.S. at 145. Under the prevailing Bivens framework, the ARP makes the context new.

That the ARP "existed" at the time of Carlson, Resp.Br.24- 25, is irrelevant. Pet.Br.37-38. What matters is that it was "not considered." Ziglar, 582 U.S. at 148 (emphasis added). Watanabe does not dispute, moreover, that neither the inmate nor the plaintiff in Carlson could have used the ARP. Pet.Br.38; Pet.App.98a. Watanabe says only the remedy's "existence" matters, not its "effectiveness or availability to any particular plaintiff." Resp.Br.25. That's true enough when a remedy is considered. But it does not defeat finding a new context based on a remedy that was neither available nor considered in prior cases. Ziglar, for example, found the context "new" based on the possibility of injunctive relief. 582 U.S. at 148. Injunctions existed at the time of Carlson. Ziglar found they created a "new context" anyway, because they were "not considered" or "available" in Carlson. Ibid. Same with the ARP (and injunctive relief) here. Pet.Br.38. Watanabe has no response.1

[*10] 2. Post-Carlson legislation—the PLRA, PATRIOT Act, and Federal Prison Oversight Act—also renders the context new. Pet.Br.33-35, 38. Each statute addresses prisoner complaints, yet none provides a damages remedy. They are "legislative action suggesting that Congress does not want a damages remedy"—"a factor counseling hesitation" that both presents a new context and forecloses Bivens's extension. Ziglar, 582 U.S. at 148-149; see Goldey, 606 U.S. at 944.

Watanabe says the PLRA supports him because it does not expressly "eliminate Carlson claims." Resp.Br.27. But this Court has already held that, as post-Carlson legislation addressing prisoner suits, the PLRA renders the context "new." Ziglar, 582 U.S. at 148. Watanabe's argument isn't really that the PLRA doesn't make the context new; it is, at most, an argument that the difference in context does not counsel against extending Carlson to this new context at Bivens step two. But Watanabe has conceded his claim cannot survive at step two. Pet.Br.39. And this Court has held that the PLRA forecloses Bivens's extension at step two. Goldey, 606 U.S. at 944.

Watanabe overreads the PLRA regardless. Despite Watanabe's effort to portray it as Carlson-specific legislation, Resp.Br.27, the PLRA applies to all prisoner suits, including suits authorized by statute (e.g., 42 U.S.C. § 1983 or the Religious Freedom Restoration Act, § 2000bb-1(c)) or seeking injunctive relief. § 1997e(a). Requiring that all prisoners exhaust administrative remedies does not suggest Congress endorsed a judicially created damages claim—especially where the existence of "alternative [*11] remedial structures" itself "foreclose[s]" a claim. Egbert, 596 U.S. at 493, 497; see Ziglar, 582 U.S.

at 148-149 (discussing PLRA). Nor does the PLRA's blanket bar on emotional and mental damages absent physical injury, § 1997e(e); Resp.Br.20, suggest a damages remedy is available whenever physical injury occurs, see Goldey, 606 U.S. at 943-944.

Watanabe invokes McCarthy v. Madigan, 503 U.S. 140 (1992), Resp.Br.16, 22-23, 26-27, but does not argue it requires recognizing a Bivens remedy despite the ARP. McCarthy concerned exhaustion, not the propriety of a Bivens remedy. Cf. Egbert, 596 U.S. at 498 (explaining that articulation of requirements for First Amendment Bivens claim in Hartman v. Moore, 547 U.S. 250 (2006), was not a holding that Bivens allows First Amendment claims). In holding that Bivens plaintiffs need not pursue ARP remedies, moreover, McCarthy emphasized that doing so was not "mandated by Congress." 503 U.S. at 149. After the PLRA, it is.

Nor was McCarthy (or Congress's response) peculiar to Bivens claims. McCarthy reasoned by analogy to then-current § 1997e(a), which applied only to state prisoners and was largely discretionary. Booth v. Churner, 532 U.S. 731, 739-740 (2001) (discussing McCarthy). In the PLRA, "Congress replaced the text of the statute as construed in McCarthy" to mandate exhaustion for both state and federal prisoners, regardless of relief sought. Id. at 740. Thus, while the PLRA's exhaustion requirement would reach Bivens claims (as this Court has observed "in dicta," Ziglar, 582 U.S. at 149), it is a global requirement that applies equally to prisoners suing under § 1983 or RFRA. And, as discussed, the PLRA nowhere purports to authorize Bivens claims at all, much less ones foreclosed by this Court's current Bivens doctrine.

[*12] 3. Watanabe barely addresses PATRIOT Act § 1001 and the Federal Prison Oversight Act. He nowhere denies their "investigation" and "grievance process[es]" closely resemble those that foreclosed a Bivens remedy in Egbert. 596 U.S. at 497-498; see Pet.Br.34-35. His assertion that PATRIOT Act § 1001 does not "concer[n] prisoner claims for deliberate indifference to a serious medical condition," Resp.Br.28, is incorrect. It broadly covers alleged "abuses of civil rights" by Justice Department employees, including Bureau of Prisons staff. 115 Stat. 391, § 1001(1).

Regardless, the Oversight Act expressly addresses prisoner medical complaints. Pet.Br.34-35. That it "was not in place when [Watanabe was injured] is immaterial" by Watanabe's own admission: "The Bivens inquiry does not turn on whether an alternative remedy was available or adequate as to a particular plaintiff, but on whether 'Congress or the Executive has created a remedial process that it finds sufficient to secure an adequate level of deterrence,' as a prospective matter." Br.in.Opp.16 (quoting Egbert, 596 U.S. at 498) (emphasis altered). The Oversight Act's dependence on appropriations reinforces Congress's cautious, resource-conscious approach in this area. Pet.Br.35 n.13. That Congress provided "no damages remedies," Resp.Br.28, is precisely the point: It indicates "Congress does not want a damages remedy," and that courts should not "superimpos[e]" one themselves. Ziglar, 582 U.S. at 148-149; Egbert, 596 U.S. at 498.

4. Finding this context "new" does not "effectively overrule Carlson." Resp.Br.29-32. It respects the limits of Carlson's context under existing precedent. For example, recognizing a new context based on differences in immediacy or severity would not foreclose applying Carlson in cases that are damages or nothing, or where death results.

[*13] It may be that "the ARP and the PLRA" (and PATRIOT and Oversight Acts) are now "implicated in every possible claim that could arise under Carlson," rendering Carlson "moribund." Resp.Br.31; Gov't.Br.23-25. Acknowledging that reality does not mean Carlson doesn't apply "even on its own facts." Resp.Br.32. It means Carlson's "own facts" no longer arise because of developments Carlson did not (and largely could not) consider. That is the natural consequence of the principle that "special factors that were not considered in previous Bivens cases"—including "alternative remedies" and "legislative action"—render succeeding contexts "new." Ziglar, 582 U.S. at 148. Recognizing that has happened here is an application of precedent, not its overruling.

There are ample reasons to overrule Bivens and Carlson. Pet.Br.40-48; pp. 16-23, infra. But precedent dooms Watanabe's claim regardless.

C. Watanabe's Invocation of the Westfall Act Is Misplaced

Watanabe's theory that the Westfall Act's passage "in 1988" compels an expansive view of Carlson's "context," Resp.Br.17, is unfounded. As discussed below, pp. 19-21, infra, the Westfall Act was not a "response to Carlson" or Bivens, Resp.Br.16. It responded to "Westfall v. Erwin," 484 U.S. 292 (1988), which Congress characterized as "seriously erod[ing] the common law tort immunity previously available to Federal employees." Pub. L. No. 100- 694, 102 Stat. 4563, § 2(a)(3)-(5), (b) (1988) (emphasis added). The Westfall Act sought to restore the FTCA "as the sole means for compensating persons injured by" federal employees' "common law torts." Ibid. Congress deliberately avoided addressing Bivens claims, to which the Act " 'does not extend or apply.' " § 5 (codified at 28 U.S.C. § 2679(b)(2)(A)).

[*14] Accordingly, this Court has held that the Westfall Act "certainly does not suggest" that "Congress 'intended for a robust enforcement of Bivens remedies.' " Hernández, 589 U.S. at 111 n.9. It is "not a license to create a new Bivens remedy in a [new] context," or grounds for taking a capacious view of prior Bivens contexts. Ibid. The Act "simply left Bivens where it found it," ibid.—in the hands of this Court.

Watanabe's theory thus fails on its own terms. Carlson's context was the same in 1988 as it is today: A case where an inmate had died in emergent circumstances; it was "damages or nothing"; and the Court did not consider the ARP or succeeding legislation. By 1988, moreover, this Court had adopted its "cautiou[s]" approach "to suggestions that Bivens remedies be extended into new contexts." Schweiker v. Chilicky, 487 U.S. 412, 421 (1988). It had recognized the significance of "congressional unwillingness to provide * * * damages for unconstitutional deprivations." Id. at 426. It had emphasized the risk of "disruption" from judicial "intrusion" into other branches' operations. United States v. Stanley, 483 U.S. 669, 682- 683 (1987). And it had made clear that alternative remedial structures can bar a Bivens remedy even if they " 'do not provide complete relief ' " or are " 'not as effective as an individual damages remedy.' " Egbert, 596 U.S. at 493, 498 (quoting Bush v. Lucas, 462 U.S. 367, 372, 388 (1983); citing Schweiker, 487 U.S. at 425-426). The Westfall Act did not disturb those principles, which make this context new.

Watanabe cites pre-Westfall Act dicta describing Carlson as involving a claim " 'under the Eighth Amendment's proscription against cruel and unusual punishment.' " Resp.Br.17 (quoting Stanley, 483 U.S. at 678; citing Schweiker, 487 U.S. at 421). He overlooks that Carlson itself specified that the inmate "died" within "hours." 446 [*15] U.S. at 16 & n.1. And his theory proves too much. If Carlson's "context" were simply " 'cruel and unusual punishment' " claims, Resp.Br.17, then Malesko, Minneci, and Goldey would be wrongly decided. Under Watanabe's logic, Bivens's context would encompass any "Fourth Amendment violation by federal officers," Schweiker, 487 U.S. at 421—contrary to Ziglar, Hernández, and Egbert. This Court rejects framing the new-context inquiry at such a high level of abstraction. A "new Bivens context" can arise even if the "right" and "mechanism of injury" are "the same" as in prior cases. Ziglar, 582 U.S. at 139; Pet.Br.30. So, too, here.

D. Watanabe's Bivens Claim Cannot Proceed

Watanabe concedes that, if his case presents a new context at Bivens step one, special factors foreclose his claim at step two. Pet.Br.39-40; see Resp.Br.33 (agreeing "Carlson * * * should not be extended"). That concession also cements that this case does present a new context. The two steps "often resolve to a single question: whether there is any reason to think that Congress might be better equipped to create a damages remedy." Egbert, 596 U.S. at 492. If special factors suffice to foreclose a Bivens claim at step two, and were not considered in prior Bivens cases, they necessarily are meaningful enough to present a new context at step one.

That analysis does not "eliminate the first step entirely," Resp.Br.31; it honors the integral connection between the two steps. It is Watanabe's (and the Ninth Circuit's) blinkered approach to step one that does violence to the established Bivens framework: It would allow Bivens claims to proceed despite powerful reasons—never considered by this Court—indicating Congress is better suited to make the call. [*16]

II. Bivens Should Be Overruled

Since Bivens, the Judiciary has relinquished much of its incursion into Congress's power to create damages remedies. But Bivens, Davis, and Carlson remain conspicuous outposts on that terrain. So long as they stand, they strain the separation of powers and deter Congress from reclaiming and reforming the zone itself. Rather than perpetuate the empty—yet costly—false hope of Bivens and its progeny, this Court should return the issue to the legislative branch once and for all. Forty-five years spent reining in Bivens's mischief is more than enough.

Watanabe cannot defend Bivens and Carlson on the merits, and his contention that the Westfall Act or PLRA "ratified" them defies statutory text, history, and precedent. So Watanabe offers a Bivens compromise: "This far and no further." Resp.Br.1, 33-34, 47. But that cannot salvage Watanabe's claim, which would take Carlson "further." See pp. 3-15, supra. And it does not resolve the fundamental conflict dividing lower courts: What is "this far" or "further"? Despite the Court's repeated efforts to explain how "easily satisfied" the "new-context inquiry" is, Ziglar, 582 U.S. at 149; see Hernández, 589 U.S. at 102; Egbert, 596 U.S. at 491-492, that issue continues to generate " 'multiple deep circuit splits,' " Pet.Br.44-45. Another decision trying to confine Bivens, Davis, and Carlson to their "own context[s]," Resp.Br.33, is unlikely to foreclose dispute over what those contexts are. Nor does it cure the basic separation-of-powers problem: Whatever contexts those cases occupy, that territory—creating damages remedies—properly belongs to Congress.

A. The Court Has Repudiated Bivens and Its Progeny

This Court has repeatedly rejected Bivens's premises as inconsistent with the separation of powers. Because creating damages remedies is a quintessentially legislative [*17] endeavor, this Court has sworn off creating damages remedies itself. And it has rejected the notion that a bare grant of jurisdiction authorizes federal courts to create causes of action that Congress has not. Pet.Br.40-44. Watanabe denies none of that.

Watanabe protests that "this case is about Carlson, not Bivens." Resp.Br.33. But Carlson bears Bivens's defects, and then some. The only authority Carlson cited for creating a damages remedy was Bivens. 446 U.S. at 18. Carlson, moreover, justified a "Bivens remedy" based on Congress's failure to explicitly prohibit it and the perceived inadequacy of a remedy Congress did create, 446 U.S. at 19-23—rationales this Court has since rejected, Pet.Br.43-44. Carlson even announced ipse dixit that Bivens allows "punitive damages" because the Court thought that would provide a better "deterrent." 446 U.S. at 21-22. But this Court has rejected that, too, holding that "calibration" of "deterrence" "must be left to Congress, not the federal courts." Egbert, 596 U.S. at 498. Nothing remains of Carlson's (or Bivens's, or Davis's) foundation. That this Court had already "repudiated" inferring damages remedies under statutes when Carlson was decided, Resp.Br.43 n.[3], shows that Carlson was out of step with precedent from the outset.

Watanabe's effort to analogize Carlson to common-law actions against jailers and other officials, Resp.Br.40-42, fails. Carlson invoked no such history. There is "no basis for the Court to give precedential sway to reasoning that it has never accepted" to salvage "a conclusion reached on different grounds that have since been abandoned or discredited." Citizens United v. FEC, 558 U.S. 310, 384 (2010) (Roberts, C.J., concurring). And this Court has already rejected "[a]nalogizing Bivens to the work of a common-law court." Hernández, 589 U.S. at 100. "With [*18] the demise of federal general common law, a federal court's authority to recognize a damages remedy must rest at bottom on a statute enacted by Congress." Id. at 101.

The "tradition" Watanabe invokes, Resp.Br.40, involved state common-law claims against federal officials, where the alleged unconstitutionality of their actions served to defeat a defense of federal authorization. Hernández, 589 U.S. at 110-111; Pet.Br.4-5, 44. (Such suits are now channeled through the FTCA.) Bivens and Carlson spurned reliance on state-law damages claims in favor of a new federal damages claim of the Court's own making. Bivens v. Six Unknown Federal Narcotics Agents, 403 U.S. 388, 394-395 (1971); Carlson, 446 U.S. at 23-25; cf. Resp.Br.21 (Carlson contravened "traditional" common-law

[3]The government asks the Court to declare Carlson moribund, while (nominally) leaving Bivens's fate for another day. Gov't.Br.31. The government identifies no good reason for continued suspense. See Mary Mason & Laura Smith, Will the Supreme Court Finally Dismantle Bivens's House of Cards?, Lawfare (Oct. 20, 2026), https://www.lawfaremedia.org/article/will-the-supreme-court-finallydismantle-bivens-s-house-of-cards.

rule that " 'no civil action lies for an injury which results in death' "). Just 8 years before Bivens, this Court had refused to create such a remedy. Wheeldin v. Wheeler, 373 U.S. 647, 652 (1963); Pet.Br.44. By inventing a federal damages remedy for alleged constitutional violations, Bivens and Carlson did not follow tradition—they "broke" it. Hernández, 589 U.S. at 99.

Watanabe urges that "uniquely federal interests" justify federal common-lawmaking in the "enclave" of " 'civil liability of federal officials for actions taken in the course of their duty.' " Resp.Br.39 (quoting Boyle v. United Technologies Corp., 487 U.S. 500, 505 (1988)). But federal common law applies where "displacement of state law" is "necessary" to protect federal interests—such as by limiting officials' liability under state law. Boyle, 487 U.S. at 504-505. Watanabe cites no instance where the Court invoked federal common law to create a damages remedy against federal officials. Doing so is especially inappropriate in the "federal enclave" of running a "prison," Resp.Br.39, a matter "peculiarly within the province of the [*19] legislative and executive branches," Turner v. Safley, 482 U.S. 78, 84-85 (1987).

B. Nothing Justifies Retaining Bivens

Bivens, Davis, and Carlson lost their analytical foundation long ago. Any practical justification for their retention has evaporated, too. They offer plaintiffs only " 'false hope,' " yet inflict a heavy toll on targeted federal employees. Pet.Br.47-48. They have also proved unworkable, creating conflict after conflict. Pet.Br.44-45. While Watanabe insists this case will make applying Bivens "straightforward," Resp.Br.46, the Court presumably had the same aspiration in Ziglar, Hernández, Egbert, and Goldey. But lower-court confusion continues to require this Court's intervention. Bivens will be straightforward only when it is gone.

1. Reliance interests cannot save Bivens. Pet.Br.45- 47. Watanabe does not assert reliance by "future plaintiffs." Cisco Systems, Inc. v. Doe, 609 U.S. 141, 154 (2026). And his protest that overruling Carlson would leave federal prisoners "with no remedy at all," Resp.Br.45, is incorrect. Carlson-like injuries can be asserted as medical negligence claims under the FTCA. Pet.Br.46. Likewise with Bivens-like torts by law-enforcement agents. Ibid. Watanabe's real complaint is that damages would run against the deep-pocketed United States, not "against the responsible officer." Resp.Br.45. But individual liability is already unavailable for countless constitutional violations—including cruel-and-unusual "excessive force" by "federal prison officials." Goldey, 606 U.S. at 943-944. Non-damages remedies remain. See pp. 8-12, supra. And Congress can create any other remedies it deems desirable.

2. Watanabe's contention that Congress "relied on" and "ratified" Carlson through the Westfall Act, Resp.Br.34, 37, 43-44, is fiction. In Watanabe's telling, the Westfall Act [*20] "extinguished the traditional remedy of using state common law to hold individual federal officers liable in damages" "only on the understanding that the constitutional claims recognized in Bivens and Carlson would remain available." Resp.Br.34. The Act's text refutes that story. It explains Congress's understanding that federal employees had long been "protected from personal common law tort liability by a broad based immunity." 102 Stat. 4563, § 2(a)(3) (emphasis added). "For more than 40 years"— since the FTCA's 1946 enactment—"the Federal Tort Claims Act ha[d] served as the sole means for compensating persons injured by" federal employees' common-law torts. § 2(a)(1), (3).

Congress believed, however, that "Westfall v. Erwin" had "seriously eroded the common law tort immunity previously available to Federal employees" by limiting it to discretionary acts. § 2(a)(4) (emphasis added); see Westfall, 484 U.S. at 300. The Westfall Act responded to that "immediate crisis" by (in Congress's view) restoring the common-law-tort immunity federal employees had enjoyed and reinstating the FTCA as the " 'exclusive' " remedy for federal employees' "common law torts." § 2(a)(3), (b); § 5 (codified at 28 U.S.C. § 2679(b)(1)). The Westfall Act thus did not "extinguis[h]" existing common-law remedies against federal employees because (much less "only" because) Bivens remained a backstop. Resp.Br.34. The Act was a targeted effort to restore an immunity from common-law-tort liability that predated Bivens—while providing a damages remedy against the government.2

[*21] Far from cementing Bivens in place, the Westfall Act steered clear, declaring it " 'does not extend or apply to' " constitutional claims. 102 Stat. 4564, § 5 (codified at 28 U.S.C. § 2679(b)(2)(A)). The Act "simply left Bivens where it found it"—in the hands of courts. Hernández, 589 U.S. at 111 n.9; see pp. 13-15, supra.

While Watanabe invokes generic legislative history, Resp.Br.34, he overlooks on-point history demonstrating Congress's deliberate choice to take no position on Bivens. As House sponsor Barney Frank explained, there was "general agreement on a quick and easy reversal of Westfall." Legislation to Amend the Federal Tort Claims Act: Hearing Before Subcomm. on Admin. Law & Gov'tl Relations of H. Comm. on the Judiciary, 100th Cong. 194- 195 (1988). But "constitutional torts" presented "a separate and much more controversial issue" that could make a "non-controversial vote" a "more controversial" one. Id. at 40, 195. Consequently, "all sides agree[d]" they "d[id] not want to do anything" regarding Bivens that might "impinge one way or the other in that controversy." Id. at 40 (emphasis added); see 134 Cong. Rec. 29,933 (1988) (sponsor Sen. Grassley: "this bill does not have any effect on the so-called Bivens cases"). That's why Congress specified that the Act " 'does not extend or apply' " to constitutional claims. 102 Stat. 4564, § 5 (codified at 28 U.S.C. § 2679(b)(2)(A)). That disclaimer cannot be rewritten into an endorsement of Bivens.

Nor did the PLRA ratify Carlson. Resp.Br.35. While the PLRA creates a "procedural framework" for such claims, Resp.Br.36, that's because it governs all prisoner suits under "section 1983 * * * or any other Federal law," 42 U.S.C. § 1997e(a); see pp. 10-11, supra. That it "contemplates the existence of money damages," Resp.Br.35, is unremarkable given that § 1983 and other statutes authorize [*22] damages. The PLRA itself does not provide a damages remedy. Goldey, 606 U.S. at 944. That "suggest[s] that Congress does not want a damages remedy"—the opposite of ratifying Carlson. Ziglar, 582 U.S. at 148.

At most, the Westfall Act and PLRA show that Congress has not affirmatively eliminated Bivens and Carlson. But this "Court has jettisoned many precedents that Congress likewise could have legislatively overruled"— especially where, as here, those precedents involve "judicial invention" beyond the Judiciary's proper role. Loper Bright Enterprises v. Raimondo, 603 U.S. 369, 411 (2024). Here, moreover, Congress confronted uncertainty over whether it could eliminate Bivens. Pet.Br.47 n.15. While Watanabe properly agrees Congress can do so, Resp.Br.38, Justice Scalia observed that "an 'implication' imagined in the Constitution can presumably not even be repudiated by Congress," Correctional Services Corp. v. Malesko, 534 U.S. 61, 75 (2001) (Scalia, J., concurring); accord Minneci v. Pollard, 565 U.S. 118, 131 (2012) (Scalia, J., concurring). Even today, Watanabe's amicus insists Congress cannot eliminate Bivens without constitutional "amendment." Cato.Br.4.

3. Because "judicially created causes of action offend the separation of powers in almost every circumstance," Cisco "close[d] the door" on judicially created Alien Tort Statute liability. 609 U.S. at 153, 155. For the same reason, the Court should close the door on judicially created Bivens liability. Pet.Br.41-43. Watanabe observes (Resp.Br.33) that Cisco did not foreclose ATS suits for the so-called "Blackstone three" torts recognized at common law. 609 U.S. at 155. But those torts are "not * * * evidence" that federal "courts [have] authority to create causes of action"—they predated the ATS and the Framing. Id. at 155 n.3. The "Bivens three" have no such pedigree. This [*23] Court invented them starting in 1971, two centuries after the Bill of Rights' adoption in 1791. Their legitimacy rests entirely on federal courts' power to create damages remedies—a power "mo[st] accurately described as nonexistent." Id. at 145.3

↑ **Conclusion.** The judgment should be reversed.

Respectfully submitted.

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↑ The Law Cited

Not part of the record. Every statute, constitutional provision and regulation the filings cite: the law in question first (what the questions presented and the parties' provisions-involved sections name, as each party sets it out), then the rest by who cites it. Each with its text where it is stored locally (current text, not as of the decision below). A cite of one of these provisions anywhere in this PDF links to its entry here.

Pet.: provisions involved

Relevant provisions of U.S. Const. amend. VIII; the Prison Litigation Reform Act, 18 U.S.C. § 3626 and 42 U.S.C. § 1997e; and the Bureau of Prisons' Administrative Remedy Program, 28 C.F.R. §§ 542.10, 542.13-542.15, are set forth in the Appendix, infra, 117a-121a.

PRELIMINARY STATEMENT

The decision below presents "multiple," openly acknowledged, "deep circuit splits" on whether and when plaintiffs may invoke the implied cause of action first recognized in Bivens v. Six Unknown Named Agents of Federal Bureau of Narcotics, 403 U.S. 388 (1971). App., infra, 91a (Nelson, J., dissenting from denial). Those conflicts prompted eleven judges to dissent from denial of rehearing en banc below. Id. at 89a-116a. Circuit after circuit has acknowledged the conflicts. E.g., Muniz v. United States, 149 F.4th 256, 264 n.4 (3d Cir. 2025); Arias v. Herzon, 150 F.4th 27, 51 & n.11 (1st Cir. 2025) (Lynch, J., concurring in part and dissenting in part); Watkins v. Mohan, 144 F.4th 926, 947 & n.* (7th Cir. 2025) (Kirsch, J., concurring in part and dissenting in part). The Court should "resolve the multiple deep circuit splits," App., infra, 91a (Nelson, J., dissenting from denial), and restore "clarity" to the law, id. at 116a (Collins, J., dissenting from denial).

Bivens created a damages action against federal officers accused of conducting an unreasonable, warrantless search and seizure inside the plaintiff 's home in violation of the Fourth Amendment. The Court has extended Bivens only twice. The last was in Carlson v. Green, 446 U.S. 14 (1980), where the Court extended Bivens to an action against prison officials accused of violating the detainee's Eighth Amendment rights, where they not only failed to treat his acute asthma attack, but exacerbated it, causing his onthe-scene death.

This Court, however, has since "come 'to appreciate more fully the tension between' judicially created causes of action and 'the Constitution's separation of legislative and judicial power.' " Egbert v. Boule, 596 U.S. 482, 491 (2022). It has "repeatedly emphasized that 'recognizing a cause of action under Bivens is "a disfavored judicial activity." ' " Goldey v. Fields, 606 U.S. 942, 944 (2025) (per curiam). The Court has thus imposed a "two-step test" that must be applied before any Bivens action may proceed. Ibid. First, courts must consider whether the case presents " 'a new Bivens context'—that is, whether the case 'is different in a meaningful way' from the cases in which this Court has recognized a Bivens remedy." Ibid. If the context is new, courts must ask "whether there are special factors indicating that the Judiciary is at least arguably less equipped than Congress to weigh the costs and benefits of allowing a damages action to proceed." Ibid. (quotation marks omitted). That two-step inquiry "often resolve[s] to a single question: whether there is any reason to think that Congress might be better equipped to create a damages remedy." Egbert, 596 U.S. at 492.

The Ninth Circuit's decision exacerbates circuit conflicts over those requirements. At the first step, the Ninth Circuit held that this case does not present a "new Bivens context" because here, as in Carlson, "prison officials * * * acted with deliberate indifference to an incarcerated individual's serious medical needs." App., infra, 7a. It thus did not matter to the Ninth Circuit that Congress had provided respondent with "alternative remedial structures" apart from suing under Bivens—structures that were " 'not considered by the Court in Carlson.' " Id. at 14a-15a; see id. at 79a (urging that "alternative remedies are generally not relevant at step one") (respecting denial of rehearing). Nor did it matter that the harm respondent claimed to have suffered here—in terms of cause, impact, and immediacy—differed dramatically from Carlson. Respondent here complains that he did not receive sufficiently prompt treatment for a fractured coccyx; the plaintiff in Carlson died on the scene as a result of egregious conduct. Because of the suddenness and severity of the harm in Carlson, "it [was] damages or nothing." Bivens, 403 U.S. at 410 (Harlan, J., concurring in the judgment). Respondent, by contrast, sought the alternative of injunctive relief in this very lawsuit. The Ninth Circuit dismissed those contrasts as "not a meaningful difference * * * because the underlying harm was still a 'failure to provide medical attention evidencing deliberate indifference to serious medical needs.' " App., infra, 13a.

That turns this Court's precedent "on its head." App., infra, 91a (Nelson, J., dissenting from denial). This Court has already held that one way "a case can present a new context" is "the existence of alternative remedies" not previously considered. Ziglar v. Abbasi, 582 U.S. 120, 147-148 (2017). And the Ninth Circuit ignored that claims "may arise in a new context even if [they are] based on the same constitutional provision as a claim in a case in which a damages remedy was previously recognized." Hernández v. Mesa, 589 U.S. 93, 103 (2020). Even the same "mechanism of injury"—here, "failure to provide adequate medical treatment"—is not enough to make contexts "the same." Ziglar, 582 U.S. at 139.

The Ninth Circuit's contrary holdings exacerbate two deep and acknowledged circuit conflicts. The Third, Fifth, Seventh, Tenth, and Eleventh Circuits have held that the availability of alternative remedies that were not considered in prior cases makes the Bivens context "new" and precludes Bivens' extension. See Kalu v. Spaulding, 113 F.4th 311, 328 (3d

Cir. 2024); Hernandez v. Causey, 124 F.4th 325, 334 (5th Cir. 2024), cert. denied, 145 S. Ct. 1930 (2025); Sargeant v. Barfield, 87 F.4th 358, 366-369 (7th Cir. 2023), cert. denied, 145 S. Ct. 285 (2024); Silva v. United States, 45 F.4th 1134, 1142 (10th Cir. 2022); Johnson v. Terry, 119 F.4th 840, 858 (11th Cir. 2024). In the Eleventh Circuit's words, the "context of [the asserted] claims is different from * * * Carlson because [in Carlson] the Court did not consider whether there were alternative remedies under the current alternative remedy analysis." Johnson, 119 F.4th at 858. But the Ninth and First Circuits have held the opposite. App., infra, 15a; Arias, 150 F.4th at 49-50. In addition, the First, Tenth, and Eleventh Circuits have held that allegations of non-lethal injuries, or mistreatment of lesser severity than that in Carlson, render the context "new." See Waltermeyer v. Hazlewood, 136 F.4th 361, 366-368 (1st Cir. 2025); Rowland v. Matevousian, 121 F.4th 1237, 1243 (10th Cir. 2024); Johnson, 119 F.4th at 858-859. By contrast, the Ninth Circuit, along with the Seventh and Third Circuits, have rejected such differences as irrelevant to the new-context inquiry. See App., infra, 13a; Muniz, 149 F.4th at 262-263; Brooks v. Richardson, 131 F.4th 613, 615 (7th Cir. 2025). Those important and recurring conflicts warrant review.

Pet'rs Br.: provisions involved

Relevant provisions of the Eighth Amendment; Prison Litigation Reform Act, 18 U.S.C. § 3626, 42 U.S.C. § 1997e; USA PATRIOT Act, Pub. L. No. 107-56, 115 Stat. 391 (2001); Federal Prison Oversight Act, Pub. L. No. 118-71, 138 Stat. 1492 (2024); and Bureau of Prisons Administrative Remedy Program, 28 C.F.R. §§ 542.10-542.19, are set forth in the appendix to this brief.

Resp. Br.: provisions involved

Relevant statutory provisions, as well as a Bureau of Prisons (BOP) administrative policy, are reproduced in the appendix to this brief. App., infra, 1a-13a.

The law in question (questions presented; provisions involved)

U.S. Const. amend. IV

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 0 (0).

Amendment IV (H. Doc. 110-50)
The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no Warrants shall issue, but upon probable cause, supported by Oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized.

U.S. Const. amend. VIII

Cited by the petitioners 1 times (1 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 2 (1).

Amendment VIII (H. Doc. 110-50)
Excessive bail shall not be required, nor excessive fines imposed, nor cruel and unusual punishments inflicted.

18 U.S.C. § 3626

Cited by the petitioners 5 times (2 filings) and their amici 1 (1); by the respondent 2 (1) and its amici 0 (0).

Appropriate remedies with respect to prison conditions
(a) *Requirements for Relief.*—.
(1) *Prospective relief.*—.
(A) Prospective relief in any civil action with respect to prison conditions shall extend no further than necessary to correct the violation of the Federal right of a particular plaintiff or plaintiffs. The court shall not grant or approve any prospective relief unless the court finds that such relief is narrowly drawn, extends no further than necessary to correct the violation of the Federal right, and is the least intrusive means necessary to correct the violation of the Federal right. The court shall give substantial weight to any adverse impact on public safety or the operation of a criminal justice system caused by the relief.
(B) The court shall not order any prospective relief that requires or permits a government official to exceed his or her authority under State or local law or otherwise violates State or local law, unless—
(i) Federal law requires such relief to be ordered in violation of State or local law;
(ii) the relief is necessary to correct the violation of a Federal right; and
(iii) no other relief will correct the violation of the Federal right.
(C) Nothing in this section shall be construed to authorize the courts, in exercising their remedial powers, to order the construction of prisons or the raising of taxes, or to repeal or detract from otherwise applicable limitations on

the remedial powers of the courts.

(2) *Preliminary injunctive relief.*—. In any civil action with respect to prison conditions, to the extent otherwise authorized by law, the court may enter a temporary restraining order or an order for preliminary injunctive relief. Preliminary injunctive relief must be narrowly drawn, extend no further than necessary to correct the harm the court finds requires preliminary relief, and be the least intrusive means necessary to correct that harm. The court shall give substantial weight to any adverse impact on public safety or the operation of a criminal justice system caused by the preliminary relief and shall respect the principles of comity set out in paragraph (1)(B) in tailoring any preliminary relief. Preliminary injunctive relief shall automatically expire on the date that is 90 days after its entry, unless the court makes the findings required under subsection (a)(1) for the entry of prospective relief and makes the order final before the expiration of the 90-day period.

(3) *Prisoner release order.*—.

(A) In any civil action with respect to prison conditions, no court shall enter a prisoner release order unless—

(i) a court has previously entered an order for less intrusive relief that has failed to remedy the deprivation of the Federal right sought to be remedied through the prisoner release order; and

(ii) the defendant has had a reasonable amount of time to comply with the previous court orders.

(B) In any civil action in Federal court with respect to prison conditions, a prisoner release order shall be entered only by a three-judge court in accordance with section 2284 of title 28, if the requirements of subparagraph (E) have been met.

(C) A party seeking a prisoner release order in Federal court shall file with any request for such relief, a request for a three-judge court and materials sufficient to demonstrate that the requirements of subparagraph (A) have been met.

(D) If the requirements under subparagraph (A) have been met, a Federal judge before whom a civil action with respect to prison conditions is pending who believes that a prison release order should be considered may sua sponte request the convening of a three-judge court to determine whether a prisoner release order should be entered.

(E) The three-judge court shall enter a prisoner release order only if the court finds by clear and convincing evidence that—

(i) crowding is the primary cause of the violation of a Federal right; and

(ii) no other relief will remedy the violation of the Federal right.

(F) Any State or local official including a legislator or unit of government whose jurisdiction or function includes the appropriation of funds for the construction, operation, or maintenance of prison facilities, or the prosecution or custody of persons who may be released from, or not admitted to, a prison as a result of a prisoner release order shall have standing to oppose the imposition or continuation in effect of such relief and to seek termination of such relief, and shall have the right to intervene in any proceeding relating to such relief.

(b) *Termination of Relief.*—.

(1) *Termination of prospective relief.*—.

(A) In any civil action with respect to prison conditions in which prospective relief is ordered, such relief shall be terminable upon the motion of any party or intervener—

(i) 2 years after the date the court granted or approved the prospective relief;

(ii) 1 year after the date the court has entered an order denying termination of prospective relief under this paragraph; or

(iii) in the case of an order issued on or before the date of enactment of the Prison Litigation Reform Act, 2 years after such date of enactment.

(B) Nothing in this section shall prevent the parties from agreeing to terminate or modify relief before the relief is terminated under subparagraph (A).

(2) *Immediate termination of prospective relief.*—. In any civil action with respect to prison conditions, a defendant or intervener shall be entitled to the immediate termination of any prospective relief if the relief was approved or granted in the absence of a finding by the court that the relief is narrowly drawn, extends no further than necessary to correct the violation of the Federal right, and is the least intrusive means necessary to correct the violation of the Federal right.

(3) *Limitation.*—. Prospective relief shall not terminate if the court makes written findings based on the record that prospective relief remains necessary to correct a current and ongoing violation of the Federal right, extends no further than necessary to correct the violation of the Federal right, and that the prospective relief is narrowly drawn and the least intrusive means to correct the violation.

(4) *Termination or modification of relief.*—. Nothing in this section shall prevent any party or intervener from seeking modification or termination before the relief is terminable under paragraph (1) or (2), to the extent that modification or termination would otherwise be legally permissible.

(c) *Settlements.—*.

(1) *Consent decrees.—*. In any civil action with respect to prison conditions, the court shall not enter or approve a consent decree unless it complies with the limitations on relief set forth in subsection (a).

(2) *Private settlement agreements.—*.

(A) Nothing in this section shall preclude parties from entering into a private settlement agreement that does not comply with the limitations on relief set forth in subsection (a), if the terms of that agreement are not subject to court enforcement other than the reinstatement of the civil proceeding that the agreement settled.

(B) Nothing in this section shall preclude any party claiming that a private settlement agreement has been breached from seeking in State court any remedy available under State law.

(d) *State Law Remedies.—*. The limitations on remedies in this section shall not apply to relief entered by a State court based solely upon claims arising under State law.

(e) *Procedure for Motions Affecting Prospective Relief.—*.

(1) *Generally.—*. The court shall promptly rule on any motion to modify or terminate prospective relief in a civil action with respect to prison conditions. Mandamus shall lie to remedy any failure to issue a prompt ruling on such a motion.

(2) *Automatic stay.—*. Any motion to modify or terminate prospective relief made under subsection (b) shall operate as a stay during the period—

(A)

(i) beginning on the 30th day after such motion is filed, in the case of a motion made under paragraph (1) or (2) of subsection (b); or

(ii) beginning on the 180th day after such motion is filed, in the case of a motion made under any other law; and

(B) ending on the date the court enters a final order ruling on the motion.

(3) *Postponement of automatic stay.—*. The court may postpone the effective date of an automatic stay specified in subsection (e)(2)(A) for not more than 60 days for good cause. No postponement shall be permissible because of general congestion of the court's calendar.

(4) *Order blocking the automatic stay.—*. Any order staying, suspending, delaying, or barring the operation of the automatic stay described in paragraph (2) (other than an order to postpone the effective date of the automatic stay under paragraph (3)) shall be treated as an order refusing to dissolve or modify an injunction and shall be appealable pursuant to section 1292(a)(1) of title 28, United States Code, regardless of how the order is styled or whether the order is termed a preliminary or a final ruling.

(f) *Special Masters.—*.

(1) *In general.—*.

(A) In any civil action in a Federal court with respect to prison conditions, the court may appoint a special master who shall be disinterested and objective and who will give due regard to the public safety, to conduct hearings on the record and prepare proposed findings of fact.

(B) The court shall appoint a special master under this subsection during the remedial phase of the action only upon a finding that the remedial phase will be sufficiently complex to warrant the appointment.

(2) *Appointment.—*.

(A) If the court determines that the appointment of a special master is necessary, the court shall request that the defendant institution and the plaintiff each submit a list of not more than 5 persons to serve as a special master.

(B) Each party shall have the opportunity to remove up to 3 persons from the opposing party's list.

(C) The court shall select the master from the persons remaining on the list after the operation of subparagraph (B).

(3) *Interlocutory appeal.—*. Any party shall have the right to an interlocutory appeal of the judge's selection of the special master under this subsection, on the ground of partiality.

(4) *Compensation.—*. The compensation to be allowed to a special master under this section shall be based on an hourly rate not greater than the hourly rate established under section 3006A for payment of court-appointed counsel, plus costs reasonably incurred by the special master. Such compensation and costs shall be paid with funds appropriated to the Judiciary.

(5) *Regular review of appointment.—*. In any civil action with respect to prison conditions in which a special master is appointed under this subsection, the court shall review the appointment of the special master every 6 months to determine whether the services of the special master continue to be required under paragraph (1). In no event shall the appointment of a special master extend beyond the termination of the relief.

(6) *Limitations on powers and duties.—*. A special master appointed under this subsection—

(A) may be authorized by a court to conduct hearings and prepare proposed findings of fact, which shall be made on the record;

(B) shall not make any findings or communications ex parte;

(C) may be authorized by a court to assist in the development of remedial plans; and

(D) may be removed at any time, but shall be relieved of the appointment upon the termination of relief.

(g) *Definitions.*—. As used in this section—

(1) the term "consent decree" means any relief entered by the court that is based in whole or in part upon the consent or acquiescence of the parties but does not include private settlements;

(2) the term "civil action with respect to prison conditions" means any civil proceeding arising under Federal law with respect to the conditions of confinement or the effects of actions by government officials on the lives of persons confined in prison, but does not include habeas corpus proceedings challenging the fact or duration of confinement in prison;

(3) the term "prisoner" means any person subject to incarceration, detention, or admission to any facility who is accused of, convicted of, sentenced for, or adjudicated delinquent for, violations of criminal law or the terms and conditions of parole, probation, pretrial release, or diversionary program;

(4) the term "prisoner release order" includes any order, including a temporary restraining order or preliminary injunctive relief, that has the purpose or effect of reducing or limiting the prison population, or that directs the release from or nonadmission of prisoners to a prison;

(5) the term "prison" means any Federal, State, or local facility that incarcerates or detains juveniles or adults accused of, convicted of, sentenced for, or adjudicated delinquent for, violations of criminal law;

(6) the term "private settlement agreement" means an agreement entered into among the parties that is not subject to judicial enforcement other than the reinstatement of the civil proceeding that the agreement settled;

(7) the term "prospective relief" means all relief other than compensatory monetary damages;

(8) the term "special master" means any person appointed by a Federal court pursuant to Rule 53 of the Federal Rules of Civil Procedure or pursuant to any inherent power of the court to exercise the powers of a master, regardless of the title or description given by the court; and

(9) the term "relief" means all relief in any form that may be granted or approved by the court, and includes consent decrees but does not include private settlement agreements.

42 U.S.C. § 1997e

Cited by the petitioners 12 times (3 filings) and their amici 3 (1); by the respondent 13 (2) and its amici 7 (4).

Suits by prisoners

(a) *Applicability of administrative remedies.* No action shall be brought with respect to prison conditions under section 1983 of this title, or any other Federal law, by a prisoner confined in any jail, prison, or other correctional facility until such administrative remedies as are available are exhausted.

(b) *Failure of State to adopt or adhere to administrative grievance procedure.* The failure of a State to adopt or adhere to an administrative grievance procedure shall not constitute the basis for an action under section 1997a or 1997c of this title.

(c) *Dismissal.*

(1) The court shall on its own motion or on the motion of a party dismiss any action brought with respect to prison conditions under section 1983 of this title, or any other Federal law, by a prisoner confined in any jail, prison, or other correctional facility if the court is satisfied that the action is frivolous, malicious, fails to state a claim upon which relief can be granted, or seeks monetary relief from a defendant who is immune from such relief.

(2) In the event that a claim is, on its face, frivolous, malicious, fails to state a claim upon which relief can be granted, or seeks monetary relief from a defendant who is immune from such relief, the court may dismiss the underlying claim without first requiring the exhaustion of administrative remedies.

(d) *Attorney's fees.*

(1) In any action brought by a prisoner who is confined to any jail, prison, or other correctional facility, in which attorney's fees are authorized under section 1988 of this title, such fees shall not be awarded, except to the extent that—

(A) the fee was directly and reasonably incurred in proving an actual violation of the plaintiff's rights protected by a statute pursuant to which a fee may be awarded under section 1988 1 of this title; and

(B)

(i) the amount of the fee is proportionately related to the court ordered relief for the violation; or

(ii) the fee was directly and reasonably incurred in enforcing the relief ordered for the violation.

(2) Whenever a monetary judgment is awarded in an action described in paragraph (1), a portion of the judgment (not to exceed 25 percent) shall be applied to satisfy the amount of attorney's fees awarded against the defendant. If the award of attorney's fees is not greater than 150 percent of the judgment, the excess shall be paid by the defendant.

(3) No award of attorney's fees in an action described in paragraph (1) shall be based on an hourly rate greater than 150 percent of the hourly rate established under section 3006A of title 18 for payment of court-appointed counsel.

(4) Nothing in this subsection shall prohibit a prisoner from entering into an agreement to pay an attorney's fee in an amount greater than the amount authorized under this subsection, if the fee is paid by the individual rather than by the defendant pursuant to section 1988 1 of this title.

(e) *Limitation on recovery.* No Federal civil action may be brought by a prisoner confined in a jail, prison, or other correctional facility, for mental or emotional injury suffered while in custody without a prior showing of physical injury or the commission of a sexual act (as defined in section 2246 of title 18).

(f) *Hearings.*

(1) To the extent practicable, in any action brought with respect to prison conditions in Federal court pursuant to section 1983 of this title, or any other Federal law, by a prisoner confined in any jail, prison, or other correctional facility, pretrial proceedings in which the prisoner's participation is required or permitted shall be conducted by telephone, video conference, or other telecommunications technology without removing the prisoner from the facility in which the prisoner is confined.

(2) Subject to the agreement of the official of the Federal, State, or local unit of government with custody over the prisoner, hearings may be conducted at the facility in which the prisoner is confined. To the extent practicable, the court shall allow counsel to participate by telephone, video conference, or other communications technology in any hearing held at the facility.

(g) *Waiver of reply.*

(1) Any defendant may waive the right to reply to any action brought by a prisoner confined in any jail, prison, or other correctional facility under section 1983 of this title or any other Federal law. Notwithstanding any other law or rule of procedure, such waiver shall not constitute an admission of the allegations contained in the complaint. No relief shall be granted to the plaintiff unless a reply has been filed.

(2) The court may require any defendant to reply to a complaint brought under this section if it finds that the plaintiff has a reasonable opportunity to prevail on the merits.

(h) *"Prisoner" defined.* As used in this section, the term "prisoner" means any person incarcerated or detained in any facility who is accused of, convicted of, sentenced for, or adjudicated delinquent for, violations of criminal law or the terms and conditions of parole, probation, pretrial release, or diversionary program.

28 C.F.R. § 542.10

Cited by the petitioners 6 times (2 filings) and their amici 1 (1); by the respondent 3 (2) and its amici 1 (1).

Purpose and scope. (eCFR, current as of Oct. 28, 2026)

(a) *Purpose.* The purpose of the Administrative Remedy Program is to allow an inmate to seek formal review of an issue relating to any aspect of his/her own confinement. An inmate may not submit a Request or Appeal on behalf of another inmate.

(b) *Scope.* This Program applies to all inmates in institutions operated by the Bureau of Prisons, to inmates designated to contract Community Corrections Centers (CCCs) under Bureau of Prisons responsibility, and to former inmates for issues that arose during their confinement. This Program does not apply to inmates confined in other non-federal facilities.

(c) *Statutorily-mandated procedures.* There are statutorily-mandated procedures in place for tort claims (28 CFR part 543, subpart C), Inmate Accident Compensation claims (28 CFR part 301), and Freedom of Information Act or Privacy Act requests (28 CFR part 513, subpart D). If an inmate raises an issue in a request or appeal that cannot be resolved through the Administrative Remedy Program, the Bureau will refer the inmate to the appropriate statutorily-mandated procedures.

[67 FR 50805, Aug. 6, 2002]

Cited by both parties

28 U.S.C. § 1346

Cited by the petitioners 1 times (1 filings) and their amici 1 (1); by the respondent 2 (2) and its amici 2 (2).

United States as defendant

(a) The district courts shall have original jurisdiction, concurrent with the United States Court of Federal Claims, of:

(1) Any civil action against the United States for the recovery of any internal-revenue tax alleged to have been erroneously or illegally assessed or collected, or any penalty claimed to have been collected without authority or any sum alleged to have been excessive or in any manner wrongfully collected under the internal-revenue laws;

(2) Any other civil action or claim against the United States, not exceeding $10,000 in amount, founded either upon the Constitution, or any Act of Congress, or any regulation of an executive department, or upon any express or implied contract with the United States, or for liquidated or unliquidated damages in cases not sounding in tort, except that the district courts shall not have jurisdiction of any civil action or claim against the United States founded upon any express or implied contract with the United States or for liquidated or unliquidated damages in cases not sounding in tort which are subject to sections 7104(b)(1) and 7107(a)(1) of title 41. For the purpose of this paragraph, an express or implied contract with the Army and Air Force Exchange Service, Navy Exchanges, Marine Corps Exchanges, Coast

Guard Exchanges, or Exchange Councils of the National Aeronautics and Space Administration shall be considered an express or implied contract with the United States.

(b)

(1) Subject to the provisions of chapter 171 of this title, the district courts, together with the United States District Court for the District of the Canal Zone and the District Court of the Virgin Islands, shall have exclusive jurisdiction of civil actions on claims against the United States, for money damages, accruing on and after January 1, 1945, for injury or loss of property, or personal injury or death caused by the negligent or wrongful act or omission of any employee of the Government while acting within the scope of his office or employment, under circumstances where the United States, if a private person, would be liable to the claimant in accordance with the law of the place where the act or omission occurred.

(2) No person convicted of a felony who is incarcerated while awaiting sentencing or while serving a sentence may bring a civil action against the United States or an agency, officer, or employee of the Government, for mental or emotional injury suffered while in custody without a prior showing of physical injury or the commission of a sexual act (as defined in section 2246 of title 18).

(c) The jurisdiction conferred by this section includes jurisdiction of any set-off, counterclaim, or other claim or demand whatever on the part of the United States against any plaintiff commencing an action under this section.

(d) The district courts shall not have jurisdiction under this section of any civil action or claim for a pension.

(e) The district courts shall have original jurisdiction of any civil action against the United States provided in section 6226, 6228(a), 7426, or 7428 (in the case of the United States district court for the District of Columbia) or section 7429 of the Internal Revenue Code of 1986.

(f) The district courts shall have exclusive original jurisdiction of civil actions under section 2409a to quiet title to an estate or interest in real property in which an interest is claimed by the United States.

(g) Subject to the provisions of chapter 179, the district courts of the United States shall have exclusive jurisdiction over any civil action commenced under section 453(2) of title 3, by a covered employee under chapter 5 of such title.

28 U.S.C. § 2679

Cited by the petitioners 6 times (3 filings) and their amici 3 (1); by the respondent 8 (2) and its amici 29 (8).

Exclusiveness of remedy

(a) The authority of any federal agency to sue and be sued in its own name shall not be construed to authorize suits against such federal agency on claims which are cognizable under section 1346(b) of this title, and the remedies provided by this title in such cases shall be exclusive.

(b)

(1) The remedy against the United States provided by sections 1346(b) and 2672 of this title for injury or loss of property, or personal injury or death arising or resulting from the negligent or wrongful act or omission of any employee of the Government while acting within the scope of his office or employment is exclusive of any other civil action or proceeding for money damages by reason of the same subject matter against the employee whose act or omission gave rise to the claim or against the estate of such employee. Any other civil action or proceeding for money damages arising out of or relating to the same subject matter against the employee or the employee's estate is precluded without regard to when the act or omission occurred.

(2) Paragraph (1) does not extend or apply to a civil action against an employee of the Government—

(A) which is brought for a violation of the Constitution of the United States, or

(B) which is brought for a violation of a statute of the United States under which such action against an individual is otherwise authorized.

(c) The Attorney General shall defend any civil action or proceeding brought in any court against any employee of the Government or his estate for any such damage or injury. The employee against whom such civil action or proceeding is brought shall deliver within such time after date of service or knowledge of service as determined by the Attorney General, all process served upon him or an attested true copy thereof to his immediate superior or to whomever was designated by the head of his department to receive such papers and such person shall promptly furnish copies of the pleadings and process therein to the United States attorney for the district embracing the place wherein the proceeding is brought, to the Attorney General, and to the head of his employing Federal agency.

(d)

(1) Upon certification by the Attorney General that the defendant employee was acting within the scope of his office or employment at the time of the incident out of which the claim arose, any civil action or proceeding commenced upon such claim in a United States district court shall be deemed an action against the United States under the provisions of this title and all references thereto, and the United States shall be substituted as the party defendant.

(2) Upon certification by the Attorney General that the defendant employee was acting within the scope of his office or employment at the time of the incident out of which the claim arose, any civil action or proceeding commenced

upon such claim in a State court shall be removed without bond at any time before trial by the Attorney General to the district court of the United States for the district and division embracing the place in which the action or proceeding is pending. Such action or proceeding shall be deemed to be an action or proceeding brought against the United States under the provisions of this title and all references thereto, and the United States shall be substituted as the party defendant. This certification of the Attorney General shall conclusively establish scope of office or employment for purposes of removal.

(3) In the event that the Attorney General has refused to certify scope of office or employment under this section, the employee may at any time before trial petition the court to find and certify that the employee was acting within the scope of his office or employment. Upon such certification by the court, such action or proceeding shall be deemed to be an action or proceeding brought against the United States under the provisions of this title and all references thereto, and the United States shall be substituted as the party defendant. A copy of the petition shall be served upon the United States in accordance with the provisions of Rule 4(d)(4) of the Federal Rules of Civil Procedure. In the event the petition is filed in a civil action or proceeding pending in a State court, the action or proceeding may be removed without bond by the Attorney General to the district court of the United States for the district and division embracing the place in which it is pending. If, in considering the petition, the district court determines that the employee was not acting within the scope of his office or employment, the action or proceeding shall be remanded to the State court.

(4) Upon certification, any action or proceeding subject to paragraph (1), (2), or (3) shall proceed in the same manner as any action against the United States filed pursuant to section 1346(b) of this title and shall be subject to the limitations and exceptions applicable to those actions.

(5) Whenever an action or proceeding in which the United States is substituted as the party defendant under this subsection is dismissed for failure first to present a claim pursuant to section 2675(a) of this title, such a claim shall be deemed to be timely presented under section 2401(b) of this title if—

(A) the claim would have been timely had it been filed on the date the underlying civil action was commenced, and

(B) the claim is presented to the appropriate Federal agency within 60 days after dismissal of the civil action.

(e) The Attorney General may compromise or settle any claim asserted in such civil action or proceeding in the manner provided in section 2677, and with the same effect.

46 U.S.C. § 30302

Cited by the petitioners 2 times (2 filings) and their amici 1 (1); by the respondent 1 (1) and its amici 0 (0).

Cause of action

When the death of an individual is caused by wrongful act, neglect, or default occurring on the high seas beyond 3 nautical miles from the shore of the United States, the personal representative of the decedent may bring a civil action in admiralty against the person or vessel responsible. The action shall be for the exclusive benefit of the decedent's spouse, parent, child, or dependent relative.

The petitioners, not the respondent

U.S. Const. art. I

Cited by the petitioners 1 times (1 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 0 (0).

Article I (H. Doc. 110-50)

§ 1 All legislative Powers herein granted shall be vested in a Congress of the United States, which shall consist of a Senate and House of Representatives.

§ 2 The House of Representatives shall be composed of Members chosen every second Year by the People of the several States, and the Electors in each State shall have the Qualifications requisite for Electors of the most numerous Branch of the State Legislature.

No Person shall be a Representative who shall not have attained to the Age of twenty five Years, and been seven Years a Citizen of the United States, and who shall not, when elected, be an Inhabitant of that State in which he shall be chosen. Representatives and direct Taxes shall be apportioned among the several States which may be included within this Union, according to their respective Numbers, which shall be determined by adding to the whole Number of free Persons, including those bound to Service for a Term of Years, and excluding Indians not taxed, three fifths of all other Persons. The actual Enumeration shall be made within three Years after the first Meeting of the Congress of the United States, and within every subsequent Term of ten Years, in such Manner as they shall by Law direct. The Number of Representatives shall not exceed one for every thirty Thousand, but each State shall have at Least one Representative; and until such enumeration shall be made, the State of New Hampshire shall be entitled to chuse three, Massachusetts eight, Rhode Island and Providence Plantations one, Connecticut five, New York six, New Jersey four, Pennsylvania eight, Delaware

one, Maryland six, Virginia ten, North Carolina five, South Carolina five, and Georgia three.

When vacancies happen in the Representation from any State, the Executive Authority thereof shall issue Writs of Election to fill such Vacancies.

The House of Representatives shall chuse their Speaker and other Officers; and shall have the sole Power of Impeachment.

§ 3 The Senate of the United States shall be composed of two Senators from each State, chosen by the Legislature thereof for six Years; and each Senator shall have one Vote.

Immediately after they shall be assembled in Consequence of the first Election, they shall be divided as equally as may be into three Classes. The Seats of the Senators of the first Class shall be vacated at the Expiration of the second Year, of the second Class at the Expiration of the fourth Year, and of the third Class at the Expiration of the sixth Year, so that one third may be chosen every second Year; and if Vacancies happen by Resignation or otherwise, during the Recess of the Legislature of any State, the Executive thereof may make temporary Appointments until the next Meeting of the Legislature, which shall then fill such Vacancies.

No Person shall be a Senator who shall not have attained to the Age of thirty Years, and been nine Years a Citizen of the United States, and who shall not, when elected, be an Inhabitant of that State for which he shall be chosen.

The Vice President of the United States shall be President of the Senate, but shall have no Vote, unless they be equally divided.

The Senate shall chuse their other Officers, and also a President pro tempore, in the Absence of the Vice President, or when he shall exercise the Office of President of the United States.

The Senate shall have the sole Power to try all Impeachments. When sitting for that Purpose, they shall be on Oath or Affirmation. When the President of the United States is tried, the Chief Justice shall preside: And no Person shall be convicted without the Concurrence of two thirds of the Members present.

Judgment in Cases of Impeachment shall not extend further than to removal from Office, and disqualification to hold and enjoy any Office of honor, Trust or Profit under the United States: but the Party convicted shall nevertheless be liable and subject to Indictment, Trial, Judgment and Punishment, according to Law.

§ 4 The Times, Places and Manner of holding Elections for Senators and Representatives, shall be prescribed in each State by the Legislature thereof; but the Congress may at any time by Law make or alter such Regulations, except as to the Places of chusing Senators.

The Congress shall assemble at least once in every Year and such Meeting shall be on the first Monday in December, unless they shall by Law appoint a different Day.

§ 5 Each House shall be the Judge of the Elections, Returns and Qualifications of its own Members, and a Majority of each shall constitute a Quorum to do Business; but a smaller Number may adjourn from day to day, and may be authorized to compel the Attendance of absent Members, in such Manner, and under such Penalties as each House may provide.

Each House may determine the Rules of its Proceedings, punish its Members for disorderly Behavior, and, with the Concurrence of two thirds, expel a Member.

Each House shall keep a Journal of its Proceedings, and from time to time publish the same, excepting such Parts as may in their Judgment require Secrecy; and the Yeas and Nays of the Members of either House on any question shall, at the Desire of one fifth of those Present, be entered on the Journal.

Neither House, during the Session of Congress, shall, without the Consent of the other, adjourn for more than three days, nor to any other Place than that in which the two Houses shall be sitting.

§ 6 The Senators and Representatives shall receive a Compensation for their Services, to be ascertained by Law, and paid out of the Treasury of the United States. They shall in all Cases, except Treason, Felony and Breach of the Peace, be privileged from Arrest during their Attendance at the Session of their respective Houses, and in going to and returning from the same; and for any Speech or Debate in either House, they shall not be questioned in any other Place.

No Senator or Representative shall, during the Time for which he was elected, be appointed to any civil Office under the Authority of the United States, which shall have been created, or the Emoluments whereof shall have been encreased during such time; and no Person holding any Office under the United States, shall be a Member of either House during his Continuance in Office.

§ 7 All Bills for raising Revenue shall originate in the House of Representatives; but the Senate may propose or concur with Amendments as on other Bills.

Every Bill which shall have passed the House of Representatives and the Senate, shall, before it become a Law, be presented to the President of the United States; If he approve he shall sign it, but if not he shall return it, with his Objections to that House in which it shall have originated, who shall enter the Objections at large on their Journal, and proceed to reconsider it. If after such Reconsideration two thirds of that House shall agree to pass the Bill, it shall be sent, together with the Objections, to the other House, by which it shall likewise be reconsidered, and if approved by two thirds of that House, it shall become a Law. But in all such Cases the Votes of both Houses shall be determined by Yeas and Nays, and the Names of the Persons voting for and against the Bill shall be entered on the Journal of each

House respectively. If any Bill shall not be returned by the President within ten Days (Sundays excepted) after it shall have been presented to him, the Same shall be a Law, in like Manner as if he had signed it, unless the Congress by their Adjournment prevent its Return, in which Case it shall not be a Law.

Every Order, Resolution, or Vote to which the Concurrence of the Senate and House of Representatives may be necessary (except on a question of Adjournment) shall be presented to the President of the United States; and before the Same shall take Effect, shall be approved by him, or being disapproved by him, shall be repassed by two thirds of the Senate and House of Representatives, according to the Rules and Limitations prescribed in the Case of a Bill.

§ 8 The Congress shall have Power To lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defence and general Welfare of the United States; but all Duties, Imposts and Excises shall be uniform throughout the United States;

To borrow Money on the credit of the United States;

To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes;

To establish a uniform Rule of Naturalization, and uniform Laws on the subject of Bankruptcies throughout the United States;

To coin Money, regulate the Value thereof, and of foreign Coin, and fix the Standard of Weights and Measures;

To provide for the Punishment of counterfeiting the Securities and current Coin of the United States;

To establish Post Offices and post Roads;

To promote the Progress of Science and useful Arts, by securing for limited Times to Authors and Inventors the exclusive Right to their respective Writings and Discoveries;

To constitute Tribunals inferior to the supreme Court;

To define and punish Piracies and Felonies committed on the high Seas, and Offences against the Law of Nations;

To declare War, grant Letters of Marque and Reprisal, and make Rules concerning Captures on Land and Water;

To raise and support Armies, but no Appropriation of Money to that Use shall be for a longer Term than two Years;

To provide and maintain a Navy;

To make Rules for the Government and Regulation of the land and naval Forces;

To provide for calling forth the Militia to execute the Laws of the Union, suppress Insurrections and repel Invasions;

To provide for organizing, arming, and disciplining, the Militia, and for governing such Part of them as may be employed in the Service of the United States, reserving to the States respectively, the Appointment of the Officers, and the Authority of training the Militia according to the discipline prescribed by Congress;

To exercise exclusive Legislation in all Cases whatsoever, over such District (not exceeding ten Miles square) as may, by Cession of particular States, and the Acceptance of Congress, become the Seat of the Government of the United States, and to exercise like Authority over all Places purchased by the Consent of the Legislature of the State in which the Same shall be, for the Erection of Forts, Magazines, Arsenals, dock-Yards, and other needful buildings;–And

To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.

§ 9 The Migration or Importation of such Persons as any of the States now existing shall think proper to admit, shall not be prohibited by the Congress prior to the Year one thousand eight hundred and eight, but a Tax or duty may be imposed on such Importation, not exceeding ten dollars for each Person.

The Privilege of the Writ of Habeas Corpus shall not be suspended, unless when in Cases of Rebellion or Invasion the public Safety may require it.

No Bill of Attainder or ex post facto Law shall be passed.

No Capitation, or other direct, Tax shall be laid, unless in Proportion to the Census or Enumeration herein before directed to be taken.

No Tax or Duty shall be laid on Articles exported from any State.

No Preference shall be given by any Regulation of Commerce or Revenue to the Ports of one State over those of another: nor shall Vessels bound to, or from, one State, be obliged to enter, clear, or pay Duties in another.

No Money shall be drawn from the Treasury, but in Consequence of Appropriations made by Law; and a regular Statement and Account of the Receipts and Expenditures of all public Money shall be published from time to time.

No Title of Nobility shall be granted by the United States: And no Person holding any Office of Profit or Trust under them, shall, without the Consent of the Congress, accept of any present, Emolument, Office, or Title, of any kind whatever, from any King, Prince, or foreign State.

§ 10 No State shall enter into any Treaty, Alliance, or Confederation; grant Letters of Marque and Reprisal; coin Money; emit Bills of Credit; make any Thing but gold and silver Coin a Tender in Payment of Debts; pass any Bill of Attainder, ex post facto Law, or Law impairing the Obligation of Contracts, or grant any Title of Nobility.

No State shall, without the Consent of the Congress, lay any Imposts or Duties on Imports or Exports, except what may be absolutely necessary for executing its inspection Laws: and the net Produce of all Duties and Imposts, laid by any State on Imports or Exports, shall be for the Use of the Treasury of the United States; and all such Laws shall be subject

to the Revision and Control of the Congress.
No State shall, without the Consent of Congress, lay any Duty of Tonnage, keep Troops, or Ships of War in time of Peace, enter into any Agreement or Compact with another State, or with a foreign Power, or engage in War, unless actually invaded, or in such imminent Danger as will not admit of delay.

2 U.S.C. § 1302

Cited by the petitioners 1 times (1 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 0 (0).

Application of laws

(a) *Laws made applicable.* The following laws shall apply, as prescribed by this chapter, to the legislative branch of the Federal Government:

(1) The Fair Labor Standards Act of 1938 (29 U.S.C. 201 et seq.).
(2) Title VII of the Civil Rights Act of 1964 (42 U.S.C. 2000e et seq.).
(3) The Americans with Disabilities Act of 1990 (42 U.S.C. 12101 et seq.).
(4) The Age Discrimination in Employment Act of 1967 (29 U.S.C. 621 et seq.).
(5) The Family and Medical Leave Act of 1993 (29 U.S.C. 2611 et seq.).
(6) The Occupational Safety and Health Act of 1970 (29 U.S.C. 651 et seq.).
(7) Chapter 71 (relating to Federal service labor-management relations) of title 5.
(8) The Employee Polygraph Protection Act of 1988 (29 U.S.C. 2001 et seq.).
(9) The Worker Adjustment and Retraining Notification Act (29 U.S.C. 2101 et seq.).
(10) The Rehabilitation Act of 1973 (29 U.S.C. 701 et seq.).
(11) Chapter 43 (relating to veterans' employment and reemployment) of title 38.
(12) Section 9202 of title 5.

(b) *Laws which may be made applicable.*

(1) *In general.* The Board shall review provisions of Federal law (including regulations) relating to (A) the terms and conditions of employment (including hiring, promotion, demotion, termination, salary, wages, overtime compensation, benefits, work assignments or reassignments, grievance and disciplinary procedures, protection from discrimination in personnel actions, occupational health and safety, and family and medical and other leave) of employees, and (B) access to public services and accommodations.

(2) *Board report.* Beginning on December 31, 1996, and every 2 years thereafter, the Board shall report on (A) whether or to what degree the provisions described in paragraph (1) are applicable or inapplicable to the legislative branch, and (B) with respect to provisions inapplicable to the legislative branch, whether such provisions should be made applicable to the legislative branch. The presiding officers of the House of Representatives and the Senate shall cause each such report to be printed in the Congressional Record and each such report shall be referred to the committees of the House of Representatives and the Senate with jurisdiction.

(3) *Reports of congressional committees.* Each report accompanying any bill or joint resolution relating to terms and conditions of employment or access to public services or accommodations reported by a committee of the House of Representatives or the Senate shall—

(A) describe the manner in which the provisions of the bill or joint resolution apply to the legislative branch; or
(B) in the case of a provision not applicable to the legislative branch, include a statement of the reasons the provision does not apply.

On the objection of any Member, it shall not be in order for the Senate or the House of Representatives to consider any such bill or joint resolution if the report of the committee on such bill or joint resolution does not comply with the provisions of this paragraph. This paragraph may be waived in either House by majority vote of that House.

(c) *Genetic Information Nondiscrimination Act of 2008.*

(1) *In general.* The provisions of this chapter that apply to a violation of section 1311(a)(1) of this title shall be considered to apply to a violation of title II of the Genetic Information Nondiscrimination Act of 2008 (42 U.S.C. 2000ff et seq.), consistent with section 207(c) of that Act (42 U.S.C. 2000ff–6(c)).

(2) *Construction.*

(A) *No limitation on other laws.* Nothing in this section limits the provisions of this chapter that apply to a violation of a law described in subparagraph (B).

(B) *Other laws.* A law described in this subparagraph is a law (even if not listed in subsection (a) or this subsection) that explicitly applies one or more provisions of this chapter to a violation.

2 U.S.C. § 1311

Cited by the petitioners 1 times (1 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 0 (0).

Rights and protections under title VII of Civil Rights Act of 1964, Age Discrimination in Employment Act of 1967, Rehabilitation Act of 1973, and title I of Americans with Disabilities Act of 1990

(a) *Discriminatory practices prohibited.* All personnel actions affecting covered employees shall be made free from any discrimination based on—

(1) race, color, religion, sex, or national origin, within the meaning of section 703 of the Civil Rights Act of 1964 (42 U.S.C. 2000e–2);

(2) age, within the meaning of section 15 of the Age Discrimination in Employment Act of 1967 (29 U.S.C. 633a); or

(3) disability, within the meaning of section 501 of the Rehabilitation Act of 1973 (29 U.S.C. 791) and sections 102 through 104 of the Americans with Disabilities Act of 1990 (42 U.S.C. 12112–12114).

(b) *Remedy.*

(1) *Civil rights.* The remedy for a violation of subsection (a)(1) shall be—

(A) such remedy as would be appropriate if awarded under section 706(g) of the Civil Rights Act of 1964 (42 U.S.C. 2000e–5(g)); and

(B) such compensatory damages as would be appropriate if awarded under section 1981 of title 42, or as would be appropriate if awarded under sections 1981a(a)(1), 1981a(b)(2), and, irrespective of the size of the employing office, 1981a(b)(3)(D) of title 42.

(2) *Age discrimination.* The remedy for a violation of subsection (a)(2) shall be—

(A) such remedy as would be appropriate if awarded under section 15(c) of the Age Discrimination in Employment Act of 1967 (29 U.S.C. 633a(c)); and

(B) such liquidated damages as would be appropriate if awarded under section 7(b) of such Act (29 U.S.C. 626(b)).

In addition, the waiver provisions of section 7(f) of such Act (29 U.S.C. 626(f)) shall apply to covered employees.

(3) *Disabilities discrimination.* The remedy for a violation of subsection (a)(3) shall be—

(A) such remedy as would be appropriate if awarded under section 505(a)(1) of the Rehabilitation Act of 1973 (29 U.S.C. 794a(a)(1)) or section 107(a) of the Americans with Disabilities Act of 1990 (42 U.S.C. 12117(a)); and

(B) such compensatory damages as would be appropriate if awarded under sections 1981a(a)(2), 1981a(a)(3), 1981a(b)(2), and, irrespective of the size of the employing office, 1981a(b)(3)(D) of title 42.

(c) *Omitted.*

(d) *Application to unpaid staff.*

(1) *In general.* Subsections (a) and (b) shall apply with respect to—

(A) any staff member of an employing office who carries out official duties of the employing office but who is not paid by the employing office for carrying out such duties (referred to in this subsection as an "unpaid staff member"), including an intern, an individual detailed to an employing office, and an individual participating in a fellowship program, in the same manner and to the same extent as such subsections apply with respect to a covered employee; and

(B) a former unpaid staff member, if the act that may be a violation of subsection (a) occurred during the service of the former unpaid staffer for the employing office.

(2) *Rule of construction.* Nothing in paragraph (1) may be construed to extend liability for a violation of subsection (a) to an employing office on the basis of an action taken by any person who is not under the supervision or control of the employing office.

(3) *Intern defined.* For purposes of this subsection, the term "intern" means an individual who performs service for an employing office which is uncompensated by the United States to earn credit awarded by an educational institution or to learn a trade or occupation, and includes any individual participating in a page program operated by any House of Congress.

(e) *Effective date.* This section shall take effect 1 year after January 23, 1995.

5 U.S.C. § 413

Cited by the petitioners 8 times (1 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Special provisions concerning the Department of Justice

(a) *In General.—.*

(1) *Authority of attorney general over certain audits and investigations.—.* Notwithstanding the 2d sentence and last sentence of section 403(a) of this title, the Inspector General shall be under the authority, direction, and control of the Attorney General with respect to audits or investigations, or the issuance of subpoenas, which require access to sensitive information concerning—

(A) ongoing civil or criminal investigations or proceedings;

(B) undercover operations;

(C) the identity of confidential sources, including protected witnesses;

(D) intelligence or counterintelligence matters; or

(E) other matters the disclosure of which would constitute a serious threat to national security.

(2) *Authority of attorney general to prohibit carrying out or completing certain audits and investigations.*—. With respect to the information described under paragraph (1), the Attorney General may prohibit the Inspector General from carrying out or completing any audit or investigation, from accessing information described in paragraph (1), or from issuing any subpoena, after such Inspector General has decided to initiate, carry out, or complete such audit or investigation, access such information, or to issue such subpoena, if the Attorney General determines that such prohibition is necessary to prevent the disclosure of any information described under paragraph (1) or to prevent significant impairment to the national interests of the United States.

(3) *Notification and statement of reasons for exercise of power.*—. If the Attorney General exercises any power under paragraph (1) or (2), the Attorney General shall notify the Inspector General in writing, stating the reasons for such exercise. Within 30 days after receipt of any such notice, the Inspector General shall transmit a copy of such notice to the Committee on Homeland Security and Governmental Affairs and the Committee on the Judiciary of the Senate and the Committee on Oversight and Reform and the Committee on the Judiciary of the House of Representatives, and to other appropriate committees or subcommittees of the Congress.

(b) *Carrying Out Duties and Responsibilities.*—. In carrying out the duties and responsibilities specified in this chapter, the Inspector General of the Department of Justice—

(1) may initiate, conduct and supervise such audits and investigations in the Department of Justice as the Inspector General considers appropriate;

(2) except as specified in subsection (a) and paragraph (3), may investigate allegations of criminal wrongdoing or administrative misconduct by an employee of the Department of Justice, or may, in the discretion of the Inspector General, refer such allegations to the Office of Professional Responsibility or the internal affairs office of the appropriate component of the Department of Justice;

(3) shall refer to the Counsel, Office of Professional Responsibility of the Department of Justice, allegations of misconduct involving Department attorneys, investigators, or law enforcement personnel, where the allegations relate to the exercise of the authority of an attorney to investigate, litigate, or provide legal advice, except that no such referral shall be made if the attorney is employed in the Office of Professional Responsibility;

(4) may investigate allegations of criminal wrongdoing or administrative misconduct by a person who is the head of any agency or component of the Department of Justice; and

(5) shall forward the results of any investigation conducted under paragraph (4), along with any appropriate recommendation for disciplinary action, to the Attorney General.

(c) *Reports.*—. Any report required to be transmitted by the Attorney General to the appropriate committees or subcommittees of the Congress under section 405(e) of this title shall also be transmitted, within the 7-day period specified under that section, to the Committee on the Judiciary and the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on the Judiciary and the Committee on Oversight and Reform of the House of Representatives.

(d) *Regulation To Ensure Reporting of Certain Allegations to Inspector General.*—. The Attorney General shall ensure by regulation that any component of the Department of Justice receiving a nonfrivolous allegation of criminal wrongdoing or administrative misconduct by an employee of the Department of Justice, except with respect to allegations described in subsection (b)(3), shall report that information to the Inspector General.

5 U.S.C. § 8105

Cited by the petitioners 1 times (1 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 0 (0).

Total disability

(a) If the disability is total, the United States shall pay the employee during the disability monthly monetary compensation equal to $66^{2}/_{3}$ percent of his monthly pay, which is known as his basic compensation for total disability.

(b) The loss of use of both hands, both arms, both feet, or both legs, or the loss of sight of both eyes, is prima facie permanent total disability.

5 U.S.C. § 8133

Cited by the petitioners 1 times (1 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 0 (0).

Compensation in case of death

(a) If death results from an injury sustained in the performance of duty, the United States shall pay a monthly compensation equal to a percentage of the monthly pay of the deceased employee in accordance with the following schedule:

(1) To the widow or widower, if there is no child, 50 percent.

(2) To the widow or widower, if there is a child, 45 percent and in addition 15 percent for each child not to exceed a

total of 75 percent for the widow or widower and children.

(3) To the children, if there is no widow or widower, 40 percent for one child and 15 percent additional for each additional child not to exceed a total of 75 percent, divided among the children share and share alike.

(4) To the parents, if there is no widow, widower, or child, as follows—

(A) 25 percent if one parent was wholly dependent on the employee at the time of death and the other was not dependent to any extent;

(B) 20 percent to each if both were wholly dependent; or

(C) a proportionate amount in the discretion of the Secretary of Labor if one or both were partly dependent.

If there is a widow, widower, or child, so much of the percentages are payable as, when added to the total percentages payable to the widow, widower, and children, will not exceed a total of 75 percent.

(5) To the brothers, sisters, grandparents, and grandchildren, if there is no widow, widower, child, or dependent parent, as follows—

(A) 20 percent if one was wholly dependent on the employee at the time of death;

(B) 30 percent if more than one was wholly dependent, divided among the dependents share and share alike; or

(C) 10 percent if no one is wholly dependent but one or more is partly dependent, divided among the dependents share and share alike.

If there is a widow, widower, child, or dependent parent, so much of the percentages are payable as, when added to the total percentages payable to the widow, widower, children, and dependent parents, will not exceed a total of 75 percent.

(b) The compensation payable under subsection (a) of this section is paid from the time of death until—

(1) a widow, or widower dies or remarries before reaching age 55;

(2) a child, a brother, a sister, or a grandchild dies, marries, or becomes 18 years of age, or if over age 18 and incapable of self-support becomes capable of self-support; or

(3) a parent or grandparent dies, marries, or ceases to be dependent.

Notwithstanding paragraph (2) of this subsection, compensation payable to or for a child, a brother or sister, or grandchild that would otherwise end because the child, brother or sister, or grandchild has reached 18 years of age shall continue if he is a student as defined by section 8101 of this title at the time he reaches 18 years of age for so long as he continues to be such a student or until he marries. A widow or widower who has entitlements to benefits under this title derived from more than one husband or wife shall elect one entitlement to be utilized.

(c) On the cessation of compensation under this section to or on account of an individual, the compensation of the remaining individuals entitled to compensation for the unexpired part of the period during which their compensation is payable, is that which they would have received if they had been the only individuals entitled to compensation at the time of the death of the employee.

(d) When there are two or more classes of individuals entitled to compensation under this section and the apportionment of compensation under this section would result in injustice, the Secretary may modify the apportionment to meet the requirements of the case.

(e) In computing compensation under this section, the monthly pay is deemed not less than the minimum rate of basic pay for GS–2. However, the total monthly compensation may not exceed—

(1) the monthly pay computed under section 8114 of this title, except for increases authorized by section 8146a of this title; or

(2) 75 percent of the monthly pay of the maximum rate of basic pay for GS–15.

(f) Notwithstanding any funeral and burial expenses paid under section 8134, there shall be paid a sum of $200 to the personal representative of a deceased employee within the meaning of section 8101(1) of this title for reimbursement of the costs of termination of the decedent's status as an employee of the United States.

5 U.S.C. § 8102a

Cited by the petitioners 1 times (1 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 0 (0).

Death gratuity for injuries incurred in connection with employee's service with an Armed Force

(a) *Death Gratuity Authorized.*—. The United States shall pay a death gratuity of up to $100,000 to or for the survivor prescribed by subsection (d) immediately upon receiving official notification of the death of an employee who dies of injuries incurred in connection with the employee's service with an Armed Force in a contingency operation.

(b) *Retroactive Payment in Certain Cases.*—. At the discretion of the Secretary concerned, subsection (a) may apply in the case of an employee who died, on or after October 7, 2001, and before the date of enactment of this section, as a result of injuries incurred in connection with the employee's service with an Armed Force in the theater of operations of Operation Enduring Freedom or Operation Iraqi Freedom.

(c) *Relationship to Other Benefits.*—. The death gratuity payable under this section shall be reduced by the amount of any death gratuity provided under section 413 of the Foreign Service Act of 1980, section 1603 of the Emergency

Supplemental Appropriations Act for Defense, the Global War on Terror, and Hurricane Recovery, 2006, or any other law of the United States based on the same death.

(d) *Eligible Survivors.—*.

(1) Subject to paragraph (5), a death gratuity payable upon the death of a person covered by subsection (a) shall be paid to or for the living survivor highest on the following list:

(A) The employee's surviving spouse.

(B) The employee's children, as prescribed by paragraph (2), in equal shares.

(C) If designated by the employee, any one or more of the following persons:

(i) The employee's parents or persons in loco parentis, as prescribed by paragraph (3).

(ii) The employee's brothers.

(iii) The employee's sisters.

(D) The employee's parents or persons in loco parentis, as prescribed by paragraph (3), in equal shares.

(E) The employee's brothers and sisters in equal shares.

Subparagraphs (C) and (E) of this paragraph include brothers and sisters of the half blood and those through adoption.

(2) Paragraph (1)(B) applies, without regard to age or marital status, to—

(A) legitimate children;

(B) adopted children;

(C) stepchildren who were a part of the decedent's household at the time of death;

(D) illegitimate children of a female decedent; and

(E) illegitimate children of a male decedent—

(i) who have been acknowledged in writing signed by the decedent;

(ii) who have been judicially determined, before the decedent's death, to be his children;

(iii) who have been otherwise proved, by evidence satisfactory to the employing agency, to be children of the decedent; or

(iv) to whose support the decedent had been judicially ordered to contribute.

(3) Subparagraphs (C) and (D) of paragraph (1), so far as they apply to parents and persons in loco parentis, include fathers and mothers through adoption, and persons who stood in loco parentis to the decedent for a period of not less than one year at any time before the decedent became an employee. However, only one father and one mother, or their counterparts in loco parentis, may be recognized in any case, and preference shall be given to those who exercised a parental relationship on the date, or most nearly before the date, on which the decedent became an employee.

(4) A person covered by this section may designate another person to receive an amount payable under this section. The designation shall indicate the percentage of the amount, to be specified only in 10 percent increments, that the designated person may receive. The balance of the amount of the death gratuity shall be paid to or for the living survivors of the person concerned in accordance with subparagraphs (A) through (E) of paragraph (1).

(5) If a person entitled to all or a portion of a death gratuity under paragraph (1) or (4) dies before the person receives the death gratuity, it shall be paid to the living survivor next in the order prescribed by paragraph (1).

(6) If a person covered by this section has a spouse, but designates a person other than the spouse to receive all or a portion of the amount payable under this section, the head of the agency, or other entity, in which that person is employed shall provide notice of the designation to the spouse.

(e) *Definitions.—*.

(1) The term "contingency operation" has the meaning given to that term in section 1482a(c) of title 10, United States Code.

(2) The term "employee" has the meaning provided in section 8101 of this title, but also includes a nonappropriated fund instrumentality employee, as defined in section 1587(a)(1) of title 10.

18 U.S.C. § 844

Cited by the petitioners 1 times (1 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 0 (0).

Penalties

(a) Any person who—

(1) violates any of subsections (a) through (i) or (l) through (o) of section 842 shall be fined under this title, imprisoned for not more than 10 years, or both; and

(2) violates subsection (p)(2) of section 842, shall be fined under this title, imprisoned not more than 20 years, or both.

(b) Any person who violates any other provision of section 842 of this chapter shall be fined under this title or imprisoned not more than one year, or both.

(c)

(1) Any explosive materials involved or used or intended to be used in any violation of the provisions of this chapter or any other rule or regulation promulgated thereunder or any violation of any criminal law of the United States shall be subject to seizure and forfeiture, and all provisions of the Internal Revenue Code of 1986 relating to the seizure, forfeiture, and disposition of firearms, as defined in section 5845(a) of that Code, shall, so far as applicable, extend to seizures and forfeitures under the provisions of this chapter.

(2) Notwithstanding paragraph (1), in the case of the seizure of any explosive materials for any offense for which the materials would be subject to forfeiture in which it would be impracticable or unsafe to remove the materials to a place of storage or would be unsafe to store them, the seizing officer may destroy the explosive materials forthwith. Any destruction under this paragraph shall be in the presence of at least 1 credible witness. The seizing officer shall make a report of the seizure and take samples as the Attorney General may by regulation prescribe.

(3) Within 60 days after any destruction made pursuant to paragraph (2), the owner of (including any person having an interest in) the property so destroyed may make application to the Attorney General for reimbursement of the value of the property. If the claimant establishes to the satisfaction of the Attorney General that—

(A) the property has not been used or involved in a violation of law; or

(B) any unlawful involvement or use of the property was without the claimant's knowledge, consent, or willful blindness,

the Attorney General shall make an allowance to the claimant not exceeding the value of the property destroyed.

(d) Whoever transports or receives, or attempts to transport or receive, in interstate or foreign commerce any explosive with the knowledge or intent that it will be used to kill, injure, or intimidate any individual or unlawfully to damage or destroy any building, vehicle, or other real or personal property, shall be imprisoned for not more than ten years, or fined under this title, or both; and if personal injury results to any person, including any public safety officer performing duties as a direct or proximate result of conduct prohibited by this subsection, shall be imprisoned for not more than twenty years or fined under this title, or both; and if death results to any person, including any public safety officer performing duties as a direct or proximate result of conduct prohibited by this subsection, shall be subject to imprisonment for any term of years, or to the death penalty or to life imprisonment.

(e) Whoever, through the use of the mail, telephone, telegraph, or other instrument of interstate or foreign commerce, or in or affecting interstate or foreign commerce, willfully makes any threat, or maliciously conveys false information knowing the same to be false, concerning an attempt or alleged attempt being made, or to be made, to kill, injure, or intimidate any individual or unlawfully to damage or destroy any building, vehicle, or other real or personal property by means of fire or an explosive shall be imprisoned for not more than 10 years or fined under this title, or both.

(f)

(1) Whoever maliciously damages or destroys, or attempts to damage or destroy, by means of fire or an explosive, any building, vehicle, or other personal or real property in whole or in part owned or possessed by, or leased to, the United States, or any department or agency thereof, or any institution or organization receiving Federal financial assistance, shall be imprisoned for not less than 5 years and not more than 20 years, fined under this title, or both.

(2) Whoever engages in conduct prohibited by this subsection, and as a result of such conduct, directly or proximately causes personal injury or creates a substantial risk of injury to any person, including any public safety officer performing duties, shall be imprisoned for not less than 7 years and not more than 40 years, fined under this title, or both.

(3) Whoever engages in conduct prohibited by this subsection, and as a result of such conduct directly or proximately causes the death of any person, including any public safety officer performing duties, shall be subject to the death penalty, or imprisoned for not less than 20 years or for life, fined under this title, or both.

(g)

(1) Except as provided in paragraph (2), whoever possesses an explosive in an airport that is subject to the regulatory authority of the Federal Aviation Administration, or in any building in whole or in part owned, possessed, or used by, or leased to, the United States or any department or agency thereof, except with the written consent of the agency, department, or other person responsible for the management of such building or airport, shall be imprisoned for not more than five years, or fined under this title, or both.

(2) The provisions of this subsection shall not be applicable to—

(A) the possession of ammunition (as that term is defined in regulations issued pursuant to this chapter) in an airport that is subject to the regulatory authority of the Federal Aviation Administration if such ammunition is either in checked baggage or in a closed container; or

(B) the possession of an explosive in an airport if the packaging and transportation of such explosive is exempt from, or subject to and in accordance with, regulations of the Pipeline and Hazardous Materials Safety Administration for the handling of hazardous materials pursuant to chapter 51 of title 49.

(h) Whoever—

(1) uses fire or an explosive to commit any felony which may be prosecuted in a court of the United States, or

(2) carries an explosive during the commission of any felony which may be prosecuted in a court of the United States,

including a felony which provides for an enhanced punishment if committed by the use of a deadly or dangerous weapon or device shall, in addition to the punishment provided for such felony, be sentenced to imprisonment for 10 years. In the case of a second or subsequent conviction under this subsection, such person shall be sentenced to imprisonment for 20 years. Notwithstanding any other provision of law, the court shall not place on probation or suspend the sentence of any person convicted of a violation of this subsection, nor shall the term of imprisonment imposed under this subsection run concurrently with any other term of imprisonment including that imposed for the felony in which the explosive was used or carried.

(i) Whoever maliciously damages or destroys, or attempts to damage or destroy, by means of fire or an explosive, any building, vehicle, or other real or personal property used in interstate or foreign commerce or in any activity affecting interstate or foreign commerce shall be imprisoned for not less than 5 years and not more than 20 years, fined under this title, or both; and if personal injury results to any person, including any public safety officer performing duties as a direct or proximate result of conduct prohibited by this subsection, shall be imprisoned for not less than 7 years and not more than 40 years, fined under this title, or both; and if death results to any person, including any public safety officer performing duties as a direct or proximate result of conduct prohibited by this subsection, shall also be subject to imprisonment for any term of years, or to the death penalty or to life imprisonment.

(j) For the purposes of subsections (d), (e), (f), (g), (h), and (i) of this section and section 842(p), the term "explosive" means gunpowders, powders used for blasting, all forms of high explosives, blasting materials, fuzes (other than electric circuit breakers), detonators, and other detonating agents, smokeless powders, other explosive or incendiary devices within the meaning of paragraph (5) of section 232 of this title, and any chemical compounds, mechanical mixture, or device that contains any oxidizing and combustible units, or other ingredients, in such proportions, quantities, or packing that ignition by fire, by friction, by concussion, by percussion, or by detonation of the compound, mixture, or device or any part thereof may cause an explosion.

(k) A person who steals any explosives materials which are moving as, or are a part of, or which have moved in, interstate or foreign commerce shall be imprisoned for not more than 10 years, fined under this title, or both.

(l) A person who steals any explosive material from a licensed importer, licensed manufacturer, or licensed dealer, or from any permittee shall be fined under this title, imprisoned not more than 10 years, or both.

(m) A person who conspires to commit an offense under subsection (h) shall be imprisoned for any term of years not exceeding 20, fined under this title, or both.

(n) Except as otherwise provided in this section, a person who conspires to commit any offense defined in this chapter shall be subject to the same penalties (other than the penalty of death) as the penalties prescribed for the offense the commission of which was the object of the conspiracy.

(o) Whoever knowingly transfers any explosive materials, knowing or having reasonable cause to believe that such explosive materials will be used to commit a crime of violence (as defined in section 924(c)(3)) or drug trafficking crime (as defined in section 924(c)(2)) shall be subject to the same penalties as may be imposed under subsection (h) for a first conviction for the use or carrying of an explosive material.

(p) *Theft Reporting Requirement.*—.

(1) *In general.*—. A holder of a license or permit who knows that explosive materials have been stolen from that licensee or permittee, shall report the theft to the Secretary not later than 24 hours after the discovery of the theft.

(2) *Penalty.*—. A holder of a license or permit who does not report a theft in accordance with paragraph (1), shall be fined not more than $10,000, imprisoned not more than 5 years, or both.

18 U.S.C. § 1365

Cited by the petitioners 2 times (1 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 0 (0).

Tampering with consumer products

(a) Whoever, with reckless disregard for the risk that another person will be placed in danger of death or bodily injury and under circumstances manifesting extreme indifference to such risk, tampers with any consumer product that affects interstate or foreign commerce, or the labeling of, or container for, any such product, or attempts to do so, shall—

(1) in the case of an attempt, be fined under this title or imprisoned not more than ten years, or both;

(2) if death of an individual results, be fined under this title or imprisoned for any term of years or for life, or both;

(3) if serious bodily injury to any individual results, be fined under this title or imprisoned not more than twenty years, or both; and

(4) in any other case, be fined under this title or imprisoned not more than ten years, or both.

(b) Whoever, with intent to cause serious injury to the business of any person, taints any consumer product or renders materially false or misleading the labeling of, or container for, a consumer product, if such consumer product affects interstate or foreign commerce, shall be fined under this title or imprisoned not more than three years, or both.

(c)

(1) Whoever knowingly communicates false information that a consumer product has been tainted, if such product or

the results of such communication affect interstate or foreign commerce, and if such tainting, had it occurred, would create a risk of death or bodily injury to another person, shall be fined under this title or imprisoned not more than five years, or both.

(2) As used in paragraph (1) of this subsection, the term "communicates false information" means communicates information that is false and that the communicator knows is false, under circumstances in which the information may reasonably be expected to be believed.

(d) Whoever knowingly threatens, under circumstances in which the threat may reasonably be expected to be believed, that conduct that, if it occurred, would violate subsection (a) of this section will occur, shall be fined under this title or imprisoned not more than five years, or both.

(e) Whoever is a party to a conspiracy of two or more persons to commit an offense under subsection (a) of this section, if any of the parties intentionally engages in any conduct in furtherance of such offense, shall be fined under this title or imprisoned not more than ten years, or both.

(f)

(1) Whoever, without the consent of the manufacturer, retailer, or distributor, intentionally tampers with a consumer product that is sold in interstate or foreign commerce by knowingly placing or inserting any writing in the consumer product, or in the container for the consumer product, before the sale of the consumer product to any consumer shall be fined under this title, imprisoned not more than 1 year, or both.

(2) Notwithstanding the provisions of paragraph (1), if any person commits a violation of this subsection after a prior conviction under this section becomes final, such person shall be fined under this title, imprisoned for not more than 3 years, or both.

(3) In this subsection, the term "writing" means any form of representation or communication, including hand-bills, notices, or advertising, that contain letters, words, or pictorial representations.

(g) In addition to any other agency which has authority to investigate violations of this section, the Food and Drug Administration and the Department of Agriculture, respectively, have authority to investigate violations of this section involving a consumer product that is regulated by a provision of law such Administration or Department, as the case may be, administers.

(h) As used in this section—

(1) the term "consumer product" means—

(A) any "food", "drug", "device", or "cosmetic", as those terms are respectively defined in section 201 of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 321); or

(B) any article, product, or commodity which is customarily produced or distributed for consumption by individuals, or use by individuals for purposes of personal care or in the performance of services ordinarily rendered within the household, and which is designed to be consumed or expended in the course of such consumption or use;

(2) the term "labeling" has the meaning given such term in section 201(m) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 321(m));

(3) the term "serious bodily injury" means bodily injury which involves—

(A) a substantial risk of death;

(B) extreme physical pain;

(C) protracted and obvious disfigurement; or

(D) protracted loss or impairment of the function of a bodily member, organ, or mental faculty; and

(4) the term "bodily injury" means—

(A) a cut, abrasion, bruise, burn, or disfigurement;

(B) physical pain;

(C) illness;

(D) impairment of the function of a bodily member, organ, or mental faculty; or

(E) any other injury to the body, no matter how temporary.

18 U.S.C. § 3621

Cited by the petitioners 1 times (1 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 0 (0).

Imprisonment of a convicted person

(a) *Commitment to Custody of Bureau of Prisons.*—. A person who has been sentenced to a term of imprisonment pursuant to the provisions of subchapter D of chapter 227 shall be committed to the custody of the Bureau of Prisons until the expiration of the term imposed, or until earlier released for satisfactory behavior pursuant to the provisions of section 3624.

(b) *Place of Imprisonment.*—. The Bureau of Prisons shall designate the place of the prisoner's imprisonment, and shall, subject to bed availability, the prisoner's security designation, the prisoner's programmatic needs, the prisoner's mental and medical health needs, any request made by the prisoner related to faith-based needs, recommendations of

the sentencing court, and other security concerns of the Bureau of Prisons, place the prisoner in a facility as close as practicable to the prisoner's primary residence, and to the extent practicable, in a facility within 500 driving miles of that residence. The Bureau shall, subject to consideration of the factors described in the preceding sentence and the prisoner's preference for staying at his or her current facility or being transferred, transfer prisoners to facilities that are closer to the prisoner's primary residence even if the prisoner is already in a facility within 500 driving miles of that residence. The Bureau may designate any available penal or correctional facility that meets minimum standards of health and habitability established by the Bureau, whether maintained by the Federal Government or otherwise and whether within or without the judicial district in which the person was convicted, that the Bureau determines to be appropriate and suitable, considering—

(1) the resources of the facility contemplated;

(2) the nature and circumstances of the offense;

(3) the history and characteristics of the prisoner;

(4) any statement by the court that imposed the sentence—

(A) concerning the purposes for which the sentence to imprisonment was determined to be warranted; or

(B) recommending a type of penal or correctional facility as appropriate; and

(5) any pertinent policy statement issued by the Sentencing Commission pursuant to section 994(a)(2) of title 28.

In designating the place of imprisonment or making transfers under this subsection, there shall be no favoritism given to prisoners of high social or economic status. The Bureau may at any time, having regard for the same matters, direct the transfer of a prisoner from one penal or correctional facility to another. The Bureau shall make available appropriate substance abuse treatment for each prisoner the Bureau determines has a treatable condition of substance addiction or abuse. Any order, recommendation, or request by a sentencing court that a convicted person serve a term of imprisonment in a community corrections facility shall have no binding effect on the authority of the Bureau under this section to determine or change the place of imprisonment of that person. Notwithstanding any other provision of law, a designation of a place of imprisonment under this subsection is not reviewable by any court.

(c) *Delivery of Order of Commitment.*—. When a prisoner, pursuant to a court order, is placed in the custody of a person in charge of a penal or correctional facility, a copy of the order shall be delivered to such person as evidence of this authority to hold the prisoner, and the original order, with the return endorsed thereon, shall be returned to the court that issued it.

(d) *Delivery of Prisoner for Court Appearances.*—. The United States marshal shall, without charge, bring a prisoner into court or return him to a prison facility on order of a court of the United States or on written request of an attorney for the Government.

(e) *Substance Abuse Treatment.*—.

(1) *Phase-in.*—. In order to carry out the requirement of the last sentence of subsection (b) of this section, that every prisoner with a substance abuse problem have the opportunity to participate in appropriate substance abuse treatment, the Bureau of Prisons shall, subject to the availability of appropriations, provide residential substance abuse treatment (and make arrangements for appropriate aftercare)—

(A) for not less than 50 percent of eligible prisoners by the end of fiscal year 1995, with priority for such treatment accorded based on an eligible prisoner's proximity to release date;

(B) for not less than 75 percent of eligible prisoners by the end of fiscal year 1996, with priority for such treatment accorded based on an eligible prisoner's proximity to release date; and

(C) for all eligible prisoners by the end of fiscal year 1997 and thereafter, with priority for such treatment accorded based on an eligible prisoner's proximity to release date.

(2) *Incentive for prisoners' successful completion of treatment program.*—.

(A) *Generally.*—. Any prisoner who, in the judgment of the Director of the Bureau of Prisons, has successfully completed a program of residential substance abuse treatment provided under paragraph (1) of this subsection, shall remain in the custody of the Bureau under such conditions as the Bureau deems appropriate. If the conditions of confinement are different from those the prisoner would have experienced absent the successful completion of the treatment, the Bureau shall periodically test the prisoner for substance abuse and discontinue such conditions on determining that substance abuse has recurred.

(B) *Period of custody.*—. The period a prisoner convicted of a nonviolent offense remains in custody after successfully completing a treatment program may be reduced by the Bureau of Prisons, but such reduction may not be more than one year from the term the prisoner must otherwise serve.

(3) *Report.*—. The Bureau of Prisons shall transmit to the Committees on the Judiciary of the Senate and the House of Representatives on January 1, 1995, and on January 1 of each year thereafter, a report. Such report shall contain—

(A) a detailed quantitative and qualitative description of each substance abuse treatment program, residential or not, operated by the Bureau;

(B) a full explanation of how eligibility for such programs is determined, with complete information on what

proportion of prisoners with substance abuse problems are eligible; and

(C) a complete statement of to what extent the Bureau has achieved compliance with the requirements of this title.

(4) *Authorization of appropriations.*—. There are authorized to carry out this subsection such sums as may be necessary for each of fiscal years 2007 through 2011.

(5) *Definitions.*—. As used in this subsection—

(A) the term "residential substance abuse treatment" means a course of individual and group activities and treatment, lasting at least 6 months, in residential treatment facilities set apart from the general prison population (which may include the use of pharmocotherapies, where appropriate, that may extend beyond the 6-month period);

(B) the term "eligible prisoner" means a prisoner who is—

(i) determined by the Bureau of Prisons to have a substance abuse problem; and

(ii) willing to participate in a residential substance abuse treatment program; and

(C) the term "aftercare" means placement, case management and monitoring of the participant in a community-based substance abuse treatment program when the participant leaves the custody of the Bureau of Prisons.

(6) *Coordination of federal assistance.*—. The Bureau of Prisons shall consult with the Department of Health and Human Services concerning substance abuse treatment and related services and the incorporation of applicable components of existing comprehensive approaches including relapse prevention and aftercare services.

(7) *Eligibility of primary caretaker parents and pregnant women.*—. The Director of the Bureau of Prisons may not prohibit an eligible prisoner who is a primary caretaker parent (as defined in section 4051) or pregnant from participating in a program of residential substance abuse treatment provided under paragraph (1) on the basis of a failure by the eligible prisoner, before being committed to the custody of the Bureau of Prisons, to disclose to any official of the Bureau of Prisons that the prisoner had a substance abuse problem on or before the date on which the eligible prisoner was committed to the custody of the Bureau of Prisons.

(f) *Sex Offender Management.*—.

(1) *In general.*—. The Bureau of Prisons shall make available appropriate treatment to sex offenders who are in need of and suitable for treatment, as follows:

(A) *Sex offender management programs.*—. The Bureau of Prisons shall establish non-residential sex offender management programs to provide appropriate treatment, monitoring, and supervision of sex offenders and to provide aftercare during pre-release custody.

(B) *Residential sex offender treatment programs.*—. The Bureau of Prisons shall establish residential sex offender treatment programs to provide treatment to sex offenders who volunteer for such programs and are deemed by the Bureau of Prisons to be in need of and suitable for residential treatment.

(2) *Regions.*—. At least 1 sex offender management program under paragraph (1)(A), and at least one residential sex offender treatment program under paragraph (1)(B), shall be established in each region within the Bureau of Prisons.

(3) *Authorization of appropriations.*—. There are authorized to be appropriated to the Bureau of Prisons for each fiscal year such sums as may be necessary to carry out this subsection.

(g) *Partnerships To Expand Access to Reentry Programs Proven To Reduce Recidivism.*—.

(1) *Definition.*—. The term "demonstrated to reduce recidivism" means that the Director of Bureau of Prisons has determined that appropriate research has been conducted and has validated the effectiveness of the type of program on recidivism.

(2) *Eligibility for recidivism reduction partnership.*—. A faith-based or community-based nonprofit organization that provides mentoring or other programs that have been demonstrated to reduce recidivism is eligible to enter into a recidivism reduction partnership with a prison or community-based facility operated by the Bureau of Prisons.

(3) *Recidivism reduction partnerships.*—. The Director of the Bureau of Prisons shall develop policies to require wardens of prisons and community-based facilities to enter into recidivism reduction partnerships with faith-based and community-based nonprofit organizations that are willing to provide, on a volunteer basis, programs described in paragraph (2).

(4) *Reporting requirement.*—. The Director of the Bureau of Prisons shall submit to Congress an annual report on the last day of each fiscal year that—

(A) details, for each prison and community-based facility for the fiscal year just ended—

(i) the number of recidivism reduction partnerships under this section that were in effect;

(ii) the number of volunteers that provided recidivism reduction programming; and

(iii) the number of recidivism reduction programming hours provided; and

(B) explains any disparities between facilities in the numbers reported under subparagraph (A).

(h) *Implementation of Risk and Needs Assessment System.—*.

(1) *In general.—*. Not later than 180 days after the Attorney General completes and releases the risk and needs assessment system (referred to in this subsection as the "System") developed under subchapter D, the Director of the Bureau of Prisons shall, in accordance with that subchapter—

(A) implement and complete the initial intake risk and needs assessment for each prisoner (including for each prisoner who was a prisoner prior to the effective date of this subsection), regardless of the prisoner's length of imposed term of imprisonment, and begin to assign prisoners to appropriate evidence-based recidivism reduction programs based on that determination;

(B) begin to expand the effective evidence-based recidivism reduction programs and productive activities it offers and add any new evidence-based recidivism reduction programs and productive activities necessary to effectively implement the System; and

(C) begin to implement the other risk and needs assessment tools necessary to effectively implement the System over time, while prisoners are participating in and completing the effective evidence-based recidivism reduction programs and productive activities.

(2) *Phase-in.—*. In order to carry out paragraph (1), so that every prisoner has the opportunity to participate in and complete the type and amount of evidence-based recidivism reduction programs or productive activities they need, and be reassessed for recidivism risk as necessary to effectively implement the System, the Bureau of Prisons shall—

(A) provide such evidence-based recidivism reduction programs and productive activities for all prisoners before the date that is 2 years after the date on which the Bureau of Prisons completes a risk and needs assessment for each prisoner under paragraph (1)(A); and

(B) develop and validate the risk and needs assessment tool to be used in the reassessments of risk of recidivism, while prisoners are participating in and completing evidence-based recidivism reduction programs and productive activities.

(3) *Priority during phase-in.—*. During the 2-year period described in paragraph (2)(A), the priority for such programs and activities shall be accorded based on a prisoner's proximity to release date.

(4) *Preliminary expansion of evidence-based recidivism reduction programs and authority to use incentives.—*. Beginning on the date of enactment of this subsection, the Bureau of Prisons may begin to expand any evidence-based recidivism reduction programs and productive activities that exist at a prison as of such date, and may offer to prisoners who successfully participate in such programs and activities the incentives and rewards described in subchapter D.

(5) *Recidivism reduction partnerships.—*. In order to expand evidence-based recidivism reduction programs and productive activities, the Attorney General shall develop policies for the warden of each prison of the Bureau of Prisons to enter into partnerships, subject to the availability of appropriations, with any of the following:

(A) Nonprofit and other private organizations, including faith-based, art, and community-based organizations that will deliver recidivism reduction programming on a paid or volunteer basis.

(B) Institutions of higher education (as defined in section 101 of the Higher Education Act of 1965 (20 U.S.C. 1001)) that will deliver instruction on a paid or volunteer basis.

(C) Private entities that will—

(i) deliver vocational training and certifications;

(ii) provide equipment to facilitate vocational training or employment opportunities for prisoners;

(iii) employ prisoners; or

(iv) assist prisoners in prerelease custody or supervised release in finding employment.

(D) Industry-sponsored organizations that will deliver workforce development and training, on a paid or volunteer basis.

(6) *Requirement to provide programs to all prisoners; priority.—*. The Director of the Bureau of Prisons shall provide all prisoners with the opportunity to actively participate in evidence-based recidivism reduction programs or productive activities, according to their specific criminogenic needs, throughout their entire term of incarceration. Priority for participation in recidivism reduction programs shall be given to medium-risk and high-risk prisoners, with access to productive activities given to minimum-risk and low-risk prisoners.

(7) *Definitions.—*. The terms in this subsection have the meaning given those terms in section 3635.

(i) *Continued Access to Medical Care.—*.

(1) *In general.—*. In order to ensure a minimum standard of health and habitability, the Bureau of Prisons should ensure that each prisoner in a community confinement facility has access to necessary medical care, mental health care, and medicine through partnerships with local health service providers and transition planning.

(2) *Definition.—*. In this subsection, the term "community confinement" has the meaning given that term in the application notes under section 5F1.1 of the Federal Sentencing Guidelines Manual, as in effect on the date of the enactment of the Second Chance Act of 2007.

28 U.S.C. § 1254

Cited by the petitioners 2 times (2 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 0 (0).

Courts of appeals; certiorari; certified questions

(1) By writ of certiorari granted upon the petition of any party to any civil or criminal case, before or after rendition of judgment or decree;

(2) By certification at any time by a court of appeals of any question of law in any civil or criminal case as to which instructions are desired, and upon such certification the Supreme Court may give binding instructions or require the entire record to be sent up for decision of the entire matter in controversy.

28 U.S.C. § 2674

Cited by the petitioners 1 times (1 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 0 (0).

Liability of United States

The United States shall be liable, respecting the provisions of this title relating to tort claims, in the same manner and to the same extent as a private individual under like circumstances, but shall not be liable for interest prior to judgment or for punitive damages.

If, however, in any case wherein death was caused, the law of the place where the act or omission complained of occurred provides, or has been construed to provide, for damages only punitive in nature, the United States shall be liable for actual or compensatory damages, measured by the pecuniary injuries resulting from such death to the persons respectively, for whose benefit the action was brought, in lieu thereof.

With respect to any claim under this chapter, the United States shall be entitled to assert any defense based upon judicial or legislative immunity which otherwise would have been available to the employee of the United States whose act or omission gave rise to the claim, as well as any other defenses to which the United States is entitled.

With respect to any claim to which this section applies, the Tennessee Valley Authority shall be entitled to assert any defense which otherwise would have been available to the employee based upon judicial or legislative immunity, which otherwise would have been available to the employee of the Tennessee Valley Authority whose act or omission gave rise to the claim as well as any other defenses to which the Tennessee Valley Authority is entitled under this chapter.

28 U.S.C. § 2680

Cited by the petitioners 1 times (1 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 6 (4).

Exceptions

(a) Any claim based upon an act or omission of an employee of the Government, exercising due care, in the execution of a statute or regulation, whether or not such statute or regulation be valid, or based upon the exercise or performance or the failure to exercise or perform a discretionary function or duty on the part of a federal agency or an employee of the Government, whether or not the discretion involved be abused.

(b) Any claim arising out of the loss, miscarriage, or negligent transmission of letters or postal matter.

(c) Any claim arising in respect of the assessment or collection of any tax or customs duty, or the detention of any goods, merchandise, or other property by any officer of customs or excise or any other law enforcement officer, except that the provisions of this chapter and section 1346(b) of this title apply to any claim based on injury or loss of goods, merchandise, or other property, while in the possession of any officer of customs or excise or any other law enforcement officer, if—

- **(1)** the property was seized for the purpose of forfeiture under any provision of Federal law providing for the forfeiture of property other than as a sentence imposed upon conviction of a criminal offense;
- **(2)** the interest of the claimant was not forfeited;
- **(3)** the interest of the claimant was not remitted or mitigated (if the property was subject to forfeiture); and
- **(4)** the claimant was not convicted of a crime for which the interest of the claimant in the property was subject to forfeiture under a Federal criminal forfeiture law..

(d) Any claim for which a remedy is provided by chapter 309 or 311 of title 46 relating to claims or suits in admiralty against the United States.

(e) Any claim arising out of an act or omission of any employee of the Government in administering the provisions of sections 1–31 of Title 50, Appendix.

(f) Any claim for damages caused by the imposition or establishment of a quarantine by the United States.

(g) Repealed. Sept. 26, 1950, ch. 1049, § 13 (5), 64 Stat. 1043.]

(h) Any claim arising out of assault, battery, false imprisonment, false arrest, malicious prosecution, abuse of process, libel, slander, misrepresentation, deceit, or interference with contract rights: Provided, That, with regard to acts or omissions of investigative or law enforcement officers of the United States Government, the provisions of this chapter and section 1346(b) of this title shall apply to any claim arising, on or after the date of the enactment of this proviso, out of assault, battery, false imprisonment, false arrest, abuse of process, or malicious prosecution. For the purpose of

this subsection, "investigative or law enforcement officer" means any officer of the United States who is empowered by law to execute searches, to seize evidence, or to make arrests for violations of Federal law.
(i) Any claim for damages caused by the fiscal operations of the Treasury or by the regulation of the monetary system.
(j) Any claim arising out of the combatant activities of the military or naval forces, or the Coast Guard, during time of war.
(k) Any claim arising in a foreign country.
(l) Any claim arising from the activities of the Tennessee Valley Authority.
(m) Any claim arising from the activities of the Panama Canal Company.
(n) Any claim arising from the activities of a Federal land bank, a Federal intermediate credit bank, or a bank for cooperatives.

33 U.S.C. § 909

Cited by the petitioners 1 times (1 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 0 (0).

Compensation for death
(a) Reasonable funeral expenses not exceeding $3,000.
(b) If there be a widow or widower and no child of the deceased, to such widow or widower 50 per centum of the average wages of the deceased, during widowhood, or dependent widowerhood, with two years' compensation in one sum upon remarriage; and if there be a surviving child or children of the deceased, the additional amount of $16^2/3$ per centum of such wages for each such child; in case of the death or remarriage of such widow or widower, if there be one surviving child of the deceased employee, such child shall have his compensation increased to 50 per centum of such wages, and if there be more than one surviving child of the deceased employee, to such children, in equal parts, 50 per centum of such wages increased by $16^2/3$ per centum of such wages for each child in excess of one: Provided, That the total amount payable shall in no case exceed $66^2/3$ per centum of such wages. The deputy commissioner having jurisdiction over the claim may, in his discretion, require the appointment of a guardian for the purpose of receiving the compensation of a minor child. In the absence of such a requirement the appointment of a guardian for such purposes shall not be necessary.
(c) If there be one surviving child of the deceased, but no widow or widower, then for the support of such child 50 per centum of the wages of the deceased; and if there be more than one surviving child of the deceased, but no widow or dependent husband, then for the support of such children, in equal parts 50 per centum of such wages increased by $16^2/3$ per centum of such wages for each child in excess of one: Provided, That the total amount payable shall in no case exceed $66^2/3$ per centum of such wages.
(d) If there be no surviving wife or husband or child, or if the amount payable to a surviving wife or husband and to children shall be less in the aggregate than $66^2/3$ per centum of the average wages of the deceased; then for the support of grandchildren or brothers and sisters, if dependent upon the deceased at the time of the injury, and any other persons who satisfy the definition of the term "dependent" in section 152 of title 26, but are not otherwise eligible under this section, 20 per centum of such wages for the support of each such person during such dependency and for the support of each parent, or grandparent, of the deceased if dependent upon him at the time of the injury, 25 per centum of such wages during such dependency. But in no case shall the aggregate amount payable under this subsection exceed the difference between $66^2/3$ per centum of such wages and the amount payable as hereinbefore provided to widow or widower and for the support of surviving child or children.
(e) In computing death benefits, the average weekly wages of the deceased shall not be less than the national average weekly wage as prescribed in section 906(b) of this title, but—

(1) the total weekly benefits shall not exceed the lesser of the average weekly wages of the deceased or the benefit which the deceased employee would have been eligible to receive under section 906(b)(1) of this title; and
(2) in the case of a claim based on death due to an occupational disease for which the time of injury (as determined under section 910(i) of this title) occurs after the employee has retired, the total weekly benefits shall not exceed one fifty-second part of the employee's average annual earnings during the 52-week period preceding retirement.

(f) All questions of dependency shall be determined as of the time of the injury.
(g) Aliens: Compensation under this chapter to aliens not residents (or about to become nonresidents) of the United States or Canada shall be the same in amount as provided for residents, except that dependents in any foreign country shall be limited to surviving wife and child or children, or if there be no surviving wife or child or children, to surviving father or mother whom the employee has supported, either wholly or in part, for the period of one year prior to the date of the injury, and except that the Secretary may, at his option or upon the application of the insurance carrier shall, commute all future installments of compensation to be paid to such aliens by paying or causing to be paid to them one-half of the commuted amount of such future installments of compensation as determined by the Secretary.

33 U.S.C. § 1001

Cited by the petitioners 1 times (1 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 0 (0).

Text not stored locally (repealed; today's Code has only the stub).

42 U.S.C. § 1952

Cited by the petitioners 1 times (1 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 0 (0).

Text not stored locally (repealed; today's Code has only the stub; see 42 U.S.C. § 1959a, 42 U.S.C. § 1959b).

42 U.S.C. § 1983

Cited by the petitioners 7 times (3 filings) and their amici 3 (2); by the respondent 0 (0) and its amici 5 (3).

Civil action for deprivation of rights

Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the District of Columbia, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress, except that in any action brought against a judicial officer for an act or omission taken in such officer's judicial capacity, injunctive relief shall not be granted unless a declaratory decree was violated or declaratory relief was unavailable. For the purposes of this section, any Act of Congress applicable exclusively to the District of Columbia shall be considered to be a statute of the District of Columbia.

42 U.S.C. § 1992

Cited by the petitioners 1 times (1 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 0 (0).

Speedy trial

Whenever the President has reason to believe that offenses have been, or are likely to be committed against the provisions of section 1990 of this title or of section 5506 to 5516 and 5518 to 5532 of the Revised Statutes, within any judicial district, it shall be lawful for him, in his discretion, to direct the judge, marshal, and United States attorney of such district to attend at such place within the district, and for such time as he may designate, for the purpose of the more speedy arrest and trial of persons so charged, and it shall be the duty of every judge or other officer, when any such requisition is received by him to attend at the place and for the time therein designated.

28 C.F.R. § 50.15

Cited by the petitioners 1 times (1 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 0 (0).

Representation of Federal officials and employees by Department of Justice attorneys or by private counsel furnished by the Department in civil, criminal, and congressional proceedings in which Federal employees are sued, subpoenaed, or charged in their individual capacities. (eCFR, current as of Oct. 28, 2026)

(a) Under the procedures set forth below, a federal employee (hereby defined to include present and former Federal officials and employees) may be provided representation in civil, criminal and Congressional proceedings in which he is sued, subpoenaed, or charged in his individual capacity, not covered by § 15.1 of this chapter, when the actions for which representation is requested reasonably appear to have been performed within the scope of the employee's employment and the Attorney General or his designee determines that providing representation would otherwise be in the interest of the United States. No special form of request for representation is required when it is clear from the proceedings in a case that the employee is being sued solely in his official capacity and only equitable relief is sought. (See USAM 4-13.000)

(1) When an employee believes he is entitled to representation by the Department of Justice in a proceeding, he must submit forthwith a written request for that representation, together with all process and pleadings served upon him, to his immediate supervisor or whomever is designated by the head of his department or agency. Unless the employee's employing federal agency concludes that representation is clearly unwarranted, it shall submit, in a timely manner, to the Civil Division or other appropriate litigating division (Antitrust, Civil Rights, Criminal, Land and Natural Resources or the Tax Division), a statement containing its findings as to whether the employee was acting within the scope of his employment and its recommendation for or against providing representation. The statement should be accompanied by all available factual information. In emergency situations the litigating division may initiate conditional representation after a telephone request from the appropriate official of the employing agency. In such cases, the written request and appropriate documentation must be subsequently provided.

(2) Upon receipt of the individual's request for counsel, the litigating division shall determine whether the employee's actions reasonably appear to have been performed within the scope of his employment and whether providing representation would be in the interest of the United States. In circumstances where considerations of professional ethics prohibit direct review of the facts by attorneys of the litigating division (e.g. because of the possible existence

of inter-defendant conflicts) the litigating division may delegate the fact-finding aspects of this function to other components of the Department or to a private attorney at federal expenses.

(3) Attorneys employed by any component of the Department of Justice who participate in any process utilized for the purpose of determining whether the Department should provide representation to a federal employee, undertake a full and traditional attorney-client relationship with the employee with respect to application of the attorney-client privilege. If representation is authorized, Justice Department attorneys who represent an employee under this section also undertake a full and traditional attorney-client relationship with the employee with respect to the attorney-client privilege. Any adverse information communicated by the client-employee to an attorney during the course of such attorney-client relationship shall not be disclosed to anyone, either inside or outside the Department, other than attorneys responsible for representation of the employee, unless such disclosure is authorized by the employee. Such adverse information shall continue to be fully protected whether or not representation is provided, and even though representation may be denied or discontinued. The extent, if any, to which attorneys employed by an agency other than the Department of Justice undertake a full and traditional attorney-client relationship with the employee with respect to the attorney-client privilege, either for purposes of determining whether representation should be provided or to assist Justice Department attorneys in representing the employee, shall be determined by the agency employing the attorneys.

(4) Representation generally is not available in federal criminal proceedings. Representation may be provided to a federal employee in connection with a federal criminal proceeding only where the Attorney General or his designee determines that representation is in the interest of the United States and subject to applicable limitations of § 50.16. In determining whether representation in a federal criminal proceeding is in the interest of the United States, the Attorney General or his designee shall consider, among other factors, the relevance of any non-prosecutorial interests of the United States, the importance of the interests implicated, the Department's ability to protect those interests through other means, and the likelihood of a conflict of interest between the Department's prosecutorial and representational responsibilities. If representation is authorized, the Attorney General or his designee also may determine whether representation by Department attorneys, retention of private counsel at federal expense, or reimbursement to the employee of private counsel fees is most appropriate under the circumstances.

(5) Where representation is sought for proceedings other than federal criminal proceedings, but there appears to exist the possibility of a federal criminal investigation or indictment relating to the same subject matter, the litigating division shall contact a designated official in the Criminal, Civil Rights or Tax Division or other prosecutive authority within the Department (hereinafter "prosecuting division") to determine whether the employee is either a subject of a federal criminal investigation or a defendant in a federal criminal case. An employee is the subject of an investigation if, in addition to being circumstantially implicated by having the appropriate responsibilities at the appropriate time, there is some evidence of his specific participation in a crime.

(6) If a prosecuting division of the Department indicates that the employee is not the subject of a criminal investigation concerning the act or acts for which he seeks representation, then representation may be provided if otherwise permissible under the provisions of this section. Similarly, if the prosecuting division indicates that there is an ongoing investigation, but into a matter unrelated to that for which representation has been requested, then representation may be provided.

(7) If the prosecuting division indicates that the employee is the subject of a federal criminal investigation concerning the act or acts for which he seeks representation, the litigating division shall inform the employee that no representation by Justice Department attorneys will be provided in that federal criminal proceeding or in any related civil, congressional, or state criminal proceeding. In such a case, however, the litigating division, in its discretion, may provide a private attorney to the employee at federal expense under the procedures of § 50.16, or provide reimbursement to employees for private attorney fees incurred in connection with such related civil, congressional, or state criminal proceeding, provided no decision has been made to seek an indictment or file an information against the employee.

(8) In any case where it is determined that Department of Justice attorneys will represent a federal employee, the employee must be notified of his right to retain private counsel at his own expense. If he elects representation by Department of Justice attorneys, the employee and his agency shall be promptly informed:

(i) That in actions where the United States, any agency, or any officer thereof in his official capacity is also named as a defendant, the Department of Justice is required by law to represent the United States and/or such agency or officer and will assert all appropriate legal positions and defenses on behalf of such agency, officer and/or the United States;

(ii) That the Department of Justice will not assert any legal position or defense on behalf of any employee sued in his individual capacity which is deemed not to be in the interest of the United States;

(iii) Where appropriate, that neither the Department of Justice nor any agency of the U.S. Government is obligated to pay or to indemnify the defendant employee for any judgment for money damages which may be rendered against such employee; but that, where authorized, the employee may apply for such indemnification from his

employing agency upon the entry of an adverse verdict, judgment, or other monetary award;

(iv) That any appeal by Department of Justice attorneys from an adverse ruling or judgment against the employee may only be taken upon the discretionary approval of the Solicitor General, but the employee-defendant may pursue an appeal at his own expense whenever the Solicitor General declines to authorize an appeal and private counsel is not provided at federal expense under the procedures of § 50.16; and

(v) That while no conflict appears to exist at the time representation is tendered which would preclude making all arguments necessary to the adequate defense of the employee, if such conflict should arise in the future the employee will be promptly advised and steps will be taken to resolve the conflict as indicated by paragraph (a) (6), (9) and (10) of this section, and by § 50.16.

(9) If a determination not to provide representation is made, the litigating division shall inform the agency and/or the employee of the determination.

(10) If conflicts exist between the legal and factual positions of various employees in the same case which make it inappropriate for a single attorney to represent them all, the employees may be separated into as many compatible groups as is necessary to resolve the conflict problem and each group may be provided with separate representation. Circumstances may make it advisable that private representation be provided to all conflicting groups and that direct Justice Department representation be withheld so as not to prejudice particular defendants. In such situations, the procedures of § 50.16 will apply.

(11) Whenever the Solicitor General declines to authorize further appellate review or the Department attorney assigned to represent an employee becomes aware that the representation of the employee could involve the assertion of a position that conflicts with the interests of the United States, the attorney shall fully advise the employee of the decision not to appeal or the nature, extent, and potential consequences of the conflict. The attorney shall also determine, after consultation with his supervisor (and, if appropriate, with the litigating division) whether the assertion of the position or appellate review is necessary to the adequate representation of the employee and

(i) If it is determined that the assertion of the position or appeal is not necessary to the adequate representation of the employee, and if the employee knowingly agrees to forego appeal or to waive the assertion of that position, governmental representation may be provided or continued; or

(ii) If the employee does not consent to forego appeal or waive the assertion of the position, or if it is determined that an appeal or assertion of the position is necessary to the adequate representation of the employee, a Justice Department lawyer may not provide or continue to provide the representation; and

(iii) In appropriate cases arising under paragraph (a)(10)(ii) of this section, a private attorney may be provided at federal expense under the procedures of § 50.16.

(12) Once undertaken, representation of a federal employee under this subsection will continue until either all appropriate proceedings, including applicable appellate procedures approved by the Solicitor General, have ended, or until any of the bases for declining or withdrawing from representation set forth in this section is found to exist, including without limitation the basis that representation is not in the interest of the United States. If representation is discontinued for any reason, the representing Department attorney on the case will seek to withdraw but will take all reasonable steps to avoid prejudice to the employee.

(b) Representation is not available to a federal employee whenever:

(1) The conduct with regard to which the employee desires representation does not reasonably appear to have been performed within the scope of his employment with the federal government;

(2) It is otherwise determined by the Department that it is not in the interest of the United States to provide representation to the employee.

(c)(1) The Department of Justice may indemnify the defendant Department of Justice employee for any verdict, judgment, or other monetary award which is rendered against such employee, provided that the conduct giving rise to the verdict, judgment, or award was taken within the scope of employment and that such indemnification is in the interest of the United States, as determined by the Attorney General or his designee.

(2) The Department of Justice may settle or compromise a personal damages claim against a Department of Justice employee by the payment of available funds, at any time, provided the alleged conduct giving rise to the personal damages claim was taken within the scope of employment and that such settlement or compromise is in the interest of the United States, as determined by the Attorney General or his designee.

(3) Absent exceptional circumstances as determined by the Attorney General or his designee, the Department will not entertain a request either to agree to indemnify or to settle a personal damages claim before entry of an adverse verdict, judgment, or award.

(4) The Department of Justice employee may request indemnification to satisfy a verdict, judgment, or award entered against the employee. The employee shall submit a written request, with appropriate documentation including copies of the verdict, judgment, award, or settlement proposal if on appeal, to the head of his employing component, who shall thereupon submit to the appropriate Assistant Attorney General, in a timely manner, a recommended disposition

of the request. Where appropriate, the Assistant Attorney General shall seek the views of the U.S. Attorney; in all such cases the Civil Division shall be consulted. The Assistant Attorney General shall forward the request, the employing component's recommendation, and the Assistant Attorney General's recommendation to the Attorney General for decision.

(5) Any payment under this section either to indemnify a Department of Justice employee or to settle a personal damages claim shall be contingent upon the availability of appropriated funds of the employing component of the Department of Justice.

[Order No. 970-82, 47 FR 8172, Feb. 25, 1982, as amended at Order No. 1139-86, 51 FR 27022, July 29, 1986; Order No. 1409-90, 55 FR 13130, Apr. 9, 1990]

The respondent, not the petitioners

2 U.S.C. § 1361

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Generally applicable remedies and limitations

(a) *Attorney's fees.* If a covered employee, with respect to any claim under this chapter, or a qualified person with a disability, with respect to any claim under section 1331 of this title, is a prevailing party in any proceeding under section 1405, 1406, 1407, or 1408 of this title, the hearing officer, Board, or court, as the case may be, may award attorney's fees, expert fees, and any other costs as would be appropriate if awarded under section 2000e–5(k) of title 42.

(b) *Interest.* In any proceeding under section 1405, 1406, 1407, or 1408 of this title, the same interest to compensate for delay in payment shall be made available as would be appropriate if awarded under section 2000e–16(d) of title 42.

(c) *Civil penalties and punitive damages.* No civil penalty or punitive damages may be awarded with respect to any claim under this chapter.

(d) *Exclusive procedure.*

(1) *In general.* Except as provided in paragraph (2), no person may commence an administrative or judicial proceeding to seek a remedy for the rights and protections afforded by this chapter except as provided in this chapter.

(2) *Veterans.* A covered employee under section 1316 of this title may also utilize any provisions of chapter 43 of title 38 that are applicable to that employee.

(e) *Construction.*

(1) *Definitions and exemptions.* Except where inconsistent with definitions and exemptions provided in this chapter, the definitions and exemptions in the laws made applicable by this chapter shall apply under this chapter.

(2) *Size limitations.* Notwithstanding paragraph (1), provisions in the laws made applicable under this chapter (other than the Worker Adjustment and Retraining Notification Act [29 U.S.C. 2101 et seq.]) determining coverage based on size, whether expressed in terms of numbers of employees, amount of business transacted, or other measure, shall not apply in determining coverage under this chapter.

(3) *Executive branch enforcement.* This chapter shall not be construed to authorize enforcement by the executive branch of this chapter.

5 U.S.C. § 8102

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Compensation for disability or death of employee

(a) The United States shall pay compensation as specified by this subchapter for the disability or death of an employee resulting from personal injury sustained while in the performance of his duty, unless the injury or death is—

(1) caused by willful misconduct of the employee;

(2) caused by the employee's intention to bring about the injury or death of himself or of another; or

(3) proximately caused by the intoxication of the injured employee.

(b) Disability or death from a war-risk hazard or during or as a result of capture, detention, or other restraint by a hostile force or individual, suffered by an employee who is employed outside the continental United States or in Alaska or in the areas and installations in the Republic of Panama made available to the United States pursuant to the Panama Canal Treaty of 1977 and related agreements (as described in section 3(a) of the Panama Canal Act of 1979), is deemed to have resulted from personal injury sustained while in the performance of his duty, whether or not the employee was engaged in the course of employment when the disability or disability resulting in death occurred or when he was taken by the hostile force or individual. This subsection does not apply to an individual—

(1) whose residence is at or in the vicinity of the place of his employment and who was not living there solely because of the exigencies of his employment, unless he was injured or taken while engaged in the course of his employment; or

(2) who is a prisoner of war or a protected individual under the Geneva Conventions of 1949 and is detained or utilized by the United States.

This subsection does not affect the payment of compensation under this subchapter derived otherwise than under this subsection, but compensation for disability or death does not accrue for a period for which pay, other benefit, or gratuity from the United States accrues to the disabled individual or his dependents on account of detention by the enemy or because of the same disability or death, unless that pay, benefit, or gratuity is refunded or renounced.

15 U.S.C. § 78u-4

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Private securities litigation

(a) *Private class actions.*

(1) *In general.* The provisions of this subsection shall apply in each private action arising under this chapter that is brought as a plaintiff class action pursuant to the Federal Rules of Civil Procedure.

(2) *Certification filed with complaint.*

(A) *In general.* Each plaintiff seeking to serve as a representative party on behalf of a class shall provide a sworn certification, which shall be personally signed by such plaintiff and filed with the complaint, that—

(i) states that the plaintiff has reviewed the complaint and authorized its filing;

(ii) states that the plaintiff did not purchase the security that is the subject of the complaint at the direction of plaintiff's counsel or in order to participate in any private action arising under this chapter;

(iii) states that the plaintiff is willing to serve as a representative party on behalf of a class, including providing testimony at deposition and trial, if necessary;

(iv) sets forth all of the transactions of the plaintiff in the security that is the subject of the complaint during the class period specified in the complaint;

(v) identifies any other action under this chapter, filed during the 3-year period preceding the date on which the certification is signed by the plaintiff, in which the plaintiff has sought to serve as a representative party on behalf of a class; and

(vi) states that the plaintiff will not accept any payment for serving as a representative party on behalf of a class beyond the plaintiff's pro rata share of any recovery, except as ordered or approved by the court in accordance with paragraph (4).

(B) *Nonwaiver of attorney-client privilege.* The certification filed pursuant to subparagraph (A) shall not be construed to be a waiver of the attorney-client privilege.

(3) *Appointment of lead plaintiff.*

(A) *Early notice to class members.*

(i) *In general.* Not later than 20 days after the date on which the complaint is filed, the plaintiff or plaintiffs shall cause to be published, in a widely circulated national business-oriented publication or wire service, a notice advising members of the purported plaintiff class—

(I) of the pendency of the action, the claims asserted therein, and the purported class period; and

(II) that, not later than 60 days after the date on which the notice is published, any member of the purported class may move the court to serve as lead plaintiff of the purported class.

(ii) *Multiple actions.* If more than one action on behalf of a class asserting substantially the same claim or claims arising under this chapter is filed, only the plaintiff or plaintiffs in the first filed action shall be required to cause notice to be published in accordance with clause (i).

(iii) *Additional notices may be required under Federal rules.* Notice required under clause (i) shall be in addition to any notice required pursuant to the Federal Rules of Civil Procedure.

(B) *Appointment of lead plaintiff.*

(i) *In general.* Not later than 90 days after the date on which a notice is published under subparagraph (A)(i), the court shall consider any motion made by a purported class member in response to the notice, including any motion by a class member who is not individually named as a plaintiff in the complaint or complaints, and shall appoint as lead plaintiff the member or members of the purported plaintiff class that the court determines to be most capable of adequately representing the interests of class members (hereafter in this paragraph referred to as the "most adequate plaintiff") in accordance with this subparagraph.

(ii) *Consolidated actions.* If more than one action on behalf of a class asserting substantially the same claim or claims arising under this chapter has been filed, and any party has sought to consolidate those actions for pretrial purposes or for trial, the court shall not make the determination required by clause (i) until after the decision on the motion to consolidate is rendered. As soon as practicable after such decision is rendered, the court shall appoint the most adequate plaintiff as lead plaintiff for the consolidated actions in accordance with this paragraph.

(iii) *Rebuttable presumption.*

(I) *In general.* Subject to subclause (II), for purposes of clause (i), the court shall adopt a presumption that the most adequate plaintiff in any private action arising under this chapter is the person or group of persons that—

(aa) has either filed the complaint or made a motion in response to a notice under subparagraph (A)(i);

(bb) in the determination of the court, has the largest financial interest in the relief sought by the class; and

(cc) otherwise satisfies the requirements of Rule 23 of the Federal Rules of Civil Procedure.

(II) *Rebuttal evidence.* The presumption described in subclause (I) may be rebutted only upon proof by a member of the purported plaintiff class that the presumptively most adequate plaintiff—

(aa) will not fairly and adequately protect the interests of the class; or

(bb) is subject to unique defenses that render such plaintiff incapable of adequately representing the class.

(iv) *Discovery.* For purposes of this subparagraph, discovery relating to whether a member or members of the purported plaintiff class is the most adequate plaintiff may be conducted by a plaintiff only if the plaintiff first demonstrates a reasonable basis for a finding that the presumptively most adequate plaintiff is incapable of adequately representing the class.

(v) *Selection of lead counsel.* The most adequate plaintiff shall, subject to the approval of the court, select and retain counsel to represent the class.

(vi) *Restrictions on professional plaintiffs.* Except as the court may otherwise permit, consistent with the purposes of this section, a person may be a lead plaintiff, or an officer, director, or fiduciary of a lead plaintiff, in no more than 5 securities class actions brought as plaintiff class actions pursuant to the Federal Rules of Civil Procedure during any 3-year period.

(4) *Recovery by plaintiffs.* The share of any final judgment or of any settlement that is awarded to a representative party serving on behalf of a class shall be equal, on a per share basis, to the portion of the final judgment or settlement awarded to all other members of the class. Nothing in this paragraph shall be construed to limit the award of reasonable costs and expenses (including lost wages) directly relating to the representation of the class to any representative party serving on behalf of a class.

(5) *Restrictions on settlements under seal.* The terms and provisions of any settlement agreement of a class action shall not be filed under seal, except that on motion of any party to the settlement, the court may order filing under seal for those portions of a settlement agreement as to which good cause is shown for such filing under seal. For purposes of this paragraph, good cause shall exist only if publication of a term or provision of a settlement agreement would cause direct and substantial harm to any party.

(6) *Restrictions on payment of attorneys' fees and expenses.* Total attorneys' fees and expenses awarded by the court to counsel for the plaintiff class shall not exceed a reasonable percentage of the amount of any damages and prejudgment interest actually paid to the class.

(7) *Disclosure of settlement terms to class members.* Any proposed or final settlement agreement that is published or otherwise disseminated to the class shall include each of the following statements, along with a cover page summarizing the information contained in such statements:

(A) *Statement of plaintiff recovery.* The amount of the settlement proposed to be distributed to the parties to the action, determined in the aggregate and on an average per share basis.

(B) *Statement of potential outcome of case.*

(i) *Agreement on amount of damages.* If the settling parties agree on the average amount of damages per share that would be recoverable if the plaintiff prevailed on each claim alleged under this chapter, a statement concerning the average amount of such potential damages per share.

(ii) *Disagreement on amount of damages.* If the parties do not agree on the average amount of damages per share that would be recoverable if the plaintiff prevailed on each claim alleged under this chapter, a statement from each settling party concerning the issue or issues on which the parties disagree.

(iii) *Inadmissibility for certain purposes.* A statement made in accordance with clause (i) or (ii) concerning the amount of damages shall not be admissible in any Federal or State judicial action or administrative proceeding, other than an action or proceeding arising out of such statement.

(C) *Statement of attorneys' fees or costs sought.* If any of the settling parties or their counsel intend to apply to the court for an award of attorneys' fees or costs from any fund established as part of the settlement, a statement indicating which parties or counsel intend to make such an application, the amount of fees and costs that will be sought (including the amount of such fees and costs determined on an average per share basis), and a brief explanation supporting the fees and costs sought. Such information shall be clearly summarized on the cover page of any notice to a party of any proposed or final settlement agreement.

(D) *Identification of lawyers' representatives.* The name, telephone number, and address of one or more representa-

tives of counsel for the plaintiff class who will be reasonably available to answer questions from class members concerning any matter contained in any notice of settlement published or otherwise disseminated to the class.

(E) *Reasons for settlement.* A brief statement explaining the reasons why the parties are proposing the settlement.

(F) *Other information.* Such other information as may be required by the court.

(8) *Security for payment of costs in class actions.* In any private action arising under this chapter that is certified as a class action pursuant to the Federal Rules of Civil Procedure, the court may require an undertaking from the attorneys for the plaintiff class, the plaintiff class, or both, or from the attorneys for the defendant, the defendant, or both, in such proportions and at such times as the court determines are just and equitable, for the payment of fees and expenses that may be awarded under this subsection.

(9) *Attorney conflict of interest.* If a plaintiff class is represented by an attorney who directly owns or otherwise has a beneficial interest in the securities that are the subject of the litigation, the court shall make a determination of whether such ownership or other interest constitutes a conflict of interest sufficient to disqualify the attorney from representing the plaintiff class.

(b) *Requirements for securities fraud actions.*

(1) *Misleading statements and omissions.* In any private action arising under this chapter in which the plaintiff alleges that the defendant—

(A) made an untrue statement of a material fact; or

(B) omitted to state a material fact necessary in order to make the statements made, in the light of the circumstances in which they were made, not misleading;

the complaint shall specify each statement alleged to have been misleading, the reason or reasons why the statement is misleading, and, if an allegation regarding the statement or omission is made on information and belief, the complaint shall state with particularity all facts on which that belief is formed.

(2) *Required state of mind.*

(A) *In general.* Except as provided in subparagraph (B), in any private action arising under this chapter in which the plaintiff may recover money damages only on proof that the defendant acted with a particular state of mind, the complaint shall, with respect to each act or omission alleged to violate this chapter, state with particularity facts giving rise to a strong inference that the defendant acted with the required state of mind.

(B) *Exception.* In the case of an action for money damages brought against a credit rating agency or a controlling person under this chapter, it shall be sufficient, for purposes of pleading any required state of mind in relation to such action, that the complaint state with particularity facts giving rise to a strong inference that the credit rating agency knowingly or recklessly failed—

(i) to conduct a reasonable investigation of the rated security with respect to the factual elements relied upon by its own methodology for evaluating credit risk; or

(ii) to obtain reasonable verification of such factual elements (which verification may be based on a sampling technique that does not amount to an audit) from other sources that the credit rating agency considered to be competent and that were independent of the issuer and underwriter.

(3) *Motion to dismiss; stay of discovery.*

(A) *Dismissal for failure to meet pleading requirements.* In any private action arising under this chapter, the court shall, on the motion of any defendant, dismiss the complaint if the requirements of paragraphs (1) and (2) are not met.

(B) *Stay of discovery.* In any private action arising under this chapter, all discovery and other proceedings shall be stayed during the pendency of any motion to dismiss, unless the court finds upon the motion of any party that particularized discovery is necessary to preserve evidence or to prevent undue prejudice to that party.

(C) *Preservation of evidence.*

(i) *In general.* During the pendency of any stay of discovery pursuant to this paragraph, unless otherwise ordered by the court, any party to the action with actual notice of the allegations contained in the complaint shall treat all documents, data compilations (including electronically recorded or stored data), and tangible objects that are in the custody or control of such person and that are relevant to the allegations, as if they were the subject of a continuing request for production of documents from an opposing party under the Federal Rules of Civil Procedure.

(ii) *Sanction for willful violation.* A party aggrieved by the willful failure of an opposing party to comply with clause (i) may apply to the court for an order awarding appropriate sanctions.

(D) *Circumvention of stay of discovery.* Upon a proper showing, a court may stay discovery proceedings in any private action in a State court, as necessary in aid of its jurisdiction, or to protect or effectuate its judgments, in an action subject to a stay of discovery pursuant to this paragraph.

(4) *Loss causation.* In any private action arising under this chapter, the plaintiff shall have the burden of proving that the act or omission of the defendant alleged to violate this chapter caused the loss for which the plaintiff seeks to

recover damages.

(c) *Sanctions for abusive litigation.*

(1) *Mandatory review by court.* In any private action arising under this chapter, upon final adjudication of the action, the court shall include in the record specific findings regarding compliance by each party and each attorney representing any party with each requirement of Rule 11(b) of the Federal Rules of Civil Procedure as to any complaint, responsive pleading, or dispositive motion.

(2) *Mandatory sanctions.* If the court makes a finding under paragraph (1) that a party or attorney violated any requirement of Rule 11(b) of the Federal Rules of Civil Procedure as to any complaint, responsive pleading, or dispositive motion, the court shall impose sanctions on such party or attorney in accordance with Rule 11 of the Federal Rules of Civil Procedure. Prior to making a finding that any party or attorney has violated Rule 11 of the Federal Rules of Civil Procedure, the court shall give such party or attorney notice and an opportunity to respond.

(3) *Presumption in favor of attorneys' fees and costs.*

(A) *In general.* Subject to subparagraphs (B) and (C), for purposes of paragraph (2), the court shall adopt a presumption that the appropriate sanction—

(i) for failure of any responsive pleading or dispositive motion to comply with any requirement of Rule 11(b) of the Federal Rules of Civil Procedure is an award to the opposing party of the reasonable attorneys' fees and other expenses incurred as a direct result of the violation; and

(ii) for substantial failure of any complaint to comply with any requirement of Rule 11(b) of the Federal Rules of Civil Procedure is an award to the opposing party of the reasonable attorneys' fees and other expenses incurred in the action.

(B) *Rebuttal evidence.* The presumption described in subparagraph (A) may be rebutted only upon proof by the party or attorney against whom sanctions are to be imposed that—

(i) the award of attorneys' fees and other expenses will impose an unreasonable burden on that party or attorney and would be unjust, and the failure to make such an award would not impose a greater burden on the party in whose favor sanctions are to be imposed; or

(ii) the violation of Rule 11(b) of the Federal Rules of Civil Procedure was de minimis.

(C) *Sanctions.* If the party or attorney against whom sanctions are to be imposed meets its burden under subparagraph (B), the court shall award the sanctions that the court deems appropriate pursuant to Rule 11 of the Federal Rules of Civil Procedure.

(d) *Defendant's right to written interrogatories.* In any private action arising under this chapter in which the plaintiff may recover money damages, the court shall, when requested by a defendant, submit to the jury a written interrogatory on the issue of each such defendant's state of mind at the time the alleged violation occurred.

(e) *Limitation on damages.*

(1) *In general.* Except as provided in paragraph (2), in any private action arising under this chapter in which the plaintiff seeks to establish damages by reference to the market price of a security, the award of damages to the plaintiff shall not exceed the difference between the purchase or sale price paid or received, as appropriate, by the plaintiff for the subject security and the mean trading price of that security during the 90-day period beginning on the date on which the information correcting the misstatement or omission that is the basis for the action is disseminated to the market.

(2) *Exception.* In any private action arising under this chapter in which the plaintiff seeks to establish damages by reference to the market price of a security, if the plaintiff sells or repurchases the subject security prior to the expiration of the 90-day period described in paragraph (1), the plaintiff's damages shall not exceed the difference between the purchase or sale price paid or received, as appropriate, by the plaintiff for the security and the mean trading price of the security during the period beginning immediately after dissemination of information correcting the misstatement or omission and ending on the date on which the plaintiff sells or repurchases the security.

(3) *"Mean trading price" defined.* For purposes of this subsection, the "mean trading price" of a security shall be an average of the daily trading price of that security, determined as of the close of the market each day during the 90-day period referred to in paragraph (1).

(f) *Proportionate liability.*

(1) *Applicability.* Nothing in this subsection shall be construed to create, affect, or in any manner modify, the standard for liability associated with any action arising under the securities laws.

(2) *Liability for damages.*

(A) *Joint and several liability.* Any covered person against whom a final judgment is entered in a private action shall be liable for damages jointly and severally only if the trier of fact specifically determines that such covered person knowingly committed a violation of the securities laws.

(B) *Proportionate liability.*

(i) *In general.* Except as provided in subparagraph (A), a covered person against whom a final judgment is entered in a private action shall be liable solely for the portion of the judgment that corresponds to the percentage of responsibility of that covered person, as determined under paragraph (3).

(ii) *Recovery by and costs of covered person.* In any case in which a contractual relationship permits, a covered person that prevails in any private action may recover the attorney's fees and costs of that covered person in connection with the action.

(3) *Determination of responsibility.*

(A) *In general.* In any private action, the court shall instruct the jury to answer special interrogatories, or if there is no jury, shall make findings, with respect to each covered person and each of the other persons claimed by any of the parties to have caused or contributed to the loss incurred by the plaintiff, including persons who have entered into settlements with the plaintiff or plaintiffs, concerning—

(i) whether such person violated the securities laws;

(ii) the percentage of responsibility of such person, measured as a percentage of the total fault of all persons who caused or contributed to the loss incurred by the plaintiff; and

(iii) whether such person knowingly committed a violation of the securities laws.

(B) *Contents of special interrogatories or findings.* The responses to interrogatories, or findings, as appropriate, under subparagraph (A) shall specify the total amount of damages that the plaintiff is entitled to recover and the percentage of responsibility of each covered person found to have caused or contributed to the loss incurred by the plaintiff or plaintiffs.

(C) *Factors for consideration.* In determining the percentage of responsibility under this paragraph, the trier of fact shall consider—

(i) the nature of the conduct of each covered person found to have caused or contributed to the loss incurred by the plaintiff or plaintiffs; and

(ii) the nature and extent of the causal relationship between the conduct of each such person and the damages incurred by the plaintiff or plaintiffs.

(4) *Uncollectible share.*

(A) *In general.* Notwithstanding paragraph (2)(B), upon motion made not later than 6 months after a final judgment is entered in any private action, the court determines that all or part of the share of the judgment of the covered person is not collectible against that covered person, and is also not collectible against a covered person described in paragraph (2)(A), each covered person described in paragraph (2)(B) shall be liable for the uncollectible share as follows:

(i) *Percentage of net worth.* Each covered person shall be jointly and severally liable for the uncollectible share if the plaintiff establishes that—

(I) the plaintiff is an individual whose recoverable damages under the final judgment are equal to more than 10 percent of the net worth of the plaintiff; and

(II) the net worth of the plaintiff is equal to less than $200,000.

(ii) *Other plaintiffs.* With respect to any plaintiff not described in subclauses (I) and (II) of clause (i), each covered person shall be liable for the uncollectible share in proportion to the percentage of responsibility of that covered person, except that the total liability of a covered person under this clause may not exceed 50 percent of the proportionate share of that covered person, as determined under paragraph (3)(B).

(iii) *Net worth.* For purposes of this subparagraph, net worth shall be determined as of the date immediately preceding the date of the purchase or sale (as applicable) by the plaintiff of the security that is the subject of the action, and shall be equal to the fair market value of assets, minus liabilities, including the net value of the investments of the plaintiff in real and personal property (including personal residences).

(B) *Overall limit.* In no case shall the total payments required pursuant to subparagraph (A) exceed the amount of the uncollectible share.

(C) *Covered persons subject to contribution.* A covered person against whom judgment is not collectible shall be subject to contribution and to any continuing liability to the plaintiff on the judgment.

(5) *Right of contribution.* To the extent that a covered person is required to make an additional payment pursuant to paragraph (4), that covered person may recover contribution—

(A) from the covered person originally liable to make the payment;

(B) from any covered person liable jointly and severally pursuant to paragraph (2)(A);

(C) from any covered person held proportionately liable pursuant to this paragraph who is liable to make the same payment and has paid less than his or her proportionate share of that payment; or

(D) from any other person responsible for the conduct giving rise to the payment that would have been liable to make the same payment.

(6) *Nondisclosure to jury.* The standard for allocation of damages under paragraphs (2) and (3) and the procedure for reallocation of uncollectible shares under paragraph (4) shall not be disclosed to members of the jury.

(7) *Settlement discharge.*

(A) *In general.* A covered person who settles any private action at any time before final verdict or judgment shall be discharged from all claims for contribution brought by other persons. Upon entry of the settlement by the court, the court shall enter a bar order constituting the final discharge of all obligations to the plaintiff of the settling covered person arising out of the action. The order shall bar all future claims for contribution arising out of the action—

(i) by any person against the settling covered person; and

(ii) by the settling covered person against any person, other than a person whose liability has been extinguished by the settlement of the settling covered person.

(B) *Reduction.* If a covered person enters into a settlement with the plaintiff prior to final verdict or judgment, the verdict or judgment shall be reduced by the greater of—

(i) an amount that corresponds to the percentage of responsibility of that covered person; or

(ii) the amount paid to the plaintiff by that covered person.

(8) *Contribution.* A covered person who becomes jointly and severally liable for damages in any private action may recover contribution from any other person who, if joined in the original action, would have been liable for the same damages. A claim for contribution shall be determined based on the percentage of responsibility of the claimant and of each person against whom a claim for contribution is made.

(9) *Statute of limitations for contribution.* In any private action determining liability, an action for contribution shall be brought not later than 6 months after the entry of a final, nonappealable judgment in the action, except that an action for contribution brought by a covered person who was required to make an additional payment pursuant to paragraph (4) may be brought not later than 6 months after the date on which such payment was made.

(10) *Definitions.* For purposes of this subsection—

(A) a covered person "knowingly commits a violation of the securities laws"—

(i) with respect to an action that is based on an untrue statement of material fact or omission of a material fact necessary to make the statement not misleading, if—

(I) that covered person makes an untrue statement of a material fact, with actual knowledge that the representation is false, or omits to state a fact necessary in order to make the statement made not misleading, with actual knowledge that, as a result of the omission, one of the material representations of the covered person is false; and

(II) persons are likely to reasonably rely on that misrepresentation or omission; and

(ii) with respect to an action that is based on any conduct that is not described in clause (i), if that covered person engages in that conduct with actual knowledge of the facts and circumstances that make the conduct of that covered person a violation of the securities laws;

(B) reckless conduct by a covered person shall not be construed to constitute a knowing commission of a violation of the securities laws by that covered person;

(C) the term "covered person" means—

(i) a defendant in any private action arising under this chapter; or

(ii) a defendant in any private action arising under section 77k of this title, who is an outside director of the issuer of the securities that are the subject of the action; and

(D) the term "outside director" shall have the meaning given such term by rule or regulation of the Commission.

28 U.S.C. § 2671

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 1 (1).

Definitions

As used in this chapter and sections 1346(b) and 2401(b) of this title, the term "Federal agency" includes the executive departments, the judicial and legislative branches, the military departments, independent establishments of the United States, and corporations primarily acting as instrumentalities or agencies of the United States, but does not include any contractor with the United States.

"Employee of the government" includes (1) officers or employees of any federal agency, members of the military or naval forces of the United States, members of the National Guard while engaged in training or duty under section 115, 316, 502, 503, 504, or 505 of title 32, and persons acting on behalf of a federal agency in an official capacity, temporarily or permanently in the service of the United States, whether with or without compensation, and (2) any officer or employee of a Federal public defender organization, except when such officer or employee performs professional services in the course of providing representation under section 3006A of title 18.

"Acting within the scope of his office or employment", in the case of a member of the military or naval forces of the United States or a member of the National Guard as defined in section 101(3) of title 32, means acting in line of duty.

33 U.S.C. § 908

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Compensation for disability

(a) Permanent total disability: In case of total disability adjudged to be permanent 66⅔ per centum of the average weekly wages shall be paid to the employee during the continuance of such total disability. Loss of both hands, or both arms, or both feet, or both legs, or both eyes, or of any two thereof shall, in the absence of conclusive proof to the contrary, constitute permanent total disability. In all other cases permanent total disability shall be determined in accordance with the facts.

(b) Temporary total disability: In case of disability total in character but temporary in quality 66⅔ per centum of the average weekly wages shall be paid to the employee during the continuance thereof.

(c) Permanent partial disability: In case of disability partial in character but permanent in quality the compensation shall be 66⅔ per centum of the average weekly wages, which shall be in addition to compensation for temporary total disability or temporary partial disability paid in accordance with subsection (b) or subsection (e) of this section, respectively, and shall be paid to the employee, as follows:

(1) Arm lost, three hundred and twelve weeks' compensation.

(2) Leg lost, two hundred and eighty-eight weeks' compensation.

(3) Hand lost, two hundred and forty-four weeks' compensation.

(4) Foot lost, two hundred and five weeks' compensation.

(5) Eye lost, one hundred and sixty weeks' compensation.

(6) Thumb lost, seventy-five weeks' compensation.

(7) First finger lost, forty-six weeks' compensation.

(8) Great toe lost, thirty-eight weeks' compensation.

(9) Second finger lost, thirty weeks' compensation.

(10) Third finger lost, twenty-five weeks' compensation.

(11) Toe other than great toe lost, sixteen weeks' compensation.

(12) Fourth finger lost, fifteen weeks' compensation.

(13) Loss of hearing:

(A) Compensation for loss of hearing in one ear, fifty-two weeks.

(B) Compensation for loss of hearing in both ears, two-hundred weeks.

(C) An audiogram shall be presumptive evidence of the amount of hearing loss sustained as of the date thereof, only if (i) such audiogram was administered by a licensed or certified audiologist or a physician who is certified in otolaryngology, (ii) such audiogram, with the report thereon, was provided to the employee at the time it was administered, and (iii) no contrary audiogram made at that time is produced.

(D) The time for filing a notice of injury, under section 912 of this title, or a claim for compensation, under section 913 of this title, shall not begin to run in connection with any claim for loss of hearing under this section, until the employee has received an audiogram, with the accompanying report thereon, which indicates that the employee has suffered a loss of hearing.

(E) Determinations of loss of hearing shall be made in accordance with the guides for the evaluation of permanent impairment as promulgated and modified from time to time by the American Medical Association.

(14) Phalanges: Compensation for loss of more than one phalange of a digit shall be the same as for loss of the entire digit. Compensation for loss of the first phalange shall be one-half of the compensation for loss of the entire digit.

(15) Amputated arm or leg: Compensation for an arm or a leg, if amputated at or above the elbow or the knee, shall be the same as for a loss of the arm or leg; but, if amputated between the elbow and the wrist or the knee and the ankle, shall be the same as for loss of a hand or foot.

(16) Binocular vision or per centum of vision: Compensation for loss of binocular vision or for 80 per centum or more of the vision of an eye shall be the same as for loss of the eye.

(17) Two or more digits: Compensation for loss of two or more digits, or one or more phalanges of two or more digits, of a hand or foot may be proportioned to the loss of use of the hand or foot occasioned thereby, but shall not exceed the compensation for loss of a hand or foot.

(18) Total loss of use: Compensation for permanent total loss of use of a member shall be the same as for loss of the member.

(19) Partial loss or partial loss of use: Compensation for permanent partial loss or loss of use of a member may be for proportionate loss or loss of use of the member.

(20) Disfigurement: Proper and equitable compensation not to exceed $7,500 shall be awarded for serious disfigurement of the face, head, or neck or of other normally exposed areas likely to handicap the employee in securing or maintaining employment.

(21) Other cases: In all other cases in the class of disability, the compensation shall be 66⅔ per centum of the

difference between the average weekly wages of the employee and the employee's wage-earning capacity thereafter in the same employment or otherwise, payable during the continuance of partial disability.

(22) In any case in which there shall be a loss of, or loss of use of, more than one member or parts of more than one member set forth in paragraphs (1) to (19) of this subsection, not amounting to permanent total disability, the award of compensation shall be for the loss of, or loss of use of, each such member or part thereof, which awards shall run consecutively, except that where the injury affects only two or more digits of the same hand or foot, paragraph (17) of this subsection shall apply.

(23) Notwithstanding paragraphs (1) through (22), with respect to a claim for permanent partial disability for which the average weekly wages are determined under section 910(d)(2) of this title, the compensation shall be $66^{2}/_{3}$ per centum of such average weekly wages multiplied by the percentage of permanent impairment, as determined under the guides referred to in section 902(10) of this title, payable during the continuance of such impairment.

(d)

(1) If an employee who is receiving compensation for permanent partial disability pursuant to subsection (c)(1)–(20) dies from causes other than the injury, the total amount of the award unpaid at the time of death shall be payable to or for the benefit of his survivors, as follows:

(A) if the employee is survived only by a widow or widower, such unpaid amount of the award shall be payable to such widow or widower,

(B) if the employee is survived only by a child or children, such unpaid amount of the award shall be paid to such child or children in equal shares,

(C) if the employee is survived by a widow or widower and a child or children, such unpaid amount of the award shall be payable to such survivors in equal shares,

(D) if there be no widow or widower and no surviving child or children, such unpaid amount of the award shall be paid to the survivors specified in section 909(d) of this title (other than a wife, husband, or child); and the amount to be paid each such survivor shall be determined by multiplying such unpaid amount of the award by the appropriate percentage specified in section 909(d) of this title, but if the aggregate amount to which all such survivors are entitled, as so determined, is less than such unpaid amount of the award, the excess amount shall be divided among such survivors pro rata according to the amount otherwise payable to each under this subparagraph.

(2) Notwithstanding any other limitation in section 909 of this title, the total amount of any award for permanent partial disability pursuant to subsection (c)(1)–(20) unpaid at time of death shall be payable in full in the appropriate distribution.

(3) An award for disability may be made after the death of the injured employee. Except where compensation is payable under subsection (c)(21) if there be no survivors as prescribed in this section, then the compensation payable under this subsection shall be paid to the special fund established under section 944(a) of this title.

(e) Temporary partial disability: In case of temporary partial disability resulting in decrease of earning capacity the compensation shall be two-thirds of the difference between the injured employee's average weekly wages before the injury and his wage-earning capacity after the injury in the same or another employment, to be paid during the continuance of such disability, but shall not be paid for a period exceeding five years.

(f) Injury increasing disability:

(1) In any case in which an employee having an existing permanent partial disability suffers injury, the employer shall provide compensation for such disability as is found to be attributable to that injury based upon the average weekly wages of the employee at the time of the injury. If following an injury falling within the provisions of subsection (c)(1)–(20), the employee is totally and permanently disabled, and the disability is found not to be due solely to that injury, the employer shall provide compensation for the applicable prescribed period of weeks provided for in that section for the subsequent injury, or for one hundred and four weeks, whichever is the greater, except that, in the case of an injury falling within the provisions of subsection (c)(13), the employer shall provide compensation for the lesser of such periods. In all other cases of total permanent disability or of death, found not to be due solely to that injury, of an employee having an existing permanent partial disability, the employer shall provide in addition to compensation under subsections (b) and (e) of this section, compensation payments or death benefits for one hundred and four weeks only. If following an injury falling within the provisions of subsection (c)(1)–(20), the employee has a permanent partial disability and the disability is found not to be due solely to that injury, and such disability is materially and substantially greater than that which would have resulted from the subsequent injury alone, the employer shall provide compensation for the applicable period of weeks provided for in that section for the subsequent injury, or for one hundred and four weeks, whichever is the greater, except that, in the case of an injury falling within the provisions of subsection (c)(13), the employer shall provide compensation for the lesser of such periods.

In all other cases in which the employee has a permanent partial disability, found not to be due solely to that injury, and such disability is materially and substantially greater than that which would have resulted from the subsequent injury alone, the employer shall provide in addition to compensation under subsections (b) and (e) of this section,

compensation for one hundred and four weeks only.

(2)

(A) After cessation of the payments for the period of weeks provided for herein, the employee or his survivor entitled to benefits shall be paid the remainder of the compensation that would be due out of the special fund established in section 944 of this title, except that the special fund shall not assume responsibility with respect to such benefits (and such payments shall not be subject to cessation) in the case of any employer who fails to comply with section 932(a) of this title.

(B) After cessation of payments for the period of weeks provided for in this subsection, the employer or carrier responsible for payment of compensation shall remain a party to the claim, retain access to all records relating to the claim, and in all other respects retain all rights granted under this chapter prior to cessation of such payments.

(3) Any request, filed after September 28, 1984, for apportionment of liability to the special fund established under section 944 of this title for the payment of compensation benefits, and a statement of the grounds therefore, shall be presented to the deputy commissioner prior to the consideration of the claim by the deputy commissioner. Failure to present such request prior to such consideration shall be an absolute defense to the special fund's liability for the payment of any benefits in connection with such claim, unless the employer could not have reasonably anticipated the liability of the special fund prior to the issuance of a compensation order.

(g) Maintenance for employees undergoing vocational rehabilitation: An employee who as a result of injury is or may be expected to be totally or partially incapacitated for a remunerative occupation and who, under the direction of the Secretary as provided by section 939(c) of this title, is being rendered fit to engage in a remunerative occupation, shall receive additional compensation necessary for his maintenance, but such additional compensation shall not exceed $25 a week. The expense shall be paid out of the special fund established in section 944 of this title.

(h) The wage-earning capacity of an injured employee in cases of partial disability under subsection (c)(21) of this section or under subsection (e) of this section shall be determined by his actual earnings if such actual earnings fairly and reasonably represent his wage-earning capacity: Provided, however, That if the employee has no actual earnings or his actual earnings do not fairly and reasonably represent his wage-earning capacity, the deputy commissioner may, in the interest of justice, fix such wage-earning capacity as shall be reasonable, having due regard to the nature of his injury, the degree of physical impairment, his usual employment, and any other factors or circumstances in the case which may affect his capacity to earn wages in his disabled condition, including the effect of disability as it may naturally extend into the future.

(i)

(1) Whenever the parties to any claim for compensation under this chapter, including survivors benefits, agree to a settlement, the deputy commissioner or administrative law judge shall approve the settlement within thirty days unless it is found to be inadequate or procured by duress. Such settlement may include future medical benefits if the parties so agree. No liability of any employer, carrier, or both for medical, disability, or death benefits shall be discharged unless the application for settlement is approved by the deputy commissioner or administrative law judge. If the parties to the settlement are represented by counsel, then agreements shall be deemed approved unless specifically disapproved within thirty days after submission for approval.

(2) If the deputy commissioner disapproves an application for settlement under paragraph (1), the deputy commissioner shall issue a written statement within thirty days containing the reasons for disapproval. Any party to the settlement may request a hearing before an administrative law judge in the manner prescribed by this chapter. Following such hearing, the administrative law judge shall enter an order approving or rejecting the settlement.

(3) A settlement approved under this section shall discharge the liability of the employer or carrier, or both. Settlements may be agreed upon at any stage of the proceeding including after entry of a final compensation order.

(4) The special fund shall not be liable for reimbursement of any sums paid or payable to an employee or any beneficiary under such settlement, or otherwise voluntarily paid prior to such settlement by the employer or carrier, or both.

(j)

(1) The employer may inform a disabled employee of his obligation to report to the employer not less than semiannually any earnings from employment or self-employment, on such forms as the Secretary shall specify in regulations.

(2) An employee who—

(A) fails to report the employee's earnings under paragraph (1) when requested, or

(B) knowingly and willfully omits or understates any part of such earnings,

and who is determined by the deputy commissioner to have violated clause (A) or (B) of this paragraph, forfeits his right to compensation with respect to any period during which the employee was required to file such report.

(3) Compensation forfeited under this subsection, if already paid, shall be recovered by a deduction from the compensation payable to the employee in any amount and on such schedule as determined by the deputy commissioner.

34 U.S.C. § 30302

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 1 (1) and its amici 0 (0).

Purposes
(1) establish a zero-tolerance standard for the incidence of prison rape in prisons in the United States;
(2) make the prevention of prison rape a top priority in each prison system;
(3) develop and implement national standards for the detection, prevention, reduction, and punishment of prison rape;
(4) increase the available data and information on the incidence of prison rape, consequently improving the management and administration of correctional facilities;
(5) standardize the definitions used for collecting data on the incidence of prison rape;
(6) increase the accountability of prison officials who fail to detect, prevent, reduce, and punish prison rape;
(7) protect the Eighth Amendment rights of Federal, State, and local prisoners;
(8) increase the efficiency and effectiveness of Federal expenditures through grant programs such as those dealing with health care; mental health care; disease prevention; crime prevention, investigation, and prosecution; prison construction, maintenance, and operation; race relations; poverty; unemployment; and homelessness; and
(9) reduce the costs that prison rape imposes on interstate commerce.

45 U.S.C. § 51-60

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

Text not stored locally (not in the title 45 XML (renumbered or repealed, or a cite we misread)).

28 C.F.R. § 542.12

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 1 (1) and its amici 0 (0).

[Reserved] (eCFR, current as of Oct. 28, 2026)

Amici only (no party cites it)

U.S. Const. art. III

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 4 (2).

Article III (H. Doc. 110-50)
§ 1 The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.
§ 2 The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;–to all Cases affecting Ambassadors, other public Ministers and Consuls;–to all Cases of admiralty and maritime Jurisdiction;–to Controversies to which the United States will be a party;–to Controversies between two or more States;–between a State and Citizens of another State;–between Citizens of different States,–between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.
In all Cases affecting Ambassadors, other public Ministers and Consuls, and those in which a State shall be Party, the supreme Court shall have original Jurisdiction. In all the other Cases before mentioned, the supreme Court shall have appellate Jurisdiction, both as to Law and Fact, with such Exceptions, and under such Regulations as the Congress shall make.
The Trial of all Crimes, except in Cases of Impeachment, shall be by Jury; and such Trial shall be held in the State where the said Crimes shall have been committed; but when not committed within any State, the Trial shall be at such Place or Places as the Congress may by Law have directed.
§ 3 Treason against the United States, shall consist only in levying War against them, or in adhering to their Enemies, giving them Aid and Comfort. No Person shall be convicted of Treason unless on the Testimony of two Witnesses to the same overt Act, or on Confession in open Court.
The Congress shall have Power to declare the Punishment of Treason, but no Attainder of Treason shall work Corruption of Blood, or Forfeiture except during the Life of the Person attainted.

5 U.S.C. § 705

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Relief pending review

When an agency finds that justice so requires, it may postpone the effective date of action taken by it, pending judicial review. On such conditions as may be required and to the extent necessary to prevent irreparable injury, the reviewing court, including the court to which a case may be taken on appeal from or on application for certiorari or other writ to a reviewing court, may issue all necessary and appropriate process to postpone the effective date of an agency action or to preserve status or rights pending conclusion of the review proceedings.

5 U.S.C. § 1101

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Office of Personnel Management

The Office of Personnel Management is an independent establishment in the executive branch. The Office shall have an official seal, which shall be judicially noticed, and shall have its principal office in the District of Columbia, and may have field offices in other appropriate locations.

18 U.S.C. § 242

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Deprivation of rights under color of law

Whoever, under color of any law, statute, ordinance, regulation, or custom, willfully subjects any person in any State, Territory, Commonwealth, Possession, or District to the deprivation of any rights, privileges, or immunities secured or protected by the Constitution or laws of the United States, or to different punishments, pains, or penalties, on account of such person being an alien, or by reason of his color, or race, than are prescribed for the punishment of citizens, shall be fined under this title or imprisoned not more than one year, or both; and if bodily injury results from the acts committed in violation of this section or if such acts include the use, attempted use, or threatened use of a dangerous weapon, explosives, or fire, shall be fined under this title or imprisoned not more than ten years, or both; and if death results from the acts committed in violation of this section or if such acts include kidnapping or an attempt to kidnap, aggravated sexual abuse, or an attempt to commit aggravated sexual abuse, or an attempt to kill, shall be fined under this title, or imprisoned for any term of years or for life, or both, or may be sentenced to death.

28 U.S.C. § 1331

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 5 (2).

Federal question

The district courts shall have original jurisdiction of all civil actions arising under the Constitution, laws, or treaties of the United States.

28 U.S.C. § 1350

Cited by the petitioners 0 times (0 filings) and their amici 2 (2); by the respondent 0 (0) and its amici 0 (0).

Alien's action for tort

The district courts shall have original jurisdiction of any civil action by an alien for a tort only, committed in violation of the law of nations or a treaty of the United States.

28 U.S.C. § 1442

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Federal officers or agencies sued or prosecuted

(a) A civil action or criminal prosecution that is commenced in a State court and that is against or directed to any of the following may be removed by them to the district court of the United States for the district and division embracing the place wherein it is pending:

(1) The United States or any agency thereof or any officer (or any person acting under that officer) of the United States or of any agency thereof, in an official or individual capacity, for or relating to any act under color of such office or on account of any right, title or authority claimed under any Act of Congress for the apprehension or punishment of criminals or the collection of the revenue.

(2) A property holder whose title is derived from any such officer, where such action or prosecution affects the validity of any law of the United States.

(3) Any officer of the courts of the United States, for or relating to any act under color of office or in the performance of his duties;

(4) Any officer of either House of Congress, for or relating to any act in the discharge of his official duty under an

order of such House.

(b) A personal action commenced in any State court by an alien against any citizen of a State who is, or at the time the alleged action accrued was, a civil officer of the United States and is a nonresident of such State, wherein jurisdiction is obtained by the State court by personal service of process, may be removed by the defendant to the district court of the United States for the district and division in which the defendant was served with process.

(c) Solely for purposes of determining the propriety of removal under subsection (a), a law enforcement officer, who is the defendant in a criminal prosecution, shall be deemed to have been acting under the color of his office if the officer—

(1) protected an individual in the presence of the officer from a crime of violence;

(2) provided immediate assistance to an individual who suffered, or who was threatened with, bodily harm; or

(3) prevented the escape of any individual who the officer reasonably believed to have committed, or was about to commit, in the presence of the officer, a crime of violence that resulted in, or was likely to result in, death or serious bodily injury.

(d) In this section, the following definitions apply:

(1) The terms "civil action" and "criminal prosecution" include any proceeding (whether or not ancillary to another proceeding) to the extent that in such proceeding a judicial order, including a subpoena for testimony or documents, is sought or issued. If removal is sought for a proceeding described in the previous sentence, and there is no other basis for removal, only that proceeding may be removed to the district court.

(2) The term "crime of violence" has the meaning given that term in section 16 of title 18.

(3) The term "law enforcement officer" means any employee described in subparagraph (A), (B), or (C) of section 8401(17) of title 5 and any special agent in the Diplomatic Security Service of the Department of State.

(4) The term "serious bodily injury" has the meaning given that term in section 1365 of title 18.

(5) The term "State" includes the District of Columbia, United States territories and insular possessions, and Indian country (as defined in section 1151 of title 18).

(6) The term "State court" includes the Superior Court of the District of Columbia, a court of a United States territory or insular possession, and a tribal court.

28 U.S.C. § 1606

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Extent of liability

As to any claim for relief with respect to which a foreign state is not entitled to immunity under section 1605 or 1607 of this chapter, the foreign state shall be liable in the same manner and to the same extent as a private individual under like circumstances; but a foreign state except for an agency or instrumentality thereof shall not be liable for punitive damages; if, however, in any case wherein death was caused, the law of the place where the action or omission occurred provides, or has been construed to provide, for damages only punitive in nature, the foreign state shall be liable for actual or compensatory damages measured by the pecuniary injuries resulting from such death which were incurred by the persons for whose benefit the action was brought.

28 U.S.C. § 2676

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 3 (3).

Judgment as bar

The judgment in an action under section 1346(b) of this title shall constitute a complete bar to any action by the claimant, by reason of the same subject matter, against the employee of the government whose act or omission gave rise to the claim.

29 U.S.C. § 666

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Civil and criminal penalties

(a) *Willful or repeated violation.* Any employer who willfully or repeatedly violates the requirements of section 654 of this title, any standard, rule, or order promulgated pursuant to section 655 of this title, or regulations prescribed pursuant to this chapter may be assessed a civil penalty of not more than $70,000 for each violation, but not less than $5,000 for each willful violation.

(b) *Citation for serious violation.* Any employer who has received a citation for a serious violation of the requirements of section 654 of this title, of any standard, rule, or order promulgated pursuant to section 655 of this title, or of any regulations prescribed pursuant to this chapter, shall be assessed a civil penalty of up to $7,000 for each such violation.

(c) *Citation for violation determined not serious.* Any employer who has received a citation for a violation of the requirements of section 654 of this title, of any standard, rule, or order promulgated pursuant to section 655 of this title, or of regulations prescribed pursuant to this chapter, and such violation is specifically determined not to be of a serious

nature, may be assessed a civil penalty of up to $7,000 for each such violation.
(d) *Failure to correct violation.* Any employer who fails to correct a violation for which a citation has been issued under section 658(a) of this title within the period permitted for its correction (which period shall not begin to run until the date of the final order of the Commission in the case of any review proceeding under section 659 of this title initiated by the employer in good faith and not solely for delay or avoidance of penalties), may be assessed a civil penalty of not more than $7,000 for each day during which such failure or violation continues.
(e) *Willful violation causing death to employee.* Any employer who willfully violates any standard, rule, or order promulgated pursuant to section 655 of this title, or of any regulations prescribed pursuant to this chapter, and that violation caused death to any employee, shall, upon conviction, be punished by a fine of not more than $10,000 or by imprisonment for not more than six months, or by both; except that if the conviction is for a violation committed after a first conviction of such person, punishment shall be by a fine of not more than $20,000 or by imprisonment for not more than one year, or by both.
(f) *Giving advance notice of inspection.* Any person who gives advance notice of any inspection to be conducted under this chapter, without authority from the Secretary or his designees, shall, upon conviction, be punished by a fine of not more than $1,000 or by imprisonment for not more than six months, or by both.
(g) *False statements, representations or certification.* Whoever knowingly makes any false statement, representation, or certification in any application, record, report, plan, or other document filed or required to be maintained pursuant to this chapter shall, upon conviction, be punished by a fine of not more than $10,000, or by imprisonment for not more than six months, or by both.
(h) *Omitted.*
(i) *Violation of posting requirements.* Any employer who violates any of the posting requirements, as prescribed under the provisions of this chapter, shall be assessed a civil penalty of up to $7,000 for each violation.
(j) *Authority of Commission to assess civil penalties.* The Commission shall have authority to assess all civil penalties provided in this section, giving due consideration to the appropriateness of the penalty with respect to the size of the business of the employer being charged, the gravity of the violation, the good faith of the employer, and the history of previous violations.
(k) *Determination of serious violation.* For purposes of this section, a serious violation shall be deemed to exist in a place of employment if there is a substantial probability that death or serious physical harm could result from a condition which exists, or from one or more practices, means, methods, operations, or processes which have been adopted or are in use, in such place of employment unless the employer did not, and could not with the exercise of reasonable diligence, know of the presence of the violation.
(l) *Procedure for payment of civil penalties.* Civil penalties owed under this chapter shall be paid to the Secretary for deposit into the Treasury of the United States and shall accrue to the United States and may be recovered in a civil action in the name of the United States brought in the United States district court for the district where the violation is alleged to have occurred or where the employer has its principal office.

34 U.S.C. § 30301

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 2 (1).

Findings
(1) 2,100,146 persons were incarcerated in the United States at the end of 2001: 1,324,465 in Federal and State prisons and 631,240 in county and local jails. In 1999, there were more than 10,000,000 separate admissions to and discharges from prisons and jails.
(2) Insufficient research has been conducted and insufficient data reported on the extent of prison rape. However, experts have conservatively estimated that at least 13 percent of the inmates in the United States have been sexually assaulted in prison. Many inmates have suffered repeated assaults. Under this estimate, nearly 200,000 inmates now incarcerated have been or will be the victims of prison rape. The total number of inmates who have been sexually assaulted in the past 20 years likely exceeds 1,000,000.
(3) Inmates with mental illness are at increased risk of sexual victimization. America's jails and prisons house more mentally ill individuals than all of the Nation's psychiatric hospitals combined. As many as 16 percent of inmates in State prisons and jails, and 7 percent of Federal inmates, suffer from mental illness.
(4) Young first-time offenders are at increased risk of sexual victimization. Juveniles are 5 times more likely to be sexually assaulted in adult rather than juvenile facilities—often within the first 48 hours of incarceration.
(5) Most prison staff are not adequately trained or prepared to prevent, report, or treat inmate sexual assaults.
(6) Prison rape often goes unreported, and inmate victims often receive inadequate treatment for the severe physical and psychological effects of sexual assault—if they receive treatment at all.
(7) HIV and AIDS are major public health problems within America's correctional facilities. In 2000, 25,088 inmates in Federal and State prisons were known to be infected with HIV/AIDS. In 2000, HIV/AIDS accounted for more than 6

percent of all deaths in Federal and State prisons. Infection rates for other sexually transmitted diseases, tuberculosis, and hepatitis B and C are also far greater for prisoners than for the American population as a whole. Prison rape undermines the public health by contributing to the spread of these diseases, and often giving a potential death sentence to its victims.

(8) Prison rape endangers the public safety by making brutalized inmates more likely to commit crimes when they are released—as 600,000 inmates are each year.

(9) The frequently interracial character of prison sexual assaults significantly exacerbates interracial tensions, both within prison and, upon release of perpetrators and victims from prison, in the community at large.

(10) Prison rape increases the level of homicides and other violence against inmates and staff, and the risk of insurrections and riots.

(11) Victims of prison rape suffer severe physical and psychological effects that hinder their ability to integrate into the community and maintain stable employment upon their release from prison. They are thus more likely to become homeless and/or require government assistance.

(12) Members of the public and government officials are largely unaware of the epidemic character of prison rape and the day-to-day horror experienced by victimized inmates.

(13) The high incidence of sexual assault within prisons involves actual and potential violations of the United States Constitution. In Farmer v. Brennan, 511 U.S. 825 (1994), the Supreme Court ruled that deliberate indifference to the substantial risk of sexual assault violates prisoners' rights under the Cruel and Unusual Punishments Clause of the Eighth Amendment. The Eighth Amendment rights of State and local prisoners are protected through the Due Process Clause of the Fourteenth Amendment. Pursuant to the power of Congress under Section Five of the Fourteenth Amendment, Congress may take action to enforce those rights in States where officials have demonstrated such indifference. States that do not take basic steps to abate prison rape by adopting standards that do not generate significant additional expenditures demonstrate such indifference. Therefore, such States are not entitled to the same level of Federal benefits as other States.

(14) The high incidence of prison rape undermines the effectiveness and efficiency of United States Government expenditures through grant programs such as those dealing with health care; mental health care; disease prevention; crime prevention, investigation, and prosecution; prison construction, maintenance, and operation; race relations; poverty; unemployment and homelessness. The effectiveness and efficiency of these federally funded grant programs are compromised by the failure of State officials to adopt policies and procedures that reduce the incidence of prison rape in that the high incidence of prison rape—

(A) increases the costs incurred by Federal, State, and local jurisdictions to administer their prison systems;

(B) increases the levels of violence, directed at inmates and at staff, within prisons;

(C) increases health care expenditures, both inside and outside of prison systems, and reduces the effectiveness of disease prevention programs by substantially increasing the incidence and spread of HIV, AIDS, tuberculosis, hepatitis B and C, and other diseases;

(D) increases mental health care expenditures, both inside and outside of prison systems, by substantially increasing the rate of post-traumatic stress disorder, depression, suicide, and the exacerbation of existing mental illnesses among current and former inmates;

(E) increases the risks of recidivism, civil strife, and violent crime by individuals who have been brutalized by prison rape; and

(F) increases the level of interracial tensions and strife within prisons and, upon release of perpetrators and victims, in the community at large.

(15) The high incidence of prison rape has a significant effect on interstate commerce because it increases substantially—

(A) the costs incurred by Federal, State, and local jurisdictions to administer their prison systems;

(B) the incidence and spread of HIV, AIDS, tuberculosis, hepatitis B and C, and other diseases, contributing to increased health and medical expenditures throughout the Nation;

(C) the rate of post-traumatic stress disorder, depression, suicide, and the exacerbation of existing mental illnesses among current and former inmates, contributing to increased health and medical expenditures throughout the Nation; and

(D) the risk of recidivism, civil strife, and violent crime by individuals who have been brutalized by prison rape.

34 U.S.C. § 30304

Cited by the petitioners 0 times (0 filings) and their amici 1 (1); by the respondent 0 (0) and its amici 0 (0).

Prison rape prevention and prosecution

(a) *Information and assistance.*

(1) *National clearinghouse.* There is established within the National Institute of Corrections a national clearinghouse for the provision of information and assistance to Federal, State, and local authorities responsible for the prevention, investigation, and punishment of instances of prison rape.

(2) *Training and education.* The National Institute of Corrections shall conduct periodic training and education programs for Federal, State, and local authorities responsible for the prevention, investigation, and punishment of instances of prison rape.

(b) *Reports.*

(1) *In general.* Not later than September 30 of each year, the National Institute of Corrections shall submit a report to Congress and the Secretary of Health and Human Services. This report shall be available to the Director of the Bureau of Justice Statistics.

(2) *Contents.* The report required under paragraph (1) shall summarize the activities of the Department of Justice regarding prison rape abatement for the preceding calendar year.

(c) *Authorization of appropriations.* There are authorized to be appropriated $5,000,000 for each of fiscal years 2004 through 2010 to carry out this section.

28 C.F.R. § 542.13

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Informal resolution. (eCFR, current as of Oct. 28, 2026)

(a) *Informal resolution.* Except as provided in § 542.13(b), an inmate shall first present an issue of concern informally to staff, and staff shall attempt to informally resolve the issue before an inmate submits a Request for Administrative Remedy. Each Warden shall establish procedures to allow for the informal resolution of inmate complaints.

(b) *Exceptions.* Inmates in CCCs are not required to attempt informal resolution. An informal resolution attempt is not required prior to submission to the Regional or Central Office as provided for in § 542.14(d) of this part. An informal resolution attempt may be waived in individual cases at the Warden or institution Administrative Remedy Coordinator's discretion when the inmate demonstrates an acceptable reason for bypassing informal resolution.

28 C.F.R. § 542.18

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 2 (1).

Response time. (eCFR, current as of Oct. 28, 2026)

If accepted, a Request or Appeal is considered filed on the date it is logged into the Administrative Remedy Index as received. Once filed, response shall be made by the Warden or CCM within 20 calendar days; by the Regional Director within 30 calendar days; and by the General Counsel within 40 calendar days. If the Request is determined to be of an emergency nature which threatens the inmate's immediate health or welfare, the Warden shall respond not later than the third calendar day after filing. If the time period for response to a Request or Appeal is insufficient to make an appropriate decision, the time for response may be extended once by 20 days at the institution level, 30 days at the regional level, or 20 days at the Central Office level. Staff shall inform the inmate of this extension in writing. Staff shall respond in writing to all filed Requests or Appeals. If the inmate does not receive a response within the time allotted for reply, including extension, the inmate may consider the absence of a response to be a denial at that level.

Cal. Civ. Code § 52.1

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

(current text, 2025 edition; retrieved 2026-10-28)

(a) This section shall be known, and may be cited, as the Tom Bane Civil Rights Act.

(b) If a person or persons, whether or not acting under color of law, interferes by threat, intimidation, or coercion, or attempts to interfere by threat, intimidation, or coercion, with the exercise or enjoyment by any individual or individuals of rights secured by the Constitution or laws of the United States, or of the rights secured by the Constitution or laws of this state, the Attorney General, or any district attorney or city attorney may bring a civil action for injunctive and other appropriate equitable relief in the name of the people of the State of California, in order to protect the peaceable exercise or enjoyment of the right or rights secured. An action brought by the Attorney General, any district attorney, or any city attorney may also seek a civil penalty of twenty-five thousand dollars ($25,000). If this civil penalty is requested, it shall be assessed individually against each person who is determined to have violated this section and the penalty shall be awarded to each individual whose rights under this section are determined to have been violated.

(c) Any individual whose exercise or enjoyment of rights secured by the Constitution or laws of the United States, or of rights secured by the Constitution or laws of this state, has been interfered with, or attempted to be interfered with, as described in subdivision (b), may institute and prosecute in their own name and on their own behalf a civil action for damages, including, but not limited to, damages under Section 52, injunctive relief, and other appropriate equitable

relief to protect the peaceable exercise or enjoyment of the right or rights secured, including appropriate equitable and declaratory relief to eliminate a pattern or practice of conduct as described in subdivision (b).

(d) An action brought pursuant to subdivision (b) or (c) may be filed either in the superior court for the county in which the conduct complained of occurred or in the superior court for the county in which a person whose conduct complained of resides or has their place of business. An action brought by the Attorney General pursuant to subdivision (b) also may be filed in the superior court for any county wherein the Attorney General has an office, and in that case, the jurisdiction of the court shall extend throughout the state.

(e) If a court issues a temporary restraining order or a preliminary or permanent injunction in an action brought pursuant to subdivision (b) or (c), ordering a defendant to refrain from conduct or activities, the order issued shall include the following statement: VIOLATION OF THIS ORDER IS A CRIME PUNISHABLE UNDER SECTION 422.77 OF THE PENAL CODE.

(f) The court shall order the plaintiff or the attorney for the plaintiff to deliver, or the clerk of the court to mail, two copies of any order, extension, modification, or termination thereof granted pursuant to this section, by the close of the business day on which the order, extension, modification, or termination was granted, to each local law enforcement agency having jurisdiction over the residence of the plaintiff and any other locations where the court determines that acts of violence against the plaintiff are likely to occur. Those local law enforcement agencies shall be designated by the plaintiff or the attorney for the plaintiff. Each appropriate law enforcement agency receiving any order, extension, or modification of any order issued pursuant to this section shall serve forthwith one copy thereof upon the defendant. Each appropriate law enforcement agency shall provide to any law enforcement officer responding to the scene of reported violence, information as to the existence of, terms, and current status of, any order issued pursuant to this section.

(g) A court shall not have jurisdiction to issue an order or injunction under this section, if that order or injunction would be prohibited under Section 527.3 of the Code of Civil Procedure.

(h) An action brought pursuant to this section is independent of any other action, remedy, or procedure that may be available to an aggrieved individual under any other provision of law, including, but not limited to, an action, remedy, or procedure brought pursuant to Section 51.7.

(i) In addition to any damages, injunction, or other equitable relief awarded in an action brought pursuant to subdivision (c), the court may award the petitioner or plaintiff reasonable attorney's fees.

(j) A violation of an order described in subdivision (e) may be punished either by prosecution under Section 422.77 of the Penal Code, or by a proceeding for contempt brought pursuant to Title 5 (commencing with Section 1209) of Part 3 of the Code of Civil Procedure. However, in any proceeding pursuant to the Code of Civil Procedure, if it is determined that the person proceeded against is guilty of the contempt charged, in addition to any other relief, a fine may be imposed not exceeding one thousand dollars ($1,000), or the person may be ordered imprisoned in a county jail not exceeding six months, or the court may order both the imprisonment and fine.

(k) Speech alone is not sufficient to support an action brought pursuant to subdivision (b) or (c), except upon a showing that the speech itself threatens violence against a specific person or group of persons; and the person or group of persons against whom the threat is directed reasonably fears that, because of the speech, violence will be committed against them or their property and that the person threatening violence had the apparent ability to carry out the threat.

(l) No order issued in any proceeding brought pursuant to subdivision (b) or (c) shall restrict the content of any person's speech. An order restricting the time, place, or manner of any person's speech shall do so only to the extent reasonably necessary to protect the peaceable exercise or enjoyment of constitutional or statutory rights, consistent with the constitutional rights of the person sought to be enjoined.

(m) The rights, penalties, remedies, forums, and procedures of this section shall not be waived by contract except as provided in Section 51.7.

(n) The state immunity provisions provided in Sections 821.6, 844.6, and 845.6 of the Government Code shall not apply to any cause of action brought against any peace officer or custodial officer, as those terms are defined in Chapter 4.5 (commencing with Section 830) of Title 3 of Part 2 of the Penal Code, or directly against a public entity that employs a peace officer or custodial officer, under this section.

(o) Sections 825, 825.2, 825.4, and 825.6 of the Government Code, providing for indemnification of an employee or former employee of a public entity, shall apply to any cause of action brought under this section against an employee or former employee of a public entity.

Amended by Stats. 2021, Ch. 409, Sec. 3. (SB 2) Effective January 1, 2022.

Mass. Const. pt. 1, art. XXX

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Text not stored locally (not in constitution.xml (renumbered or repealed since, or a cite we misread)).

Mass. Gen. Laws ch. 12, § 11H

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Section 11H: Violations of constitutional rights; civil actions by attorney general; right to bias-free professional policing (current text, retrieved 2026-10-29)

(a) (1) Whenever any person or persons, whether or not acting under color of law, interfere by threats, intimidation or coercion, or attempt to interfere by threats, intimidation or coercion, with the exercise or enjoyment by any other person or persons of rights secured by the constitution or laws of the United States, or of rights secured by the constitution or laws of the commonwealth, the attorney general may bring a civil action for injunctive or other appropriate equitable relief in order to protect the peaceable exercise or enjoyment of the right or rights secured. Said civil action shall be brought in the name of the commonwealth and shall be instituted either in the superior court for the county in which the conduct complained of occurred or in the superior court for the county in which the person whose conduct complained of resides or has his principal place of business.

(2) If the attorney general prevails in an action under this section, the attorney general shall be entitled to: (i) an award of compensatory damages for any aggrieved person or entity; and (ii) litigation costs and reasonable attorneys' fees in an amount to be determined by the court. In a matter involving the interference or attempted interference with any right protected by the constitution of the United States or of the commonwealth, the court may also award civil penalties against each defendant in an amount not exceeding $5,000 for each violation.

(b) All persons shall have the right to bias-free professional policing. Any conduct taken in relation to an aggrieved person by a law enforcement officer acting under color of law that results in the decertification of said law enforcement officer by the Massachusetts peace officer standards and training commission pursuant to section 10 of chapter 6E shall constitute interference with said person's right to bias-free professional policing and shall be a prima facie violation of said person's right to bias-free professional policing and a prima facie violation of subsection (a). No law enforcement officer shall be immune from civil liability for any conduct under color of law that violates a person's right to bias-free professional policing if said conduct results in the law enforcement officer's decertification by the Massachusetts peace officer standards and training commission pursuant to section 10 of chapter 6E; provided, however, that nothing in this subsection shall be construed to grant immunity from civil liability to a law enforcement officer for interference by threat, intimidation or coercion, or attempted interference by threats, intimidation or coercion, with the exercise or enjoyment any right secured by the constitution or laws of the United States or the constitution or laws of the commonwealth if the conduct of said officer was knowingly unlawful or was not objectively reasonable.

Me. Stat. tit. 5, § 4682

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Violations of constitutional rights; civil actions by aggrieved persons (current text, retrieved 2026-10-29)

1. Remedy.

[PL 1991, c. 821, §2 (RP).]

1. (REALLOCATED TO T. 5, §4682, sub-§1-A) Interference with rights; private actions.

[PL 2001, c. 50, §2 (NEW); RR 2001, c. 1, §11 (RAL).]

1-A. (REALLOCATED FROM T. 5, §4682, sub-§1) Interference with rights; private actions. A person whose exercise or enjoyment of the rights secured by the United States Constitution or the laws of the United States or of the rights secured by the Constitution of Maine or the laws of the State has been interfered with, or attempted to be interfered with, may institute and prosecute in that person's own name and on that person's own behalf a civil action for legal or equitable relief whenever any person, whether or not acting under color of law:

A. Violates section 4684-B; or

[PL 2023, c. 287, §2 (NEW).]

B. Intentionally interferes or attempts to intentionally interfere with the exercise or enjoyment by any other person of those secured rights by:

(1) Physical force or violence against a person;

(2) Damage or destruction of property or trespass on property;

(3) Threatening physical force or violence against a person;

(4) Threatening damage or destruction of property or trespass on property; or

(5) Engaging in any conduct that would cause a reasonable person to suffer emotional distress or to fear death or bodily injury to that person or to a close relation. For purposes of this subparagraph, "close relation" and "emotional distress" have the same meanings as in Title 17-A, section 210-A, subsection 2, paragraph B and paragraph D,

respectively.

[PL 2023, c. 287, §2 (NEW).]

[PL 2023, c. 287, §2 (AMD).]

2. Place of action. The action under subsection 1 must be instituted in the Superior Court for the county where the alleged violator resides or has a principal place of business.

[PL 2001, c. 50, §2 (NEW).]

3. Jury trial. There is a right to a jury at the trial of an action on the merits under this section, but there is no right to a jury at the hearing of an application for a preliminary injunction or a temporary restraining order.

[PL 2001, c. 50, §2 (NEW).]

4. Service of order or injunction. Each temporary restraining order or preliminary or permanent injunction issued under this section must include a statement describing the penalties provided in this section for a knowing violation of the order or injunction. The clerk of the Superior Court shall transmit one certified copy of each order or injunction issued under this section to the appropriate law enforcement agency having jurisdiction over locations where the defendant is alleged to have committed the act giving rise to the action, and service of the order or injunction must be accomplished pursuant to the Maine Rules of Civil Procedure. Unless otherwise ordered by the court, service must be made by the delivery of a copy in hand to the defendant.

[PL 2001, c. 50, §2 (NEW).]

5. Violation of restraining order or injunction. A person who knowingly violates a temporary restraining order or preliminary or permanent injunction issued under this section commits a Class D crime.

[PL 2001, c. 50, §2 (NEW).]

SECTION HISTORY PL 1989, c. 582 (NEW). PL 1991, c. 821, §2 (RPR). PL 1993, c. 442, §2 (AMD). PL 1995, c. 417, §2 (AMD). PL 2001, c. 50, §2 (RPR). RR 2001, c. 1, §11 (COR). PL 2023, c. 287, §2 (AMD).

N.J. Stat. Ann. § 10:6-2

Cited by the petitioners 0 times (0 filings) and their amici 0 (0); by the respondent 0 (0) and its amici 1 (1).

Actions permitted under the "New Jersey Civil Rights Act." (current text, retrieved 2026-10-29)

2.

a. If a person, whether or not acting under color of law, subjects or causes to be subjected any other person to the deprivation of any substantive due process or equal protection rights, privileges or immunities secured by the Constitution or laws of the United States, or any substantive rights, privileges or immunities secured by the Constitution or laws of this State, the Attorney General may bring a civil action for damages and for injunctive or other appropriate relief. The civil action shall be brought in the name of the State and may be brought on behalf of the injured party. If the Attorney General proceeds with and prevails in an action brought pursuant to this subsection, the court shall order the distribution of any award of damages to the injured party and shall award reasonable attorney's fees and costs to the Attorney General. The penalty provided in subsection e. of this section shall be applicable to a violation of this subsection.

b. If a person, whether or not acting under color of law, interferes or attempts to interfere by threats, intimidation or coercion with the exercise or enjoyment by any other person of any substantive due process or equal protection rights, privileges or immunities secured by the Constitution or laws of the United States, or any substantive rights, privileges or immunities secured by the Constitution or laws of this State, the Attorney General may bring a civil action for damages and for injunctive or other appropriate relief. The civil action shall be brought in the name of the State and may be brought on behalf of the injured party. If the Attorney General proceeds with and prevails in an action brought pursuant to this subsection, the court shall order the distribution of any award of damages to the injured party and shall award reasonable attorney's fees and costs to the Attorney General. The penalty provided in subsection e. of this section shall be applicable to a violation of this subsection.

c. Any person who has been deprived of any substantive due process or equal protection rights, privileges or immunities secured by the Constitution or laws of the United States, or any substantive rights, privileges or immunities secured by the Constitution or laws of this State, or whose exercise or enjoyment of those substantive rights, privileges or immunities has been interfered with or attempted to be interfered with, by threats, intimidation or coercion by a person acting under color of law, may bring a civil action for damages and for injunctive or other appropriate relief. The penalty provided in subsection e. of this section shall be applicable to a violation of this subsection.

d. An action brought pursuant to this act may be filed in Superior Court. Upon application of any party, a jury trial shall be directed.

e. Any person who deprives, interferes or attempts to interfere by threats, intimidation or coercion with the exercise or enjoyment by any other person of any substantive due process or equal protection rights, privileges or immunities secured by the Constitution or laws of the United States, or any substantive rights, privileges or immunities secured by the Constitution or laws of this State is liable for a civil penalty for each violation. The court or jury, as the case may be,

shall determine the appropriate amount of the penalty. Any money collected by the court in payment of a civil penalty shall be conveyed to the State Treasurer for deposit into the State General Fund.

f. In addition to any damages, civil penalty, injunction or other appropriate relief awarded in an action brought pursuant to subsection c. of this section, the court may award the prevailing party reasonable attorney's fees and costs.

L.2004,c.143,s.2.

Cites not resolved

Every cite tinted red or orange in this document, once each, with the pages it is on. Green: checked; red: not found or not fetched; orange: no source; yellow: an old US Code cite.

Likely miscites, or not fetched yet (26)

No case or provision was found for these, or its text has not been fetched. Check the cite in the source.

141 S. Ct. 56 — *no case found for this citation in the local database* p. 55

144 F.4th 926 — *no case found for this citation in the local database* p. 33, 48, 58, 82

144 S. Ct. 2562 — *no case found for this citation in the local database* p. 38

144 S. Ct. 555 — *no case found for this citation in the local database* p. 54

145 S. Ct. 137 — *no case found for this citation in the local database* p. 42, 51, 54, 68

145 S. Ct. 1930 — *no case found for this citation in the local database* p. 34

145 S. Ct. 285 — *no case found for this citation in the local database* p. 34, 48, 57

145 S. Ct. 529 — *no case found for this citation in the local database* p. 49

146 S. Ct. 1546 — *no case found for this citation in the local database* p. 88

146 S. Ct. 1882 — *no case found for this citation in the local database* p. 86, 102

146 S. Ct. 2283 — *no case found for this citation in the local database* p. 87, 106

146 S. Ct. 2404 — *no case found for this citation in the local database* p. 102

149 F.4th 226 — *no case found for this citation in the local database* p. 38

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150 F.4th 27 — *no case found for this citation in the local database* p. 33, 48, 57

153 F.4th 918 — *no case found for this citation in the local database* p. 56, 66, 84

173 F.4th 174 — *no case found for this citation in the local database* p. 68, 68

182 F.4th 1351 — *no case found for this citation in the local database* p. 101

35 P. 819 — *no case found for this citation in the local database* p. 105

45 F.4th 1134 — *no case found for this citation in the local database* p. 34, 48, 57

45 U.S.C. 51-60 — *not in the title 45 XML (renumbered or repealed, or a cite we misread)* p. 52

510 U.S. 486 — *no case found for this citation in the local database* p. 75

609 U.S. 141 — *no case found for this citation in the local database* p. 115

62 F.4th 122 — *no case found for this citation in the local database* p. 40, 68

684 F. Supp. 3d 112 — *no case found for this citation in the local database* p. 40

902 F.2d 1578 — *no case found for this citation in the local database* p. 29